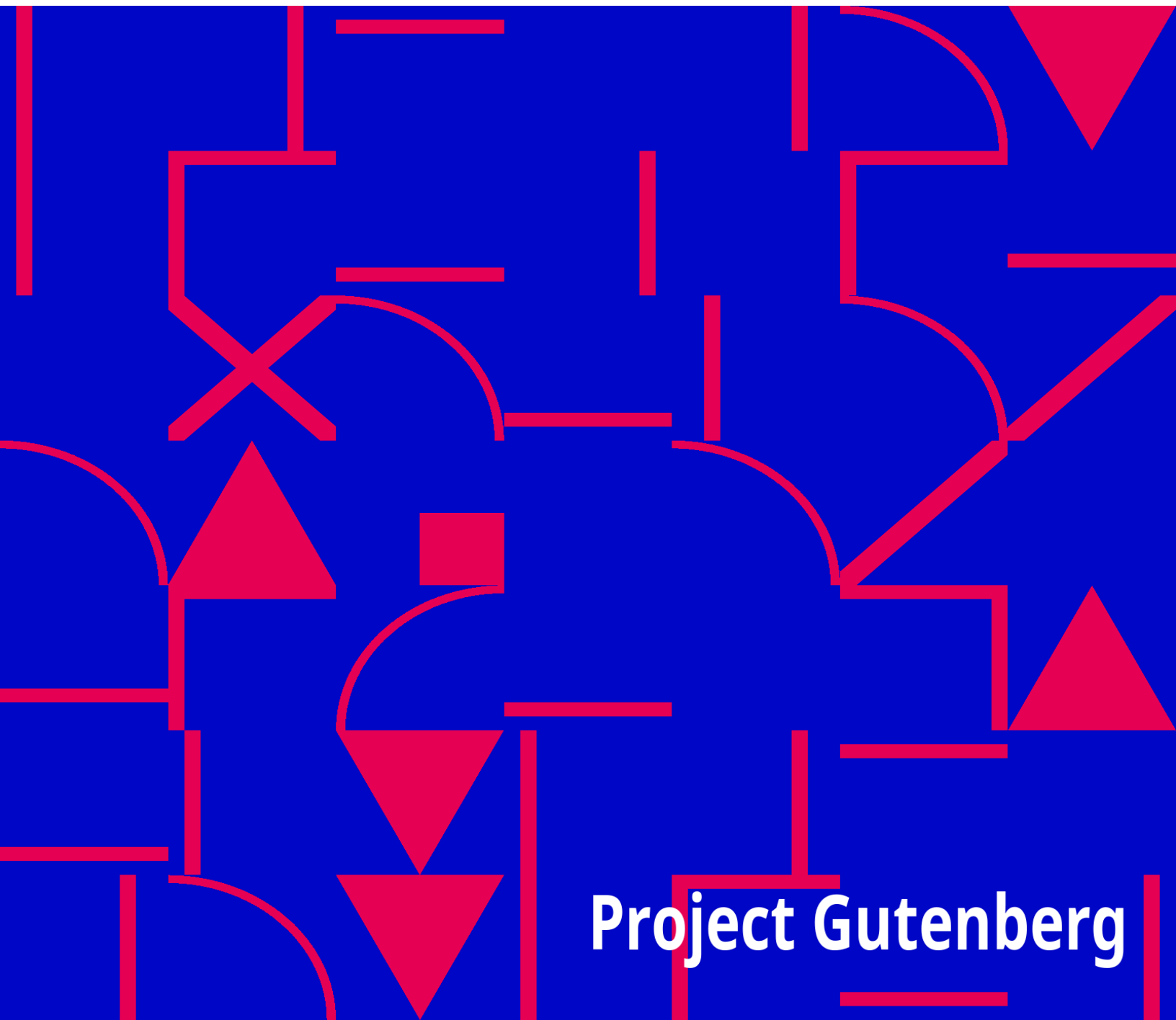


The History of Virginia, in Four Parts

Robert Beverley

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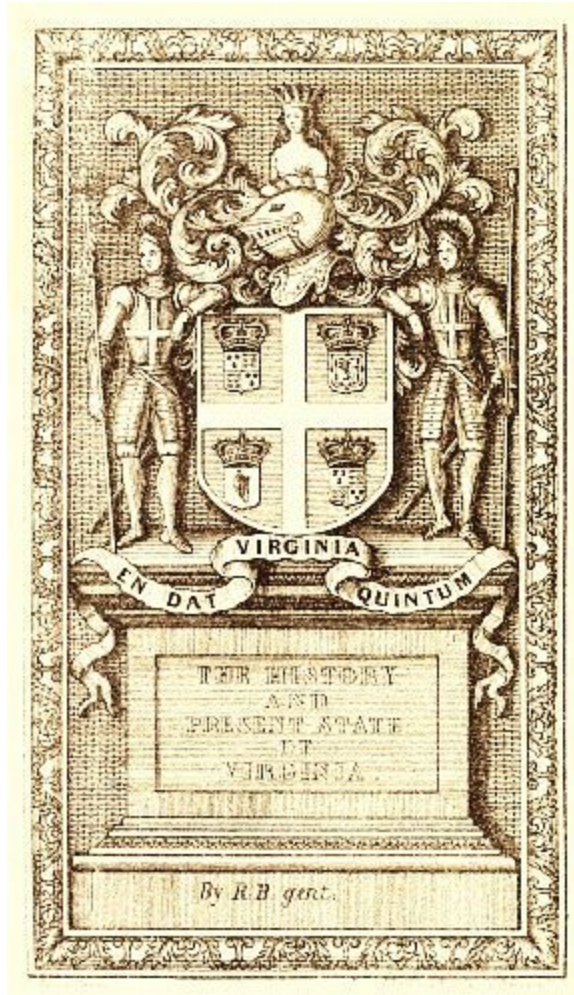
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1. Minor punctuation irregularities have been made consistent.
2. Numerous corrections have been made. A complete [list](#) is located at the end of the text together with word use variations.





THE

HISTORY OF VIRGINIA,

IN FOUR PARTS.

- I. THE HISTORY OF THE FIRST SETTLEMENT OF VIRGINIA, AND THE GOVERNMENT THEREOF, TO THE YEAR 1706.
- II. THE NATURAL PRODUCTIONS AND CONVENIENCES OF THE COUNTRY, SUITED TO TRADE AND IMPROVEMENT.
- III. THE NATIVE INDIANS, THEIR RELIGION, LAWS AND CUSTOMS, IN WAR AND PEACE.

IV. THE PRESENT STATE OF THE COUNTRY, AS TO THE POLITY OF THE
GOVERNMENT, AND THE IMPROVEMENTS OF THE LAND THE
10TH OF JUNE 1720.

BY ROBERT BEVERLEY,

A native and inhabitant of the place.

REPRINTED FROM THE AUTHOR'S SECOND REVISED EDITION, LONDON, 1722.

WITH AN INTRODUCTION

BY CHARLES CAMPBELL,

Author of the Colonial History of Virginia.

J. W. RANDOLPH,

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THE PREFACE.

My first business in the world being among the public records of my country, the active thoughts of my youth put me upon taking notes of the general administration of the government; but with no other design, than the gratification of my own inquisitive mind; these lay by me for many years afterwards, obscure and secret, and would forever have done so, had not the following accident produced them:

In the year 1703, my affairs calling me to England, I was soon after my arrival, complimented by my bookseller with an intimation, that there was prepared for printing a general account of all her majesty's plantations in America, and his desire, that I would overlook it before it was put to the press; I agreed to overlook that part of it which related to Virginia.

Soon after this he brings me about six sheets of paper written, which contained the account of Virginia and Carolina. This it seems was to have answered a part of Mr. Oldmixon's British Empire in America. I very innocently, (when I began to read,) placed pen and paper by me, and made my observations upon the first page, but found it in the sequel so very faulty, and an abridgement only of some accounts that had been printed sixty or seventy years ago; in which also he had chosen the most strange and untrue parts, and left out the more sincere and faithful, so that I laid aside all thoughts of further observations, and gave it only a reading; and my bookseller for answer, that the account was too faulty and too imperfect to be mended; withal telling him, that seeing I had in my junior days taken some notes of the government, which I then had with me in England, I would make him an account of my own country, if I could find time, while I staid in London. And this I should the rather undertake in justice to so fine a country, because it has been so misrepresented to the common people of England, as to make them believe that the servants in Virginia are made to draw in cart and plow as horses and oxen do in England, and that the

country turns all people black who go to live there, with other such prodigious phantasms.

Accordingly, before I left London, I gave him a short history of the country, from the first settlement, with an account of its then state; but I would not let him mingle it with Oldmixon's other account of the plantations, because I took them to be all of a piece with those I had seen of Virginia and Carolina, but desired mine to be printed by itself. And this I take to be the only reason of that gentleman's reflecting so severely upon me in his book, for I never saw him in my life that I know of.

But concerning that work of his, I may with great truth say, that (notwithstanding his boast of having the assistance of many original papers and memorials that I had not the opportunity of) he nowhere varies from the account that I gave, nor advances anything new of his own, but he commits so many errors, and imposes so many falsities upon the world, To instance some few out of the many:

Page 210, he says that they were near spent with cold, which is impossible in that hot country.

Page 220, he says that Captain Weymouth, in 1605, entered Powhatan river southward of the bay of Chesapeake;—whereas Powhatan river is now called James river, and lies within the mouth of Chesapeake bay some miles, on the west side of it; and Captain Weymouth's voyage was only to Hudson's river, which is in New York, much northward of the capes of Virginia.

Page 236, he jumbles the Potomac and eastern shore Indians as if they lived together, and never quarrelled with the English; whereas the last lived on the east side the great bay of Chesapeake, and the other on the west. The eastern shore Indians never had any quarrel with the English, but the Potomacs used many treacheries and enmities towards us, and joined in the intended general massacre, but by a timely discovery were prevented doing anything.

Page 245, he says that Morrison held an assembly, and procured that body of laws to be made; whereas Morrison only made an abridgement of the laws then in being, and compiled them into a regular body; and this he did

by direction of Sir William Berkeley, who, upon his going to England, left Morrison his deputy governor.

Page 248, he says (viz: in Sir William Berkeley's time) the English could send seven thousand men into the field, and have twice as many at home; whereas at this day they cannot do that, and yet have three times as many people in the country as they had then.

By page 251, he seems altogether ignorant of the situation of Virginia, the head of the bay and New York, for he there says:

"When the Indians at the head of the bay traveled to New York, they past, going and coming, by the frontiers of Virginia, and traded with the Virginians, &c.;" whereas the head of the bay is in the common route of the Indians traveling from New York to Virginia, and much about halfway.

Page 255, he says Sir William Berkeley withdrew himself from his government; whereas he went not out of it, for the counties of Accomac and Northampton, to which he retired, when the rebels rose, were two counties of his government, and only divided from the rest by the bay of Chesapeake.

Page 266, he says, Dr. Thomas Bray went over to be president of the college in Virginia; whereas he was sent to Maryland, as the bishop's commissary there. And Mr. Blair, in the charter to the college, was made president during life, and is still alive. He also says, that all that was subscribed for the college came to nothing; whereas all the subscriptions were in a short time paid in, and expended upon the college, of which two or three stood suit, and were cast.

Page 269, he tells of camels brought by some Guiana ships to Virginia, but had not then heard how they throve with us. I don't know how he should, for there never was any such thing done.

Then his geography of the country is most absurd, notwithstanding the wonderful care he pretends to have of the maps, and his expert knowledge of the new surveys, (page 278) making almost as many faults as descriptions. For instance:

Page 272, Prince George county, which lies all on the southside of James river, he places on the north, and says that part of James City county, and four of the parishes of it, lie on the southside of James river; whereas not one inch of it has so done these sixty years.

Page 273, his account of Williamsburg is most romantic and untrue; and so is his account of the college, page 302, 303.

Page 274, he makes Elizabeth and Warwick counties to lie upon York river; whereas both of them lie upon James river, and neither of them comes near York river.

Page 275, he places King William county above New Kent, and on both sides Pamunkey river; whereas it lies side by side with New Kent, and all on the north side Pamunkey river. He places King and Queen county upon the south of New Kent, at the head of Chickahominy river, which he says rises in it; whereas that county lies north of New Kent from head to foot, and two large rivers and two entire counties are between the head of Chickahominy and King & Queen. Essex, Richmond and Stafford counties, are as much wrong placed.

He says that York and Rappahannock rivers issue out of low marshes, and not from the mountains as the other rivers, which note he has taken from some old maps; but is a false account from my own view, for I was with our present governor at the head spring of both those rivers, and their fountains are in the highest ridge of mountains.

Page 276, he says that the neck of land between Niccocomoco river and the bay, is what goes by the name of the northern neck; whereas it is not above the twentieth part of the northern neck, for that contains all that track of land which is between Rappahannock and Potomac rivers.

How unfaithful and frontless must such an historian be, who can upon guess work introduce such falsities for truth, and bottom them upon such bold assertions? It would make a book larger than his own to expose his errors, for even the most general offices of the government he misrecites.

Page 298, he says the general court is called the quarter court, and is held every quarter of a year; whereas it never was held but three times a year, tho' it was called a quarter court. When he wrote, it was held but twice a

year, as I had wrote in my book, and has not been called a quarter court these seventy-nine years. The county courts were never limited in their jurisdiction to any summons, neither was the sheriff ever a judge in them, as he would have it, but always a ministerial officer to execute their process, &c.

The account that I have given in the following sheets is plain and true, and if it be not written with so much judgment, or in so good a method and style as I could wish, yet in the truth of it I rest fully satisfied. In this edition I have also retrenched such particulars as related only to private transactions, and characters in the historical part, as being too diminutive to be transmitted to posterity, and set down the succession of the governors, with the more general incidents of their government, without reflection upon the private conduct of any person.

INTRODUCTION.

The name of BEVERLEY has long been a familiar one in Virginia. It is said that the family may be traced among the records of the town of Beverley in England, as far back as to the time of King John. During the reign of Henry VIII, one of the Beverleys was appointed by the Crown a commissioner for enquiring into the state and condition of the northern monasteries. The family received some grants of church property, and one branch of them settled at Shelby, the other at Beverley, in Yorkshire. In the time of Charles I, John Beverley of Beverley adhered to the cause of royalty, and at the restoration his name appears in the list of those upon whom it was intended to confer the order of the Royal Oak. Robert Beverley of Beverley, the representative of the family, having sold his possessions in that town, removed with a considerable fortune to Virginia, where he purchased extensive tracts of land. He took up his residence in the county of Middlesex. Elected clerk of the House of Burgesses, he continued to hold that office until 1676, the year of Bacon's rebellion, in suppressing which he rendered important services, and by his loyal gallantry won the marked favor of the Governor, Sir William Berkley. In 1682 the discontents of Virginia arose again almost to the pitch of rebellion. Two sessions of the Assembly having been spent in angry and fruitless disputes, between Lord Culpepper, the Governor, and the House of Burgesses, in May of that year, the malcontents in the counties of Gloucester, New Kent and Middlesex, proceeded riotously to cut up the tobacco plants in the beds, especially the sweet-scented, which was produced nowhere else. Culpepper, the Governor, prevented further waste by patrols of horse. The ringleaders were arrested, and some of them hanged upon a charge of treason. A riot-act was also passed, making plant-cutting high treason, the necessity of which act evinces the illegality of the execution of these unfortunate plant-cutters. The vengeance of the government fell heavily upon Major Robert Beverley, clerk of the House of Burgesses, as the principal instigator of these disturbances. He had before incurred the displeasure of the governor and

council, by refusing to deliver up to them copies of the legislative journal, without permission of the Assembly. Thus by a firm adherence to his duty, he drew down upon himself an unrelenting persecution.

In May, 1682, he was committed a prisoner on board the ship, the Duke of York, lying in the Rappahannock river. Ralph Wormley, Matthew Kemp, and Christopher Wormley, were directed to seize the records in Beverley's possession, and to break open doors if necessary. Beverley was afterwards transferred from the Duke of York to the ship Concord, and a guard was set over him. Contriving however to escape from the custody of the sheriff at York, the fugitive was retaken at his own house in Middlesex county, and transported over to the county of Northampton, on the Eastern Shore. Some months afterwards he applied by his attorney, William Fitzhugh, for a writ of *habeas corpus*, which however was refused. In a short time being again found at large, he was again arrested, and remanded to Northampton. In 1683 new charges were brought against him: 1st. That he had broken open letters addressed to the Secretary's office; 2d. That he had made up the journal, and inserted his Majesty's letter therein, notwithstanding it had been first presented at the time of the prorogation; 3d. That in 1682 he had refused to deliver copies of the journal to the governor and council, saying "he might not do it without leave of his masters."

In May, 1684, Major Robert Beverley was found guilty of high misdemeanors, but judgment being respited, and the prisoner asking pardon on his bended knees, was released upon giving security for his good behavior in the penalty of £2,000. The abject terms in which he now sued for pardon, form a singular contrast to the constancy of his former resistance, and the once gallant and loyal Beverley, the strenuous partizan of Berkley, thus became the victim of that tyranny which he had once so resolutely defended. He had not however lost the esteem of his countrymen, for in 1685 he was again elected clerk of the Assembly. This body strenuously resisted the negative power claimed by the governor, and passed resolutions complaining strongly of his tyranny. He negatived them, and prorogued the Assembly. James II, indignant at these democratical proceedings, ordered their dissolution, and attributing these disorders mainly to Robert Beverley, their clerk, commanded that he should be incapable of holding any office, and that he should be prosecuted, and that in future the appointment of their clerk should be made by the governor.

In the spring of 1687 Robert Beverley died, the persecuted victim of an oppressive government. Long a distinguished loyalist, he lived to become a sort of patriot martyr. It is thus that in the circle of life extremes meet. He married Catherine Hone of James City, and their children were four sons: Peter, William, Harry, and Robert, (the historian,) and three daughters, who married respectively, William Randolph, eldest son of William Randolph of Turkey Island; Sir John Randolph, his brother, of Williamsburg; and John Robinson. Peter Beverley was appointed clerk of the Assembly in 1691.

In the preface to the first edition of his *History of Virginia*, published at London 1705, Robert Beverley says of himself: "I am an Indian, and don't pretend to be exact in my language." This intimation may perhaps have been merely playful, but the full and minute account that he has given of the Indians, shows that he took a peculiar interest in that race.

In the preface to the second edition of his history, now republished, he remarks: "My first business in this world being among the public records of my country, the active thoughts of my youth put me upon taking notes of the general administration of the government." He was probably a deputy in his father's office, and perhaps also in that of his brother Peter Beverley. This Peter Beverley was in 1714 promoted to the place of speaker of the House of Burgesses, and he was subsequently treasurer of the colony. Robert Beverley, the historian, was born in Virginia, and educated in England. He married Ursula, daughter of William Byrd of Westover, on the James river. She lies buried at Jamestown. John Fontaine, son of a Huguenot refugee, having come over from England to Virginia, visited Robert Beverley, the author of this work, in the year 1715, at his residence, near the head of the Mattaponi. Here he cultivated several varieties of the grape, native and French, in a vineyard of about three acres, situated upon the side of a hill, from which he made in that year four hundred gallons of wine. He went to very considerable expense in this enterprise, having constructed vaults of a wine press. But Fontaine comparing his method with that used in Spain, deemed it erroneous, and that his vineyard was not rightly managed. The home-made wine Fontaine drank heartily of, and found it good, but he was satisfied by the flavor of it that Beverley did not understand how to make it properly. Beverley lived comfortably, yet although wealthy, had nothing in or about his house but what was actually necessary. He had good beds, but no curtains, and instead of cane chairs

used wooden stools. He lived mainly within himself upon the products of his land. He had laid a sort of wager with some of the neighboring planters, he giving them one guinea in hand, and they promising to pay him each ten guineas, if in seven years he should cultivate a vineyard that would yield at one vintage seven hundred gallons of wine. Beverley thereupon paid them down one hundred pounds, and Fontaine entertained no doubt but that in the next year he would win the thousand guineas. Beverley owned a large tract of land at the place of his residence. On Sunday Fontaine accompanied him to his parish church, seven miles distant, where they heard a good sermon from the Rev. M. De Latané, a Frenchman. A son of Beverley accompanied Fontaine in some of his excursions in that neighborhood. On the banks of the Rappahannock, about five miles below the falls, (Fredericksburg,) Fontaine came upon a tract of three thousand acres of land, which Beverley offered him at £7 10s. per hundred acres, and Fontaine would have purchased it, had not Beverley somewhat singularly insisted upon making a title for nine hundred and ninety-nine years, instead of an absolute fee simple.

On the 20th of August, 1716, Alexander Spotswood, Governor of Virginia, accompanied by John Fontaine, started from Williamsburg on his expedition over the Appalachian mountains, as they were then called. Having crossed the York river at the Brick House, they lodged that night at Chelsea, the seat of Austin Moore, on the Mattaponi river, in the county of King William. On the following night they were hospitably entertained by Robert Beverley at his residence. The governor left his chaise there, and mounted his horse for the rest of the journey. Beverley accompanied Spotswood in this exploration. On the 26th of August Spotswood was joined by several gentlemen, two small companies of rangers, and four Meherrin Indians. The gentlemen of the party appear to have been Spotswood, Fontaine, Beverley, Austin Smith, Todd, Dr. Robinson, Taylor, Mason, Brooke, and Captains Clouder and Smith. The whole number of the party, including gentlemen, rangers, pioneers, Indians and servants, was probably about fifty. They had with them a large number of riding and pack-horses, an abundant supply of provisions, and an extraordinary variety of liquors.

The camps were named respectively after the gentlemen of the expedition, and the first one being that of the 29th of August, was named in honor of

our historian, Robert Beverley. Here "they made," as Fontaine records in his diary, "great fires, supped and drank good punch." In the preface to this edition of the work, (1722,) Beverley says in reference to this Tramontane expedition, "I was with the present Governor (Spotswood) at the head spring of both those rivers, (the York and the Rappahannock,) and their fountains are in the highest range of mountains." Thus it appears that the historian was one of the celebrated knights of the golden horseshoe.

An Abridgement of the Laws of Virginia, published at London in 1722 is ascribed to Robert Beverley. Filial indignation will naturally account for the acrimony which in his history he exhibits towards Lord Culpepper and Lord Howard of Effingham, who had so persecuted his father, the clerk of the Assembly, and against Nicholson, who was Effingham's deputy. In his second edition, when time had mitigated his animosities, Beverley omitted some of his accusations against those governors.

The first edition of Beverley's History of Virginia appeared at London in 1705. It was republished in French at Paris in 1707, and in the same year an edition was issued at Amsterdam. The second English edition was published in 1722 at London. The work is dedicated to the Right Honorable Robert Harley, so celebrated both as a statesman and as the patron of letters.

In the title page appear only the initials of the author's name, thus: "R. B. Gent.," whence the blundering historian, Oldmixon, supposed his name to be "Bullock," and in some German catalogues he received the appellation of "Bird." Warden, an American writer, has repeated this last misnomer. Beverley's work is divided into four parts, styled Books, and the fourth book is again divided into two parts.

Of the history, Mr. Jefferson in his "Notes on Virginia" has remarked, that it is "as concise and unsatisfactory as Stith is prolix and tedious." This criticism, however, is only applicable to Beverley's first book, which includes the civil history of the colony; the other three books on "the present state of Virginia" being sufficiently full and satisfactory. Brief as is the summary of history comprised in book first, it was probably quite ample enough for the taste of the readers of Beverley's day. His style of writing is easy, unsophisticated and pleasing, his simplicity of remark sometimes amusing, and the whole work breathes an earnest, downright, hearty, old-

fashioned Virginia spirit. His account of the internal affairs of the colony is faithful, and in the main correct, but in regard to events occurring beyond the precincts of Virginia, he is less reliable. The second book treats of the boundary of Virginia, waters, earth and soil, natural products, fish, wild fowl and hunted game. Book third gives a full and minute description of the manners and customs of the Indians, illustrated by Gribelin's engravings. The contents are the persons and dress of the Indians, marriage and management of children, towns, buildings and fortifications, cookery and food, travelling, reception and entertainments, language, war and peace, religion, diseases and remedies, sports and pastimes, laws and government, money, goods and handicrafts. The fourth book relates to the government of the colony, its sub-divisions, public offices, revenues, taxes, courts, the church, the college of William and Mary, militia, servants and slaves, poor laws, free schools, tenure and conveyance of lands, naturalization and currency, the people, buildings, eatables, drinkables and fuel, climate, diseases, recreations, natural productions, and the advantages of improved husbandry. The closing paragraph is as follows: "Thus they depend upon the liberality of Nature, without endeavoring to improve its gifts by art or industry. They sponge upon the blessings of a warm sun and a fruitful soil, and almost grudge the pains of gathering in the bounties of the earth. I should be ashamed to publish this slothful indolence of my countrymen, but that I hope it will rouse them out of their lethargy, and excite them to make the most of all those happy advantages which Nature has given them, and if it does this, I am sure they will have the goodness to forgive me." Happily, at the present day, Virginia has been aroused from her lethargy, and with energetic efforts is developing her rich resources. It may be hoped that with these material improvements a wider interest in the history of the past may be diffused.

Petersburg, May 30th, 1854.

HISTORY OF VIRGINIA.



BOOK I.



CHAPTER I.

SHEWING WHAT HAPPENED IN THE FIRST ATTEMPTS TO SETTLE VIRGINIA, BEFORE THE DISCOVERY OF CHESAPEAKE BAY.

The learned and valiant Sir Walter Raleigh, having entertained some deeper and more serious considerations upon the state of the earth than most other men of his time, as may sufficiently appear by his incomparable book, the History of the World, and having laid together the many stories then in Europe concerning America, the native beauty, riches, and value of that part of the world, and the immense profits the Spaniards drew from a small settlement or two thereon made, resolved upon an adventure for farther discoveries.

According to this purpose, in the year of our Lord 1583, he got several men of great value and estate to join in an expedition of this nature, and for their encouragement obtained letters patents from Queen Elizabeth, bearing date the 25th of March, 1584, for turning their discoveries to their own advantage.

§ 2. In April following they set out two small vessels under the command of Capt. Philip Amidas and Capt. Arthur Barlow, who after a prosperous voyage, anchored at the inlet by Roanoke, at present under the government of North Carolina. They made good profit of the Indian truck, which they bought for things of much inferior value, and returned. Being overpleased with their profits, and finding all things there entirely new and surprising, they gave a very advantageous account of matters, by representing the country so delightful and desirable, so pleasant and plentiful; the climate and air so temperate, sweet, and wholesome; the woods and soil so charming and fruitful; and all other things so agreeable, that paradise itself seemed to be there in its first native lustre.

They gave particular accounts of the variety of good fruits, and some whereof they had never seen the like before; especially, that there were grapes in such abundance as was never known in the world. Stately tall large oaks, and other timber; red cedar, cypress, pines, and other evergreens and sweet woods, for tallness and largeness, exceeding all they had ever heard of; wild fowl, fish, deer, and other game in such plenty and variety, that no epicure could desire more than this new world did seem naturally to afford.

And to make it yet more desirable, they reported the native Indians (which were then the only inhabitants) so affable, kind, and good-natured; so uncultivated in learning, trades, and fashions; so innocent and ignorant of all manner of politics, tricks, and cunning; and so desirous of the company of the English, that they seemed rather to be like soft wax, ready to take an impression, than anyways likely to oppose the settling of the English near them. They represented it as a scene laid open for the good and gracious Queen Elizabeth to propagate the gospel in and extend her dominions over; as if purposely reserved for her majesty by a peculiar direction of providence, that had brought all former adventures in this affair to nothing; and to give a further taste of their discovery, they took with them in their return for England, two men of the native Indians, named Wanchese and Manteo.

§ 3. Her majesty accordingly took the hint, and espoused the project as far as her present engagements in war with Spain would let her; being so well pleased with the account given, that as the greatest mark of honor she could do the discoverer, she called the country by the name of Virginia, as well for that it was first discovered in her reign, a virgin queen, as it did still seem to retain the virgin purity and plenty of the first creation, and the people their primitive innocence; for they seemed not debauched nor corrupted with those pomps and vanities which had depraved and enslaved the rest of mankind; neither were their hands hardened by labor, nor their minds corrupted by the desire of hoarding up treasure. They were without boundaries to their land, without property in cattle, and seem to have escaped, or rather not to have been concerned in the first curse, *of getting their bread by the sweat of their brows*, for by their pleasure alone they supplied all their necessities, namely, by fishing, fowling, and hunting; skins being their only clothing, and these, too, five-sixths of the year thrown

by; living without labor, and only gathering the fruits of the earth when ripe or fit for use; neither fearing present want, nor solicitous for the future, but daily finding sufficient afresh for their subsistence.

§ 4. This report was backed, nay, much advanced by the vast riches and treasure mentioned in several merchants' letters from Mexico and Peru, to their correspondents in Spain, which letters were taken with their ships and treasure, by some of ours in her majesty's service, in prosecution of the Spanish wars. This was encouragement enough for a new adventure, and set people's invention at work till they had satisfied themselves, and made sufficient essays for the farther discovery of the country. Pursuant whereunto, Sir Richard Greenville, the chief of Sir Walter Raleigh's associates, having obtained seven sail of ships, well laden with provision, arms, ammunition, and spare men to make a settlement, set out in person with them early in the spring of the succeeding year to make farther discoveries, taking back the two Indians with him, and according to his wish, in the latter end of May, arrived at the same place where the English had been the year before; there he made a settlement, sowed beans and peas, which he saw come up and grow to admiration while he staid, which was about two months, and having made some little discoveries more in the sound to the southward, and got some treasure in skins, furs, pearl, and other rarities in the country, for things of inconsiderable value, he returned for England, leaving one hundred and eight men upon Roanoke island, under the command of Mr. Ralph Lane, to keep possession.

§ 5. As soon as Sir Richard Greenville was gone, they, according to order and their own inclination, set themselves earnestly about discovering the country, and ranged about a little too indiscreetly up the rivers, and into the land backward from the rivers, which gave the Indians a jealousy of their meaning; for they cut off several stragglers of them, and had laid designs to destroy the rest, but were happily prevented. This put the English upon the precaution of keeping more within bounds, and not venturing themselves too defenceless abroad, who till then had depended too much upon the natives simplicity and innocence.

After the Indians had done this mischief, they never observed any real faith towards those English; for being naturally suspicious and revengeful themselves, they never thought the English could forgive them; and so by

this jealousy, caused by the cowardice of their nature, they were continually doing mischief.

The English, notwithstanding all this, continued their discoveries, but more carefully than they had done before, and kept the Indians in some awe, by threatening them with the return of their companions again with a greater supply of men and goods; and before the cold of the winter became uneasy, they had extended their discoveries near an hundred miles along the seacoast to the northward; but not reaching the southern cape of Chesapeake bay in Virginia, they had as yet found no good harbor.

§ 6. In this condition they maintained their settlement all the winter, and till August following; but were much distressed for want of provisions, not having learned to gather food, as the Indians did, nor having conveniences like them of taking fish and fowl; besides, being now fallen out with the Indians, they feared to expose themselves to their contempt and cruelty; because they had not received the supply they talked of, and which had been expected in the spring.

All they could do under these distresses, and the despair of the recruits promised them this year, was only to keep a good looking out to seaward, if, perchance, they might find any means of escape, or recruit. And to their great joy and satisfaction in August aforesaid, they happened to espy and make themselves be seen to Sir Francis Drake's fleet, consisting of twenty-three sail, who being sent by her majesty upon the coast of America, in search of the Spanish treasures, had orders from her majesty to take a view of this plantation, and see what assistance and encouragement it wanted: Their first petition to him was to grant them a fresh supply of men and provisions, with a small vessel, and boats to attend them; that so if they should be put to distress for want of relief, they might embark for England. This was as readily granted by Sir Francis Drake, as asked by them; and a ship was appointed them, which ship they began immediately to fit up, and supply plentifully with all manner of stores for a long stay; but while they were adoining this, a great storm arose, and drove that very ship (with some others) from her anchor to sea, and so she was lost for that occasion.

Sir Francis would have given them another ship, but this accident coming on the back of so many hardships which they had undergone, daunted them,

and put them upon imagining that Providence was averse to their designs; and now having given over for that year the expectation of their promised supply from England, they consulted together, and agreed to desire Sir Francis Drake to take them along with him, which he did.

Thus their first intention of settlement fell, after discovering many things of the natural growth of the country, useful for the life of man, and beneficial to trade, they having observed a vast variety of fish, fowl and beasts; fruits, seeds, plants, roots, timber-trees, sweet-woods and gums: They had likewise attained some little knowledge in the language of the Indians, their religion, manners, and ways of correspondence one with another, and been made sensible of their cunning and treachery towards themselves.

§ 7. While these things were thus acting in America, the adventurers in England were providing, though too tediously, to send them recruits. And though it was late before they could dispatch them (for they met with several disappointments, and had many squabbles among themselves); however, at last they provided four good ships, with all manner of recruits suitable for the colony, and Sir Walter Raleigh designed to go in person with them.

Sir Walter got his ship ready first, and fearing the ill consequence of a delay, and the discouragement it might be to those that were left to make a settlement, he set sail by himself. And a fortnight after him Sir Richard Greenville sailed with the three other ships.

Sir Walter fell in with the land at Cape Hatteras, a little to the southward of the place, where the one hundred and eight men had been settled, and after search not finding them, he returned: However Sir Richard, with his ships, found the place where he had left the men, but entirely deserted, which was at first a great disheartening to him, thinking them all destroyed, because he knew not that Sir Francis Drake had been there and taken them off; but he was a little better satisfied by Manteo's report, that they were not cut off by the Indians, though he could give no good account what was become of them. However, notwithstanding this seeming discouragement, he again left fifty men in the same island of Roanoke, built them houses necessary, gave them two years provision, and returned.

§ 8. The next summer, being Anno 1587, three ships more were sent, under the command of Mr. John White, who himself was to settle there as governor with more men, and some women, carrying also plentiful recruits of provisions.

In the latter end of July they arrived at Roanoke aforesaid, where they again encountered the uncomfortable news of the loss of these men also; who (as they were informed by Manteo) were secretly set upon by the Indians, some cut off, and the others fled, and not to be heard of, and their place of habitation now all grown up with weeds. However, they repaired the houses on Roanoke, and sat down there again.

The 13th of August they christened Manteo, and styled him Lord of Dassamonpeak, an Indian nation so called, in reward of the fidelity he had shewn to the English from the beginning, who being the first Indian that was made a Christian in that part of the world, I thought it not amiss to remember him.

On the same occasion also may be mentioned the first child there born of Christian parentage, viz: a daughter of Mr. Ananias Dare. She was born the 18th of the same August, upon Roanoke, and, after the name of the country, was christened Virginia.

This seemed to be a settlement prosperously made, being carried on with much zeal and unanimity among themselves. The form of government consisted of a governor and twelve counselors, incorporated by the name of governor and assistants, of the city of Raleigh, in Virginia.

Many nations of the Indians renewed their peace, and made firm leagues with the corporation. The chief men of the English also were so far from being disheartened at the former disappointments, that they disputed for the liberty of remaining on the spot; and by mere constraint compelled Mr. White, their governor, to return for England to negotiate the business of their recruits and supply, as a man the most capable to manage that affair, leaving at his departure one hundred and fifteen in the corporation.

§ 9. It was above two years before Mr. White could obtain any grant of supplies, and then in the latter end of the year 1589, he set out from Plymouth with three ships, and sailed round by the Western and Caribbee

islands, they having hitherto not found any nearer way: for though they were skilled in navigation, and understood the use of the globes, yet did example so much prevail upon them, that they chose to sail a thousand leagues about, rather than attempt a more direct passage.

Towards the middle of August, 1590, they arrived upon the coast, at Cape Hatteras, and went to search upon Roanoke for the people; but found, by letters on the trees, that they were removed to Croatan, one of the islands forming the sound, and southward of Roanoke about twenty leagues, but no sign of distress. Thither they designed to sail to them in their ships; but a storm arising in the meanwhile, lay so hard upon them that their cables broke; they lost three of their anchors, were forced to sea, and so returned home, without ever going near those poor people again for sixteen years following. And it is supposed that the Indians, seeing them forsaken by their country, and unfurnished of their expected supplies, cut them off, for to this day they were never more heard of.

Thus, after all this vast expense and trouble, and the hazard and loss of so many lives, Sir Walter Raleigh, the great projector and furtherer of these discoveries and settlements, being under trouble, all thoughts of farther prosecuting these designs lay dead for about twelve years following.

§ 10. And then, in the year 1602, Captain Gosnell, who had made one in the former adventures, furnished out a small bark from Dartmouth, and set sail in her himself with thirty odd men, designing a more direct course, and not to stand so far to the southward, nor pass by the Caribbee Islands, as all former adventurers had done. He attained his ends in that, but touched upon the coast of America, much to the northward of any of the places where the former adventurers had landed, for he fell first among the islands forming the northern side of Massachusetts bay in New England; but not finding the conveniences that harbor affords, set sail again southward, and, as he thought, clear of land into the sea, but fell upon the Bay of Cape Cod.

Upon this coast, and a little to the southward, he spent some time in trade with the Indians, and gave names to the islands of Martha's Vineyard and Elizabeth's Isle, which retain the same to this day. Upon Elizabeth's Isle he made an experiment of English grain, and found it spring up and grow to admiration as it had done at Roanoke. Here also his men built huts to shelter

them in the night and bad weather, and made good profit by their Indian traffic of furs, skins, &c. And as their pleasure invited them, would visit the main, set receivers, and save the gums and juices distilling from sweet woods, and try and examine the lesser vegetables.

After a month's stay here, they returned for England, as well pleased with the natural beauty and richness of the place they had viewed, as they were with the treasure they had gathered in it: neither had they a head, nor a finger that ached among them all the time.

§ 11. The noise of this short and most profitable of all the former voyages, set the Bristol merchants to work also; who, early in the year 1603, sent two vessels in search of the same place and trade—which vessels fell luckily in with the same land. They followed the same methods Captain Gosnell had done, and having got a rich lading they returned.

§ 12. In the year 1605, a voyage was made from London in a single ship, with which they designed to fall in with the land about the latitude 39°, but the winds put her a little farther northward, and she fell upon the eastern parts of Long Island, (as it is now called, but all went then under the name of Virginia.) Here they trafficked with the Indians, as the others had done before them; made short trials of the soil by English grain, and found the Indians, as in all other places, very fair and courteous at first, till they got more knowledge of the English, and perhaps thought themselves overreached because one bought better pennyworths than another, upon which, afterwards, they never failed to take revenge as they found their opportunity or advantage. So this company also returned with the ship, having ranged forty miles up Connecticut river, and called the harbor where they rid Penticost harbor, because of their arrival there on Whitsunday.

In all these latter voyages, they never so much as endeavored to come near the place where the first settlement was attempted at Cape Hatteras; neither had they any pity on those poor hundred and fifteen souls settled there in 1587, of whom there had never since been any account, no relief sent to them, nor so much as any enquiry made after them, whether they were dead or alive, till about three years after this, when Chesapeake bay in Virginia was settled, which hitherto had never been seen by any Englishman. So strong was the desire of riches, and so eager the pursuit of a rich trade, that

all concern for the lives of their fellow-christians, kindred, neighbors and countrymen, weighed nothing in the comparison, though an enquiry might have been easily made when they were so near them.

CHAPTER II.

CONTAINING AN ACCOUNT OF THE FIRST SETTLEMENT OF CHESAPEAKE BAY, IN VIRGINIA, BY THE CORPORATION OF LONDON ADVENTURERS, AND THEIR PROCEEDINGS DURING THEIR GOVERNMENT BY A PRESIDENT AND COUNCIL ELECTIVE.

§ 13. The merchants of London, Bristol, Exeter, and Plymouth soon perceived what great gains might be made of a trade this way, if it were well managed and colonies could be rightly settled, which was sufficiently evinced by the great profits some ships had made, which had not met with ill accidents. Encouraged by this prospect, they joined together in a petition to King James the First, shewing forth that it would be too much for any single person to attempt the settling of colonies, and to carry on so considerable a trade; they therefore prayed his majesty to incorporate them, and enable them to raise a joint stock for that purpose, and to countenance their undertaking.

His majesty did accordingly grant their petition, and by letters patents, bearing date the 10th of April, 1606, did in one patent incorporate them into two distinct colonies, to make two separate companies, viz: "Sir Thomas Gates, Sir George Summers, knights; Mr. Richard Hackluit, clerk, prebend of Westminster, and Edward Maria Wingfield, esq., adventurers of the city of London, and such others as should be joined unto them of that colony, which should be called the first colony, with liberty to begin their first plantation and seat, at any place upon the coast of Virginia where they should think fit and convenient, between the degrees of thirty-four and forty-one of northern latitude. And that they should extend their bounds from the said first seat of their plantation and habitation fifty English miles along the seacoast each way, and include all the lands within an hundred miles directly over against the same seacoast, and also back into the main land one hundred miles from the seacoast; and that no other should be permitted or suffered to plant or inhabit behind or on the back of them

towards the main land, without the express license of the council of that colony, thereunto in writing first had and obtained. And for the second colony, Thomas Hanham, Rawleigh Gilbert, William Parker, and George Popham, esquires, of the town of Plymouth, and all others who should be joined to them of that colony, with liberty to begin their first plantation and seat at any place upon the coast of Virginia where they should think fit, between the degrees of thirty-eight and forty five of northern latitude, with the like liberties and bounds as the first colony; provided they did not seat within an hundred miles of them."

§ 14. By virtue of this patent, Capt. John Smith was sent by the London company, in December, 1606, on his voyage with three small ships, and a commission was given to him, and to several other gentlemen, to establish a colony, and to govern by a president, to be chosen annually, and council, who should be invested with sufficient authorities and powers. And now all things seemed to promise a plantation in good earnest. Providence seemed likewise very favorable to them, for though they designed only for that part of Virginia where the hundred and fifteen were left, and where there is no security of harbor, yet, after a tedious voyage of passing the old way again, between the Caribbee islands and the main, he, with two of his vessels, luckily fell in with Virginia itself, that part of the continent now so called, anchoring in the mouth of the bay of Chesapeake; and the first place they landed upon was the southern cape of that bay; this they named Cape Henry, and the northern Cape Charles, in honor of the king's two eldest sons; and the first great river they searched, whose Indian name was Powhatan, they called James river, after the king's own name.

§ 15. Before they would make any settlement here, they made a full search of James river, and then by an unanimous consent pitched upon a peninsula about fifty miles up the river, which, besides the goodness of the soil, was esteemed as most fit, and capable to be made a place both of trade and security, two-thirds thereof being environed by the main river, which affords good anchorage all along, and the other third by a small narrow river, capable of receiving many vessels of an hundred ton, quite up as high as till it meets within thirty yards of the main river again, and where generally in spring tides it overflows into the main river, by which means the land they chose to pitch their town upon has obtained the name of an

island. In this back river ships and small vessels may ride lashed to one another, and moored ashore secure from all wind and weather whatsoever.

The town, as well as the river, had the honor to be called by King James' name. The whole island thus enclosed contains about two thousand acres of high land, and several thousands of very good and firm marsh, and is an extraordinary good pasture as any in that country.

By means of the narrow passage, this place was of great security to them from the Indian enemy; and if they had then known of the biting of the worm in the salts, they would have valued this place upon that account also, as being free from that mischief.

§ 16. They were no sooner settled in all this happiness and security, but they fell into jars and dissensions among themselves, by a greedy grasping at the Indian treasure, envying and overreaching one another in that trade.

After five weeks stay before this town, the ships returned home again, leaving one hundred and eight men settled in the form of government before spoken of.

After the ships were gone, the same sort of feuds and disorders happened continually among them, to the unspeakable damage of the plantation.

The Indians were the same there as in all other places, at first very fair and friendly, though afterwards they gave great proofs of their deceitfulness. However, by the help of the Indian provisions, the English chiefly subsisted till the return of the ships the next year, when two vessels were sent thither full freighted with men and provisions for supply of the plantation, one of which only arrived directly, and the other being beat off to the Caribbee islands, did not arrive till the former was sailed again for England.

§ 17. In the interval of these ships returning from England, the English had a very advantageous trade with the Indians, and might have made much greater gains of it, and managed it both to the greater satisfaction of the Indians, and the greater ease and security of themselves, if they had been under any rule, or subject to any method in trade, and not left at liberty to outvie or outbid one another, by which they not only cut short their own profit, but created jealousies and disturbances among the Indians, by letting one have a better bargain than another; for they being unaccustomed to

barter, such of them as had been hardest dealt by in their commodities, thought themselves cheated and abused; and so conceived a grudge against the English in general, making it a national quarrel; and this seems to be the original cause of most of their subsequent misfortunes by the Indians.

What also gave a greater interruption to this trade, was an object that drew all their eyes and thoughts aside, even from taking the necessary care for their preservation, and for the support of their lives, which was this: They found in a neck of land, on the back of Jamestown island, a fresh stream of water springing out of a small bank, which washed down with it a yellow sort of dust isinglass, which being cleansed by the fresh streaming of the water, lay shining in the bottom of that limpid element, and stirred up in them an unseasonable and inordinate desire after riches; for they taking all to be gold that glittered, run into the utmost distraction, neglecting both the necessary defence of their lives from the Indians, and the support of their bodies by securing of provisions; absolutely relying, like Midas, upon the almighty power of gold, thinking that where this was in plenty, nothing could be wanting; but they soon grew sensible of their error, and found that if this gilded dirt had been real gold, it could have been of no advantage to them. For, by their negligence, they were reduced to an exceeding scarcity of provisions, and that little they had was lost by the burning of their town, while all hands were employed upon this imaginary golden treasure; so that they were forced to live for some time upon the wild fruits of the earth, and upon crabs, muscles, and such like, not having a day's provision beforehand; as some of the laziest Indians, who have no pleasure in exercise, and wont be at the pains to fish and hunt: And, indeed, not so well as they neither; for by this careless neglecting of their defence against the Indians, many of them were destroyed by that cruel people, and the rest durst not venture abroad, but were forced to be content with what fell just into their mouths.

§ 18. In this condition they were, when the first ship of the two before mentioned came to their assistance, but their golden dreams overcame all difficulties; they spoke not, nor thought of anything but gold, and that was all the lading that most of them were willing to take care for; accordingly they put into this ship all the yellow dirt they had gathered, and what skins and furs they had trucked for, and filling her up with cedar, sent her away.

After she was gone, the other ship arrived, which they stowed likewise with this supposed gold dust, designing never to be poor again; filling her up with cedar and clap-board.

Those two ships being thus dispatched, they made several discoveries in James river and up Chesapeake bay, by the undertaking and management of Captain John Smith; and the year 1608 was the first year in which they gathered Indian corn of their own planting.

While these discoveries were making by Captain Smith, matters run again into confusion in Jamestown, and several uneasy people, taking advantage of his absence, attempted to desert the settlement, and run away with the small vessel that was left to attend upon it; for Captain Smith was the only man among them that could manage the discoveries with success, and he was the only man, too, that could keep the settlement in order. Thus the English continued to give themselves as much perplexity by their own distraction as the Indians did by their watchfulness and resentments.

§ 19. Anno 1609, John Laydon and Anna Burrows were married together, the first Christian marriage in that part of the world; and the year following the plantation was increased to near five hundred men.

This year Jamestown sent out people, and made two other settlements; one at Nansemond in James river, above thirty miles below Jamestown, and the other at Powhatan, six miles below the falls of James river, (which last was bought of Powhatan for a certain quantity of copper,) each settlement consisting of about a hundred and twenty men. Some small time after another was made at Kiquotan by the mouth of James river.

CHAPTER III.

SHEWING WHAT HAPPENED AFTER THE ALTERATION OF THE GOVERNMENT FROM AN ELECTIVE PRESIDENT TO A COMMISSIONATED GOVERNOR, UNTIL THE DISSOLUTION OF THE COMPANY.

§ 20. In the meanwhile the treasurer, council and company of Virginia adventurers in London, not finding that return and profit from the adventurers they expected, and rightly judging that this disappointment, as well as the idle quarrels in the colony, proceeded from a mismanage of government, petitioned his majesty, and got a new patent with leave to appoint a governor.

Upon this new grant they sent out nine ships, and plentiful supplies of men and provisions, and made three joint commissioners or governors in equal power, viz: Sir Thomas Gates, Sir George Summers, and Captain Newport. They agreed to go all together in one ship.

This ship, on board of which the three governors had embarked, being separated from the rest, was put to great distress in a severe storm; and after three days and nights constant bailing and pumping, was at last cast ashore at Bermudas, and there staved, but by good providence the company was preserved.

Notwithstanding this shipwreck, and extremity they were put to, yet could not this common misfortune make them agree. The best of it was, they found plenty of provisions in that island, and no Indians to annoy them. But still they quarrelled amongst themselves, and none more than the two Knights; who made their parties, built each of them a cedar vessel, one called the Patience, the other the Deliverance, and used what they gathered of the furniture of the old ship for rigging; and fish-oil, and hog's-grease, mixed with lime and ashes, instead of pitch and tar: for they found great plenty of Spanish hogs in this island, which are supposed to have swam ashore from some wrecks, and there afterwards increased.

§. 21. While these things were acting in Bermuda, Capt. Smith being very much burnt by the accidental firing of some gun-powder, as he was upon a discovery in his boat, was forced for his cure sake, and the benefit of a surgeon, to take his passage for England, in a ship that was then upon the point of sailing.

Several of the nine ships that came out with the three governors arrived, with many of the passengers; some of which, in their humors, would not submit to the government there, pretending the new commission destroyed the old one; that governors were appointed instead of a president, and that they themselves were to be of the council, and so would assume an independent power, inspiring the people with disobedience; by which means they became frequently exposed in great parties to the cruelty of the Indians; all sorts of discipline was laid aside, and their necessary defence neglected; so that the Indians taking advantage of those divisions, formed a stratagem to destroy them root and branch; and, indeed, they did cut many of them off, by massacreing whole companies at a time; so that all the out-settlements were deserted, and the people that were not destroyed, took refuge in Jamestown, except the small settlement at Kiquotan, where they had built themselves a little fort, and called it Algernoon fort. And yet, for all this, they continued their disorders, wasting their old provisions, and neglecting to gather others; so that they who remained alive, were all near famished, having brought themselves to that pass, that they durst not stir from their own doors to gather the fruits of the earth, or the crabs and muscles from the water-side: much less to hunt or catch wild beasts, fish or fowl, which were found in great abundance there. They continued in these scanty circumstances, till they were at last reduced to such extremity, as to eat the very hides of their horses, and the bodies of the Indians they had killed; and sometimes also upon a pinch they would not disdain to dig them up again, to make a homely meal, after they had been buried.

Thus, a few months indiscreet management brought such an infamy upon the country, that to this day it cannot be wiped away. And the sicknesses occasioned by this bad diet, or rather want of diet, are unjustly remembered to the disadvantage of the country, as a fault in the climate; which was only the foolishness and indiscretion of those who assumed the power of governing. I call it assumed, because the new commission mentioned, by

which they pretended to be of the council, was not in all this time arrived, but remained in Bermuda with the new governors.

Here, I cannot but admire the care, labor, courage and understanding, that Capt. John Smith showed in the time of his administration; who not only founded, but also preserved all these settlements in good order, while he was amongst them; and, without him, they had certainly all been destroyed, either by famine, or the enemy long before; though the country naturally afforded subsistence enough, even without any other labor than that of gathering and preserving its spontaneous provisions.

For the first three years that Capt. Smith was with them, they never had in that whole time, above six months English provisions. But as soon as he had left them to themselves, all went to ruin; for the Indians had no longer any fear for themselves, or friendship for the English. And six months after this gentleman's departure, the 500 men that he had left were reduced to threescore; and they, too, must of necessity, have starved, if their relief had been delayed a week longer at sea.

§. 22. In the mean time, the three governors put to sea from Bermuda, in their two small vessels, with their company, to the number of one hundred and fifty, and in fourteen days, viz.: the 25th of May, 1610, they arrived both together in Virginia, and went with their vessels up to Jamestown, where they found the small remainder of the five hundred men, in that melancholy way I just now hinted.

§. 23. Sir Thomas Gates, Sir George Summers, and Captain Newport, the governors, were very compassionate of their condition, and called a council, wherein they informed them, that they had but sixteen days provision aboard; and therefore desired to know their opinion, whether they would venture to sea under such a scarcity; or, if they resolved to continue in the settlement, and take their fortunes, they would stay likewise, and share the provisions among them; but desired that their determination might be speedy. They soon came to the conclusion of returning for England; but because their provisions were short, they resolved to go by the banks of Newfoundland, in hopes of meeting with some of the fishermen, (this being now the season,) and dividing themselves among their ships, for the greater certainty of provision, and for their better accommodation.

According to this resolution, they all went aboard, and fell down to Hog Island, the 9th of June, at night, and the next morning to Mulberry Island Point, which is eighteen miles below Jamestown, and thirty above the mouth of the river; and there they spied a long boat, which the Lord Delawarr (who was just arrived with three ships,) had sent before him up the river sounding the channel. His lordship was made sole governor, and was accompanied by several gentlemen of condition. He caused all the men to return again to Jamestown; re-settled them with satisfaction, and staid with them till March following; and then being very sick, he returned for England, leaving about two hundred in the colony.

§. 24. On the 10th of May, 1611, Sir Thomas Dale being then made governor, arrived with three ships, which brought supplies of men, cattle and hogs. He found them growing again into the like disorders as before, taking no care to plant corn, and wholly relying upon their store, which then had but three months provision in it. He therefore set them to work about corn, and though it was the middle of May before they began to prepare the ground, yet they had an indifferent good crop.

§. 25. In August, the same year, Sir Thomas Gates arrived at Jamestown with six ships more, and with a plentiful supply of hogs, cattle, fowls, &c., with a good quantity of ammunition, and all other things necessary for a new colony, and besides this, a reinforcement of three hundred and fifty chosen men. In the beginning of September he settled a new town at Arrabattuck, about fifty miles above Jamestown, paling in the neck above two miles from the point, from one reach of the river to the other. Here he built forts and sentry-boxes, and in honor of Henry Prince of Wales, called it Henrico. And also run a palisade on the other side of the river, at Coxendale, to secure their hogs.

§. 26. Anno 1612, two ships more arrived with supplies; and Capt. Argall, who commanded one of them, being sent in her to Patowmeck to buy corn, he there met with Pocahontas, the excellent daughter of Powhatan; and having prevailed with her to come aboard to a treat, he detained her prisoner, and carried her to Jamestown, designing to make peace with her father by her release; but on the contrary, that prince resented the affront very highly; and although he loved his daughter with all imaginable tenderness, yet he would not be brought to terms by that unhandsome

treachery; till about two years after a marriage being proposed between Mr. John Rolfe, an English gentleman, and this lady; which Powhatan taking to be a sincere token of friendship, he vouchsafed to consent to it, and to conclude a peace, though he would not come to the wedding.

§. 27. Pocahontas being thus married in the year 1613, a firm peace was concluded with her father. Both the English and Indians thought themselves entirely secure and quiet. This brought in the Chickahominy Indians also, though not out of any kindness or respect to the English, but out of fear of being, by their assistance, brought under Powhatan's absolute subjection, who used now and then to threaten and tyrannize over them.

§. 28. Sir Thomas Dale returning for England, Anno 1610, took with him Mr. Rolfe and his wife Pocahontas, who, upon the marriage, was christened, and called Rebecca. He left Capt. George Yardly deputy-governor during his absence, the country being then entirely at peace; and arrived at Plymouth the 12th of June.

Capt. John Smith was at that time in England, and hearing of the arrival of Pocahontas at Portsmouth, used all the means he could to express his gratitude to her, as having formerly preserved his life by the hazard of her own; for, when by the command of her father, Capt. Smith's head was upon the block to have his brains knocked out, she saved his head by laying hers close upon it. He was at that time suddenly to embark for New England, and fearing he should sail before she got to London, he made an humble petition to the Queen in her behalf, which I here choose to give you in his own words, because it will save me the story at large.

§. 29. Capt. Smith's petition to her Majesty, in behalf of Pocahontas, daughter to the Indian Emperor, Powhatan.

To the most high and virtuous princess, Queen Anne, of Great Britain:

Most admired madam—

The love I bear my God, my king, and country, hath so often emboldened me in the worst of extreme dangers, that now honestly doth constrain me to presume thus far beyond myself, to present your majesty this short discourse. If ingratitude be a deadly poison to all honest virtues, I must be guilty of that crime, if I should omit any means to be thankful.

So it was,

That about ten years ago, being in Virginia, and taken prisoner by the power of Powhatan, their chief king, I received from this great savage exceeding great courtesy, especially from his son, Nantaquaus; the manliest, comeliest, boldest spirit I ever saw in a savage; and his sister Pocahontas, the king's most dear and well-beloved daughter, being but a child of twelve or thirteen years of age, whose compassionate pitiful heart of my desperate estate gave me much cause to respect her. I being the first Christian this proud king and his grim attendants ever saw, and thus enthralled in their barbarous power; I cannot say I felt the least occasion of want, that was in the power of those my mortal foes to prevent, notwithstanding all their threats. After some six weeks fattening amongst those savage courtiers, at the minute of my execution, she hazarded the beating out of her own brains to save mine, and not only that, but so prevailed with her father, that I was safely conducted to Jamestown, where I found about eight and thirty miserable, poor and sick creatures, to keep possession for all those large territories of Virginia. Such was the weakness of this poor commonwealth, as had not the savages fed us, we directly had starved.

And this relief, most gracious queen, was commonly brought us by this lady Pocahontas, notwithstanding all these passages, when unconstant fortune turned our peace to war, this tender virgin would still not spare to dare to visit us; and by her our jars have been oft appeased, and our wants still supplied. Were it the policy of her father thus to employ her, or the ordinance of God thus to make her his instrument, or her extraordinary affection to our nation, I know not: but of this I am sure, when her father, with the utmost of his policy and power, sought to surprise me, having but eighteen with me, the dark night could not affright her from coming through the irksome woods, and, with watered eyes, give me intelligence, with her best advice to escape his fury, which had he known, he had surely slain her.

Jamestown, with her wild train, she as freely frequented as her father's habitation; and during the time of two or three years, she, next under God, was still the instrument to preserve this colony from death, famine, and utter confusion, which if, in those times, had once been dissolved, Virginia might have lain, as it was at our first arrival, till this day. Since then, this business having been turned and varied by many accidents from what I left

it, it is most certain, after a long and troublesome war, since my departure, betwixt her father and our colony, all which time she was not heard of, about two years after she herself was taken prisoner, being so detained near two years longer, the colony by that means was relieved, peace concluded, and at last, rejecting her barbarous condition, she was married to an English gentleman, with whom at this present she is in England. The first Christian ever of that nation; the first Virginian ever spake English, or had a child in marriage by an Englishman—a matter surely, if my meaning be truly considered and well understood, worthy a prince's information.

Thus, most gracious lady, I have related to your majesty, what at your best leisure, our approved histories will recount to you at large, as done in the time of your majesty's life; and however this might be presented you from a more worthy pen, it cannot from a more honest heart.

As yet, I never begged anything of the State; and it is my want of ability, and her exceeding desert; your birth, means, and authority; her birth, virtue, want and simplicity, doth make me thus bold, humbly to beseech your majesty to take this knowledge of her, though it be from one so unworthy to be the reporter as myself; her husband's estate not being able to make her fit to attend your majesty.

The most and least I can do, is to tell you this, and the rather because of her being of so great a spirit, however her stature. If she should not be well received, seeing this kingdom may rightly have a kingdom by her means; her present love to us and Christianity, might turn to such scorn and fury, as to divert all this good to the worst of evil. Where finding that so great a queen should do her more honor than she can imagine, for having been kind to her subjects and servants, 'twould so ravish her with content, as to endear her dearest blood, to effect that your majesty and all the king's honest subjects most earnestly desire. And so I humbly kiss your gracious hands, &c.

(Signed)

JOHN SMITH.

Dated June, 1616.

§. 30. This account was presented to her majesty, and graciously received. But before Capt. Smith sailed for New England, the Indian princess arrived at London, and her husband took lodgings for her at Branford, to be a little out of the smoke of the city, whither Capt. Smith, with some of his friends, went to see her and congratulate her arrival, letting her know the address he had made to the queen in her favor.

Till this lady arrived in England, she had all along been informed that Captain Smith was dead, because he had been diverted from that colony by making settlements in the second plantation, now called New England; for which reason, when she saw him, she seemed to think herself much affronted, for that they had dared to impose so gross an untruth upon her, and at first sight of him turned away. It cost him a great deal of intreaty, and some hours attendance, before she would do him the honor to speak to him; but at last she was reconciled, and talked freely to him. She put him in mind of her former kindnesses, and then upbraided him for his forgetfulness of her, showing by her reproaches, that even a state of nature teaches to abhor ingratitude.

She had in her retinue a Werowance, or great man of her own nation, whose name was Uttamaccomack. This man had orders from Powhatan, to count the people in England, and give him an account of their number. Now the Indians having no letters among them, he at his going ashore, provided a stick, in which he was to make a notch for every man he saw; but this accomptant soon grew weary of that tedious exercise, and threw his stick away: and at his return, being asked by his king, How many people there were? He desired him to count the stars in the sky, the leaves upon the trees, and the sand on the seashore, for so many people (he said) were in England.

§. 31. Pocahontas had many honors done her by the queen upon account of Captain Smith's story; and being introduced by the Lady Delawarr, she was frequently admitted to wait on her majesty, and was publicly treated as a prince's daughter; she was carried to many plays, balls, and other public entertainments, and very respectfully received by all the ladies about the court. Upon all which occasions, she behaved herself with so much decency, and showed so much grandeur in her deportment, that she made good the brightest part of the character Capt. Smith had given of her. In the meanwhile, she gained the good opinion of everybody so much, that the

poor gentleman, her husband, had like to have been called to an account, for presuming to marry a princess royal without the king's consent; because it had been suggested that he had taken advantage of her, being a prisoner, and forced her to marry him. But upon a more perfect representation of the matter, his majesty was pleased at last to declare himself satisfied. But had their true condition here been known, that pother had been saved.

Everybody paid this young lady all imaginable respect; and it is supposed, she would have sufficiently acknowledged those favors, had she lived to return to her own country, by bringing the Indians to have a kinder disposition towards the English. But upon her return she was unfortunately taken ill at Gravesend, and died in a few days after, giving great testimony all the time she lay sick, of her being a very good Christian. She left issue one son, named Thomas Rolfe, whose posterity is at this day in good repute in Virginia, and now hold lands by descent from her.

§. 32. Captain Yardly made but a very ill governor, he let the buildings and forts go to ruin; not regarding the security of the people against the Indians, neglecting the corn, and applying all hands to plant tobacco, which promised the most immediate gain. In this condition they were when Capt. Samuel Argall was sent thither governor, Anno 1617, who found the number of people reduced to little more than four hundred, of which not above half were fit for labor. In the meanwhile the Indians mixing among them, got experience daily in fire arms, and some of them were instructed therein by the English themselves, and employed to hunt and kill wild fowl for them. So great was their security upon this marriage; but governor Argall not liking those methods, regulated them on his arrival, and Capt. Yardly returned to England.

§. 33. Governor Argall made the colony flourish and increase wonderfully, and kept them in great plenty and quiet. The next year, viz.: Anno 1618, the Lord Delawarr was sent over again with two hundred men more for the settlement, with other necessaries suitable: but sailing by the Western Islands, they met with contrary winds, and great sickness; so that about thirty of them died, among which the Lord Delawarr was one. By which means the government there still continued in the hands of Capt. Argall.

§. 34. Powhatan died in April the same year, leaving his second brother Itopatin in possession of his empire, a prince far short of the parts of Oppechancanough, who by some was said to be his elder brother, and then king of Chickahomony; but he having debauched them from the allegiance of Powhatan, was disinherited by him. This Oppechancanough was a cunning and a brave prince, and soon grasped all the empire to himself. But at first they jointly renewed the peace with the English, upon the accession of Itopatin to the crown.

§. 35. Governor Argall flourishing thus under the blessings of peace and plenty, and having no occasion of fear or disturbance from the Indians, sought new occasions of encouraging the plantation. To that end, he intended a coasting voyage to the northward, to view the places where the English ships had so often laded; and if he missed them, to reach the fisheries on the banks of Newfoundland, and so settle a trade and correspondence either with the one or the other. In accomplishing whereof, as he touched at Cape Cod, he was informed by the Indians, that some white people like him were come to inhabit to the northward of them, upon the coast of their neighboring nations. Capt. Argall not having heard of any English plantation that way, was jealous that it might be (as it proved,) the people of some other nation. And being very zealous for the honor and benefit of England, he resolved to make search according to the information he had received, and see who they were. Accordingly he found the settlement, and a ship riding before it. This belonged to some Frenchmen, who had fortified themselves upon a small mount on the north of New England.

§. 36. His unexpected arrival so confounded the French, that they could make no preparation for resistance on board their ship; which Captain Argall drew so close to, that with his small arms he beat all the men from the deck, so that they could not use their guns, their ship having only a single deck. Among others, there were two Jesuits on board, one of which being more bold than wise, with all that disadvantage, endeavored to fire one of their cannon, and was shot dead for his pains.

Captain Argall having taken the ship, landed and went before the fort, summoning it to surrender. The garrison asked time to advise; but that being denied them, they stole privately away, and fled into the woods. Upon this,

Captain Argall entered the fort, and lodged there that night; and the next day the French came to him, and surrendered themselves. It seems the king of France had granted them a patent for this settlement, but they gave it up to Captain Argall to be cancelled. He used them very well, and suffered such as had a mind to return to France, to seek their passage among the ships of the fishery; but obliged them to desert this settlement. And those that were willing to go to Virginia, he took with him.

§. 37. These people were under the conduct of two Jesuits, who upon taking a pique against their governor in Acadia, named Biencourt, had lately separated from a French settlement at Port Royal, lying in the bay, upon the south-west part of Acadia.

§. 38. As Governor Argall was about to return to Virginia, father Biard, the surviving Jesuit (out of malice to Biencourt,) told him of this French settlement at Port Royal, and offered to pilot him to it; which Governor Argall readily accepted of. With the same ease, he took that settlement also; where the French had sowed and reaped, built barns, mills, and other conveniences, which Captain Argall did no damage to; but unsettled them, and obliged them to make a desertion from thence. He gave these the same leave he had done the others, to dispose of themselves; some whereof returned to France, and others went to settle up the river of Canada. After this Governor Argall returned satisfied with the provision and plunder he had got in those two settlements.

§. 39. The report of these exploits soon reached England; and whether they were approved or no, being acted without particular direction, I have not learned; but certain it is, that in April following there arrived a small vessel, which did not stay for anything, but took on board Governor Argall, and returned for England. He left Capt. Nathaniel Powel deputy; and soon after Capt. Yardly being knighted, was sent governor thither again.

§. 40. Very great supplies of cattle and other provisions were sent there that year, and likewise 1000 or 1200 men. They resettled all their old plantations that had been deserted, made additions to the number of the council, and called an assembly of Burgesses from all parts of the country, which were to be elected by the people in their several plantations.

These burgesses met the governor and council at Jamestown in May, 1620, and sat in consultation in the same house with them, as the method of the Scots Parliament is, debating matters for the improvement and good government of the country.

This was the first general assembly that was ever held there. I heartily wish though they did not unite their houses again, they would, however, unite their endeavors and affections for the good of the country.

§. 41. In August following, a Dutch man-of-war landed twenty negroes for sale; which were the first of that kind that were carried into the country.

§. 42. This year they bounded the corporations, (as they called them:) But there does not remain among the records any one grant of these corporations. There is entered a testimony of Governor Argall, concerning the bounds of the corporation of James City, declaring his knowledge thereof; and this is one of the new transcribed books of record. But there is not to be found one word of the charter or patent itself of this corporation.

Then also, they apportioned and laid our lands in several allotments, viz.: to the company in several places, to the governor, to a college, to glebes, and to several particular persons; many new settlements were made in James and York rivers. The people knew their own property, and having the encouragement of working for their own advantage, many became very industrious, and began to vie one with another, in planting, building, and other improvements. Two gentlemen went over as deputies to the company, for the management of their lands, and those of the college. All thoughts of danger from the Indians were laid aside. Several great gifts were made to the church and college, and for the bringing up young Indians at school. Forms were made, and rules appointed for granting patents for land, upon the condition of importing goods and persons to supply and increase the colony. And all there then began think themselves the happiest people in the world.

§. 43. Thus Virginia continued to flourish and increase, great supplies continually arriving, and new settlements being made all over the country. A salt work was set up at Cape Charles, on the Eastern Shore; and an iron work at Falling Creek, in James river, where they made proof of good iron ore, and brought the whole work so near a perfection, that they writ word to

the company in London, that they did not doubt but to finish the work, and have plentiful provision of iron for them by the next Easter. At that time the fame of the plenty and riches, in which the English lived there, was very great. And Sir George Yardly now had all the appearance of making amends for the errors of his former government. Nevertheless he let them run into the same sleepiness and security as before, neglecting all thoughts of a necessary defence, which laid the foundation of the following calamities.

§. 44. But the time of his government being near expired, Sir Francis Wyat, then a young man, had a commission to succeed him. The people began to grow numerous, thirteen hundred settling there that year; which was the occasion of making so much tobacco, as to overstock the market. Wherefore his majesty, out of pity to the country, sent his commands, that they should not suffer their planters to make above one hundred pounds of tobacco per man; for the market was so low, that he could not afford to give them above three shillings the pound for it. He advised them rather to turn their spare time towards providing corn and stock, and towards the making of potash, or other manufactures.

It was October, 1621, that Sir Francis Wyat arrived governor, and in November, Captain Newport arrived with fifty men, imported at his own charge, besides passengers; and made a plantation on Newport's News, naming it after himself. The governor made a review of all the settlements, and suffered new ones to be made, even as far as Potomac river. This ought to be observed of the Eastern Shore Indians, that they never gave the English any trouble, but courted and befriended them from first to last. Perhaps the English, by the time they came to settle those parts, had considered how to rectify their former mismanagement, and learned better methods of regulating their trade with the Indians, and of treating them more kindly than at first.

§. 45. Anno 1622, inferior courts were first appointed by the general assembly, under the name of county courts, for trial of minute causes; the governor and council still remaining judges of the supreme court of the colony. In the meantime, by the great increase of people, and the long quiet they had enjoyed among the Indians, since the marriage of Pocahontas, and the accession of Oppechancanough to the imperial crown, all men were lulled into a fatal security, and became everywhere familiar with the

Indians, eating, drinking, and sleeping amongst them; by which means they became perfectly acquainted with all our English strength, and the use of our arms—knowing at all times, when and where to find our people; whether at home, or in the woods; in bodies, or disperst; in condition of defence, or indefensible. This exposing of their weakness gave them occasion to think more contemptibly of them, than otherwise, perhaps, they would have done; for which reason they became more peevish, and more hardy to attempt anything against them.

§. 46. Thus upon the loss of one of their leading men, (a war captain, as they call him,) who was likewise supposed to be justly killed, Oppechancanough took affront, and in revenge laid the plot of a general massacre of the English, to be executed on the 22d of March, 1622, a little before noon, at a time when our men were all at work abroad in their plantations, disperst and unarmed. This hellish contrivance was to take effect upon all the several settlements at one and the same instant, except on the Eastern Shore, whither this plot did not reach. The Indians had been made so familiar with the English, as to borrow their boats and canoes to cross the river in, when they went to consult with their neighboring Indians upon this execrable conspiracy. And to color their design the better, they brought presents of deer, turkies, fish and fruits to the English the evening before. The very morning of the massacre, they came freely and unarmed among them, eating with them, and behaving themselves with the same freedom and friendship as formerly, till the very minute they were to put their plot in execution. Then they fell to work all at once everywhere, knocking the English unawares on the head, some with their hatchets, which they call tomahawks, others with the hoes and axes of the English themselves, shooting at those who escaped the reach of their hands; sparing neither age nor sex, but destroying man, woman, and child, according to their cruel way of leaving none behind to bear resentment. But whatever was not done by surprise that day, was left undone, and many that made early resistance escaped.

By the account taken of the Christians murdered that morning, they were found to be three hundred and forty-seven, most of them falling by their own instruments, and working tools.

§. 47. The massacre had been much more general, had not this plot been providentially discovered to the English some hours before the execution. It happened thus:

Two Indians that used to be employed by the English to hunt for them, happened to lie together, the night before the massacre, in an Englishmen's house, where one of them was employed. The Indian that was the guest fell to persuading the other to rise and kill his master, telling him, that he would do the same by his own the next day. Whereupon he discovered the whole plot that was designed to be executed on the morrow. But the other, instead of entering into the plot, and murdering his master, got up (under pretence of going to execute his comrade's advice,) went into his master's chamber, and revealed to him the whole story that he had been told. The master hereupon arose, secured his own house, and before day got to Jamestown, which, together with such plantations as could receive notice time enough, were saved by this means; the rest, as they happened to be watchful in their defence, also escaped; but such as were surprised, were massacred. Captain Croshaw in his vessel at Potomac, had notice also given him by a young Indian, by which means he came off untouched.

§. 48. The occasion upon which Oppechancanough took affront was this. The war captain mentioned before to have been killed, was called Nemattanow. He was an active Indian, a great warrior, and in much esteem among them; so much, that they believed him to be invulnerable, and immortal, because he had been in very many conflicts, and escaped untouched from them all. He was also a very cunning fellow, and took great pride in preserving and increasing this their superstition concerning him, affecting everything that was odd and prodigious, to work upon their admiration. For which purpose he would often dress himself up with feathers after a fantastic manner, and by much use of that ornament, obtained among the English the nickname of Jack of the feather.

This Nemattanow coming to a private settlement of one Morgan, who had several toys which he had a mind to, persuaded him to go to Pamunky to dispose of them. He gave him hopes what mighty bargains he might meet with there, and kindly offered him his assistance. At last Morgan yielded to his persuasion; but was no more heard of; and it is believed, that Nemattanow killed him by the way, and took away his treasure. For within

a few days this Nemattanow returned to the same house with Morgan's cap upon his head; where he found two sturdy boys, who asked for their master. He very frankly told them he was dead. But they, knowing the cap again, suspected the villain had killed their master, and would have had him before a justice of peace, but he refused to go, and very insolently abused them. Whereupon they shot him down, and as they were carrying him to the governor, he died.

As he was dying, he earnestly pressed the boys to promise him two things. First, that they would not tell how he was killed; and, secondly, that they would bury him among the English. So great was the pride of this vain heathen, that he had no other thoughts at his death, but the ambition of being esteemed after he was dead, as he had endeavored to make them believe of him while he was alive, viz., that he was invulnerable and immortal, though his increasing faintness convinced himself of the falsity of both. He imagined, that being buried among the English perhaps might conceal his death from his own nation, who might think him translated to some happier country. Thus he pleased himself to the last gasp with the boys' promises to carry on the delusion. This was reckoned all the provocation given to that haughty and revengeful man Oppechancanough, to act this bloody tragedy, and to take indefatigable pains to engage in so horrid villainy all the kings and nations bordering upon the English settlements, on the western shore of Chesapeake.

§ 49. This gave the English a fair pretence of endeavoring the total extirpation of the Indians, but more especially of Oppechancanough and his nation. Accordingly, they set themselves about it, making use of the Roman maxim, (faith is not to be kept with heretics) to obtain their ends. For, after some months fruitless pursuit of them, who could too dexterously hide themselves in the woods, the English pretended articles of peace, giving them all manner of fair words and promises of oblivion. They designed thereby (as their own letters now on record, and their own actions thereupon prove) to draw the Indians back, and entice them to plant their corn on their habitations nearest adjoining to the English, and then to cut it up, when the summer should be too far spent to leave them hopes of another crop that year, by which means they proposed to bring them to want necessaries and starve. And the English did so far accomplish their ends, as to bring the Indians to plant their corn at their usual habitations, whereby they gained an

opportunity of repaying them some part of the debt in their own coin, for they fell suddenly upon them, cut to pieces such of them as could not make their escape, and afterwards totally destroyed their corn.

§ 50. Another effect of the massacre of the English, was the reducing all their settlements again to six or seven in number, for their better defence. Besides, it was such a disheartening to some good projects, then just advancing, that to this day they have never been put in execution, namely, the glasshouses in Jamestown, and the iron work at Falling Creek, which has been already mentioned. The massacre fell so hard upon this last place, that no soul was saved but a boy and a girl, who with great difficulty hid themselves.

The superintendent of this iron work had also discovered a vein of lead ore, which he kept private, and made use of it to furnish all the neighbors with bullets and shot. But he being cut off with the rest, and the secret not having been communicated, this lead mine could never after be found, till Colonel Byrd, some few years ago, prevailed with an Indian, under pretence of hunting, to give him a sign by dropping his tomahawk at the place, (he not daring publicly to discover it, for fear of being murdered.) The sign was accordingly given, and the company at that time found several pieces of good lead ore upon the surface of the ground, and marked the trees thereabouts. Notwithstanding which, I know not by what witchcraft it happens, but no mortal to this day could ever find that place again, though it be upon part of the Colonel's own possessions. And so it rests, till time and thicker settlements discover it.

§ 51. Thus, the company of adventurers having, by those frequent acts of mismanagement, met with vast losses and misfortunes, many grew sick of it and parted with their shares, and others came into their places, and promoted the sending in fresh recruits of men and goods. But the chief design of all parties concerned, was to fetch away the treasure from thence, aiming more at sudden gain, than to form any regular colony, or establish a settlement in such a manner as to make it a lasting happiness to the country.

Several gentlemen went over upon their particular stocks, separate from that of the company, with their own servants and goods, each designing to obtain land from the government, as Captain Newport had done, or at least

to obtain patents, according to the regulations for granting lands to adventurers. Others sought their grants of the company in London, and obtained authorities and jurisdictions, as well as land, distinct from the authority of the government, which was the foundation of great disorder, and the occasion of their following misfortunes. Among others, one Captain Martin, having made very considerable preparations towards a settlement, obtained a suitable grant of land, and was made of the council there. But he, grasping still at more, hankered after dominion, as well as possession, and caused so many differences, that at last he put all things into distraction, insomuch that the Indians, still seeking revenge, took advantage of these dissensions, and fell foul again on the English, gratifying their vengeance with new bloodshed.

§ 52. The fatal consequences of the company's maladministration cried so loud, that king Charles the first, coming to the crown of England, had a tender concern for the poor people that had been betrayed thither and lost. Upon which consideration he dissolved the company in the year 1626, reducing the country and government into his own immediate direction, appointing the governor and council himself, and ordering all patents and processes to issue in his own name, reserving to himself a quit-rent of two shillings for every hundred acres of land, and so *pro rata*.

CHAPTER IV.

CONTAINING THE HISTORY OF THE GOVERNMENT FROM THE DISSOLUTION OF THE COMPANY TO THE YEAR SEVENTEEN HUNDRED AND SEVEN.

§ 53. The country being thus taken into the king's hands, his majesty was pleased to establish the constitution to be by a governor, council and assembly, and to confirm the former methods and jurisdictions of the several courts, as they had been appointed in the year 1620, and placed the last resort in the assembly. He likewise confirmed the rules and orders made by the first assembly for apportioning the land, and granting patents to particular adventurers.

§ 54. This was a constitution according to their hearts desire, and things seemed now to go on in a happy course for encouragement of the colony. People flocked over thither apace; every one took up land by patent to his liking; and, not minding anything but to be masters of great tracts of land, they planted themselves separately on their several plantations. Nor did they fear the Indians, but kept them at a greater distance than formerly. And they for their part, seeing the English so sensibly increase in number, were glad to keep their distance and be peaceable.

This liberty of taking up land, and the ambition each man had of being lord of a vast, though unimproved territory, together with the advantage of the many rivers, which afford a commodious road for shipping at every man's door, has made the country fall into such an unhappy settlement and course of trade, that to this day they have not any one place of cohabitation among them, that may reasonably bear the name of a town.

§ 55. The constitution being thus firmly established, and continuing its course regularly for some time, people began to lay aside all fears of any future misfortunes. Several gentlemen of condition went over with their whole families—some for bettering their estates—others for religion, and

other reasons best known to themselves. Among those, the noble Cæcilius Calvert, Lord Baltimore, a Roman Catholic, thought, for the more quiet exercise of his religion, to retire, with his family, into that new world. For this purpose he went to Virginia, to try how he liked the place. But the people there looked upon him with an evil eye on account of his religion, for which alone he sought this retreat, and by their ill treatment discouraged him from settling in that country.

§ 56. Upon that provocation, his lordship resolved upon a farther adventure. And finding land enough up the bay of Chesapeake, which was likewise blessed with many brave rivers, and as yet altogether uninhabited by the English, he began to think of making a new plantation of his own. And for his more certain direction in obtaining a grant of it, he undertook a journey northward, to discover the land up the bay, and observe what might most conveniently square with his intent.

His lordship finding all things in this discovery according to his wish, returned to England. And because the Virginia settlements at that time reached no farther than the south side of Potomac river, his lordship got a grant of the propriety of Maryland, bounding it to the south by Potomac river, on the western shore; and by an east line from Point Lookout, on the eastern shore; but died himself before he could embark for the promised land.

Maryland had the honor to receive its name from queen Mary, royal consort to king Charles the first.

§ 57. The old Lord Baltimore being thus taken off, and leaving his designs unfinished, his son and heir, in the year 1633, obtained a confirmation of the patent to himself, and went over in person to plant his new colony.

By this unhappy accident, a country which nature had so well contrived for one, became two separate governments. This produced a most unhappy inconvenience to both; for, these two being the only countries under the dominion of England that plant tobacco in any quantity, the ill consequences to both is, that when one colony goes about to prohibit the trash, or mend the staple of that commodity, to help the market, then the other, to take advantage of that market, pours into England all they can make, both good and bad, without distinction. This is very injurious to the

other colony, which had voluntarily suffered so great a diminution in the quantity, to mend the quality; and this is notoriously manifested from that incomparable Virginia law, appointing sworn agents to examine their tobacco.

§ 58. Neither was this all the mischief that happened to Virginia upon this grant; for the example of it had dreadful consequences, and was in the end one of the occasions of another massacre by the Indians. For this precedent of my Lord Baltimore's grant, which entrenched upon the charters and hounds of Virginia, was hint enough for other courtiers, (who never intended a settlement as my lord did) to find out something of the same kind to make money of. This was the occasion of several very large defalcations from Virginia within a few years afterwards, which was forwarded and assisted by the contrivance of the Governor, Sir John Harvey, insomuch that not only the land itself, quit-rents and all, but the authorities and jurisdictions that belonged to that colony were given away—nay, sometimes in those grants he included the very settlements that had been before made.

§ 59. As this gentleman was irregular in this, so he was very unjust and arbitrary in his other methods of government. He exacted with rigor the fines and penalties, which the unwary assemblies of those times had given chiefly to himself, and was so haughty and furious to the council, and the best gentlemen of the country, that his tyranny grew at last insupportable; so that in the year 1639, the council sent him a prisoner to London, and with him two of their number, to maintain the articles against him. This news being brought to king Charles the first, his majesty was very much displeased; and, without hearing anything, caused him to return governor again. But by the next shipping he was graciously pleased to change him, and so made amends for this man's maladministration, by sending the good and just Sir William Berkeley to succeed him.

§ 60. While these things were transacting, there was so general a dissatisfaction, occasioned by the oppressions of Sir John Harvey, and the difficulties in getting him out, that the whole colony was in confusion. The subtle Indians, who took all advantages, resented the incroachments upon them by his grants. They saw the English uneasy and disunited among themselves, and by the direction of Oppechancanough, their king, laid the

ground work of another massacre, wherein, by surprise, they cut off near five hundred Christians more. But this execution did not take so general effect as formerly, because the Indians were not so frequently suffered to come among the inner habitations of the English; and, therefore, the massacre fell severest on the south side of James river, and on the heads of the other rivers, but chiefly of York river, where this Oppechancanough kept the seat of his government.

§ 61. Oppechancanough was a man of large stature, noble presence, and extraordinary parts. Though he had no advantage of literature, (that being nowhere to be found among the American Indians) yet he was perfectly skilled in the art of governing his rude countrymen. He caused all the Indians far and near to dread his name, and had them all entirely in subjection.

This king in Smith's history is called brother to Powhatan, but by the Indians he was not so esteemed. For they say he was a prince of a foreign nation, and came to them a great way from the south west. And by their accounts, we suppose him to have come from the Spanish Indians, somewhere near Mexico, or the mines of Saint Barbe; but, be that matter how it will, from that time till his captivity, there never was the least truce between them and the English.

§ 62. Sir William Berkeley, upon his arrival, showed such an opposition to the unjust grants made by Sir John Harvey, that very few of them took effect; and such as did, were subjected to the settled conditions of the other parts of the government, and made liable to the payment of the full quit-rents. He encouraged the country in several essays of potash, soap, salt, flax, hemp, silk and cotton. But the Indian war, ensuing upon this last massacre, was a great obstruction to these good designs, by requiring all the spare men to be employed in defence of the country.

§ 63. Oppechancanough, by his great age, and the fatigues of war, (in which Sir William Berkeley followed him close) was now grown so decrepid, that he was not able to walk alone, but was carried about by his men wherever he had a mind to move. His flesh was all macerated, his sinews slackened, and his eyelids became so heavy, that he could not see, but as they were lifted up by his servants. In this low condition he was, when Sir William

Berkeley, hearing that he was at some distance from his usual habitation, resolved at all adventures to seize his person, which he happily effected. For with a party of horse he made a speedy march, surprised him in his quarters, and brought him prisoner to Jamestown, where, by the governor's command, he was treated with all the respect and tenderness imaginable. Sir William had a mind to send him to England, hoping to get reputation by presenting his majesty with a royal captive, who at his pleasure, could call into the field ten times more Indians, than Sir William Berkeley had English in his whole government. Besides, he thought this ancient prince would be an instance of the healthiness and long life of the natives of that country. However, he could not preserve his life above a fortnight. For one of the soldiers, resenting the calamities the colony had suffered by this prince's means, basely shot him through the back, after he was made prisoner; of which wound he died.

He continued brave to the last moment of his life, and showed not the least dejection at his captivity. He heard one day a great noise of the treading of people about him; upon which he caused his eyelids to be lifted up, and finding that a crowd of people were let in to see him, he called in high indignation for the governor, who being come, Oppechancanough scornfully told him, that had it been his fortune to take Sir William Berkeley prisoner, he should not meanly have exposed him as a show to the people.

§ 64. After this, Sir William Berkeley made a new peace with the Indians, which continued for a long time unviolated, insomuch that all the thoughts of future injury from them were laid aside. But he himself did not long enjoy the benefit of this profound peace; for the unhappy troubles of king Charles the first increasing in England, proved a great disturbance to him and to all the people. They, to prevent the infection from reaching that country, made severe laws against the Puritans, though there were as yet none among them. But all correspondence with England was interrupted, supplies lessened, and trade obstructed. In a word, all people were impatient to know what would be the event of so much confusion.

§ 65. At last the king was traitorously beheaded in England, and Oliver installed Protector. However his authority was not acknowledged in Virginia for several years after, till they were forced to it by the last

necessity. For in the year 1651, by Cromwell's command, Captain Dennis, with a squadron of men of war, arrived there from the Caribbee islands, where they had been subduing Bardoes. The country at first held out vigorously against him, and Sir William Berkeley, by the assistance of such Dutch vessels as were then there, made a brave resistance. But at last Dennis contrived a stratagem, which betrayed the country. He had got a considerable parcel of goods aboard, which belonged to two of the Council, and found a method of informing them of it. By this means they were reduced to the dilemma, either of submitting or losing their goods. This occasioned factions among them; so that at last, after the surrender of all the other English plantations, Sir Wm. was forced to submit to the usurper on the terms of a general pardon. However, it ought to be remembered, to his praise, and to the immortal honor of that colony, that it was the last of all the king's dominions that submitted to the usurpation; and afterwards the first that cast it off, and he never took any post or office under the usurper.

§ 66. Oliver had no sooner subdued the plantations, but he began to contrive how to keep them under, that so they might never be able for the time to come to give him farther trouble. To this end, he thought it necessary to break off their correspondence with all other nations, thereby to prevent their being furnished with arms, ammunition, and other warlike provisions. According to this design, he contrived a severe act of Parliament, whereby he prohibited the plantations from receiving or exporting any European commodities, but what should be carried to them by Englishmen, and in English built ships. They were absolutely forbid corresponding with any nation or colony not subject to the crown of England. Neither was any alien suffered to manage a trade or factory in any of them. In all which things the plantations had been till then indulged, for their encouragement.

§ 67. Notwithstanding this act of navigation, the Protector never thought the plantations enough secured, but frequently changed their governors, to prevent their intriguing with the people. So that, during the time of the usurpation, they had no less than three governors there, namely, Diggs, Bennet and Mathews.

§ 68. The strange arbitrary curbs he put upon the plantations, exceedingly afflicted the people. He had the inhumanity to forbid them all manner of trade and correspondence with other nations, at a time when England itself

was in distraction; and could neither take off their commodities, nor supply them sufficiently with its own. Neither had they ever been used to supply them with half the commodities they expended, or to take off above half the tobacco they made. Such violent proceedings made the people desperate, and inspired them with a desire to use the last remedy, to relieve themselves from this lawless usurpation. In a short time afterwards a fair opportunity happened; for Governor Mathews died, and no person was substituted to succeed him in the government. Whereupon the people applied themselves to Sir William Berkeley, (who had continued all this time upon his own plantation in a private capacity,) and unanimously chose him their governor again.

§ 69. Sir William Berkeley had all along retained an unshaken loyalty for the royal family, and therefore generously told the people, that he could not approve of the Protector's rule, and was resolved never to serve anybody but the lawful heir to the crown; and that if he accepted the government, it should be upon their solemn promise, after his example, to venture their lives and fortunes for the king, who was then in France.

This was no great obstacle to them, and therefore with an unanimous voice they told him that they were ready to hazard all for the king. Now this was actually before the king's return for England, and proceeded from a brave principle of loyalty, for which they had no example. Sir William Berkeley embraced their choice, and forthwith proclaimed Charles the second king of England, Scotland, France, Ireland and Virginia, and caused all process to be issued in his name. Thus his majesty was actually king in Virginia, before he was so in England. But it pleased God to restore him soon after to the throne of his ancestors; and so that country escaped being chastised for throwing off the usurpation.

§ 70. Upon the king's restoration, he sent Sir William Berkeley a new commission, with leave to return to England, and power to appoint a deputy in his absence. For his majesty in his exile had received intelligence of this gentleman's loyalty, and during that time had renewed his commission.

§ 71. Upon this, Sir William Berkeley appointed Colonel Francis Morrison Deputy Governor, and went for England to wait on his majesty, by whom he was kindly received. At his return he carried his majesty's pressing

instructions for encouraging the people in husbandry and manufactures, but more especially to promote silk and vineyards. There is a tradition, that the king, in compliment to that colony, wore at his coronation a robe made of the silk that was sent from thence. But this was all the reward the country had for their loyalty; for the Parliament was pleased to renew the act contrived by the usurper for discouraging the plantations, with severer restraints and prohibitions by bonds, securities, &c.

§ 72. During the time of Sir William Berkeley's absence, Colonel Morrison had, according to his directions, revised the laws, and compiled them into one body, ready to be confirmed by the assembly at his return. By these laws, the church of England was confirmed the established religion, the charge of the government sustained, trade and manufactures were encouraged, a town projected, and all the Indian affairs settled.

§ 73. The parishes were likewise regulated, competent allowances were made to the ministers, to the value of about fourscore pounds a year, besides glebes and perquisites, and the method of their preferment was settled. Convenient churches and glebes were provided, and all necessary parish officers instituted. Some steps were made also towards a free school and college, and the poor were effectually provided for.

§ 74. For support of the government, the duty of two shillings per hogshead on all tobaccos, and that of one shilling per ton port duty on shipping, were made perpetual; and the collectors were obliged to account for the same to the general assembly.

§ 75. For encouragement of manufactures, prizes were appointed for the makers of the best pieces of linen cloth, and a reward of fifty pounds of tobacco was given for each pound of silk. All persons were enjoined to plant mulberry trees, for the food of the silk worm, according to the number of acres of land they held. Tan houses were set up in each county, at the county charge; and public encouragement was given to a salt work on the eastern shore. A reward was appointed in proportion to the tonnage of all sea vessels built there, and an exemption allowed from all fees and duties payable by such shipping.

§ 76. The king had commanded, that all ships trading to Virginia should go to Jamestown, and there enter before they broke bulk. But the assembly,

from the impracticableness of that command, excused all, except the James river ships, from that order, and left the others in the rivers they were bound to, to ride dispersed, as the commanders pleased; by whose example the James river ships were no sooner entered with the officer at Jamestown, but they also dispersed themselves to unload, and trade all over the river. By this means the design of towns was totally balked, and this order proved only an ease to the officer of James river, and a means of creating a good place to him.

§ 77. Peace and commerce with the Indians was settled by law, and their boundaries prescribed. Several other acts were made suiting the necessity of the government; so that nothing then seemed to remain, but the improvement of the country, and encouragement of those manufactures the king had been pleased to recommend, together with such others as should be found beneficial.

§ 78. Sir William Berkeley at his return gave sanction to this body of laws, and being then again in full possession of his government, and at perfect peace with the Indians, set all hands industriously to work in making country improvements. He passed a new act for encouragement of Jamestown, whereby several houses were built therein, at the charge of several counties. However, the main ingredient for the advancement of towns was still wanting, namely, the confinement of all shipping and trade to them only, by defect of which all the other expedients availed nothing, for most of the buildings were soon converted into houses of entertainment.

§ 79. Anno 1663, divers sectaries in religion beginning to spread themselves there, great restraints were laid upon them, under severe penalties, to prevent their increase.

This made many of them fly to other colonies, and prevented abundance of others from going over to seat themselves among them. And as the former ill treatment of my Lord Baltimore kept many people away, and drove others to Maryland, so the present severities towards the nonconformists kept off many more, who went to the neighboring colonies.

§ 80. The rigorous circumscription of their trade, the persecutions of the sectaries, and the little demand of tobacco, had like to have had very fatal consequences. For, the poor people becoming thereby very uneasy, their

murmurings were watched and fed by several mutinous and rebellious Oliverian soldiers that were sent thither as servants. These, depending upon the discontented people of all sorts, formed a villainous plot to destroy their masters, and afterwards to set up for themselves.

This plot was brought so near to perfection, that it was the very night before the designed execution ere it was discovered; and then it came out by the relenting of one of their accomplices, whose name was Birkenhead. This man was servant to Mr. Smith of Purton, in Gloucester county, near which place, viz. at Poplar Spring, the miscreants were to meet the night following, and put in execution their horrid conspiracy.

§ 81. Upon this discovery by Birkenhead, notice was immediately sent to the governor at Green Spring. And the method he took to prevent it was by private orders, that some of the militia should meet before the time at the place where the conspirators were to rendezvous, and seize them as they came singly up to it. Which orders being happily executed, their devilish plot was defeated. However, there were but a few taken; because several of them making their escape, turned back such of their fellows as they met on the road, and prevented most of them from coming up, or from being discovered.

Four of these rogues were hanged. But Birkenhead was gratified with his freedom, and a reward of two hundred pounds sterling.

§ 82. For the discovery and happy disappointment of this plot, an anniversary thanksgiving was appointed on the 13th of September, the day it was to have been put in execution. And it is great pity some other days are not commemorated as well as that.

§ 83. The news of this plot being transmitted to king Charles the second, his majesty sent his royal commands to build a fort at Jamestown, for security of the governor, and to be a curb upon all such traitorous attempts for the future. But the country, thinking the danger over, only raised a battery of some small pieces of cannon.

§ 84. Another misfortune happened to the plantations this year, which was a new act of parliament in England, laying a severer restraint upon their supplies than formerly. By this act they could have no foreign goods, which

were not first landed in England, and carried directly from thence to the plantations, the former restraint of importing them only by Englishmen, in English built shipping, not being thought sufficient.

This was a misfortune that cut with a double edge; for, first, it reduced their staple tobacco to a very low price; and, secondly, it raised the value of European goods to what the merchants pleased to put upon them.

§ 85. For this their assembly could think of no remedy, but to be even with the merchants, and make their tobacco scarce by prohibiting the planting of it for one year; and during that idle year to invite the people to enter upon manufacturing flax and hemp. But Maryland not concurring in this project, they were obliged in their own defence to repeal the act of assembly again, and return to their old drudgery of planting tobacco without profiting by it.

§ 86. The country thus missed of their remedy in the stint of tobacco, which on the contrary multiplied exceedingly by the great increase of servants. This, together with the above mentioned curbs on trade, exasperated the people, because now they found themselves under a necessity of exchanging their commodities with the merchants of England at their own terms. The assembly therefore again attempted the stint of tobacco, and passed another act against planting it for one year. And Carolina and Maryland both agreed to it. But some accident hindering the agent of Carolina from giving notice thereof to Maryland by the day appointed, the governor of that province proclaimed the act void, although every body there knew that Carolina had fully agreed to all things required of them. But he took advantage of this nice punctilio, because of the loss such a diminution would have been to his annual income, and so all people relapsed again into the disease of planting tobacco.

Virginia was more nettled at this ill usage from Maryland, than at her former absolute denial; but were forced to take all patiently, and by fair means get relief, if they could. They therefore appointed agents to reassume the treaty, and submitted so low as to send them to Saint Mary's, then the residence of the governor of Maryland, and the place where the assemblies met. Yet all this condescension could not hold them to their bargain. The governor said he had observed his part of the agreement, and would not call an assembly any more upon that subject.

§ 87. In this manner two whole years were spent, and nothing could be accomplished for their relief. In the mean while England was studious to prevent their receiving supplies from any other country. To do that more effectually, it was thought expedient to confine the trade of that colony to one place. But that not being found practicable, because of the many great rivers that divide their habitations, and the extraordinary conveniences of each, his majesty sent directions to build forts in the several rivers, and enjoined all the ships to ride under those forts; and farther ordered, that those places only should be the ports of trade.

§ 88. This instruction was punctually observed for a year, and preparations were made for ports, by casting up breastworks in such places as the assembly appointed, and the shipping did for that time ride at those places. But the great fire and plague happening in London immediately upon it, made their supplies that year very uncertain, and the terror the people were in, lest the plague should be brought over with the ships from London, prevented them from residing at those ports, for fear of being all swept away at once. And so every body was left at liberty again.

§ 89. Still no favor could be obtained for the tobacco trade, and the English merchants afforded but a bare support of clothing for their crops. The assembly were full enough of resentment, but overlooked their right way of redress. All they could do was to cause looms and workhouses to be set up in the several counties, at the county charge. They renewed the rewards of silk, and put great penalties upon every neglect of making flax and hemp. About this time they sustained some damage by the Dutch war; for which reason they ordered the forts to be rebuilt of brick. But having yet no true notion of the advantage of towns, they did not oblige the ships to ride under them. Which thing alone, well executed, would have answered all their desires.

§ 90. Sir William Berkeley, who was always contriving and industrious for the good of the country, was not contented to set a useful example at home, by the essays he made of potash, flax, hemp, silk, &c., but was also resolved to make new discoveries abroad amongst the Indians.

For this end he employed a small company of about fourteen English, and as many Indians, under the command of Captain Henry Batt, to go upon

such an adventure. They set out together from Appomattox, and in seven days' march reached the foot of the mountains. The mountains they first arrived at, were not extraordinary high or steep; but, after they had passed the first ridge, they encountered others that seemed to reach the clouds, and were so perpendicular and full of precipices, that sometimes in a whole day's march, they could not travel three miles in a direct line. In other places they found large level plains and fine savannas, three or four miles wide, in which were an infinite quantity of turkies, deer, elks and buffaloes, so gentle and undisturbed that they had no fear at the appearance of the men, but would suffer them to come almost within reach of their hands. There they also found grapes so prodigiously large, that they seemed more like bullace than grapes. When they traversed these mountains, they came to a fine level country again, and discovered a rivulet that descended backwards. Down that stream they travelled several days, till they came to old fields and cabins, where the Indians had lately been, but were supposed to have fled at the approach of Batt and his company. However, the captain followed the old rule of leaving some toys in their cabins for them to find at their return, by which they might know they were friends. Near to these cabins were great marshes, where the Indians which Captain Batt had with him made a halt, and would positively proceed no farther. They said, that not far off from that place lived a nation of Indians, that made salt, and sold it to their neighbors. That this was a great and powerful people, which never suffered any strangers to return that had once discovered their towns. Captain Batt used all the arguments he could to get them forward, but in vain. And so, to please those timorous Indians, the hopes of this discovery were frustrated, and the detachment was forced to return. In this journey it is supposed that Batt never crossed the great ridge of mountains, but kept up under it to the southward. For of late years the Indian traders have discovered, on this side the mountains, about five hundred miles to the southward, a river they call Oukfuskie, full of broad sunken grounds and marshes, but falling into the bay or great gulf between cape Florida and the mouth of the Mississippi, which I suppose to be the river where Batt saw the Indian cabins and marshes, but is gone to from Virginia without ever piercing the high mountains, and only encountering the point of an elbow, which they make a little to the southward of Virginia.

§ 91. Upon Captain Batt's report to Sir William Berkeley, he resolved to make a journey himself, that so there might be no hinderance for want of sufficient authority, as had been in the aforesaid expedition. To this end he concerted matters for it, and had pitched upon his deputy governor. The assembly also made an act to encourage it. But all these preparations came to nothing, by the confusion which happened there soon after by Bacon's rebellion. And since that, there has never been any such discovery attempted from Virginia, when Governor Spotswood found a passage over the great ridge of mountains, and went over them himself.

§ 92. The occasion of this rebellion is not easy to be discovered: but 'tis certain there were many things that concurred towards it. For it cannot be imagined, that upon the instigation of two or three traders only, who aimed at a monopoly of the Indian trade, as some pretend to say, the whole country would have fallen into so much distraction; in which people did not only hazard their necks by rebellion, but endeavored to ruin a governor, whom they all entirely loved, and had unanimously chosen; a gentleman who had devoted his whole life and estate to the service of the country, and against whom in thirty-five years experience there had never been one single complaint. Neither can it be supposed, that upon so slight grounds, they would make choice of a leader they hardly knew, to oppose a gentleman that had been so long and so deservedly the darling of the people. So that in all probability there was something else in the wind, without which the body of the country had never been engaged in that insurrection.

Four things may be reckoned to have been the main ingredients towards this intestine commotion, viz., First, The extreme low price of tobacco, and the ill usage of the planters in the exchange of goods for it, which the country, with all their earnest endeavors, could not remedy. Secondly, The splitting the colony into proprietaries, contrary to the original charters; and the extravagant taxes they were forced to undergo, to relieve themselves from those grants. Thirdly, The heavy restraints and burdens laid upon their trade by act of Parliament in England. Fourthly, The disturbance given by the Indians. Of all which in their order.

§ 93. First, Of the low price of tobacco, and the disappointment of all sort of remedy, I have spoken sufficiently before. Secondly, Of splitting the

country into proprieties.

King Charles the Second, to gratify some nobles about him, made two great grants out of that country. These grants were not of the uncultivated wood land only, but also of plantations, which for many years had been seated and improved, under the encouragement of several charters granted by his royal ancestors to that colony. Those grants were distinguished by the names of the Northern and Southern grants of Virginia, and the same men were concerned in both. They were kept dormant some years after they were made, and in the year 1674 begun to be put in execution. As soon as ever the country came to know this, they remonstrated against them; and the assembly drew up an humble address to his majesty, complaining of the said grants, as derogatory to the previous charters and privileges granted to that colony, by his majesty and his royal progenitors. They sent to England Mr. Secretary Ludwell and Colonel Park, as their agents to address the king, to vacate those grants. And the better to defray that charge, they laid a tax of fifty pounds of tobacco per poll, for two years together, over and above all other taxes, which was an excessive burden. They likewise laid ameracements of seventy, fifty, or thirty pounds of tobacco, as the cause was on every law case tried throughout the country. Besides all this, they applied the balance, remaining due upon account of the two shilling per hogshead, and fort duties, to this use. Which taxes and ameracements fell heaviest on the poor people, the effect of whose labor would not clothe their wives and children. This made them desperately uneasy, especially when, after a whole year's patience under all these pressures, they had no encouragement from their agents in England, to hope for remedy; nor any certainty when they should be eased of those heavy impositions.

§ 94. Thirdly, Upon the back of all these misfortunes came out the act of 25 Car. II. for better securing the plantation trade. By this act several duties were laid on the trade from one plantation to another. This was a new hardship, and the rather, because the revenue arising by this act was not applied to the use of the plantations wherein it was raised: but given clear away; nay, in that country it seemed to be of no other use, but to burden the trade, or create a good income to the officers; for the collector had half, the comptroller a quarter, and the remaining quarter was subdivided into salaries, till it was lost.

By the same act also very great duties were laid on the fisheries of the plantations, if manufactured by the English inhabitants there; while the people of England were absolutely free from all customs. Nay, though the oil, blubber and whale bone, which were made by the inhabitants of the plantations, were carried to England by Englishmen, and in English built ships, yet it was held to a considerable duty, more than the inhabitants of England paid.

§ 95. These were the afflictions that country labored under when the fourth accident happened, viz., the disturbance offered by the Indians to the frontiers.

This was occasioned, first, by the Indians on the head of the bay. Secondly, by the Indians on their own frontiers.

First. The Indians at the head of the bay drove a constant trade with the Dutch in Monadas, now called New York; and to carry on this, they used to come every year by the frontiers of Virginia, to hunt and purchase skins and furs of the Indians to the southward. This trade was carried on peaceably while the Dutch held Monadas; and the Indians used to call on the English in Virginia on their return, to whom they would sell part of their furs, and with the rest go on to Monadas. But after the English came to possess that place, and understood the advantages the Virginians made by the trade of their Indians, they inspired them with such a hatred to the inhabitants of Virginia that, instead of coming peaceably to trade with them, as they had done for several years before, they afterwards never came, but only to commit robberies and murders upon the people.

Secondly. The Indians upon their own frontiers were likewise inspired with ill thoughts of them. For their Indian merchants had lost a considerable branch of their trade they knew not how; and apprehended the consequences of Sir William Berkeley's intended discoveries, (espoused by the assembly,) might take away the remaining part of their profit. This made them very troublesome to the neighbor Indians; who on their part, observing an unusual uneasiness in the English, and being terrified by their rough usage, immediately suspected some wicked design against their lives, and so fled to their remoter habitations. This confirmed the English in the

belief, that they had been the murderers, till at last they provoked them to be so in earnest.

§ 96. This addition of mischief to minds already full of discontent, made people ready to vent all their resentment against the poor Indians. There was nothing to be got by tobacco; neither could they turn any other manufacture to advantage; so that most of the poorer sort were willing to quit their unprofitable employments, and go volunteers against the Indians.

At first they flocked together tumultuously, running in troops from one plantation to another without a head, till at last the seditious humor of Colonel Nath. Bacon led him to be of the party. This gentleman had been brought up at one of the Inns of court in England, and had a moderate fortune. He was young, bold, active, of an inviting aspect, and powerful elocution. In a word, he was every way qualified to head a giddy and unthinking multitude. Before he had been three years in the country, he was, for his extraordinary qualifications, made one of the council, and in great honor and esteem among the people. For this reason he no sooner gave countenance to this riotous mob, but they all presently fixed their eyes upon him for their general, and accordingly made their addresses to him. As soon as he found this, he harangued them publicly. He aggravated the Indian mischiefs, complaining that they were occasioned for want of a due regulation of their trade. He recounted particularly the other grievances and pressures they lay under, and pretended that he accepted of their command with no other intention but to do them and the country service, in which he was willing to encounter the greatest difficulties and dangers. He farther assured them he would never lay down his arms till he had revenged their sufferings upon the Indians, and redressed all their other grievances.

§ 97. By these insinuations he wrought his men into so perfect an unanimity, that they were one and all at his devotion. He took care to exasperate them to the utmost, by representing all their misfortunes. After he had begun to muster them, he dispatched a messenger to the governor, by whom he aggravated the mischiefs done by the Indians, and desired a commission of general to go out against them. This gentleman was in so great esteem at that time with the council, that the governor did not think fit to give him a flat refusal; but sent him word he would consult the council, and return him a farther answer.

§ 98. In the mean time Bacon was expeditious in his preparations, and having all things in readiness, began his march, depending on the authority the people had given him. He would not lose so much time as to stay for his commission; but dispatched several messengers to the governor to hasten it. On the other hand, the governor, instead of a commission, sent positive orders to him to disperse his men and come down in person to him, upon pain of being declared a rebel.

§ 99. This unexpected order was a great surprise to Bacon, and not a little trouble to his men. However, he was resolved to prosecute his first intentions, depending upon his strength and interest with the people. Nevertheless, he intended to wait upon the governor, but not altogether defenceless. Pursuant to this resolution, he took about forty of his men down with him in a sloop to Jamestown, where the governor was with his council.

§ 100. Matters did not succeed there to Mr. Bacon's satisfaction, wherefore he expressed himself a little too freely. For which, being suspended from the council, he went away again in a huff with his sloop and followers. The governor filled a long boat with men, and pursued the sloop so close, that Colonel Bacon moved into his boat to make more haste. But the governor had sent up by land to the ships at Sandy Point, where he was stopped and sent down again. Upon his return he was kindly received by the governor, who, knowing he had gone a step beyond his instructions in having suspended him, was glad to admit him again of the council; after which he hoped all things might be pacified.

§ 101. Notwithstanding this; Colonel Bacon still insisted upon a commission to be general of the volunteers, and to go out against the Indians; from which the governor endeavored to dissuade him, but to no purpose, because he had some secret project in view. He had the luck to be countenanced in his importunities, by the news of fresh murder and robberies committed by the Indians. However, not being able to accomplish his ends by fair means, he stole privately out of town; and having put himself at the head of six hundred volunteers, marched directly to Jamestown, where the assembly was then sitting. He presented himself before the assembly, and drew up his men in battalia before the house wherein they sat. He urged to them his preparations; and alledged that if the

commission had not been delayed so long, the war against the Indians might have been finished.

§ 102. The governor resented this insolent usage worst of all, and now obstinately refused to grant him anything, offering his naked breast against the presented arms of his followers. But the assembly, fearing the fatal consequences of provoking a discontented multitude ready armed, who had the governor, council and assembly entirely in their power, addressed the governor to grant Bacon his request. They prepared themselves the commission, constituting him general of the forces of Virginia, and brought it to the governor to be signed.

With much reluctancy the governor signed it, and thereby put the power of war and peace into Bacon's hands. Upon this he marched away immediately, having gained his end, which was in effect a power to secure a monopoly of the Indian trade to himself and his friends.

§ 103. As soon as General Bacon had marched to such a convenient distance from Jamestown that the assembly thought they might deliberate with safety, the governor, by their advice, issued a proclamation of rebellion against him, commanding his followers to surrender him, and forthwith disperse themselves, giving orders at the same time for raising the militia of the country against him.

§ 104. The people being much exasperated, and General Bacon by his address and eloquence having gained an absolute dominion over their hearts, they unanimously resolved that not a hair of his head should be touched, much less that they should surrender him as a rebel. Therefore they kept to their arms, and instead of proceeding against the Indians they marched back to Jamestown, directing their fury against such of their friends and countrymen as should dare to oppose them.

§ 105. The governor seeing this, fled over the bay to Accomac, whither he hoped the infection of Bacon's conspiracy had not reached. But there, instead of that people's receiving him with open arms, in remembrance of the former services he had done them, they began to make terms with him for redress of their grievances, and for the ease and liberty of trade against the acts of parliament. Thus Sir William, who had been almost the idol of the people, was, by reason of their calamity and jealousy, abandoned by all,

except some few, who went over to him from the western shore in sloops and boats, among which one Major Robert Beverley was the most active and successful commander; so that it was sometime before he could make head against Bacon, but left him to range through the country at discretion.

§ 106. General Bacon at first held a convention, of such of the chief gentlemen of the country as would come to him, especially of those about Middle Plantation, who were near at hand. At this convention they made a declaration to justify his unlawful proceedings, and obliged people to take an oath of obedience to him as their general. Then, by their advice, on pretence of the governor's abdication, he called an assembly, by writs signed by himself and four others of the council.

The oath was word for word as follows:

"Whereas the country hath raised an army against our common enemy the Indians, and the same under the command of General Bacon, being upon the point to march forth against the said common enemy, hath been diverted and necessitated to move to the suppressing of forces, by evil disposed persons raised against the said General Bacon, purposely to foment and stir up civil war among us, to the ruin of this his majesty's country. And whereas it is notoriously manifest, that Sir William Berkeley, knight, governor of the country, assisted, counselled and abetted by those evil disposed persons aforesaid, hath not only commanded, fomented and stirred up the people to the said civil war, but failing therein, hath withdrawn himself, to the great astonishment of the people, and the unsettlement of the country. And whereas the said army, raised by the country for the causes aforesaid, remain full of dissatisfaction in the middle of the country, expecting attempts from the said governor and the evil counsellors aforesaid. And since no proper means have been found out for the settlement of the distractions, and preventing the horrid outrages and murders daily committed in many places of the country by the barbarous enemy, it hath been thought fit by the said general, to call unto him all such sober and discreet gentlemen as the present circumstances of the country will admit, to the Middle Plantation, to consult and advise of re-establishing the peace of the country. So we, the said gentlemen, being this third of August, 1676, accordingly met, do advise, resolve, declare and conclude, and for ourselves do swear in manner following:

1st. That we will at all times join with the said general Bacon and his army, against the common enemy in all points whatsoever.

2nd. That whereas certain persons have lately contrived and designed the raising forces against the said general, and the army under his command, thereby to beget a civil war, we will endeavor the discovery and apprehending of all and every of those evil disposed persons, and them secure, until farther order from the general.

3rd. And whereas it is credibly reported, that the governor hath informed the king's majesty that the said general, and the people of the country in arms under his command, their aiders and abettors, are rebellious, and removed from their allegiance; and that upon such like information, he, the said governor, hath advised and petitioned the king to send forces to reduce them, we do farther declare and believe in our consciences, that it consists with the welfare of this country, and with our allegiance to his most sacred majesty, that we, the inhabitants of Virginia, to the utmost of our power, do oppose and suppress all forces whatsoever of that nature, until such time as the king be fully informed of the state of the case, by such person or persons as shall be sent from the said Nathaniel Bacon, in the behalf of the people, and the determination thereof be remitted hither. And we do swear, that we will him, the said general, and the army under his command, aid and assist accordingly."

§ 108. By this time the governor had got together a small party to side with him. These he furnished with sloops, arms and ammunition, under command of Major Robert Beverley, in order to cross the bay and oppose the malcontents. By this means there happened some skirmishes, in which several were killed, and others taken prisoners. Thus they were going on by a civil war to destroy one another, and lay waste their infant country, when it pleased God, after some months' confusion, to put an end to their misfortunes, as well as to Bacon's designs, by his natural death. He died at Dr. Green's in Gloucester county. But where he was buried was never yet discovered, though afterward there was great inquiry made, with design to expose his bones to public infamy.

§ 109. In the meanwhile those disorders occasioned a general neglect of husbandry, and a great destruction of the stocks of cattle, so that people had

a dreadful prospect of want and famine. But the malcontents being thus disunited by the loss of their general, in whom they all confided, they began to squabble among themselves, and every man's business was, how to make the best terms he could for himself.

Lieutenant General Ingram, (whose true name was Johnson) and Major General Walklate, surrendered, on condition of pardon for themselves and their followers, though they were both forced to submit to an incapacity of bearing office in that country for the future.

Peace being thus restored, Sir William Berkeley returned to his former seat of government, and every man to his several habitation.

§ 110. While this intestine war was fomenting there, the agents of the country in England could not succeed in their remonstrance against the propriety grants, though they were told that those grants should be revoked. But the news of their civil war reaching England about the same time, the king would then proceed no farther in that matter. So the agents thought it their best way to compound with the proprietors. Accordingly they agreed with them for four hundred pounds a man, which was paid. And so all the clamor against those grants ended; neither was any more heard from them there till above a dozen years afterwards.

§ 111. But all those agents could obtain after their composition with the lords, was merely the name of a new charter, granting only so much of their former constitution as mentioned a residence of the governor or deputy; a granting of escheat lands for two pounds of tobacco per acre, composition; and that the lands should be held of the crown in the same tenure as East Greenwich, that is, free and common soccage, and have their immediate dependence on the crown.

§ 112. When this storm, occasioned by Bacon, was blown over, and all things quiet again, Sir William Berkeley called an assembly, for settling the affairs of the country, and for making reparation to such as had been oppressed. After which a regiment of soldiers arrived from England, which were sent to suppress the insurrection; but they, coming after the business was over, had no occasion to exercise their courage. However, they were kept on foot there about three years after, and in the Lord Colepepper's time, paid off and disbanded.

§ 113. The confusion occasioned by the civil war, and the advantage the Indians made of it in butchering the English upon all their frontiers, caused such a desolation, and put the country so far back, that to the year 1704 they had seated very little beyond the boundaries that were then inhabited. At that time Jamestown was again burnt down to the ground by Richard Laurence, one of Bacon's captains, who, when his own men, that abhorred such barbarity, refused to obey his command, he himself became the executioner, and fired the houses with his own hands. This unhappy town did never after arrive to the perfection it then had: and now it is almost deserted by removing in Governor Nicholson's time the assembly and general court from thence to Williamsburg, an inland place about seven miles from it.

§ 114. With the regiment above mentioned arrived commissioners, to enquire into the occasion and authors of this rebellion; and Sir William Berkeley came to England: where from the time of his arrival, his sickness obliged him to keep his chamber till he died; so that he had no opportunity of kissing the king's hand. But his majesty declared himself well satisfied with his conduct in Virginia, and was very kind to him during his sickness, often enquiring after his health, and commanding him not to hazard it by too early an endeavor to come to court.

§ 115. Upon Sir William Berkeley's voyage to England, Herbert Jeffreys, Esq., was appointed governor. He made formal articles of peace with the Indians, and held an assembly at Middle Plantation, wherein they settled and allowed a free trade with the Indians; but restrained it to certain marts, to which the Indians should bring their commodities: and this also to be under such certain rules as were by that assembly directed. But this method was not agreeable to the Indians, who had never before been under any regulation. They thought, that if all former usages were not restored, the peace was not perfect; and therefore did not much rely upon it, which made those new restrictions useless.

Governor Jeffreys his time was very short there, he being taken off by death the year following.

§ 116. After him Sir Henry Chicheley was made deputy governor, in the latter end of the year 1678. In his time the assembly, for the greater terror of

the Indians, built magazines at the heads of the four great rivers, and furnished them with arms, ammunition and men in constant service.

This assembly also prohibited the importation of tobacco, which Carolina, and sometimes Maryland, were wont to send thither, in order to its being shipped off for England. But in that, I think, Virginia mistook her interest. For, had they permitted this custom to become habitual, and thus engrossed the shipping, as would soon have happened, they could easily have regulated the trade of tobacco at any time, without the concurrence of those other colonies, and without submitting to their perverse humors as formerly.

§ 117. The spring following, Thomas Lord Colepepper arrived there governor, and carried with him some laws, which had been drawn up in England, to be enacted in their assembly. And coming with the advantage of restoring peace to a troubled nation, it was not difficult for him to obtain whatever he pleased from the people. His influence too was the greater by the power he had of pardoning those who had a hand in the disorders committed in the late rebellion.

§ 118. In his first assembly he passed several acts very obliging to the country, viz., First, an act of naturalization, whereby the power of naturalizing foreigners was placed in the governor. Secondly, an act for cohabitation and encouragement of trade and manufactures; whereby a certain place in each county was appointed for a town, in which all goods imported and exported were to be landed and shipped off, bought and sold. Which act was kindly brought to nothing by the opposition of the tobacco merchants of England. Thirdly, an act of general pardon and oblivion, whereby all the transgressions and outrages committed in the time of the late rebellion were entirely remitted; and reparation allowed to people that should be evil spoken of on that account.

§ 119. By passing some laws that obliged the country, the Lord Colepepper carried one that was very pleasing to himself, viz., the act for raising a public revenue for the better support of the government. By this he got the duties contained therein to be made perpetual; and that the money, which before used to be accounted for to the assembly, should be from thenceforth disposed of by his majesty's sole direction, for the support of the government. When this was done, he obtained of the king out of the said

duties a salary of two thousand pounds per annum, instead of one thousand, which was formerly allowed. Also one hundred and sixty pounds per annum for house rent, besides all the usual perquisites.

§ 120. In those submissive times his lordship reduced the greatest perquisite of his place to a certainty, which before that was only gratuitous; that is, instead of the masters of ships making presents of liquors or provisions towards the governor's house keeping, as they were wont to do, he demanded a certain sum of money, remitting that custom. This rate has ever since been demanded of all commanders as a duty; and is twenty shillings for each ship or vessel, under an hundred tons, and thirty shillings for each ship upwards of that burden, to be paid every voyage, or port clearing.

§ 121. This noble lord seemed to lament the unhappy state of the country in relation to their coin. He was tenderly concerned that all their cash should be drained away by the neighboring colonies, which had not set so low an estimate upon it as Virginia; and therefore he proposed the raising of it.

This was what the country had formerly desired, and the assembly was about making a law for it: but his lordship stopped them, alledging it was the king's prerogative, by virtue of which he would do it by proclamation. This they did not approve of, well knowing, if that were the case, his lordship and every other governor would at any time have the same prerogative of altering it, and so people should never be at any certainty; as they quickly after found from his own practice. For his drift was only to make advantage of paying the soldiers; money for that purpose being put into his lordship's hands, he provided light pieces of eight, which he with this view had bought at a cheap rate. When this contrivance was ripe for execution, he extended the royal prerogative, and issued forth a proclamation for raising the value of pieces of eight from five to six shillings; and as soon as they were admitted current at that value, he produced an order for paying and disbanding the soldiers. Then those poor fellows, and such as had maintained them, were forced to take their pay in those light pieces of eight, at six shillings. But his lordship soon after himself found the inconvenience of that proclamation; for people began to pay their duties, and their ship money in coin of that high estimate, which was like to cut short both his lordship's perquisites; and so he was forced to

make use of the same prerogative, to reduce the money again to its former standard.

§ 122. In less than a year the Lord Colepepper returned to England, leaving Sir Henry Chicheley deputy governor.

The country being then settled again, made too much tobacco, or too much trash tobacco, for the market; and the merchants would hardly allow the planter any thing for it.

This occasioned much uneasiness again, and the people, from former experience, despairing of succeeding in any agreement with the neighboring governments, resolved a total destruction of the tobacco in that country, especially of the sweet scented; because that was planted no where else. In pursuance of which design, they contrived that all the plants should be destroyed, while they were yet in the beds, and after it was too late to sow more.

Accordingly the ringleaders in this project began with their own first, and then went to cut up the plants of such of their neighbors as were not willing to do it themselves. However, they had not resolution enough to go through with their work.

This was adjudged sedition and felony. Several people were committed upon it, and some condemned to be hanged. And afterwards the assembly passed a law to make such proceedings felony for the future, (whatever it was before,) provided the company kept together after warning by a justice.

§ 123. After this accident of plant cutting, the Lord Colepepper returned, and held his second assembly, in which he contrived to gain another great advantage over the country. His lordship, in his first voyage thither, perceiving how easily he could twist and manage the people, conceived new hopes of retrieving the propriety of the Northern Neck, as being so small a part of the colony. He conceived that while the remainder escaped free, which was far the greater part, they would not engage in the interest of the lesser number; especially considering the discouragements they had met with before, in their former solicitation: though all this while, and for many years afterwards, his lordship did not pretend to lay public claim to any part of the propriety.

It did not square with this project that appeals should be made to the general assembly, as till then had been the custom. He feared the burgesses would be too much in the interest of their countrymen, and adjudge the inhabitants of the Northern Neck to have an equal liberty and privilege in their estates with the rest of Virginia, as being settled upon the same foot. In order therefore to make a better pennyworth of those poor people, he studied to overturn this odious method of appealing to the assembly, and to fix the last resort in another court.

To bring this point about, his lordship contrived to blow up a difference in the assembly between the council and the burgesses, privately encouraging the burgesses to insist upon the privilege of determining all appeals by themselves, exclusive of the council; because they, having given their opinions before in the general court, were, for that reason, unfit judges in appeals from themselves to the assembly. This succeeded according to his wish, and the burgesses bit at the bait, under the notion of privilege, never dreaming of the snake that lay in the grass, nor considering the danger of altering an old constitution so abruptly. Thus my lord gained his end; for he represented that quarrel with so many aggravations, that he got an instruction from the king to take away all appeals from the general court to the assembly, and cause them to be made to himself in council, if the thing in demand was of £300 value, otherwise no appeal from the general court.

§ 124. Of this his lordship made sufficient advantage; for in the confusion that happened in the end of king James the Second's reign, viz., in October 1688, he having got an assignment from the other patentees, gained a favorable report from the king's council at law upon his patent for the Northern Neck.

When he had succeeded in this, his lordship's next step was to engage some noted inhabitant of the place to be on his side. Accordingly he made use of his cousin Secretary Spencer, who lived in the said Neck, and was esteemed as wise and great a man as any of the council. This gentleman did but little in his lordship's service, and only gained some few strays, that used to be claimed by the coroner, in behalf of the king.

Upon the death of Mr. Secretary Spencer, he engaged another noted gentleman, an old stander in that country, though not of the Northern Neck,

Col. Philip Ludwell, who was then in England. He went over with this grant in the year 1690, and set up an office in the Neck, claiming some escheats; but he likewise could make nothing of it. After him Col. George Brent and Col. William Fitzhugh, that were noted lawyers and inhabitants of the said Neck, were employed in that affair: but succeeded no better than their predecessors. The people, in the mean while, complained frequently to their assemblies, who at last made another address to the king; but there being no agent in England to prosecute it, that likewise miscarried. At last Colonel Richard Lee, one of the council, a man of note and inhabitant of the Northern Neck, privately made a composition with the proprietors themselves for his own land. This broke the ice, and several were induced to follow so great an example; so that by degrees, they were generally brought to pay their quit-rents into the hands of the proprietors' agents. And now at last it is managed for them by Col. Robert Carter, another of the council, and the greatest freeholder in that proprietary.

§ 125. To return to my Lord Colepepper's government, I cannot omit a useful thing which his lordship was pleased to do, with relation to their courts of justice. It seems, nicety of pleading, with all the juggle of Westminster Hall, was creeping into their courts. The clerks began in some cases to enter the reasons with the judgments, pretending to set precedents of inviolable form to be observed in all future proceedings. This my lord found fault with, and retrenched all dilatory pleas, as prejudicial to justice, keeping the courts close to the merits of the cause, in order to bring it to a speedy determination, according to the innocence of former times, and caused the judgments to be entered up short, without the reason, alledging that their courts were not of so great experience as to be able to make precedents to posterity; who ought to be left at liberty to determine, according to the equity of the controversy before them.

§ 126. In his time also were dismantled the forts built by Sir Henry Chicheley at the heads of the rivers, and the forces there were disbanded, as being too great a charge. The assembly appointed small parties of light horse in their stead, to range by turns upon the frontiers. These being chosen out of the neighboring inhabitants, might afford to serve at easier rates, and yet do the business more effectually; they were raised under the title or name of rangers.

§ 127. After this the Lord Colepepper returned again for England, his second stay not being much longer than the first; and Sir Henry Chicheley being dead, he proclaimed his kinsman, Mr. Secretary Spencer, president, though he was not the eldest member of the council.

§ 128. The next year, being 1684, upon the Lord Colepepper's refusing to return, Francis, Lord Howard of Effingham, was sent over governor. In order to increase his perquisites, he imposed the charge of an annual under seal of twenty shillings each for school masters; five pounds for lawyers at the general court, and fifty shillings each lawyer at the county courts. He also extorted an excessive fee for putting the seal to all probates of wills, and letters of administration, even where the estates of the deceased were of the meanest value. Neither could any be favored with such administration, or probate, without paying that extortion. If any body presumed to remonstrate against it, his lordship's behavior towards that man was very severe. He kept several persons in prison and under confinement, from court to court, without bringing them to trial. Which proceedings, and many others, were so oppressive, that complaints were made thereof to the king, and Colonel Philip Ludwell was appointed agent to appear against him in England. Whereupon the seal-money was taken off.

§ 129. During the first session of assembly in this noble lord's time, the duty on liquors imported from the other English plantations, was first imposed. It was then laid, on pretence of lessening the levy by the poll, for payment of public taxes; but more especially for rebuilding the State house, which had not been rebuilt since Laurence burnt it in Bacon's time.

This duty was at first laid on wine and rum only, at the rate of three pence per gallon, with an exemption of all such as should be imported in the ships of Virginia owners. But the like duty has since been laid on other liquors also, and is raised to four pence per gallon on wine and rum, and one penny per gallon on beer, cider, lime-juice, &c.; and the privilege of Virginia owners taken away, to the great discouragement of their shipping and home trade.

§ 130. This lord, though he pretended to no great skill in legal proceedings, yet he made great innovations in their courts, pretending to follow the English forms. Thus he created a new court of chancery distinct from the

general court, who had ever before claimed that jurisdiction. He erected himself into a lord chancellor, taking the gentlemen of the council to sit with him as mere associates and advisers, not having any vote in the causes before them. And that it might have more the air of a new court, he would not so much as sit in the State house, where all the other public business was dispatched, but took the dining-room of a large house for that use. He likewise made arbitrary tables of fees, peculiar to this high court. However, his lordship not beginning this project very long before he left the country, all these innovations came to an end upon his removal, and the jurisdiction returned to the general court again, in the time of Colonel Nathaniel Bacon, whom he left president.

§ 131. During that gentleman's presidency, which began Anno 1689, the project of a college was first agreed upon. The contrivers drew up their scheme, and presented it to the president and council. This was by them approved, and referred to the next assembly. But Colonel Bacon's administration being very short, and no assembly called all the while, this pious design could proceed no farther.

§ 132. Anno 1690, Francis Nicholson, esq., being appointed lieutenant governor under the Lord Effingham, arrived there. This gentleman discoursed freely of country improvements, instituted public exercises, and gave prizes to all those that should excel in the exercises of riding, running, shooting, wrestling, and cudgeling. When the design of a college was communicated to him, he promised it all imaginable encouragement. The first thing desired of him in its behalf, was the calling of an assembly, but this he could by no means agree to, being under obligations to the Lord Effingham to stave off assemblies as long he could, for fear there might be farther representations sent over against his lordship, who was conscious to himself how uneasy the country had been under his despotic administration.

§ 133. When that could not be obtained, then they proposed that a subscription might pass through the colony, to try the humor of the people in general, and see what voluntary contributions they could get towards it. This he granted, and he himself, together with the council, set a generous example to the other gentlemen of the country, so that the subscriptions at last amounted to about two thousand five hundred pounds, in which sum is included the generous benevolences of several merchants of London.

§ 134. Anno 1691, an assembly being called, this design was moved to them, and they espoused it heartily; and soon after made an address to king William and queen Mary in its behalf, and sent the Rev. Mr. James Blair their agent to England to solicit their majesties charter for it.

It was proposed that three things should be taught in this college, viz., languages, divinity, and natural philosophy.

The assembly was so fond of Governor Nicholson at that time, that they presented him with the sum of three hundred pounds, as a testimony of their good disposition towards him. But he having an instruction to receive no present from the country, they drew up an address to their majesties, praying that he might have leave to accept it, which was granted, and he gave one half thereof to the college.

§ 135. Their majesties were well pleased with that pious design of the plantation, and granted a charter, according to the desire of Mr. Blair their agent.

Their majesties were graciously pleased to give near two thousand pounds sterling, the balance then due upon the account of quit-rents, towards the founding the college; and towards the endowing of it, they allowed twenty thousand acres of choice land, together with the revenue arising by the penny per pound on tobacco exported from Virginia and Maryland to the other plantations.

It was a great satisfaction to the archbishops and bishops, to see such a nursery of religion founded in that new world, especially for that it was begun in an episcopal way, and carried on wholly by zealous conformists to the Church of England.

§ 136. In this first assembly, Lieutenant Governor Nicholson passed acts for encouragement of the linen manufacture, and to promote the leather trade by tanning, currying, and shoe making. He also in that session passed a law for cohabitation, and improvement of trade.

Before the next assembly he tacked about, and was quite the reverse of what he was in the first, as to cohabitation. Instead of encouraging ports and towns, he spread abroad his dislike of them; and went among the people finding fault with those things which he and the assembly had unanimously

agreed upon the preceding session. Such a violent change there was in him, that it proceeded from some other cause than barely the inconstancy of his temper. He had received directions from those English merchants, who well knew that cohabitation would lessen their consigned trade.

§ 137. In February, 1692, Sir Edmund Andros arrived governor. He began his government with an assembly, which overthrew the good design of ports and towns; but the groundwork of this proceeding was laid before Sir Edmund's arrival. However this assembly proceeded no farther than to suspend the law till their majesties' pleasure should be known. But it seems the merchants in London were dissatisfied, and made public complaints against it, which their majesties were pleased to hear; and afterwards referred the law back to the assembly again, to consider if it were suitable to the circumstances of the country, and to regulate it accordingly. But the assembly did not then proceed any farther in it, the people themselves being infected by the merchants' letters.

§ 138. At this session Mr. Neal's project for a post-office, and his patent of post-master-general in those parts of America, were presented. The assembly made an act to promote that design; but by reason of the inconvenient distance of their habitations, and want of towns, this project fell to nothing.

§ 139. With Sir Edmund Andros, was sent over the college charter; and the subsequent assembly declared, that the subscriptions which had been made to the college were due, and immediately demandable. They likewise gave a duty on the exportation of skins and furs, for its more plentiful endowment, and the foundation of the college was laid.

The subscription money did not come in with the same readiness with which it had been underwritten. However there was enough given by their majesties, and gathered from the people, to keep all hands at work and carry on the building, the foundation whereof they then laid; and the rest, upon suit, had judgment given against them.

§ 140. Sir Edmund Andros was a great encourager of manufactures. In his time fulling-mills were set up by act of assembly. He also gave particular marks of his favor towards the propagating of cotton, which since his time has been much neglected. He was likewise a great lover of method and

dispatch in all sorts of business, which made him find fault with the management of the secretary's office. And, indeed, with very good reason; for from the time of Bacon's rebellion till then, there never was any office in the world more negligently kept. Several patents of land were entered blank upon record; many original patents, records and deeds of land, with other matters of great consequence, were thrown loose about the office, and suffered to be dirtied, torn, and eaten by the moths and other insects. But upon this gentleman's accession to the government, he immediately gave directions to reform all these irregularities; he caused the loose and torn records of value to be transcribed into new books, and ordered conveniences to be built within the office for preserving the records from being lost and confounded as before. He prescribed methods to keep the papers dry and clean, and to reduce them into such order, as that any thing might be turned to immediately. But all these conveniences were burnt soon after they were finished, in October 1698, together with the office itself, and the whole State House. But his diligence was so great in that affair, that though his stay afterward in the country was very short, yet he caused all the records and papers which had been saved from the fire to be sorted again and registered in order, and indeed in much better order than ever they had been before. In this condition he left them at his quitting the government.

He made several offers to rebuild the State House in the same place; and had his government continued but six months longer, 'tis probable he would have effected it after such a manner as might have been least burthensome to the people, designing the greatest part at his own cost.

§ 141. Sir Edmund Andros being upon a progress one summer, called at a poor man's house in Stafford county for water. There came out to him an ancient woman, and with her a lively brisk lad about twelve years old. The lad was so ruddy and fair that his complexion gave the governor a curiosity to ask some questions concerning him; and to his great surprise was told that he was the son of that woman at 76 years of age. His excellency, smiling at this improbability, enquired what sort of man had been his father? To this the good woman made no reply, but instantly ran and led her husband to the door, who was then above 100 years old. He confirmed all that the woman had said about the lad, and, notwithstanding his great age, was strong in his limbs and voice; but had lost his sight. The woman for her

part was without complaint, and seemed to retain a vigor very uncommon at her years. Sir Edmund was so well pleased with this extraordinary account, that, after having made himself known to them, he offered to take care of the lad; but they would by no means be persuaded to part with him. However, he gave them 20 pounds.

§ 142. In November 1698, Francis Nicholson, Esq., was removed from Maryland, to be governor of Virginia. But he went not then with that smoothness on his brow he had carried with him when he was appointed lieutenant-governor. He talked then no more of improving of manufactures, towns and trade. But instead of encouraging the manufactures, he sent over inhuman memorials against them, opposite to all reason. In one of these, he remonstrates, "that the tobacco of that country often bears so low a price, that it would not yield clothes to the people that make it;" and yet presently after, in the same memorial, he recommends it to the parliament "to pass an act, forbidding the plantations to make their own clothing;" which, in other words, is desiring a charitable law, that the planters shall go naked. In a late memorial concerted between him and his creature Col. Quarrey, 'tis most humbly proposed, "that all the English colonies on the continent of North America be reduced under one government, and under one Viceroy; and that a standing army be there kept on foot to subdue the queen's enemies;" surmising that they were intending to set up for themselves.

§ 143. He began his government with a shew of zeal for the church. In the latter end of his time, one half of the intended building, that is two sides of the square, was carried up and finished, in which were allotted the public hall, the apartments and conveniences for several masters and scholars, and the public offices for the domestics: the masters and scholars were also settled in it, and it had its regular visitations from the visitors and governors thereof.

§ 144. Soon after his accession to the government, he procured the assembly and courts of judicature to be removed from Jamestown, where there were good accommodations for people, to Middle Plantation, where there were none. There he flattered himself with the fond imagination of being the founder of a new city. He marked out the streets in many places so as that they might represent the figure of a W, in memory of his late majesty King William, after whose name the town was called Williamsburg.

There he procured a stately fabric to be erected, which he placed opposite to the college, and graced it with the magnificent name of the capitol.

§ 145. In the second year of this gentleman's government, there happened an adventure very fortunate for him, which gave him much credit, and that was the taking of a pirate within the capes of that country.

It fell out that several merchant ships were got ready, and fallen down to Lynhaven bay, near the mouth of James river, in order for sailing. A pirate being informed of this, and hearing that there was no man of war there, except a sixth rate, ventured within the capes, and took several of the merchant ships. But a small vessel happened to come down the bay, and seeing an engagement between the pirate and a merchantman, made a shift to get into the mouth of James river, where the Shoram, a fifth rate man of war, was newly arrived. The sixth rate, commanded by Capt. John Aldred, was then on the careen in Elizabeth river, in order for her return to England.

The governor happened to be at that time at Kiquotan, sealing up his letters, and Capt. Passenger, commander of the Shoram, was ashore, to pay his respects to him. In the meanwhile news was brought that a pirate was within the capes; upon which the captain was in haste to go aboard his ship; but the governor stayed him a little, promising to go along with him. The captain soon after asked his excuse, and went off, leaving him another boat, if he pleased to follow. It was about one o'clock in the afternoon when the news was brought; but 'twas within night before his excellency went aboard, staying all that while ashore upon some weighty occasions. At last he followed, and by break of day the man of war was fairly out between the capes and the pirate; where, after ten hours sharp engagement, the pirate was obliged to strike and surrender upon the terms of being left to the king's mercy.

Now it happened that three men of this pirate's gang were not on board their own ship at the time of the surrender, and so were not included in the articles of capitulation, but were tried in that country. In summing up the charge against them (the governor being present) the attorney-general extolled his excellency's mighty courage and conduct, as if the honor of taking the pirate had been due to him. Upon this, Capt. Passenger took the freedom to interrupt Mr. Attorney in open court, and said that he was

commander of the Shoram; that the pirates were his prisoners; and that no body had pretended to command in that engagement but himself: he farther desired that the governor, who was then present, would do him the justice to confess whether he had given the least word of command all that day, or directed any one thing during the whole fight. This, his excellency acknowledged, was true; and fairly yielded the honor of that exploit to the captain.

§ 146. This governor likewise gained some reputation by another instance of his management, whereby he let the world know the violent passion he had to publish his own fame.

To get honor in New York, he had zealously recommended to the court of England the necessity that Virginia should contribute a certain quota of men, or else a sum of money, towards the building and maintaining a fort at New York. The reason he gave for this, was, because New York was their barrier, and as such, it was but justice they should help to defend it. This was by order of his late majesty King William proposed to the assembly; but upon the most solid reasons they humbly remonstrated, "that neither the forts then in being, nor any other that might be built in the province of New York, could in the least avail to the defence and security of Virginia; for that either the French or the northern Indians might invade that colony, and not come within an hundred miles of any such fort." The truth of these objections are obvious to any one that ever looked on the maps of that part of the world. But the secret of the whole business in plain terms was this: Those forts were necessary for New York, to enable that province to engross the trade of the neighbor Indians, which Virginia had sometimes shared in, when the Indians rambled to the southward.

Now the glory Col. Nicholson got in that affair was this: after he had represented Virginia as republican and rebellious for not complying with his proposal, he said publicly that New York should not want the 900 pounds, though he paid it out of his own pocket, and soon after took a journey to that province.

When he arrived there, he blamed Virginia very much, but pretending earnest desires to serve New York, gave his own bills of exchange for 900 pounds to the aforesaid use, but prudently took a defeasance from the

gentleman to whom they were given, specifying, "that till her majesty should be graciously pleased to remit him the money out of the quit rents of Virginia, those bills should never be made use of." This was an admirable piece of sham generosity, and worthy of the great pains he took to proclaim it. I myself have frequently heard him boast that he gave this money out of his own pocket, and only depended on the queen's bounty to repay him: though the money is not paid by him to this day.

§ 147. Neither was he contented to spread abroad this untruth there; but he also foisted it into a memorial of Col. Quarry's to the council of trade, in which are these words: "As soon as Governor Nicholson found the assembly of Virginia would not see their own interest, nor comply with her majesty's orders, he went immediately to New York; and out of his great zeal to the queen's service, and the security of her province, he gave his own bills for 900 pounds to answer the quota of Virginia, wholly depending on her majesty's favor to reimburse him out of the revenues in that province.

Certainly his excellency and Colonel Quarry, by whose joint wisdom and sincerity this memorial was composed, must believe that the council of trade have very imperfect intelligence how matters pass in that part of the world, or else they would not presume to impose such a banter upon them."

But this is nothing, if compared with some other passages of that unjust representation, wherein they took upon them to describe the people of "Virginia to be both numerous and rich, of republican notions and principles such as ought to be corrected and lowered in time; and that then, or never, was the time to maintain the queen's prerogatives, and put a stop to those wrong, pernicious notions which were improving daily, not only in Virginia but in all her majesty's other governments. A frown now from her majesty will do more than an army hereafter," &c.

With those inhuman, false imputations, did those gentlemen afterwards introduce the necessity of a standing army.

§ 148. Thus did this gentleman continue to rule till August 1705, when Edward Nott, esq., arrived governor, and gave ease to the country by a mild rule. His commission was to be governor-general, but part of his salary was paid my Lord Orkney as chief. Governor Nott had the general commission

given him, because it was suggested that that method, viz: the supreme title, would give the greater awe, and the better put the country to rights.

§ 149. Governor Nott called an assembly the fall after his arrival, who passed the general revisal of the laws, which had been too long in hand. But that part of it which related to the church and clergy Mr. Commissary could not be pleased in; wherefore that bill was dropt, and so it lies at this day.

§ 150. This assembly also passed a new law for ports and towns, grounding it only upon encouragements, according to her majesty's letter to that purpose. But it seems this also could not please the Virginia merchants in England, for they complained against it to the crown, and so it was also suspended.

§ 151. This assembly also passed the law making slaves a real estate, which made a great alteration in the nature of their estates, and becomes a very good security for orphans whose parents happened to die intestate.

§ 152. This assembly also voted a house to be built for the governor's residence, and laid duties to raise the money for it. But his excellency lived not to see much effected therein, being taken off by death in August 1706. In the first year of his government the college was burnt down to the ground.

§ 153. After this governor's death, there being no other nominated by her majesty to succeed him, the government fell into the hands of Edmund Jennings, Esq., the president, and the council, who held no assembly during his time, neither did anything of note happen here. Only we heard that Brigadier Robert Hunter received commission to be lieutenant-governor under George, Earl of Orkney, the chief, and set out for Virginia, but was taken prisoner into France.

§ 154. During Brigadier Hunter's confinement in France, a new commission issued to Colonel Alexander Spotswood to be lieutenant-governor, who arrived here in Anno 1710. He, to the extraordinary benefit of this country, still continues governor, having improved it beyond imagination. His conduct has produced wonders. But it would not become me to affront his modesty by publishing those innumerable benefits of his administration to

his face; therefore I shall leave them to adorn the brighter history of some abler penman.

BOOK II.



OF THE NATURAL PRODUCT AND CONVENIENCES OF VIRGINIA
IN ITS UNIMPROVED STATE, BEFORE THE ENGLISH WENT
THITHER.



CHAPTER I.

OF THE BOUNDS AND COAST OF VIRGINIA.

§ 1. Virginia, as you have heard before, was a name at first given to all the northern part of the continent of America; and when the original grant was made, both to the first and second colonies, that is, to those of Virginia and New England, they were both granted under the name of Virginia. And afterwards, when grants for other new colonies were made by particular names, those names for a long time served only to distinguish them as so many parts of Virginia; and until the plantations became more familiar to England, it was so continued. But in process of time, the name of Virginia was lost to all except to that tract of land lying along the bay of Chesapeake, and a little to the southward, in which are included Virginia and Maryland; both which, in common discourse, are still very often meant by the name of Virginia.

The least extent of bounds in any of the grants made to Virginia, since it was settled, and which we find upon record there, is two hundred miles north from Point Comfort, and two hundred miles south, winding upon the sea coast to the eastward, and including all the land west and northwest, from sea to sea, with the islands on both seas, within an hundred miles of the main. But these extents, both on the north and south, have been since abridged by the proprietary grants of Maryland on the north, and Carolina on the south.

§ 2. The entrance into Virginia for shipping is by the mouth of Chesapeake bay, which is indeed more like a river than a bay; for it runs up into the land about two hundred miles, being everywhere near as wide as it is at the mouth, and in many places much wider. The mouth thereof is about seven leagues over, through which all ships pass to go to Maryland.

The coast is a bold and even coast, with regular soundings, and is open all the year round; so that, having the latitude, which also can hardly be wanted upon a coast where so much clear weather is, any ship may go in by soundings alone, by day or night, in summer or in winter, and need not fear any disaster, if the mariners understand anything; for, let the wind blow how it will, and chop about as suddenly as it pleases, any master, though his ship be never so dull, has opportunity, (by the evenness of the coast,) either of standing off and clearing the shore, or else of running into safe harbor within the capes. A bolder and safer coast is not known in the universe; to which conveniences, there is the addition of good anchorage all along upon it, without the capes.

§ 3. Virginia, in the most restrained sense, distinct from Maryland, is the spot to which I shall altogether confine this description; though you may consider, at the same time, that there cannot be much difference between this and Maryland, they being contiguous one to the other, lying in the same bay, producing the same sort of commodities, and being fallen into the same unhappy form of settlements, altogether upon country seats, without towns. Virginia, thus considered, is bounded on the south by North Carolina, on the north by Potomac river, which divides it from Maryland, on the east by the main ocean, called the Virginia seas, and on the west and northwest by the Californian sea, whenever the settlements shall be extended so far, or now by the river Mississippi.

This part of Virginia, now inhabited, if we consider the improvements in the hands of the English, it cannot upon that score be commended; but if we consider its natural aptitude to be improved, it may with justice be accounted one of the finest countries in the world. Most of the natural advantages of it, therefore, I shall endeavor to discover, and set in their true light, together with its inconveniences, and afterwards proceed to the improvements.

CHAPTER II.

OF THE WATERS.

§ 4. The largeness of the bay of Chesapeake, I have mentioned already. From one end of it to the other, there is good anchorage, and so little danger of a wreck, that many masters, who have never been there before, venture up to the head of the bay, upon the slender knowledge of a common sailor. But the experience of one voyage teaches any master to go up afterwards without a pilot.

Besides this bay, the country is watered with four great rivers, viz: James, York, Rappahannock, and Potomac rivers, all which are full of convenient and safe harbors. There are also abundance of lesser rivers, many of which are capable of receiving the biggest merchant ships, viz: Elizabeth river, Nansemond, Chickahominy, Pocason, Pamunkey, Mattapony, (which two last are the two upper branches of York river,) North river, Easternmost river, Corotoman, Wiccocomoco, Pocomoke, Chissenessick, Pungotegue, and many others. But because they are so well described in the large maps of Virginia, I shall forbear any farther description of them.

These rivers are of such convenience, that for almost every half dozen miles of their extent, there is a commodious and safe road for a whole fleet, which gives opportunity to the masters of ships to lie up and down straggling, according as they have made their acquaintance, riding before that gentleman's door where they find the best reception, or where 'tis most suitable to their business.

§ 5. These rivers are made up by the conflux of an infinite number of crystal springs of cool and pleasant water, issuing everywhere out of the banks and sides of the valleys. These springs flow so plentifully, that they make the river water fresh fifty, threescore, and sometimes a hundred miles below the flux and reflux of the tides, and sometimes within thirty or forty miles of

the bay itself. The conveniences of these springs are so many, they are not to be numbered. I shall therefore content myself to mention that one of supplying the country elsewhere, except in the lowlands, with as many mills as they can find work for; and some of these send forth such a glut of water, that in less than a mile below the fountain head, they afford a stream sufficient to supply a grist mill, of which there are several instances.

§ 6. The only mischief I know belonging to these rivers is, that in the month of June annually, there rise up in the salts, vast beds of seedling-worms, which enter the ships, sloops or boats wherever they find the coat of pitch, tar, or lime worn off the timber, and by degrees eat the plank into cells like those of a honey-comb. These worms continue thus upon the surface of the water, from their rise in June until the first great rains after the middle of July, but after that do no fresh damage till the next summer season, and never penetrate farther than the plank or timber they first fix upon.

The damage occasioned by these worms may be four several ways avoided.

1. By keeping the coat (of pitch, lime and tallow, or whatever else it is) whole upon the bottom of the ship or vessel, for these worms never fasten nor enter, but where the timber is naked.
 2. By anchoring the large vessel in the strength of the tide, during the worm season, and hauling the smaller ashore; for in the current of a strong tide, the worm cannot fasten.
 3. By burning and cleaning immediately after the worm season is over; for then they are but just stuck into the plank, and have not buried themselves in it; so that the least fire in the world destroys them entirely, and prevents all damage that would otherwise ensue from them.
 4. By running up into the freshes with the ship or vessel during the five or six weeks that the worm is thus above water; for they never enter, nor do any damage in fresh water, or where it is not very salt.
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CHAPTER III.

OF THE EARTH AND SOILS.

§ 7. The soil is of such variety, according to the difference of situation, that one part or other of it seems fitted to every sort of plant that is requisite either for the benefit or pleasure of mankind. And were it not for the high mountains to the northwest, which are supposed to retain vast magazines of snow, and by that means cause the wind from that quarter to descend a little too cold upon them, 'tis believed that many of those delicious summer fruits, growing in the hotter climates, might be kept there green all the winter without the charge of housing, or any other care, than what is due to the natural plants of the country, when transplanted into a garden. But as that would be no considerable charge, any man that is curious might, with all the ease imaginable, preserve as many of them as would gratify a moderate luxury; and the summer affords genial heat enough to ripen them to perfection.

There are three different kinds of land, according to the difference of situation, either in the lower parts of the country, the middle, or that on the heads of the rivers.

1. The land towards the mouth of the rivers is generally of a low, moist, and fat mould, such as the heavier sort of grain delight in: as rice, hemp, Indian corn, &c. This also is varied here and there with veins of a cold, hungry, sandy soil, of the same moisture, and very often lying under water. But this also has its advantages; for on such land generally grow the huckleberries, cranberries, chinkapins, &c. These low lands are, for the most part, well stored with oaks, poplars, pines, cedars, cypress and sweet gums; the trunks of which are often thirty, forty, fifty, some sixty or seventy feet high, without a branch or limb. They likewise produce great variety of evergreens, unknown to me by name, besides the beauteous holly, sweet myrtle, cedar, and the live oak, which for three quarters of the year is

continually dropping its acorns, and at the same time budding and bearing others in their stead.

2. The land higher up the rivers, throughout the whole country, is generally a level ground, with shallow valleys, full of streams and pleasant springs of clear water, having interspersed here and there among the large levels some small hills and extensive vales. The mould in some places is black, fat, and thick laid; in others looser, lighter and thin. The foundation of the mould is also various; sometimes clay, then gravel and rocky stones, and sometimes marl. The middle of the necks, or ridges between the rivers, is generally poor, being either a light sand, or a white or red clay, with a thin mould. Yet even these places are stored with chestnuts, chinkapins, acorns of the shrub oak, and a reedy grass in summer, very good for cattle. The rich lands lie next the rivers and branches, and are stored with large oak, walnut, hickory, ash, beech, poplar, and many other sorts of timber, of surprising bigness.

3. The heads of the rivers afford a mixture of hills, valleys and plains, some richer than others, whereof the fruit and timber trees are also various. In some places lie great plats of low and very rich ground, well timbered; in others, large spots of meadows and savannahs, wherein are hundreds of acres without any tree at all, but yields reeds and grass of incredible height; and in the swamps and sunken grounds grow trees as vastly big as I believe the world affords, and stand so close together, that the branches or boughs of many of them lock into one another; but what lessens their value is, that the greatest bulk of them are at some distance from water-carriage. The land of these upper parts affords greater variety of soil than any other, and as great variety in the foundations of the soil or mould, of which good judgment may be made by the plants and herbs that grow upon it. The rivers and creeks do in many places form very fine large marshes, which are a convenient support for their flocks and herds.

§ 8. There is likewise found great variety of earths for physic, cleansing, scouring, and making all sorts of potter's ware; such as antimony, talk, yellow and red oker, fuller's-earth, pipe-clay, and other fat and fine clays, marl, &c.; in a word, there are all kinds of earth fit for use.

They have besides, in those upper parts, coal for firing, slate for covering, and stones for building, and flat paving in vast quantities, as likewise

pebble stones. Nevertheless, it has been confidently affirmed by many, who have been in Virginia, that there is not a stone in all the country. If such travelers knew no better than they said, my judgment of them is, that either they were people of extreme short memories, or else of very narrow observation. For though generally the lower parts are flat, and so free from stones, that people seldom shoe their horses; yet in many places, and particularly near the falls of the rivers, are found vast quantities of stone, fit for all kinds of uses. However, as yet, there is seldom any use made of them, because commonly wood is to be had at much less trouble; and as for coals, it is not likely they should ever be used there in anything but forges and great towns, if ever they happen to have any, for, in their country plantations, the wood grows at every man's door so fast, that after it has been cut down, it will in seven years time grow up again from seed, to substantial fire-wood; and in eighteen or twenty years it will come to be very good board timber.

§ 9. For mineral earths, it is believed they have great plenty and variety, that country being in a good latitude, and having great appearances of them. It has been proved, too, that they have both iron and lead, as appears by what was said before concerning the iron works set up at Falling creek in James river, where the iron proved reasonably good; but before they got into the body of the mine, the people were cut off in that fatal massacre, and the project has never been set on foot since, till of late; but it has not had its full trial.

The golden mine, of which there was once so much noise, may, perhaps, be found hereafter to be some good metal, when it comes to be fully examined. But be that as it will, the stones that are found near it, in great plenty, are valuable, their lustre approaching nearer to that of the diamond than those of Bristol or Kerry. There is no other fault in them but their softness, which the weather hardens, when they have been sometime exposed to it, they being found under the surface of the earth. This place has now plantations on it.

This I take to be the place in Purchase's fourth book of his pilgrim, called Uttamussack, where was formerly the principal temple of the country, and the metropolitan seat of the priests in Powhatan's time. There stood the three great houses, near sixty feet in length, which he reports to have been

filled with the images of their gods; there were likewise preserved the bodies of their kings. These houses they counted so holy, that none but their priests and kings durst go into them, the common people not presuming, without their particular direction, to approach the place.

There also was their great Pawcorance, or altar stone, which, the Indians tell us, was a solid crystal, of between three and four feet cube, upon which, in their greatest solemnities, they used to sacrifice. This, they would make us believe, was so clear, that the grain of a man's skin might be seen through it; and was so heavy too that when they removed their gods and kings, not being able to carry it away, they buried it thereabouts; but the place has never been yet discovered.

Mr. Alexander Whittaker, minister of Henrico, on James river, in the company's time, writing to them, says thus: "Twelve miles from the falls there is a crystal rock, wherewith the Indians do head many of their arrows; and three days journey from thence, there is a rock and stony hill found, which is on the top covered over with a perfect and most rich silver ore. Our men that went to discover those parts had but two iron pickaxes with them, and those so ill tempered that the points of them turned again, and bowed at every stroke, so that we could not search the entrails of the place; yet some trial was made of that ore with good success."

§ 10. Some people that have been in that country, without knowing any thing of it, have affirmed that it is all a flat, without any mixture of hills, because they see the coast to seaward perfectly level: or else they have made their judgment of the whole country by the lands lying on the lower parts of the rivers, (which, perhaps, they had never been beyond,) and so conclude it to be throughout plain and even. When in truth, upon the heads of the great rivers, there are vast high hills; and even among the settlements there are some so topping that I have stood upon them and viewed the country all round over the tops of the highest trees for many leagues together; particularly, there are Mawborn hills in the freshes of James river; a ridge of hills about fourteen or fifteen miles up Mattapony river; Toliver's mount, upon Rappahannock river; and the ridge of hills in Stafford county, in the freshes of Potomac river; all which are within the bounds of the English inhabitants. But a little farther backward, there are mountains, which indeed deserve the name of mountains for their height and bigness;

which by their difficulty in passing may easily be made a good barrier of the country against incursions of the Indians, &c., and shew themselves over the tops of the trees to many plantations at 70 or 80 miles distance very plain.

These hills are not without their advantages; for, out of almost every rising ground, throughout the country, there issue abundance of most pleasant streams, of pure and crystal water, than which certainly the world does not afford any more delicious. These are every where to be found in the upper parts of this country, and many of them flow out of the sides of banks very high above the vales, which are the most suitable places for gardens—where the finest water works in the world may be made at a very small expense.

There are likewise several mineral springs, easily discoverable by their taste, as well as by the soil which they drive out with their streams. But I am not naturalist skilful enough to describe them with the exactness they deserve.

CHAPTER IV.

OF THE WILD FRUITS OF THE COUNTRY.

§ 11. Of fruits natural to the country, there is great abundance, but the several species of them are produced according to the difference of the soil, and the various situation of the country; it being impossible that one piece of ground should produce so many different kinds intermixed. Of the better sorts of the wild fruits that I have met with, I will barely give you the names, not designing a natural history. And when I have done that, possibly I may not mention one-half of what the country affords, because I never went out of my way to enquire after anything of this nature.

§ 12. Of stoned fruits, I have met with three good sorts, viz: Cherries, plums and persimmons.

1. Of cherries natural to the country, and growing wild in the woods, I have seen three sorts. Two of these grow upon trees as big as the common English white oak, whereof one grows in bunches like grapes. Both these sorts are black without, and but one of them red within. That which is red within, is more palatable than the English black cherry, as being without its bitterness. The other, which hangs on the branch like grapes, is water colored within, of a faintish sweet, and greedily devoured by the small birds. The third sort is called the Indian cherry, and grows higher up in the country than the others do. It is commonly found by the sides of rivers and branches on small slender trees, scarce able to support themselves, about the bigness of the peach trees in England. This is certainly the most delicious cherry in the world; it is of a dark purple when ripe, and grows upon a single stalk like the English cherry, but is very small, though, I suppose, it may be made larger by cultivation, if anybody would mind it. These, too, are so greedily devoured by the small birds, that they won't let them remain on the tree long enough to ripen; by which means, they are

rarely known to any, and much more rarely tasted, though, perhaps, at the same time they grow just by the houses.

2. The plums, which I have observed to grow wild there, are of two sorts, the black and the Murrey plum, both which are small, and have much the same relish with the damson.

3. The persimmon is by Heriot called the Indian plum; and so Smith, Purchase, and Du Lake, call it after him; but I can't perceive that any of those authors had ever heard of the sorts I have just now mentioned, they growing high up in the country. These persimmons, amongst them, retain their Indian name. They are of several sizes, between the bigness of a damson plum and a burgamot pear. The taste of them is so very rough, it is not to be endured till they are fully ripe, and then they are a pleasant fruit. Of these, some virtuosi make an agreeable kind of beer, to which purpose they dry them in cakes, and lay them up for use. These, like most other fruits there, grow as thick upon the trees as ropes of onions: the branches very often break down by the mighty weight of the fruit.

§ 13. Of berries there is a great variety, and all very good in their kinds. Our mulberries are of three sorts, two black and one white; the long black sort are the best, being about the bigness of a boy's thumb; the other two sorts are of the shape of the English mulberry, short and thick, but their taste does not so generally please, being of a faintish sweet, without any tartness. They grow upon well spread, large bodied trees, which run up surprisingly fast. These are the proper food of the silk-worm.

1. There grow naturally two sorts of currants, one red and the other black, more sweet than those of the same color in England. They grow upon small bushes, or slender trees.

2. There are three sorts of hurts, or huckleberries, upon bushes, from two to ten feet high. They grow in the valleys and sunken grounds, having different relishes; but are all pleasing to the taste. The largest sort grow upon the largest bushes, and, I think, are the best berries.

3. Cranberries grow in the low lands and barren sunken grounds, upon low bushes, like the gooseberry, and are much of the same size. They are of a lively red, when gathered and kept in water, and make very good tarts. I

believe these are the berries which Captain Smith compared to the English gooseberry, and called Rawcomens; having, perhaps, seen them only on the bushes, where they are always very sour.

4. The wild raspberry is by some there preferred to those that were transplanted thither from England; but I cannot be of their opinion.

5. Strawberries they have, as delicious as any in the world, and growing almost every where in the woods and fields. They are eaten almost by all creatures; and yet are so plentiful that very few persons take care to transplant them, but can find enough to fill their baskets, when they have a mind, in the deserted old fields.

§ 14. There grow wild several sorts of good nuts, viz.: chestnuts, chinkapins, hazelnuts, hickories, walnuts, &c.

1. Chestnuts are found upon very high trees, growing in barren ridges. They are something less than the French chestnut; but, I think not differing at all in taste.

2. Chinkapins have a taste something like a chestnut, and grow in a husk or bur, being of the same sort of substance, but not so big as an acorn. They grow upon large bushes, some about as high as the common apple trees in England, and either in the high or low, but always barren ground.

3. Hazelnuts are there in infinite plenty, in all the swamps; and towards the heads of the rivers, whole acres of them are found upon the high land.

4. Hickory nuts are of several sorts, all growing upon great trees, and in an husk, like the French walnut, except that the husk is not so thick, and more apt to open. Some of these nuts are inclosed in so hard a shell, that a light hammer will hardly crack them; and when they are cracked, their kernel is fastened with so firm a web, that there is no coming at it. Several other sorts I have seen with thinner shells, whose kernels may be got with less trouble. There are also several sorts of hickories, called pig nuts, some of which have as thin a shell as the best French walnuts, and yield their meat very easily; they are all of the walnut kind.

5. They have a sort of walnut they call black walnuts, which are as big again as any I ever saw in England, but are very rank and oily, having a

thick, hard, foul shell, and come not clear of the husk as the walnut in France doth; but the inside of the nut, and leaves, and growing of the tree, declare it to be of the walnut kind.

6. Their woods likewise afford a vast variety of acorns, seven sorts of which have fallen under my observation. That which grows upon the live oak, buds, ripens and drops off the tree, almost the whole year around. All their acorns are very fat and oily; but the live oak acorn is much more so than the rest, and I believe the making of oil of them would turn to a good account; but now they only serve as mast for the hogs and other wild creatures, as do all the other fruits aforementioned, together with several other sorts of mast growing upon the beach, pine and other trees. The same use is made also of diverse sorts of pulse and other fruits growing upon wild vines; such as peas, beans, vetches, squashes, maycocks, maracocks, melons, cucumbers, lupines, and an infinity of other sorts of fruits, which I cannot name.

§ 15. Grapes grow wild there in an incredible plenty and variety, some of which are very sweet and pleasant to the taste; others rough and harsh, and perhaps fitter for wine or brandy. I have seen great trees covered with single vines, and those vines almost hid with the grapes. Of these wild grapes, besides those large ones in the mountains, mentioned by Batt in his discovery, I have observed four very different kinds, viz:

1. One of these sorts grows among the sand banks upon the edges of the low grounds, and islands next the bay and sea, and also in the swamps and breaches of the uplands. They grow thin in small bunches, and upon very low vines. These are noble grapes; and though they are wild in the woods, are as large as the Dutch gooseberry. One species of them is white, others purple, blue and black, but all much alike in flavor; and some long, some round.

2. A second kind is produced throughout the whole country, in the swamps and sides of hills. These also grow upon small vines, and in small bunches; but are themselves the largest grapes, as big as the English bullace, and of a rank taste when ripe, resembling the smell of a fox, from whence they are called fox grapes. Both these sorts make admirable tarts, being of a fleshy substance, and perhaps, if rightly managed, might make good raisins.

3. There are two species more that are common to the whole country, some of which are black, and some blue on the outside, and some white. They grow upon vast large vines, and bear very plentifully. The nice observer might perhaps distinguish them into several kinds, because they differ in color, size, and relish; but I shall divide them only into two, viz: the early and the late ripe. The early ripe common grape is much larger, sweeter and better than the other. Of these some are quite black, and others blue, and some white or yellow; some also ripen three weeks or a month before the other. The distance of their ripening, is from the latter end of August to the latter end of October. The late ripe common grapes are less than any of the other, neither are they so pleasant to the taste. They hang commonly till the latter end of November, or till Christmas; all that I have seen of these are black. Of the former of these two sorts, the French refugees at the Monacan town made a sort of claret, though they were gathered off of the wild vines in the woods. I was told by a very good judge who tasted it, that it was a pleasant, strong, and full bodied wine. From which we may conclude, that if the wine was but tolerable good when made of the wild grape, which is shaded by the woods from the sun, it would be much better if produced of the same grape cultivated in a regular vineyard.

The year before the massacre, Anno 1622, which destroyed so many good projects for Virginia, some French vigneronns were sent thither to make an experiment of their vines. These people were so in love with the country, that the character they then gave of it in their letters to the company in England, was very much to its advantage, namely: "That it far excelled their own country of Languedoc, the vines growing in great abundance and variety all over the land; that some of the grapes were of that unusual bigness, that they did not believe them to be grapes, until by opening them they had seen their kernels; that they had planted the cuttings of their vines at Michaelmas, and had grapes from those very cuttings the spring following. Adding in the conclusion, that they had not heard of the like in any other country." Neither was this out of the way, for I have made the same experiment, both of their natural vine and of the plants sent thither from England.

The copies of the letters, here quoted, to the company in England, are still to be seen; and Purchase, in his fourth volume of pilgrims, has very justly quoted some of them.

§ 16. The honey and sugar trees are likewise spontaneous near the heads of the rivers. The honey tree bears a thick swelling pod, full of honey, appearing at a distance like the bending pod of a bean or pea; it is very like the carob tree in the herbals. The sugar tree yields a kind of sap or juice, which by boiling is made into sugar. This juice is drawn out by wounding the trunk of the tree, and placing a receiver under the wound. It is said that the Indians make one pound of sugar out of eight pounds of the liquor. Some of this sugar I examined very carefully. It was bright and moist, with a large, full grain, the sweetness of it being like that of good muscovado.

Though this discovery has not been made by the English above 28 or thirty years, yet it has been known among the Indians before the English settled there. It was found out by the English after this manner: The soldiers which were kept on the land frontiers to clear them of the Indians, taking their range through a piece of low ground about forty miles above the then inhabited parts of Potomac river, and resting themselves in the woods of those low grounds, observed an inspissate juice, like molasses, distilling from the tree. The heat of the sun had candied some of this juice, which gave the men a curiosity to taste it. They found it sweet, and by this process of nature learned to improve it into sugar. But the Christian inhabitants are now settled where many of these trees grow, but it hath not yet been tried, whether for quantity or quality it may be worth while to cultivate this discovery.

Thus the Canada Indians make sugar of the sap of a tree. And Peter Martyr mentions a tree that yields the like sap, but without any description. The eleomeli of the ancients, a sweet juice like honey, is said to be got by wounding the olive tree; and the East Indians extract a sort of sugar, they call jagra, from the juice, or potable liquor, that flows from the coco tree. The whole process of boiling, graining and refining of which, is accurately set down by the authors of Hortus Malabaricus.

§ 17. At the mouth of their rivers, and all along upon the sea and bay, and near many of their creeks and swamps, grows the myrtle, bearing a berry, of which they make a hard brittle wax, of a curious green color, which by refining becomes almost transparent. Of this they make candles, which are never greasy to the touch, nor melt with lying in the hottest weather; neither does the snuff of these ever offend the smell like that of a tallow candle; but

instead of being disagreeable, if an accident put a candle out, it yields a pleasant fragrancy to all that are in the room; insomuch, that nice people often put them out, on purpose to have the incense of the expiring snuff.

The melting of these berries is said to have been first found out by a surgeon in New England, who performed wonderful things, with a salve made of them. This discovery is very modern, notwithstanding these countries have been so long settled.

The method of managing these berries is by boiling them in water, till they come to be entirely dissolved, except the stone or seed in the middle, which amounts in quantity to about half the bulk of the berry; the biggest of which is something less than a corn of pepper.

There are also in the plains, and rich low grounds of the freshes, abundance of hops, which yield their product without any labor of the husbandman, in weeding, hilling or poling.

§ 18. All over the country is interspersed here and there a surprising variety of curious plants and flowers. They have a sort of briar, growing something like the sarsaparilla. The berry of this is as big as a pea, and as round, the seed being of a bright crimson color. It is very hard, and finely polished by nature, so that it might be put to diverse ornamental uses, as necklaces are, &c.

There are several woods, plants and earths, which have been fit for the dying of curious colors. They have the puccoon and musquaspen, two roots, with which the Indians use to paint themselves red. And a berry, which grows upon a wild briar, dyes a handsome blue. There is the sumac and the sassafras, which make a deep yellow. Mr. Heriot tells us of several others which he found at Pamtego, and gives the Indian names of them; but that language being not understood by the Virginians, I am not able to distinguish which he means. Particularly he takes notice of wasebur, an herb; chapacour, a root; and tangomockonominge, a bark.

There's the snake root, so much admired in England for a cordial, and for being a great antidote in all pestilential distempers.

There's the rattlesnake root, to which no remedy was ever yet found comparable; for it effectually cures the bite of a rattlesnake, which

sometimes has been mortal in two minutes. If this medicine be early applied, it presently removes the infection, and in two or three hours restores the patient to as perfect health as if he had never been hurt.

The Jamestown weed (which resembles the thorny apple of Peru, and I take to be the plant so called) is supposed to be one of the greatest coolers in the world. This being an early plant, was gathered very young for a boiled salad, by some of the soldiers sent thither to quell the rebellion of Bacon; and some of them eat plentifully of it, the effect of which was a very pleasant comedy; for they turned natural fools upon it for several days: one would blow up a feather in the air; another would dart straws at it with much fury; and another stark naked was sitting up in a corner, like a monkey, grinning and making mows at them; a fourth would fondly kiss and paw his companions, and sneer in their faces, with a countenance more antic than any in a Dutch droll. In this frantic condition they were confined, lest they should in their folly destroy themselves; though it was observed that all their actions were full of innocence and good nature. Indeed, they were not very cleanly, for they would have wallowed in their own excrements if they had not been prevented. A thousand such simple tricks they played, and after eleven days returned to themselves again, not remembering anything that had passed.

Perhaps this was the same herb that Mark Antony's army met with in his retreat from the Parthian war and siege of Phraata, when such as had eaten thereof employed themselves with much earnestness and industry in grubbing up stones, and removing them from one place to another, as if it had been a business of the greatest consequence. Wine, as the story says, was found a sovereign remedy for it, which is likely enough, the malignity of this herb being cold.

Of spontaneous flowers they have an unknown variety: the finest crown imperial in the world; the cardinal flower, so much extolled for its scarlet color, is almost in every branch; the moccasin flower, and a thousand others not yet known to English herbalists. Almost all the year round the levels and vales are beautified with flowers of one kind or other, which make their woods as fragrant as a garden. From the materials, their wild bees make vast quantities of honey, but their magazines are very often rifled by bears, raccoons, and such like liquorish vermin.

About the year 1701, walking out to take the air, I found, a little without my pasture fence, a flower as big as a tulip, and upon a stalk resembling the stalk of a tulip. The flower was of a flesh color, having a down upon one end, while the other was plain. The form of it resembled the pudenda of a man and woman lovingly joined in one. Not long after I had discovered this rarity, and while it was still in bloom, I drew a grave gentleman, about an hundred yards out of his way, to see this curiosity, not telling him anything more than that it was a rarity, and such perhaps as he had never seen nor heard of. When we arrived at the place, I gathered one of them, and put it into his hand, which he had no sooner cast his eye upon, but he threw it away with indignation, as being ashamed of this waggery of nature. It was impossible to persuade him to touch it again, or so much as to squint towards so immodest a representation. Neither would I presume to mention such an indecency, but that I thought it unpardonable to omit a production so extraordinary.

There is also found the fine tulip-bearing laurel tree, which has the pleasantest smell in the world, and keeps blossoming and seeding several months together. It delights much in gravelly branches of chrystal streams, and perfumes the very woods with its odor. So also do the large tulip tree, which we call a poplar, the locust, which resembles much the jasmine, and the perfuming crab tree, during their season. With one sort or other of these, as well as many other sweet-flowering trees not named, the vales are almost everywhere adorned, and yield a surprising variety to divert the traveler.

They find a world of medicinal plants likewise in that country, and amongst the rest the planters pretend to have a swamp-root, which infallibly cures all fevers and agues. The bark of the sassafras tree and wild cherry tree have been experimented to partake very much of the virtue of the cortex peruviana. The bark of the root, of that which we call the prickly ash, being dried and powdered, has been found to be a specific in old ulcers and long running sores. Infinite is the number of other valuable vegetables of every kind; but natural history not having been my study, I am unwilling to do wrong to my subject by an unskillful description.

§ 19. Several kinds of the creeping vines bearing fruit, the Indians planted in their gardens or fields, because they would have plenty of them always at

hand; such as muskmelons, watermelons, pompions, cushaws, macocks and gourds.

1. Their muskmelons resemble the large Italian kind, and generally fill four or five quarts.

2. Their watermelons were much more large, and of several kinds, distinguished by the color of their meat and seed; some are red, some yellow, and others white meated; and so of the seed, some are yellow, some red, and some black; but these are never of different colors in the same melon. This fruit the Muscovites call arpus; the Turks and Tartars karpus, because they are extremely cooling. The Persians call them hindnanes, because they had the first seed of them from the Indies. They are excellently good, and very pleasant to the taste, as also to the eye; having the rind of a lively green color, streaked and watered, the meat of a carnation, and the seed black and shining, while it lies in the melon.

3. Their pompions I need not describe, but must say they are much larger and finer than any I ever heard of in England.

4. Their cushaws are a kind of pompion, of a bluish green color, streaked with white, when they are fit for use. They are larger than the pompions, and have a long narrow neck. Perhaps this may be the ecushaw of T. Harriot.

5. Their macocks are a sort of melopepones, or lesser sort of pompion or cushaw. Of these they have great variety; but the Indian name macock serves for all, which name is still retained among them. Yet the clypeatae are sometimes called cymnells, (as are some others also,) from the lenten cake of that name, which many of them very much resemble. Squash, or squanter-squash, is their name among the northern Indians, and so they are called in New York and New England. These being boiled whole, when the apple is young, and the shell tender, and dished with cream or butter, relish very well with all sorts of butcher's meat, either fresh or salt. And whereas the pompion is never eaten till it be ripe, these are never eaten after they are ripe.

6. The Indians never eat the gourds, but plant them for other uses. Yet the Persians, who likewise abound with this sort of fruit, eat the cucurbita

lagenaris, which they call kabach, boiling it while it is green, before it comes to its full maturity, for when it is ripe the rind dries, and grows as hard as the bark of a tree, and the meat within is so consumed and dried away, that there is then nothing left but the seed, which the Indians take clean out, and afterwards use the shells, instead of flagons and cups, as is done also in several other parts of the world.

7. The maracock, which is the fruit of what we call the passion flower, our natives did not take the pains to plant, having enough of it growing everywhere, though they often eat it; this fruit is about the size of a pullet's egg.

§ 20. Besides all these, our natives had originally amongst them Indian corn, peas, beans, potatoes and tobacco.

This Indian corn was the staff of food upon which the Indians did ever depend; for when sickness, bad weather, war, or any other ill accident kept them from hunting, fishing and fowling, this, with the addition of some peas, beans, and such other fruits of the earth, as were then in season, was the family's dependence, and the support of their women and children.

There are four sorts of Indian corn: two of which are early ripe, and two late ripe, all growing in the same manner; every single grain of this when planted produces a tall upright stalk, which has several ears hanging on the sides of it, from six to ten inches long. Each ear is wrapt up in a cover of many folds, to protect it from the injuries of the weather. In every one of these ears are several rows of grain, set close to one another, with no other partition but of a very thin husk. So that oftentimes the increase of this grain amounts to above a thousand for one.

The two sorts which are early ripe, are distinguished only by the size, which shows itself as well in the grain as in the ear and the stalk. There is some difference also in the time of ripening.

The lesser size of early ripe corn yields an ear not much larger than the handle of a case knife, and grows upon a stalk between three and four feet high. Of this may be made two crops in a year, and perhaps there might be heat enough in England to ripen it.

The larger sort differs from the former only in largeness, the ear of this being seven or eight inches long, as thick as a child's leg, and growing upon a stalk nine or ten feet high. This is fit for eating about the latter end of June, whereas the smaller sort (generally speaking) affords ears fit to roast by the middle of June. The grains of both these sorts are as plump and swelled as if the skin were ready to burst.

The late ripe corn is diversified by the shape of the grain only, without any respect to the accidental differences in color, some being blue, some red, some yellow, some white, and some streaked. That therefore which makes the distinction, is the plumpness or shriveling of the grain; the one looks as smooth and as full as the early ripe corn, and this they call flint corn; the other has a larger grain, and looks shriveled, with a dent on the back of the grain, as if it had never come to perfection; and this they call she corn. This is esteemed by the planters as the best for increase, and is universally chosen by them for planting; yet I can't see but that this also produces the flint corn, accidentally among the other.

All these sorts are planted alike in rows, three, four or five grains in a hill; the larger sort at four or five feet distance, the lesser sort nearer. The Indians used to give it one or two weedings, and make a hill about it, and so the labor was done. They likewise plant a bean in the same hill with the corn, upon whose stalk it sustains itself.

The Indians sowed peas sometimes in the intervals of the rows of corn, but more generally in a patch of ground by themselves. They have an unknown variety of them, (but all of a kidney shape,) some of which I have met with wild; but whence they had their Indian corn I can give no account; for I don't believe that it was spontaneous in those parts.

Their potatoes are either red or white, about as long as a boy's leg, and sometimes as long and big as both the leg and thigh of a young child, and very much resembling it in shape. I take these kinds to be the same with those which are represented in the herbals to be Spanish potatoes. I am sure those called English or Irish potatoes are nothing like these, either in shape, color or taste. The way of propagating potatoes there, is by cutting the small ones to pieces, and planting the cuttings in hills of loose earth; but they are so tender, that it is very difficult to preserve them in the winter, for the least

frost coming at them, rots and destroys them, and therefore people bury 'em under ground, near the fire-hearth, all the winter, until the time comes that their seedings are to be set.

How the Indians ordered their tobacco I am not certain, they now depending chiefly upon the English for what they smoke; but I am informed they used to let it all run to seed, only succoring the leaves to keep the sprouts from growing upon, and starving them; and when it was ripe they pulled off the leaves, cured them in the sun, and laid them up for use. But the planters make a heavy bustle with it now, and can't please the market neither.

CHAPTER V.

OF THE FISH.

§ 21. As for fish, both of fresh and salt water, of shell fish, and others, no country can boast of more variety, greater plenty, or of better in their several kinds.

In the spring of the year herrings come up in such abundance into their brooks and fords to spawn, that it is almost impossible to ride through without treading on them. Thus do those poor creatures expose their own lives to some hazard, out of their care to find a more convenient reception for their young, which are not yet alive. Thence it is that at this time of the year the freshes of the rivers, like that of the Broadruck, stink of fish.

Besides these herrings, there come up likewise into the freshes from the sea multitudes of shad, rock, sturgeon, and some few lampreys, which fasten themselves to the shad, as the remora of Imperatus is said to do to the shark of Tiburone. They continue their stay there about three months. The shads at their first coming up are fat and fleshy; but they waste so extremely in milting and spawning, that at their going down they are poor, and seem fuller of bones, only because they have less flesh. It is upon this account (I suppose) that those in the Severn, which in Gloucester they call twaits, are said at first to want those intermuscular bones, which afterwards they abound with. As these are in the freshes, so the salts afford at certain times of the year many other kinds of fish in infinite shoals, such as the old-wife, a fish not much unlike an herring, and the sheep's-head, a sort of fish, which they esteem in the number of their best.

§ 22. There is likewise great plenty of other fish all the summer long; and almost in every part of the rivers and brooks, there are found of different kinds. Wherefore I shall not pretend to give a detail of them, but venture to mention the names only of such as I have eaten and seen myself, and so

leave the rest to those that are better skilled in natural history. However, I may add, that besides all those that I have met with myself, I have heard of a great many very good sorts, both in the salts and freshes; and such people, too, as have not always spent their time in that country, have commended them to me beyond any they had ever eaten before.

Those which I know of myself I remember by the names of herring, rock, sturgeon, shad, old-wife, sheep's-head, black and red drum, trout, taylor, green-fish, sun-fish, bass, chub, place, flounder, whiting, fatback, maid, wife, small-turtle, crab, oyster, mussel, cockle, shrimp, needle-fish, breme, carp, pike, jack, mullet, eel, conger-eel, perch, and cat, &c.

Those which I remember to have seen there, of the kinds that are not eaten, are the whale, porpus, shark, dog-fish, garr, stingray, thornback, saw-fish, toad-fish, frog-fish, land-crab, fiddler, and periwinkle. One day as I was hauling a sein upon the salts, I caught a small fish about two inches and an half long, in shape something resembling a scorpion, but of a dirty, dark color. I was a little shy of handling it, though I believe there was no hurt in it. This I judge to be that fish which Mr. Purchase in his Pilgrims, and Captain Smith in his General History, page 125, affirm to be extremely like St. George's Dragon, except only that it wants feet and wings. Governor Spotswood has one of them dried in full shape.

§ 23. Before the arrival of the English there the Indians had fish in such vast plenty, that the boys and girls would take a pointed stick and strike the lesser sort as they swam upon the flats. The larger fish, that kept in deeper water, they were put to a little more difficulty to take. But for these they made weirs, that is, a hedge of small riv'd sticks, or reeds, of the thickness of a man's finger. These they wove together in a row, with straps of green oak, or other tough wood, so close that the small fish could not pass through. Upon high water mark they pitched one end of this hedge, and the other they extended into the river, to the depth of eight or ten feet, fastening it with stakes, making cods out from the hedge on one side almost at the end, and leaving a gap for the fish to go into them, which were contrived so that the fish could easily find their passage into those cods when they were at the gap, but not see their way out again when they were in. Thus, if they offered to pass through, they were taken.

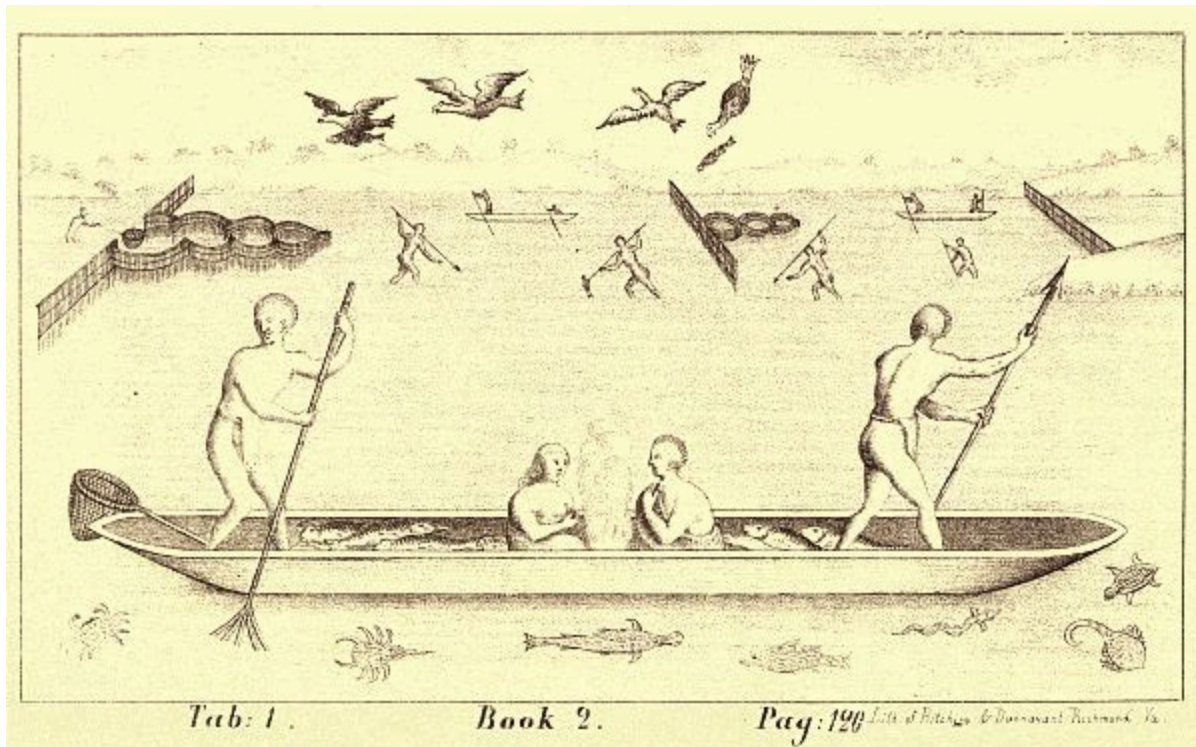
Sometimes they made such a hedge as this quite across a creek at high water, and at low would go into the run, then contracted into a narrow stream, and take out what fish they pleased.

At the falls of the rivers, where the water is shallow, and the current strong, the Indians use another kind of weir, thus made: They make a dam of loose stone, whereof there is plenty at hand, quite across the river, leaving one, two or more spaces or tunnels for the water to pass through; at the mouth of which they set a pot of reeds, wove in form of a cone, whose base is about three feet, and perpendicular ten, into which the swiftness of the current carries the fish, and there lodges them.

The Indian way of catching sturgeon, when they came into the narrow part of the rivers, was by a man's clapping a noose over their tails, and by keeping fast his hold. Thus a fish finding itself entangled would flounce, and often pull the man under water, and then that man was counted a cockarouse, or brave fellow, that would not let go; till with swimming, wading and diving, he had tired the sturgeon, and brought it ashore. These sturgeons would also often leap into their canoes in crossing the river, as many of them do still every year into the boats of the English.

They have also another way of fishing like those on the Euxine sea, by the help of a blazing fire by night. They make a hearth in the middle of their canoe, raising it within two inches of the edge; upon this they lay their burning lightwood, split into small shivers, each splinter whereof will blaze and burn, end for end, like a candle: 'Tis one man's work to attend his fire and keep it flaming. At each end of the canoe stands an Indian, with a gig or pointed spear, setting the canoe forward, with the butt end of the spear, as gently as he can, by that means stealing upon the fish without any noise, or disturbing of the water. Then they with great dexterity dart these spears into the fish, and so take them. Now there is a double convenience in the blaze of this fire, for it not only dazzles the eyes of the fish, which will lie still, glaring upon it, but likewise discovers the bottom of the river clearly to the fisherman, which the daylight does not.

The following print, I may justly affirm to be a very true representation of the Indian fishery.



Lith. of Ritchies & Dunnivant Richmond, Va.

Tab: 1. Book 2. Pag: 120

TAB. I. Represents the Indians in a canoe with a fire in the middle, attended by a boy and a girl. In one end is a net made of silk grass, which they use in fishing their weirs. Above is the shape of their weirs, and the manner of setting a weir wedge across the mouth of a creek.

NOTE. That in fishing their weirs they lay the side of the canoe to the cods of the weir, for the more convenient coming at them, and not with the end going into the cods, as is set down in the print: but we could not otherwise represent it here, lest we should have confounded the shape of the weir with the canoe.

In the air you see a fishing hawk flying away with a fish, and a bald eagle pursuing to take it from him; the bald eagle has always his head and tail white, and they carry such a lustre with them that the white thereof may be discerned as far as you can see the shape of the bird, and seems as if it were without feathers, and thence it has its name bald eagle.

§ 24. 'Tis a good diversion to observe, the manner of the fishing-hawk's preying upon fish, which may be seen every fair day all the summer long,

and especially in a morning. At the first coming of the fish in the spring, these birds of prey are surprisingly eager. I believe, in the dead of winter, they fish farther off at sea, or remain among the craggy uninhabited islands upon the sea coast. I have often been pleasantly entertained by seeing these hawks take the fish out of the water, and as they were flying away with their quarry, the bald eagles take it from them again. I have often observed the first of these hover over the water and rest upon the wing some minutes together, without the least change of place, and then from a vast height dart directly into the water, and there plunge down for the space of half a minute or more, and at last bring up with him a fish which he could hardly rise with; then, having got upon the wing again, he would shake himself so powerfully that he threw the water like a mist about him; afterwards away he'd fly to the woods with his game, if he were not overlooked by the bald eagle and robbed by the way, which very frequently happens. For the bald eagle no sooner perceives a hawk that has taken his prey but he immediately pursues and strives to get above him in the air, which if he can once attain, the hawk for fear of being torn by him, lets the fish drop, and so by the loss of his dinner compounds for his own safety. The poor fish is no sooner loosed from the hawk's talons, but the eagle shoots himself with wonderful swiftness after it, and catches it in the air, leaving all further pursuit of the hawk, which has no other remedy but to go and fish for another.

Walking once with a gentleman in an orchard by the river side, early in the spring, before the fish were by us perceived to appear in shoal water or near the shores, and before any had been caught by the people, we heard a great noise in the air just over our heads, and looking up we saw an eagle in close pursuit of a hawk that had a great fish in his pounces. The hawk was as low as the apple trees before he would let go his fish, thinking to recover the wood which was just by, where the eagles dare never follow, for fear of bruising themselves. But, notwithstanding the fish was dropped so low, and though it did not fall above thirty yards from us, yet we with our hollowing, running and casting up our hats, could hardly save the fish from the eagle, and if it had been let go two yards higher he would have got it: but we at last took possession of it alive, carried it home, and had it dressed forthwith. It served five of us very plentifully for a breakfast, and some to the

servants. This fish was a rock near two feet long, very fat, and a great rarity for the time of year, as well as for the manner of its being taken.

These fishing hawks, in more plentiful seasons, will catch a fish and loiter about with it in the air, on purpose to have chase with an eagle; and when he does not appear soon enough the hawk will make a saucy noise, and insolently defy him. This has been frequently seen by persons who have observed their fishings.

CHAPTER VI.

OF WILD FOWL AND HUNTED GAME.

§ 25. As in summer, the rivers and creeks are filled with fish, so in winter they are in many places covered with fowl. There are such a multitude of swans, geese, brants, sheldrakes, ducks of several sorts, mallard, teal, blowings, and many other kinds of water fowl, that the plenty of them is incredible. I am but a small sportsman, yet with a fowling piece have killed above twenty of them at a shot. In like manner are the mill ponds and great runs in the woods stored with these wild fowl at certain seasons of the year.

§ 26. The shores, marshy grounds, swamps and savannahs are also stored with the like plenty of other game of all sorts, as cranes, curlews, herons, snipes, woodcocks, saurers, ox-eyes, plovers, larks, and many other good birds for the table that they have not yet found a name for. Not to mention beavers, otters, musk rats, minxes, and an infinite number of other wild creatures.

§ 27. Although the inner lands want these benefits, (which, however, no pond or plash is without,) yet even they have the advantage of wild turkeys, of an incredible bigness, pheasants, partridges, pigeons, and an infinity of small birds, as well as deer, hares, foxes, raccoons, squirrels, opossums. And upon the frontier plantations, they meet with bears, panthers, wild cats, elks, buffaloes and wild hogs, which yield pleasure as well as profit to the sportsman. And though some of these names may seem frightful to the English, who hear not of them in their own country, yet they are not so there, for all these creatures ever fly from the face of man, doing no damage but to the cattle and hogs, which the Indians never troubled themselves about.

Here I cannot omit a strange rarity in the female opossum, which I myself have seen. They have a false belly, or loose skin quite over the belly; this

never sticks to the flesh of the belly, but may be looked into at all times, after they have been concerned in procreation. In the hinderpart of this is an aperture big enough for a small hand to pass into: hither the young ones, after they are full haired, and strong enough to run about, do fly whenever any danger appears, or when they go to rest or suck. This they continue till they have learned to live without the dam: but what is yet stranger, the young ones are bred in this false belly without ever being within the true one. They are formed at the teat, and there they grow for several weeks together into perfect shape, becoming visibly larger, till at last they get strength, sight and hair; and then they drop off and rest in this false belly, going in and out at pleasure. I have observed them thus fastened at the teat from the bigness of a fly until they become as large as a mouse. Neither is it any hurt to the old one to open this budget and look in upon her young.

§ 28. The Indians had no other way of taking their water or land fowl, but by the help of bows and arrows. Yet so great was their plenty, that with this weapon only they killed what numbers they pleased. And when the water fowl kept far from shore (as in warmer weather they sometimes did) they took their canoes and paddled after them.

But they had a better way of killing the elks, buffaloes, deer, and greater game, by a method which we call fire hunting: that is, a company of them would go together back into the woods any time in the winter, when the leaves were falling and so dry that they would burn; and being come to the place designed, they would fire the woods in a circle of five or six miles compass; and when they had completed the first round they retreated inward, each at his due distance, and put fire to the leaves and grass afresh, to accelerate the work, which ought to be finished with the day. This they repeat till the circle be so contracted that they can see their game herded all together in the middle, panting and almost stifled with heat and smoke; for the poor creatures being frightened at the flame keep running continually round, thinking to run from it, and dare not pass through the fire; by which means they are brought at last into a very narrow compass. Then the Indians retreat into the centre, and let fly their arrows at them as they pass round within the circle; by this means, though they stand often quite clouded in smoke, they rarely shoot each other. By this means they destroy all the beasts collected within that circle. They make all this slaughter chiefly for the sake of the skins, leaving most of the carcasses to perish in the woods.

Father Verbiast, in his description of the Emperor of China's voyage into the Eastern Tartary, Anno 1682, gives an account of a way of hunting the Tartars have, not much unlike this; only whereas the Indians surround their game with fire, the Tartars do it with a great body of armed men, who having environed the ground they design to drive, march equally inwards, which, still as the ring lessens, brings the men nearer each other, till at length the wild beasts are encompassed with a living wall.

The Indians have many pretty inventions to discover and come up to the deer, turkeys and other game undiscerned; but that being an art known to very few English there, I will not be so accessory to the destruction of their game as to make it public. I shall therefore only tell you, that when they go a hunting into the outlands, they commonly go out for the whole season with their wives and family. At the place where they find the most game they build up a convenient number of small cabins, wherein they live during that season. These cabins are both begun and finished in two or three days, and after the season is over they make no farther account of them.

§ 29. This, and a great deal more, was the natural production of that country, which the native Indians enjoyed, without the curse of industry, their diversion alone, and not their labor, supplying their necessities. The women and children indeed were so far provident as to lay up some of the nuts and fruits of the earth in their season for their farther occasions: but none of the toils of husbandry were exercised by this happy people, except the bare planting a little corn and melons, which took up only a few days in the summer, the rest being wholly spent in the pursuit of their pleasures. And indeed all that the English have done since their going thither has been only to make some of these native pleasures more scarce, by an inordinate and unseasonable use of them; hardly making improvements equivalent to that damage.

I shall in the next book give an account of the Indians themselves, their religion, laws and customs; that so both the country and its primitive inhabitants may be considered together in that original state of nature in which the English found them. Afterwards I will treat of the present state of the English there, and the alterations, I can't call them improvements, they have made at this day.

BOOK III.



OF THE INDIANS, THEIR RELIGION, LAWS AND CUSTOMS, IN
WAR AND PEACE.



CHAPTER I.

OF THE INDIANS AND THEIR DRESS.

§ 1. The Indians are of the middling and largest stature of the English. They are straight and well proportioned, having the cleanest and most exact limbs in the world. They are so perfect in their outward frame, that I never heard of one single Indian that was either dwarfish, crooked, bandy-legged, or otherwise misshapen. But if they have any such practice among them as the Romans had, of exposing such children till they died, as were weak and misshapen at their birth, they are very shy of confessing it, and I could never yet learn that they had.

Their color, when they are grown up, is a chestnut brown and tawny; but much clearer in their infancy. Their skin comes afterwards to harden and grow blacker by greasing and sunning themselves. They have generally coal black hair, and very black eyes, which are most commonly graced with that sort of squint which many of the Jews are observed to have. Their women are generally beautiful, possessing shape and features agreeable enough, and wanting no charm but that of education and a fair complexion.

§ 2. The men wear their hair cut after several fanciful fashions, sometimes greased, and sometimes painted. The great men, or better sort, preserve a long lock behind for distinction. They pull their beards up by the roots with musselshells, and both men and women do the same by the other parts of their body for cleanliness sake. The women wear the hair of the head very long, either hanging at their backs, or brought before in a single lock, bound up with a fillet of peak, or beads; sometimes also they wear it neatly tied up in a knot behind. It is commonly greased, and shining black, but never painted.

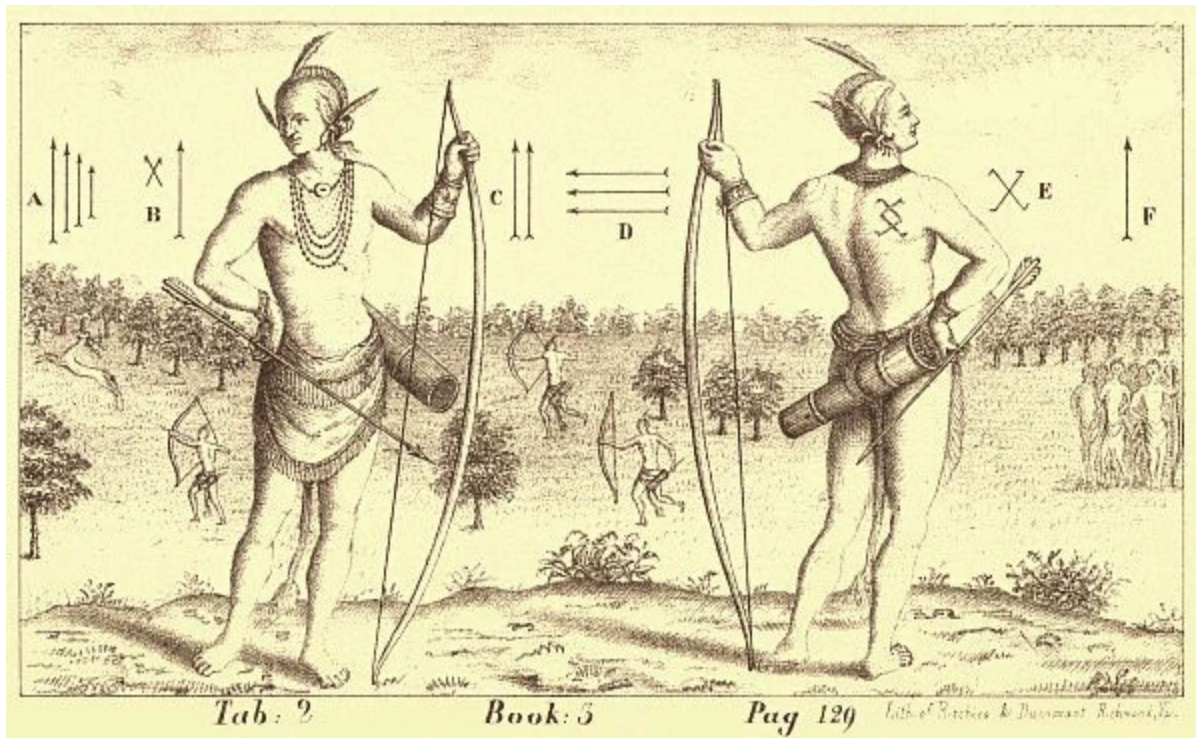
The people of condition, of both sexes, wear a sort of coronet on their heads, from four to six inches broad, open at the top, and composed of

peak, or beads, or else of both interwoven together, and worked into figures, made by a nice mixture of the colors. Sometimes they wear a wreath of dried furs, as likewise bracelets on their necks and arms. The common people go bare-headed, only sticking large shining feathers about their heads, as their fancies lead them.

§ 3. Their clothes are a large mantle, carelessly wrapped about their bodies, and sometimes girt close in the middle with a girdle. The upper part of this mantle is drawn close upon the shoulders, and the other hangs below their knees. When that's thrown off, they have only for modesty sake a piece of cloth, or a small skin tied round their waist, which reaches down to the middle of the thigh. The common sort tie only a string round their middle, and pass a piece of cloth or skin round between their thighs, which they turn at each end over the string.

Their shoes, when they wear any, are made of an entire piece of buckskin, except when they sew a piece to the bottom to thicken the sole. They are fastened on with running strings, the skin being drawn together like a purse on the top of the foot, and tied round the ankle. The Indian name of this kind of shoe is moccasin.

But because a draught of these things will inform the reader more at first view than a description in many words, I shall present him with the following prints drawn by the life.



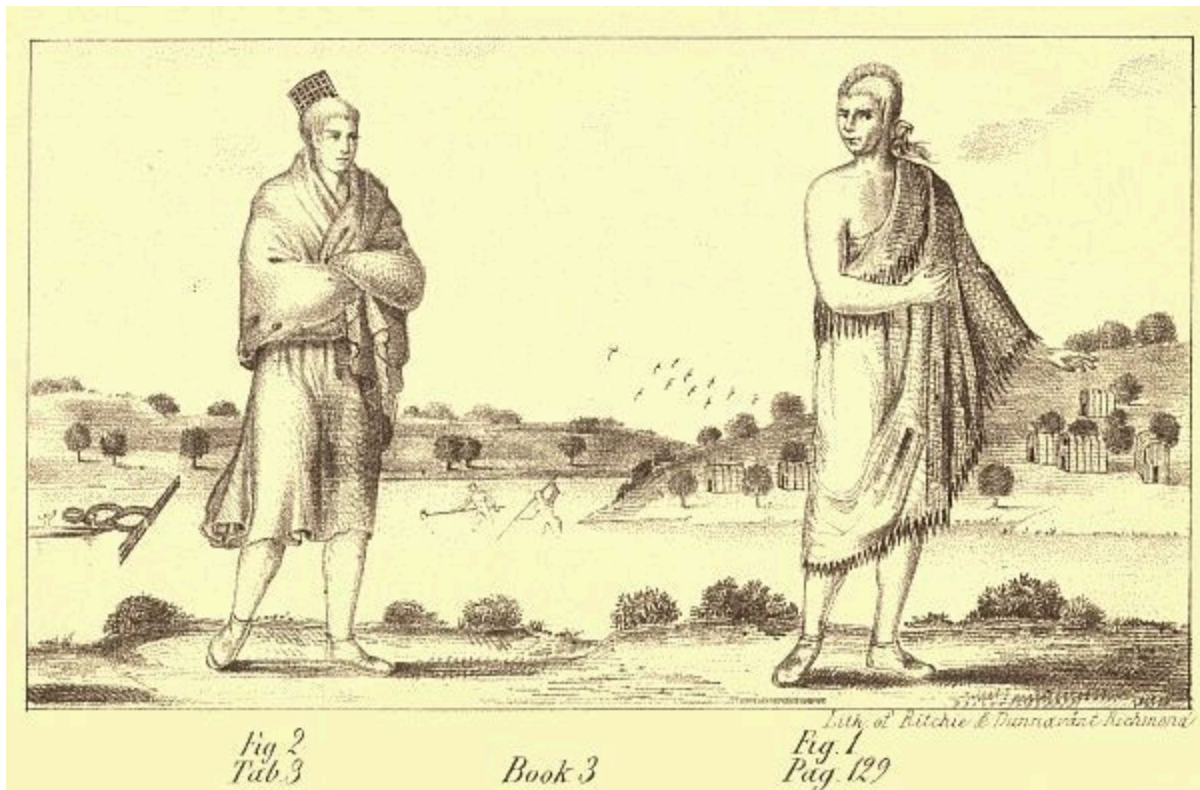
Lith. of Ritchies & Dunnivant Richmond, Va.

Tab: 2 Book: 3 Pag 129

TAB. II. is an Indian man in his summer dress. The upper part of his hair is cut short to make a ridge, which stands up like the comb of a cock, the rest is either shorn off, or knotted behind his ear. On his head are stuck three feathers of the wild turkey, pheasant, hawk, or such like. At his ear is hung a fine shell with pearl drops. At his breast is a tablet, or fine shell, smooth as polished marble, which sometimes also hath etched on it a star, half moon, or other figure, according to the maker's fancy. Upon his neck and wrists hang strings of beads, peak and roenoke. His apron is made of a deer skin, gashed round the edges, which hang like tassels or fringe; at the upper end of the fringe is an edging of peak, to make it finer. His quiver is of a thin bark; but sometimes they make it of the skin of a fox, or young wolf, with the head hanging to it, which has a wild sort of terror in it; and to make it yet more warlike, they tie it on with the tail of a panther, buffalo, or such like, letting the end hang down between their legs. The pricked lines on his shoulders, breast and legs, represent the figures painted thereon. In his left hand he holds a bow, and in his right an arrow. The mark upon his shoulderblade is a distinction used by the Indians in traveling, to show the nation they are of; and perhaps is the same with that which Baron Lahontan

calls the arms and heraldry of the Indians. Thus the several lettered marks are used by several other nations about Virginia, when they make a journey to their friends and allies.

The landscape is a natural representation of an Indian field.



Lith. of Ritchie & Dunnivant Richmond.

Fig. 2 Fig. 1

Tab. 3 Book 3 Pag. 129

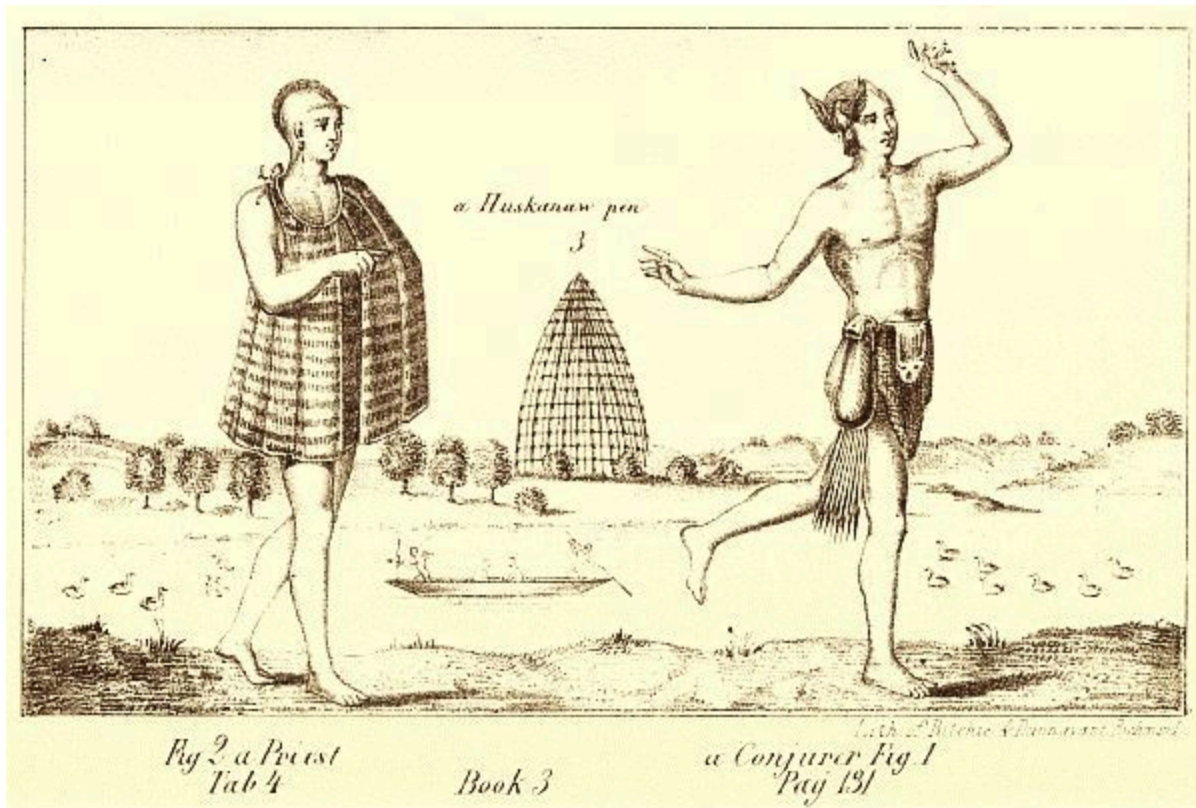
TAB. III is two Indian men in their winter dress. Seldom any but the elder people wore the winter cloaks (which they call match-coats) till they got a supply of European goods; and now most have them of one sort or other in the cold winter weather. Fig. 1 wears the proper Indian match-coat, which is made of skins, dressed with the fur on, sewed together, and worn with the fur inwards, having the edges also gashed for beauty sake. On his feet are moccasins. By him stand some Indian cabins on the banks of the river. Fig. 2 wears the Duffield match-coat bought of the English; on his head is a coronet of peak, on his legs are stockings made of Duffields: that is, they take a length to reach from the ankle to the knee, so broad as to wrap round the leg; this they sew together, letting the edges stand out at an inch beyond

the seam. When this is on, they garter below knee, and fasten the lower end in the moccasin.

§ 4. I don't find that the Indians have any other distinction in their dress, or the fashion of their hair, than only what a greater degree of riches enables them to make, except it be their religious persons, who are known by the particular cut of the hair and the unusual figure of their garments; as our clergy are distinguished by their canonical habit.

The habit of the Indian priest is a cloak made in the form of a woman's petticoat; but instead of tying it about their middle, they fasten the gatherings about their neck and tie it upon the right shoulder, always keeping one arm out to use upon occasion. This cloak hangs even at the bottom, but reaches no lower than the middle of the thigh; but what is most particular in it is, that it is constantly made of a skin dressed soft, with the pelt or fur on the outside, and reversed; insomuch, that when the cloak has been a little worn the hair falls down in flakes, and looks very shagged and frightful.

The cut of their hair is likewise peculiar to their function; for 'tis all shaven close except a thin crest, like a cock's comb, which stands bristling up, and runs in a semicircle from the forehead up along the crown to the nape of the neck. They likewise have a border of hair over the forehead, which by its own natural strength, and by the stiffening it receives from grease and paint, will stand out like the peak of a bonnet.

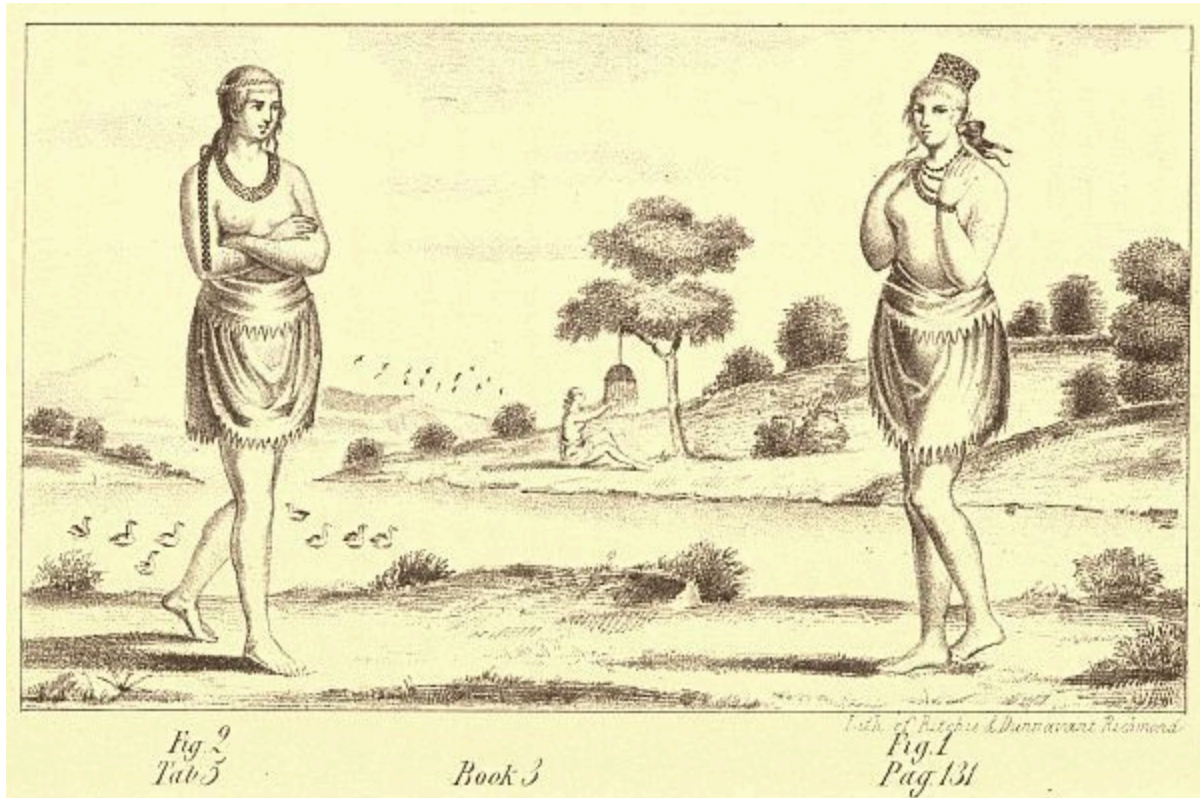


a Huskanaw pen. 3
Lith. of Ritchie & Dunnivant Richmond.
Fig 2 a Priest Fig. 1 a Conjurer
Tab 4 Book 3 Pag 131

TAB. IV. Is a priest and a conjurer in their proper habits. The priest's habit is sufficiently described above. The conjurer shaves all his hair off, except the crest on the crown; upon his ear he wears the skin of some dark colored bird; he, as well as the priest, is commonly grimed with soot or the like; to save his modesty he hangs an otter skin at his girdle, fastening the tail between his legs; upon his thigh hangs his pocket, which is fastened by tucking it under his girdle, the bottom of this is likewise fringed with tassels for ornament sake. In the middle between them is the Huskanawpen spoken of § 32.

§ 5. The dress of the women is little different from that of the men, except in the tying of their hair. The women of distinction wear deep necklaces, pendants and bracelets, made of small cylinders of the conch shell, which they call peak: they likewise keep their skin clean and shining with oil, while the men are commonly bedaubed all over with paint.

They are remarkable for having small round breasts, and so firm, that they are hardly ever observed to hang down, even in old women. They commonly go naked as far as the navel downward, and upward to the middle of the thigh, by which means they have the advantage of discovering their fine limbs and complete shape.

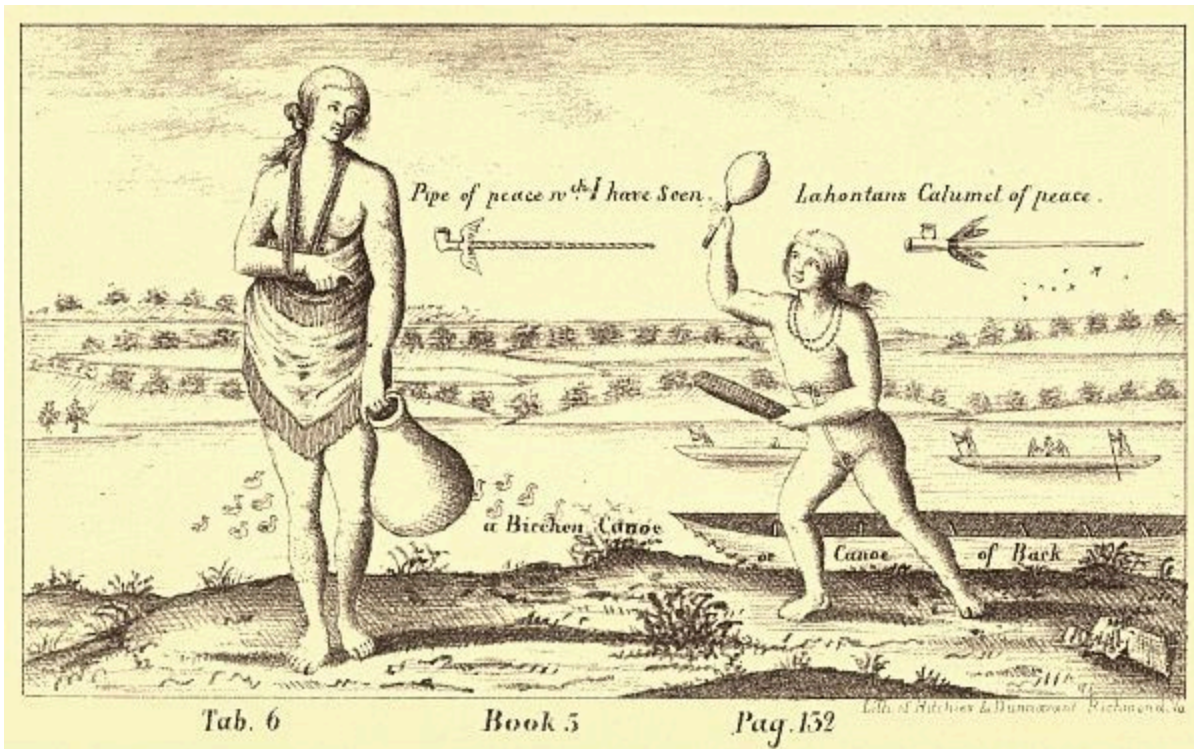


Lith. of Ritchie & Dunnivant Richmond.

Fig. 2 Fig. 1

Tab 5 Book 3 Pag. 131

TAB. V. Is a couple of young women. The first wearing a coronet, necklace and bracelet of peak; the second a wreath of furs on her head, and her hair is bound with a fillet of peak and beads. Between the two is a woman under a tree making a basket of silk grass after their own manner.



Pipe of peace IVth I have seen. Lahontans Calumet of peace.
a Birchen Canoe or Canoe of Bark
Lith. of Ritchies & Dunnivant Richmond, Va.
Tab. 6 Book 3 Pag. 132

TAB. VI. Is a woman and a boy running after her. One of her hands rests in her necklace of peak, and the other holds a gourd, in which they put water or other liquid.

The boy wears a necklace of runtees, in his right hand is an Indian rattle, and in his left a roasting ear of corn. Round his waist is a small string, and another brought cross through his crotch, and for decency a soft skin is fastened before.

Runtees are made of the conch shell as the peak is, only the shape is flat and round like a cheese, and drilled edge ways.

CHAPTER II.

OF THE MARRIAGES AMONGST THE INDIANS, AND MANAGEMENT OF THEIR CHILDREN.

§ 6. The Indians have their solemnities of marriage, and esteem the vows made at that time as most sacred and inviolable. Notwithstanding they allow both the man and the wife to part upon disagreement, yet so great is the disreputation of a divorce, that married people, to avoid the character of inconstant and ungenerous, very rarely let their quarrels proceed to a separation. However, when it does so happen, they reckon all the ties of matrimony dissolved, and each hath the liberty of marrying another. But infidelity is accounted the most unpardonable of all crimes in either of the parties as long as the contract continues.

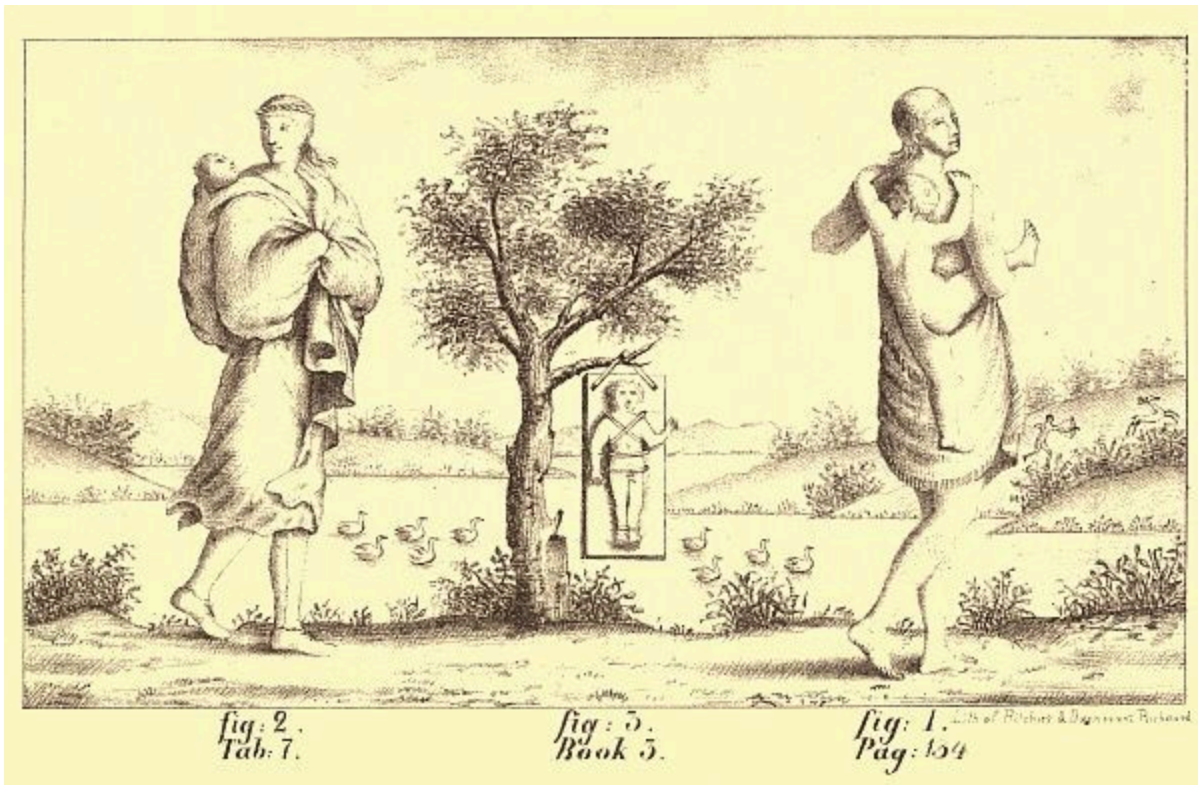
In these separations, the children go, according to the affection of the parent, with the one or the other; for children are not reckoned a charge among them, but rather riches, according to the blessing of the Old Testament; and if they happen to differ about dividing their children, their method is then to part them equally, allowing the man the first choice.

§ 7. Though the young Indian women are said to prostitute their bodies for wampom peak, runtees, beads, and other such like fineries; yet I never could find any ground for the accusation, and believe it only to be an unjust scandal upon them. This I know, that if ever they have a child while they are single, it is such a disgrace to them that they never after get husbands. Besides, I must do them the justice to say, I never heard of a child any of them had before marriage, and the Indians themselves disown any such custom; though they acknowledge, at the same time, that the maidens are entirely at their own disposal, and may manage their persons as they think fit.

§ 8. The manner of the Indians treating their young children is very strange; for instead of keeping them warm, at their first entry into the world, and wrapping them up, with I don't know how many clothes, according to our fond custom, the first thing they do is to dip the child over head and ears in cold water, and then to bind it naked to a convenient board, having a hole fitly placed for evacuation; but they always put cotton, wool, fur, or other soft things, for the body to rest easy on, between the child and the board. In this posture they keep it several months, till the bones begin to harden, the joints to knit, and the limbs to grow strong; and then they let it loose from the board, suffering it to crawl about, except when they are feeding or playing with it.

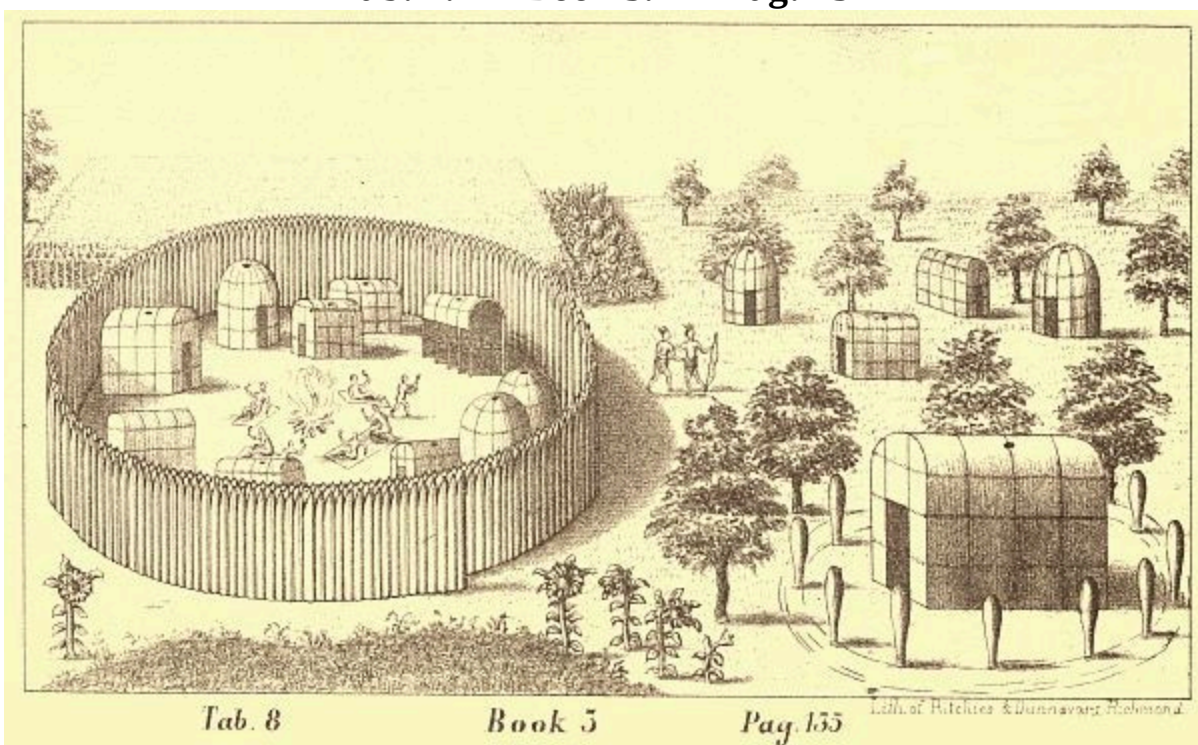
While the child is thus at the board, they either lay it flat on its back, or set it leaning on one end, or else hang it up by a string fastened to the upper end of the board for that purpose; the child and board being all this while carried about together. As our women undress their children to clean and shift their linen, so they do theirs to wash and grease them.

The method the women have of carrying their children after they are suffered to crawl about, is very particular; they carry them at their backs in summer, taking one leg of the child under their arm, and the counter-arm of the child in their hand over their shoulder; the other leg hanging down, and the child all the while holding fast with its other hand; but in winter they carry them in the hollow of their match-coat at their back, leaving nothing but the child's head out, as appears by the figure.



Lith. of Ritchies & Dunnivant Richmond.

Fig: 2. Fig: 3. Fig: 1.
Tab: 7. Book 3. Pag: 134



Lith. of Ritchies & Dunnivant Richmond.
Tab. 8 Book 3 Pag. 135

CHAPTER III.

OF THE TOWNS, BUILDINGS AND FORTIFICATIONS OF THE INDIANS.

§ 9. The method of the Indian settlements is altogether by cohabitation, in townships, from fifty to five hundred families in a town, and each of these towns is commonly a kingdom. Sometimes one king has the command of several of these towns, when they happen to be united in his hands by descent or conquest; but in such cases there is always a vicegerent appointed in the dependent town, who is at once governor, judge, chancellor, and has the same power and authority which the king himself has in the town where he resides. This viceroy is obliged to pay his principal some small tribute, as an acknowledgment of his submission, as likewise to follow him to his wars whenever he is required.

§ 10. The manner the Indians have of building their houses is very slight and cheap. When they would erect a wigwam, which is the Indian name for a house, they stick saplings into the ground by one end, and bend the other at the top, fastening them together by strings made of fibrous roots, the rind of trees, or of the green wood of the white oak, which will rive into thongs. The smallest sort of these cabins are conical like a bee-hive; but the larger are built in an oblong form, and both are covered with the bark of trees, which will rive off into great flakes. Their windows are little holes left open for the passage of the light, which in bad weather they stop with shutters of the same bark, opening the leeward windows for air and light. Their chimney, as among the true born Irish, is a little hole on the top of the house, to let out the smoke, having no sort of funnel, or any thing within, to confine the smoke from ranging through the whole roof of the cabin, if the vent will not let it out fast enough. The fire is always made in the middle of the cabin. Their door is a pendent mat, when they are near home; but when they go abroad they barricade it with great logs of wood set against the mat, which are sufficient to keep out wild beasts. There's never more than one

room in a house, except in some houses of state, or religion, where the partition is made only by mats and loose poles.

§ 11. Their houses, or cabins, as we call them, are by this ill method of building continually smoky when they have fire in them; but to ease that inconvenience, and to make the smoke less troublesome to their eyes, they generally burn pine or lightwood, (that is, the fat knots of dead pine,) the smoke of which does not offend the eyes, but smuts the skin exceedingly, and is perhaps another occasion of the darkness of their complexion.

§ 12. Their seats, like those in the eastern part of the world, are the ground itself; and as the people of distinction amongst those used carpets, so cleanliness has taught the better sort of these to spread match-coats and mats to sit on.

They take up their lodging in the sides of their cabins upon a couch made of boards, sticks, or reeds, which are raised from the ground upon forks, and covered with mats or skins. Sometimes they lie upon a bear skin, or other thick pelt dressed with the hair on, and laid upon the ground near a fire, covering themselves with their match-coats. In warm weather a single mat is their only bed, and another rolled up their pillow. In their travels, a grass plat under the covert of a shady tree, is all the lodging they require, and is as pleasant and refreshing to them as a down bed and fine Holland sheets are to us.

§ 13. Their fortifications consist only of a palisade, of about ten or twelve feet high; and when they would make themselves very safe, they treble the pale. They often encompass their whole town; but for the most part only their king's houses, and as many others as they judge sufficient to harbor all their people when an enemy comes against them. They never fail to secure within their palisade all their religious relics, and the remains of their princes. Within this inclosure, they likewise take care to have a supply of water, and to make a place for a fire, which they frequently dance round with great solemnity.

CHAPTER IV.

OF THEIR COOKERY AND FOOD.

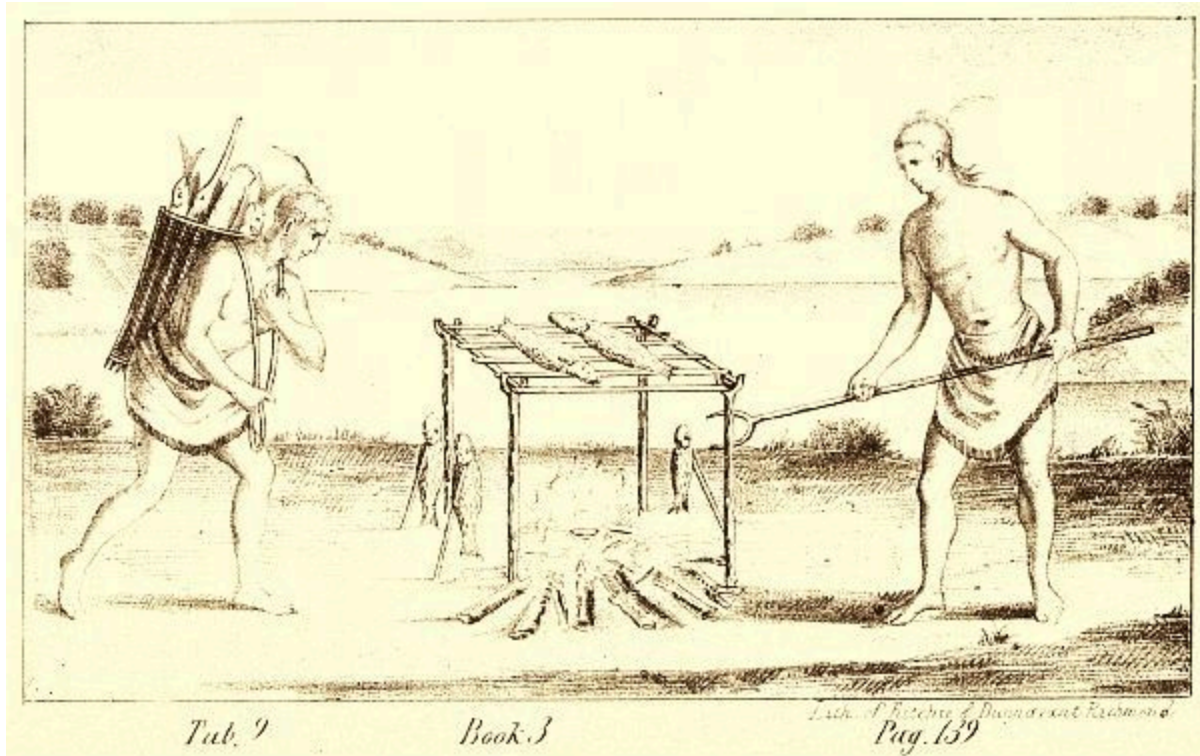
§ 14. Their cookery has nothing commendable in it, but that it is performed with little trouble. They have no other sauce but a good stomach, which they seldom want. They boil, broil, or toast all the meat they eat, and it is very common with them to boil fish as well as flesh with their homony; this is Indian corn soaked, broken in a mortar, husked, and then boiled in water over a gentle fire for ten or twelve hours, to the consistence of frumenty: the thin of this is what my Lord Bacon calls cream of maise, and highly commends for an excellent sort of nutriment.

They have two ways of broiling, viz., one by laying the meat itself upon the coals, the other by laying it upon sticks raised upon forks at some distance above the live coals, which heats more gently, and dries up the gravy; this they, and we also from them, call barbecueing.

They skin and paunch all sorts of quadrupeds; they draw and pluck their fowl; but their fish they dress with their scales on, without gutting; but in eating they leave the scales, entrails and bones to be thrown away. They also roast their fish upon a hot hearth, covering them with hot ashes and coals, then take them out, the scales and skin they strip clean off, so they eat the flesh, leaving the bones and entrails to be thrown away.

They never serve up different sorts of victuals in one dish; as roast and boiled fish and flesh; but always serve them up in several vessels.

They bake their bread either in cakes before the fire, or in loaves on a warm hearth, covering the loaf first with leaves, then with warm ashes, and afterwards with coals over all.



Lith. of Ritchie & Dunnivant Richmond.

Tab. 9 Book 3 Pag. 139

TAB. IX. Represents the manner of their roasting and barbecueing, with the form of their baskets for common uses, and carrying fish.

§ 15. Their food is fish and flesh of all sorts, and that which participates of both; as the beaver, a small kind of turtle, or terrapins, (as we call them,) and several species of snakes. They likewise eat grubs, the nymphæ of wasps, some kinds of scarabæi, cicadæ, &c. These last are such as are sold in the markets of Fess, and such as the Arabians, Lybians, Parthians and Æthiopians commonly eat; so that these are not a new diet, though a very slender one; and we are informed that St. John was dieted upon locusts and wild honey.

They make excellent broth of the head and umbles of a deer, which they put into the pot all bloody. This seems to resemble the *jus nigrum* of the Spartans, made with the blood and bowels of a hare. They eat not the brains with the head, but dry them and reserve them to dress their leather with.

They eat all sorts of peas, beans, and other pulse, both parched and boiled. They make their bread of the Indian corn, wild oats, or the seed of the

sunflower. But when they eat their bread, they eat it alone, and not with their meat.

They have no salt among them, but for seasoning use the ashes of hickory, stickweed, or some other wood or plant affording a salt ash.

They delight much to feed on roasting ears; that is, the Indian corn, gathered green and milky, before it is grown to its full bigness, and roasted before the fire in the ear. For the sake of this diet, which they love exceedingly, they are very careful to procure all the several sorts of Indian corn before mentioned, by which means they contrive to prolong their season. And indeed this is a very sweet and pleasing food.

They have growing near their towns, peaches, strawberries, cushaws, melons, pompions, macocks, &c. The cushaws and pompions they lay by, which will keep several months good after they are gathered; the peaches they save by drying them in the sun; they have likewise several sorts of the phaseoli.

In the woods, they gather chinkapins, chestnuts, hickories and walnuts. The kernels of the hickories they beat in a mortar with water, and make a white liquor like milk, from whence they call our milk hickory. Hazelnuts they will not meddle with, though they make a shift with acorns sometimes, and eat all the other fruits mentioned before, but they never eat any sort of herbs or leaves.

They make food of another fruit called cuttanimmons, the fruit of a kind of arum, growing in the marshes: they are like boiled peas or capers to look on, but of an insipid earthy taste. Captain Smith in his History of Virginia calls them ocaughtanamnis, and Theod. de Bry in his translation, sacquennumener.

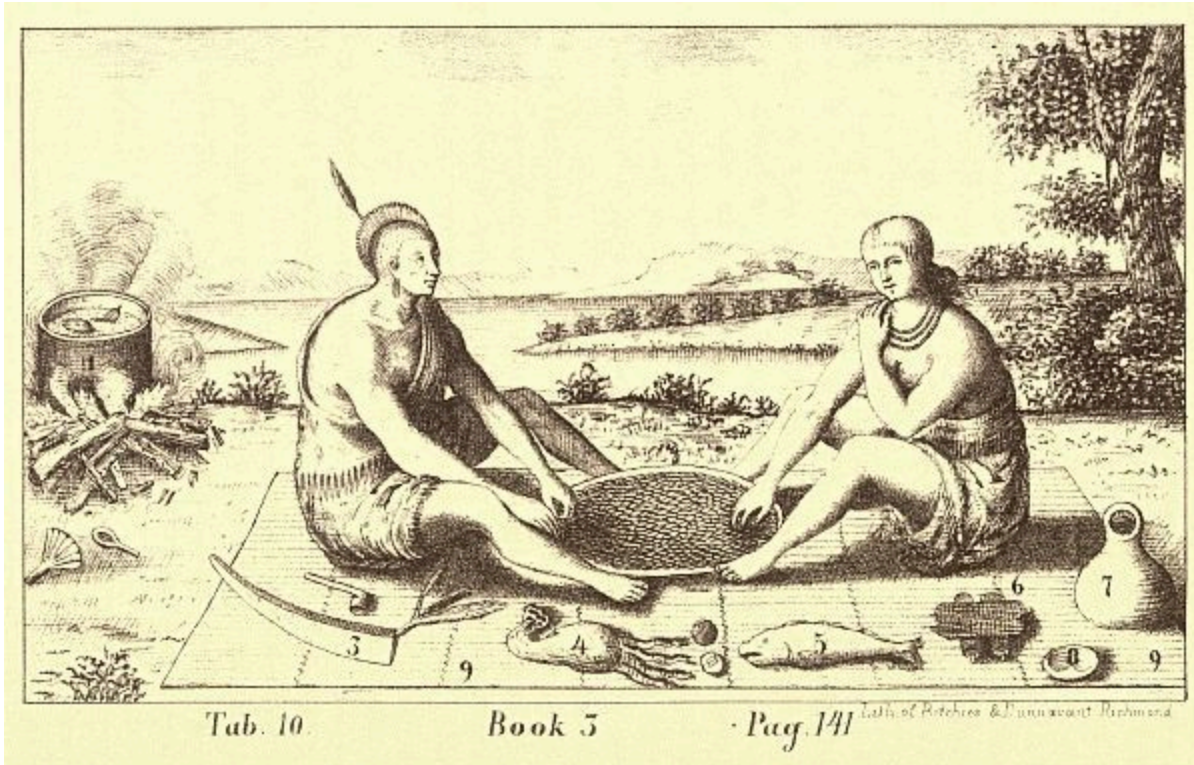
Out of the ground they dig trubs, earth nuts, wild onions, and a tuberous root they call tuckahoe, which while crude is of a very hot and virulent quality: but they can manage it so, as in case of necessity, to make bread of it, just as the East Indians and those of Egypt are said to do of colocassia, or the West Indians of cassava. It grows like a flag in the miry marshes, having roots of the magnitude and taste of Irish potatoes, which are easy to be dug up.

§ 16. They accustom themselves to no set meals, but eat night and day, when they have plenty of provisions, or if they have got any thing that is a rarity. They are very patient of hunger, when by any accident they happen to have nothing to eat; which they make more easy to themselves by girding up their bellies, just as the wild Arabs are said to do in their long marches; by which means they are less sensible of the impressions of hunger.

§ 17. Among all this variety of food, nature hath not taught them the use of any other drink than water; which though they have in cool and pleasant springs every where, yet they will not drink that if they can get pond water, or such as has been warmed by the sun and weather. Baron Lahontan tells of a sweet juice of maple, which the Indians to the northward gave him, mingled with water; but our Indians use no such drink. For their strong drink they are altogether beholden to us, and are so greedy of it, that most of them will be drunk as often as they find an opportunity; notwithstanding which it is a prevailing humor among them, not to taste any strong drink at all, unless they can get enough to make them quite drunk, and then they go as solemnly about it as if it were part of their religion.

§ 18. Their fashion of sitting at meals is on a mat spread on the ground, with their legs lying out at length before them, and the dish between their legs; for which reason they seldom or never sit more than two together at a dish, who may with convenience mix their legs together and have the dish stand commodiously to them both, as appears by the figure.

The spoons which they eat with do generally hold half a pint; and they laugh at the English for using small ones, which they must be forced to carry so often to their mouths that their arms are in danger of being tired before their belly.



Lith. of Ritchies & Dunnivant Richmond.

Tab. 10. Book 3 Pag. 141

TAB. X. Is a man and his wife at dinner.

No. 1. Is their pot boiling with homony and fish in it.

2. Is a bowl of corn, which they gather up in their fingers, to feed themselves.

3. The tomahawk, which he lays by at dinner.

4. His pocket, which is likewise stripped off, that he may be at full liberty.

5. A fish. }
 } Both ready for dressing.

6. A heap of roasting ears. }

7. The gourd of water.

8. A cockle shell, which they sometimes use instead of a spoon.

9. The mat they sit on.

All other matters in this figure are understood by the foregoing and following descriptions.



CHAPTER V.

OF THE TRAVELING, RECEPTION AND ENTERTAINMENT OF THE INDIANS.

§ 19. Their travels they perform altogether on foot, the fatigue of which they endure to admiration. They make no other provision for their journey but their gun or bow, to supply them with food for many hundred miles together. If they carry any flesh in their marches, they barbecue it, or rather dry it by degrees, at some distance over the clear coals of a wood fire; just as the Charibees are said to preserve the bodies of their kings and great men from corruption. Their sauce to this dry meat, (if they have any besides a good stomach,) is only a little bear's oil, or oil of acorns; which last they force out by boiling the acorns in a strong lye. Sometimes also in their travels each man takes with him a pint or quart of rockahomonie, that is, the finest Indian corn parched and beaten to powder. When they find their stomach empty, (and cannot stay for the tedious cookery of other things,) they put about a spoonful of this into their mouths and drink a draught of water upon it, which stays their stomachs, and enables them to pursue their journey without delay. But their main dependence is upon the game they kill by the way, and the natural fruits of the earth. They take no care about lodging in these journeys, but content themselves with the shade of a tree or a little high grass.

When they fear being discovered or followed by an enemy in their marches, they every morning, having first agreed where they shall rendezvous at night, disperse themselves into the woods, and each takes a several way, that so the grass or leaves being but singly pressed, may rise again and not betray them. For the Indians are very artful in following a track, even where the impressions are not visible to other people, especially if they have any advantage from the looseness of the earth, from the stiffness of the grass, or the stirring of the leaves, which in the winter season lie very thick upon the ground; and likewise afterwards, if they do not happen to be burned.

When in their travels they meet with any waters which are not fordable, they make canoes of birch bark, by slipping it whole off the tree in this manner: First, they gash the bark quite round the tree, at the length they would have the canoe off, then slit down the length from end to end; when that is done, they with their tomahawks easily open the bark and strip it whole off. Then they force it open with sticks in the middle, slope the under side of the ends and sow them up, which helps to keep the belly open; or if the birch trees happen to be small they sow the bark of two together. The seams they daub with clay or mud, and then pass over in these canoes, by two, three, or more at a time, according as they are in bigness. By reason of the lightness of these boats, they can easily carry them over land, if they foresee that they are like to meet with any more waters that may impede their march; or else they leave them at the water side, making no farther account of them, except it be to repass the same waters in their return. See the resemblance, Tab. 6.

§ 20. They have a peculiar way of receiving strangers, and distinguishing whether they come as friends or enemies, though they do not understand each other's language: and that is by a singular method of smoking tobacco, in which these things are always observed:

1. They take a pipe much larger and bigger than the common tobacco pipe, expressly made for that purpose, with which all towns are plentifully provided; they call them the pipes of peace.
2. This pipe they always fill with tobacco, before the face of the strangers, and light it.
3. The chief man of the Indians, to whom the strangers come, takes two or three whiffs, and then hands it to the chief of the strangers.
4. If the stranger refuses to smoke in it, 'tis a sign of war.
5. If it be peace, the chief of the strangers takes a whiff or two in the pipe, and presents it to the next great man of the town they come to visit; he, after taking two or three whiffs, gives it back to the next of the strangers, and so on alternately, until they have past all the persons of note on each side, and then the ceremony is ended.

After a little discourse, they march together in a friendly manner into the town, and then proceed to explain the business upon which they came. This method is as general a rule among all the Indians of those parts of America as the flag of truce is among the Europeans. And though the fashion of the pipe differ, as well as the ornaments of it, according to the humor of the several nations, yet 'tis a general rule to make these pipes remarkably bigger than those for common use, and to adorn them with beautiful wings and feathers of birds, as likewise with peak, beads, or other such foppery. Father Lewis Henepin gives a particular description of one that he took notice of among the Indians upon the lakes wherein he traveled. He describes it by the name of the calumet of peace, and his words are these, Book I., chap. 24:

"This calumet is the most mysterious thing in the world among the savages of the continent of the Northern America; for it is used in all their important transactions: however, it is nothing else but a large tobacco pipe, made of red, black or white marble; the head is finely polished, and the quill, which is commonly two feet and a half long, is made of a pretty strong reed or cane, adorned with feathers of all colors, interlaced with locks of women's hair. They tie it to two wings of the most curious birds they can find, which makes their calumet not much unlike Mercury's wand, or that staff ambassadors did formerly carry when they went to treat of peace. They sheath that reed into the neck of birds they call huars, which are as big as our geese, and spotted with black and white; or else of a sort of ducks, which make their nests upon trees, though the water be their ordinary element, and whose feathers be of many different colors. However, every nation adorns their calumet as they think fit, according to their own genius, and the birds they have in their country.

Such a pipe is a pass and safe conduct among all the allies of the nation who has given it. And in all embassies, the ambassador carries that calumet, as the symbol of peace, which is always respected: for the savages are generally persuaded, that a great misfortune would befall them, if they violated the public faith of the calumet.

"All their enterprises, declarations of war, or conclusions of peace, as well as all the rest of their ceremonies, are sealed, (if I may be permitted to say so,) with this calumet: They fill that pipe with the best tobacco they have,

and then present it to those with whom they have concluded any great affair, and smoke out of the same after them."

In tab. 6, is seen the calumet of peace, drawn by Lahontan, and one of the sort which I have seen.

§ 21. They have a remarkable way of entertaining all strangers of condition, which is performed after the following manner: First, the king or queen, with a guard and a great retinue, march out of the town, a quarter or half a mile, and carry mats for their accommodation. When they meet the strangers, they invite them to sit down upon those mats. Then they pass the ceremony of the pipe, and afterwards, having spent about half an hour in grave discourse, they get up, all together, and march into the town. Here the first compliment is to wash the courteous traveler's feet; then he is treated at a plentiful entertainment, served up by a great number of attendants; after which he is diverted with antique Indian dances, performed both by men and women, and accompanied with great variety of wild music. At this rate he is regaled till bedtime, when a brace of young, beautiful virgins are chosen to wait upon him that night for his particular refreshment. These damsels are to undress this happy gentleman, and as soon as he is in bed, they gently lay themselves down by him, one on one side of him, and the other on the other. They esteem it a breach of hospitality, not to submit to everything he desires of them. This kind ceremony is used only to men of great distinction—and the young women are so far from suffering in their reputation for this civility, that they are envied for it by all the other girls, as having had the greatest honor done them in the world.

After this manner, perhaps, many of the heroes were begotten in old time, who boasted themselves to be the sons of some wayfaring god.

CHAPTER VI.

OF THE LEARNING AND LANGUAGES OF THE INDIANS.

§ 22. These Indians have no sort of letters to express their words by; but when they would communicate anything that cannot be delivered by message, they do it by a sort of hieroglyphic, or representation of birds, beasts, or other things, shewing their different meaning by the various forms described, and by the different position of the figures.

Baron Lahontan, in his second volume of *New Voyages*, has two extraordinary chapters concerning the heraldry and hieroglyphics of the Indians; but I, having had no opportunity of conversing with our Indians since that book came to my hands, nor having ever suspected them to be acquainted with heraldry, I am not able to say anything upon that subject.

The Indians, when they travel ever so small a way, being much embroiled in war one with another, use several marks painted upon their shoulders to distinguish themselves by, and show what nation they are of. The usual mark is one, two, or three arrows. One nation paints these arrows upwards, another downwards, a third sideways—and others again use other distinctions, as in tab. 2, from whence it comes to pass, that the Virginia assembly took up the humor of making badges of silver, copper or brass, of which they gave a sufficient number to each nation in amity with the English, and then made a law, that the Indians should not travel among the English plantations without one of these badges in their company, to show that they are friends. And this is all the heraldry that I know is practiced among the Indians.

§ 23. Their languages differ very much, as anciently in the several parts of Britain; so that nations at a moderate distance do not understand one another. However, they have a sort of general language, like what Lahontan calls the Algonkine, which is understood by the chief men of many nations,

as Latin is in most parts of Europe, and Lingua Franca quite through the Levant.

The general language here used is said to be that of the Occaneeches, though they have been but a small nation ever since those parts were known to the English; but in what this language may differ from that of the Algonkines, I am not able to determine.

CHAPTER VII.

OF THE WAR, AND PEACE OF THE INDIANS.

§ 24. When they are about to undertake any war or other solemn enterprise, the king summons a convention of his great men to assist at a grand council, which, in their language, is called a Matchacomoco. At these assemblies, 'tis the custom, especially when a war is expected, for the young men to paint themselves irregularly with black, red, white, and several other motley colors, making one-half of their face red, (for instance,) and the other black or white, with great circles of a different hue round their eyes, with monstrous mustaches, and a thousand fantastical figures, all over the rest of their body; and to make themselves appear yet more ugly and frightful, they strew feathers, down, or the hair of beasts upon the paint while it is still moist and capable of making those light substances stick fast on. When they are thus formidably equipped, they rush into the Matchacomoco, and instantly begin some very grotesque dance, holding their arrows or tomahawks in their hands, and all the while singing the ancient glories of their nation, and especially of their own families—threatening and making signs with their tomahawk what a dreadful havoc they intend to make amongst their enemies.

Notwithstanding these terrible airs they give themselves, they are very timorous when they come to action, and rarely perform any open or bold feats; but the execution they do, is chiefly by surprise and ambuscade.

§ 25. The fearfulness of their nature makes them very jealous and implacable. Hence it is, that when they get a victory, they destroy man, woman and child, to prevent all future resentments.

§ 26. I can't think it anything but their jealousy that makes them exclude the lineal issue from succeeding immediately to the crown. Thus, if a king have several legitimate children, the crown does not descend in a direct line to

his children, but to his brother by the same mother, if he have any, and for want of such, to the children of his eldest sister, always respecting the descent by the female, as the surer side. But the crown goes to the male heir (if any be) in equal degree, and for want of such, to the female, preferably to any male that is more distant.

§ 27. As in the beginning of a war, they have assemblies for consultation, so, upon any victory or other great success, they have public meetings again for processions and triumphs. I never saw one of these, but have heard that they are accompanied with all the marks of a wild and extravagant joy.

Captain Smith gives the particulars of one that was made upon his being taken prisoner, and carried to their town. These are his words, vol. I, page 159:

"Drawing themselves all in file, the king in the midst had all their pieces and swords borne before him. Captain Smith was led after him by three great savages, holding him fast by each arm, and on each side six went in file, with their arrows nocked; but arriving at the town, (which was but thirty or forty hunting houses made of mats, which they remove as often as they please, as we our tents,) all the women and children staring to behold him, the soldiers first, all in the file, performed the form of a bissom as well as could be, and on each flank officers as sergeants to see them keep their order. A good time they continued this exercise, and then cast themselves in a ring, dancing in such several postures, and singing and yelling out such hellish notes and screeches, being strangely painted, every one his quiver of arrows, and at his back a club, on his arm a fox or an otter's skin, or some such matter for his vambrace; their heads and shoulders painted red, with oil and puccoons mingled together, which scarlet-like color made an exceeding handsome show; his bow in his hand, and the skin of a bird with the wings abroad dried, tied on his head; a piece of copper, a white shell, a long feather, with a small rattle growing at the tails of their snakes, tied to it, or some such like toy. All this, while Smith and the king stood in the midst guarded, as before is said, and after three dances they all departed."

I suppose here is something omitted, and that the conjurer should have been introduced in his proper dress, as the sequel of the story seems to mean.

§ 28. They use formal embassies for treating, and very ceremonious ways in concluding of peace, or else some other memorable action, such as burying a tomahawk, and raising a heap of stones thereon, as the Hebrews were wont to do; or of planting a tree, in token that all enmity is buried with the tomahawk; that all the desolations of war are at an end, and that friendship shall flourish among them like a tree.

CHAPTER VIII.

CONCERNING THE RELIGION, WORSHIP, AND SUPERSTITIOUS CUSTOMS OF THE INDIANS.

§ 29. I don't pretend to have dived into all the mysteries of the Indian religion, nor have I had such opportunities of learning them as father Henepin and Baron Lahontan had, by living much among the Indians in their towns; and because my rule is to say nothing but what I know to be truth, I shall be very brief upon this head.

In the writings of those two gentlemen, I cannot but observe direct contradictions, although they traveled the same country, and the accounts they pretend to give are of the same Indians. One makes them have very refined notions of a Deity, and the other don't allow them so much as the name of a God. For which reason, I think myself obliged sincerely to deliver what I can warrant to be true upon my own knowledge; it being neither my interest, nor any part of my vanity, to impose upon the world.

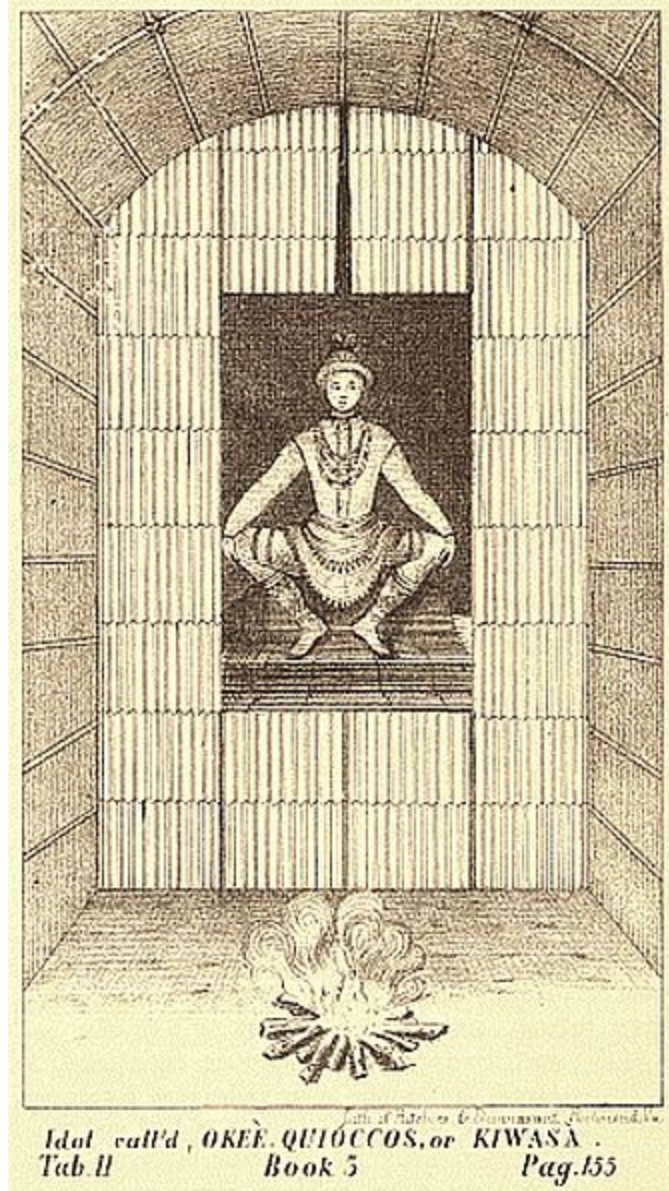
I have been at several of the Indian towns, and conversed with some of the most sensible of them in Virginia; but I could learn little from them, it being reckoned sacrilege to divulge the principles of their religion. However, the following adventure discovered something of it. As I was ranging the woods, with some other friends, we fell upon their quioccosan, (which is their house of religious worship,) at a time when the whole town were gathered together in another place, to consult about the bounds of the land given them by the English.

Thus finding ourselves masters of so fair an opportunity, (because we knew the Indians were engaged,) we resolved to make use of it, and to examine their quioccosan, the inside of which they never suffer any Englishmen to see; and having removed about fourteen logs from the door, with which it was barricaded, we went in, and at first found nothing but naked walls, and

a fireplace in the middle. This house was about eighteen feet wide, and thirty feet long, built after the manner of their other cabins, but larger, with a hole in the middle of the roof to vent the smoke, the door being at one end. Round about the house, at some distance from it, were set up posts, with faces carved on them, and painted. We did not observe any window or passage for the light, except the door and the vent of the chimney. At last we observed, that at the farther end, about ten feet of the room was cut off by a partition of very close mats, and it was dismal dark behind that partition. We were at first scrupulous to enter this obscure place, but at last we ventured, and, groping about, we felt some posts in the middle; then reaching our hands up those posts, we found large shelves, and upon these shelves three mats, each of which was rolled up, and sowed fast. These we handed down to the light, and to save time in unlacing the seams, we made use of a knife, and ripped them, without doing any damage to the mats. In one of these we found some vast bones, which we judged to be the bones of men—particularly we measured one thighbone, and found it two feet nine inches long. In another mat we found some Indian tomahawks finely grained and painted. These resembled the wooden falchion used by the prize-fighters in England, except that they have no guard to save the fingers. They were made of a rough, heavy wood, and the shape of them is represented in the tab. 10, No. 3. Among these tomahawks, was the largest that ever I saw. There was fastened to it a wild turkey's beard painted red, and two of the longest feathers of his wings hung dangling at it, by a string of about six inches long, tied to the end of the tomahawk. In the third mat there was something which we took to be their idol, though of an underling sort, and wanted putting together. The pieces were these—first, a board three feet and a half long, with one indenture at the upper end like a fork, to fasten the head upon. From thence half way down, were half hoops nailed to the edges of the board, at about four inches' distance, which were bowed out, to represent the breast and belly; on the lower half was another board of half the length of the other, fastened to it by joints or pieces of wood, which being set on each side stood out about fourteen inches from the body, and half as high. We supposed the use of these to be for the bowing out of the knees, when the image was set up. There were packed up with these things, red and blue pieces of cotton cloth, rolls made up for arms, thighs and legs, bent too at the knees, as is represented in the figure of their idol, which was taken by an exact drawer in the first discovery of the country. It would be

difficult to see one of these images at this day, because the Indians are extreme shy of exposing them. We put the clothes upon the hoops for the body, and fastened on the arms and legs to have a view of the representation; but the head and rich bracelets, which it is usually adorned with, were not there, or at least we did not find them. We had not leisure to make a very narrow search, for having spent about an hour in this enquiry, we feared the business of the Indians might be near over, and that if we staid longer, we might be caught offering an affront to their superstition. For this reason, we wrapt up those holy materials in their several mats again, and laid them on the shelf where we found them. This image, when dressed up, might look very venerable in that dark place where 'tis not possible to see it, but by the glimmering light that is let in by lifting up a piece of the matting, which we observed to be conveniently hung for that purpose; for when the light of the door and chimney glance in several directions upon the image through that little passage, it must needs make a strange representation, which those poor people are taught to worship with a devout ignorance. There are other things that contribute towards carrying on this imposture. First, the chief conjurer enters within the partition in the dark, and may undiscerned move the image as he pleases. Secondly, a priest of authority stands in the room with the people, to keep them from being too inquisitive, under the penalty of the deity's displeasure and his own censure.

Their idol bears a several name in every nation, as Okee, Quioccos, Kiwasa. They do not look upon it as one single being, but reckon there are many of the same nature; they likewise believe that there are tutelar deities in every town.



**Lith. of Ritchies & Dunnavant
 Richmond, Va.
 Idol call'd, OKEÈ, QUIÓCCOS, or
 KIWASA.
 Tab. 11 Book 3 Pag. 155**

TAB. 11. Their idol in his tabernacle.

The dark edging shows the sides and roof of the house, which consists of saplings and bark. The paler edging shows the mats, by which they make a partition of about ten feet at the end of the house for the idol's abode. The

idol is set upon his seat of mats within a dark recess above the people's heads, and the curtain is drawn up before him.

§ 30. Father Henepin, in his continuation, page 60, will not allow that the Indians have any belief of a Deity, nor that they are capable of the arguments and reasonings that are common to the rest of mankind. He farther says, that they have not any outward ceremony to denote their worship of a Deity, nor have any word to express God by—that there's no sacrifice, priest, temple, or any other token of religion among them. Baron Lahontan, on the other hand, makes them have such refined notions, as seem almost to confute his own belief of Christianity.

The first I cannot believe, though written by the pen of that pious father; because, to my own knowledge, all the Indians in these parts are a superstitious and idolatrous people; and because all other authors, who have written of the American Indians, are against him. As to the other account of the just thoughts the Indians have of religion, I must humbly intreat the baron's pardon; because I am very sure they have some unworthy conceptions of God and another world. Therefore, what that gentleman tells the public concerning them, is rather to show his own opinions, than those of the Indians.

Once in my travels, in very cold weather, I met at an Englishman's house with an Indian, of whom an extraordinary character had been given me for his ingenuity and understanding. When I saw he had no other Indian with him, I thought I might be the more free; and therefore I made much of him, seating him close by a large fire, and giving him plenty of strong cider, which I hoped would make him good company and open-hearted. After I found him well warmed, (for unless they be surprised some way or other, they will not talk freely of their religion,) I asked him concerning their god, and what their notions of him were? He freely told me, they believed God was universally beneficent, that his dwelling was in the heavens above, and that the influences of his goodness reached to the earth beneath. That he was incomprehensible in his excellence, and enjoyed all possible felicity; that his duration was eternal, his perfection boundless, and that he possesses everlasting indolence and ease. I told him I had heard that they worshipped the devil, and asked why they did not rather worship God, whom they had so high an opinion of, and who would give them all good things, and

protect them from any mischief that the devil could do them? To this his answer was, that, 'tis true God is the giver of all good things, but they flow naturally and promiscuously from him; that they are showered down upon all men indifferently without distinction; that God does not trouble himself with the impertinent affairs of men, nor is concerned at what they do; but leaves them to make the most of their free will, and to secure as many as they can of the good things that flow from him; that therefore it was to no purpose either to fear or worship him. But on the contrary, if they did not pacify the evil spirit, and make him propitious, he would take away or spoil all those good things that God had given, and ruin their health, their peace, and their plenty, by sending war, plague and famine among them; for, said he, this evil spirit is always busying himself with our affairs, and frequently visiting us, being present in the air in the thunder, and in the storms. He told me farther, that he expected adoration and sacrifice from them, on pain of his displeasure, and that therefore they thought it convenient to make their court to him. I then asked him concerning the image which they worship in their quioccasan, and assured him that it was a dead, insensible log, equipped with a bundle of clouts, a mere helpless thing made by men, that could neither hear, see nor speak, and that such a stupid thing could noways hurt or help them. To this he answered very unwillingly, and with much hesitation; however, he at last delivered himself in these broken and imperfect sentences: It is the priests—they make the people believe, and ——. Here he paused a little, and then repeated to me, that it was the priests ——, and then gave me hopes that he would have said something more; but a qualm crossed his conscience, and hindered him from making any farther confession.

§ 31. The priests and conjurers have a great sway in every nation. Their words are looked upon as oracles, and consequently are of great weight among the common people. They perform their adorations and conjurations in the general language before spoken of, as the catholics of all nations do their mass in the Latin. They teach that the souls of men survive their bodies, and that those who have done well here, enjoy most transporting pleasures in their elysium hereafter; that this elysium is stored with the highest perfection of all their earthly pleasures; namely, with plenty of all sorts of game for hunting, fishing and fowling; that it is blest with the most charming women, who enjoy an eternal bloom, and have an universal desire

to please; that it is delivered from excesses of cold or heat, and flourishes with an everlasting spring. But that, on the contrary, those who are wicked and live scandalously here, are condemned to a filthy, stinking lake after death, that continually burns with flames that never extinguish; where they are persecuted and tormented day and night, with furies in the shape of old women.

They use many divinations and enchantments, and frequently offer burnt sacrifice to the evil spirit. The people annually present their first fruits of every season and kind, namely, of birds, beasts, fish, fruits, plants, roots, and of all other things, which they esteem either of profit or pleasure to themselves. They repeat their offerings as frequently as they have great successes in their wars, or their fishing, fowling or hunting.

Captain Smith describes the particular manner of a conjuration that was made about him, while he was a prisoner among the Indians at the Pamunky town, in the first settlement of the country; and after that I'll tell you of another of a more modern date, which I had from a very good hand. Smith's word's are these: vol. 1, p. 160.

"Early in the morning, a great fire was made in a long house, and a mat spread on the one side and on the other. On the one they caused him to sit, and all the guard went out of the house, and presently there came skipping in a great grim fellow, all painted over with coal mingled with oil, and many snakes and weasel skins stuffed with moss, and all their tails tied together, so as they met in the crown of his head, like a tassel, and round about the tassel was a coronet of feathers, the skins hanging round about his head, back and shoulders, and in a manner covering his face; with a hellish voice, and a rattle in his hand, with most strange gestures and postures, he began his invocation, and environed the fire with a circle of meal; which done, three much such like devils came rushing in with the like antic tricks, painted half black, half red; but all their eyes were painted white, and some great strokes like mustaches, along their cheeks. Round about him these fiends danced a pretty while; and then came in three more as ugly as the rest, with red eyes and white strokes over their black faces. At last they all sat

down right against him, three of them on one hand of the chief priest and three on the other. Then all of them with their rattles began a song; which ended, the chief priest laid down five wheat corns; then straining his arms and hands with such violence that he sweat, and his veins swelled, he began a short oration. At the conclusion they gave a short groan, and then laid down three grains more; after that, began their song again, and then another oration, ever laying down so many corns as before, till they had twice encircled the fire. That done, they took a bunch of little sticks prepared for that purpose, continuing still their devotion, and at the end of every song and oration, they laid down a stick betwixt the divisions of corn. Till night neither he nor they did eat or drink, and then they feasted merrily with the provisions they could make. Three days they used this ceremony, the meaning whereof they told him was to know if he intended them well or no. The circle of meal signified their country, the circles of corn the bounds of the sea, and the sticks his country. They imagined the world to be flat and round like a trencher, and they in the midst."

Thus far is Smith's story of conjuration concerning himself; but when he says they encircled the fire with wheat, I am apt to believe he means their Indian corn, which some, contrary to the custom of the rest of mankind will still call by the name of Indian wheat.

The latter story of conjuration is this: Some few years ago, there happened a very dry time towards the heads of the rivers, and especially on the upper parts of James river, where Col. Byrd had several quarters of negroes. This gentleman has been for a long time extremely respected and feared by all the Indians round about, who, without knowing the name of any governor, have ever been kept in order by him. During this drought, an Indian, well known to one of the Colonel's overseers, came to him, and asked if his tobacco was not like to be spoiled? The overseer answered yes, if they had not rain very suddenly. The Indian, who pretended great kindness for his master, told the overseer if he would promise to give him two bottles of rum, he would bring him rain enough. The overseer did not believe anything of the matter, not seeing at that time the least appearance of rain, nor so much as a cloud in the sky; however, he promised to give him the

rum when his master came thither, if he would be as good as his word. Upon this, the Indian went immediately a pauwawing as they call it, and in about half an hour, there came up a black cloud into the sky that showered down rain enough upon this gentleman's corn and tobacco, but none at all upon any of the neighbors, except a few drops of the skirts of the shower. The Indian for that time went away without returning to the overseer again, till he heard of his master's arrival at the falls, and then he came to him and demanded the two bottles of rum. The Colonel at first seemed to know nothing of the matter, and asked the Indian for what reason he made that demand? (Although his overseer had been so overjoyed at what had happened that he could not rest till he had taken a horse and rode near forty miles to tell his master the story.) The Indian answered with some concern, that he hoped the overseer had let him know the service he had done him, by bringing a shower of rain to save his crop. At this the Colonel, not being apt to believe such stories, smiled, and told him he was a cheat, and had seen the cloud acoming, otherwise he could neither have brought the rain nor so much as foretold it. The Indian at this, seeming much troubled, replied, why then had not such a one, and such a one, (naming the next neighbor,) rain, as well as your overseer? for they lost their crops, but I loved you and therefore I saved yours. The Colonel made sport with him a little while, but in the end ordered him the two bottles of rum, letting him understand, however, that it was a free gift, and not the consequence of any bargain with his overseer.

§ 32. The Indians have their altars and places of sacrifice. Some say they now and then sacrifice young children; but they deny it, and assure us, that when they withdraw their children, it is not to sacrifice them, but to consecrate them to the service of their god. Smith tells of one of these sacrifices in his time, from the testimony of some people who had been eye-witnesses. His words are these, (vol. 1, p. 140):

"Fifteen of the properest young boys, between ten and fifteen years of age, they painted white; having brought them forth, the people spent the forenoon in dancing and singing about them with rattles. In the afternoon, they put these children to the root of a tree. By them all the men stood in a guard, every one having a bastinado in his hand, made of reeds bound together. They made a lane between them all along, through which there were appointed five young men to fetch these children: so every one of the

five went through the guard to fetch a child each after other by turns; the guard fiercely beating them with their bastinadoes, and they patiently enduring and receiving all, defending the children with their naked bodies from the unmerciful blows, that pay them soundly, though the children escape. All this while the women weep and cry out very passionately, providing mats, skins, moss and dry wood, as things fitting for their children's funeral. After the children were thus past the guard, the guards tore down the tree, branches and boughs with such violence, that they rent the body, made wreaths for their heads, and bedecked their hair with the leaves.

"What else was done with the children was not seen; but they were all cast on a heap in a valley as dead, where they made a great feast for all the company.

"The Werowance being demanded the meaning of this sacrifice, answered, that the children were not dead, but that the Okee or devil did suck the blood from the left breast of those, who chanced to be his by lot, till they were dead; but the rest were kept in the wilderness by the young men, till nine months were expired, during which time they must not converse with any; and of these were made their priests and conjurers."

How far Captain Smith might be misinformed in this account, I can't say, or whether their Okee's sucking the breast, be only a delusion or pretence of the physician, (or priest, who is always a physician,) to prevent all reflection on his skill when any happened to die under his discipline. This I choose rather to believe, than those religious romances concerning their Okee. For I take this story of Smith's to be only an example of huskanawing, which being a ceremony then altogether unknown to him, he might easily mistake some of the circumstances of it.

The solemnity of huskanawing is commonly practiced once every fourteen or sixteen years, or oftener, as their young men happen to grow up. It is an institution or discipline which all young men must pass before they can be admitted to be of the number of the great men, officers, or cockarouses of the nation; whereas, by Capt. Smith's relation, they were only set apart to supply the priesthood. The whole ceremony of huskanawing is performed after the following manner:

The choicest and briskest young men of the town, and such only as have acquired some treasure by their travels and hunting, are chosen out by the rulers to be huskanawed; and whoever refuses to undergo this process dares not remain among them. Several of those odd preparatory fopperies are premised in the beginning, which have been before related; but the principal part of the business is, to carry them into the woods, and there keep them under confinement, and destitute of all society for several months, giving them no other sustenance but the infusion, or decoction, of some poisonous, intoxicating roots; by virtue of which physic, and by the severity of the discipline which they undergo, they became stark, staring mad; in which raving condition, they are kept eighteen or twenty days. During these extremities, they are shut up, night and day, in a strong inclosure, made on purpose; one of which I saw belonging to the Pamunky Indians, in the year 1694. It was in shape like a sugar loaf, and every way open like a lattice for the air to pass through, as in tab. 4, fig. 3. In this cage, thirteen young men had been huskanawed, and had not been a month set at liberty when I saw it. Upon this occasion, it is pretended that these poor creatures drink so much of that water of Lethe, that they perfectly lose the remembrance of all former things, even of their parents, their treasure, and their language. When the doctors find that they have drank sufficiently of the wysoccan, (so they call this mad potion,) they gradually restore them to their senses again, by lessening the intoxication of their diet; but before they are perfectly well, they bring them back into their towns, while they are still wild and crazy, through the violence of the medicine. After this, they are very fearful of discovering anything of their former remembrance; for if such a thing should happen to any of them, they must immediately be huskanawed again; and the second time, the usage is so severe, that seldom any one escapes with life. Thus they must pretend to have forgot the very use of their tongues, so as not to be able to speak, nor understand anything that is spoken, till they learn it again. Now, whether this be real or counterfeit, I don't know; but certain it is, that they will not for some time take notice of any body, nor anything with which they were before acquainted, being still under the guard of their keepers, who constantly wait upon them everywhere till they have learnt all things perfectly over again. Thus they unlive their former lives, and commence men by forgetting that they ever have been boys. If, under this exercise, any one should die, I suppose the story of Okee, mentioned by Smith, is the salvo for it; for, (says

he) Okee was to have such as were his by lot, and such were said to be sacrificed.

Now this conjecture is the more probable, because we know that Okee has not a share in every huskanawing; for though two young men happened to come short home, in that of the Pamunky Indians, which was performed in the year 1694, yet the Appomattoxs, formerly a great nation, though now an inconsiderable people, made a huskanaw in the year 1690, and brought home the same number they carried out.

§ 33. I can account no other way for the great pains and secrecy of the keepers, during the whole process of this discipline, but by assuring you, that it is the most meritorious thing in the world to discharge that trust well, in order to their preferment to the greatest posts in the nation, which they claim as their undoubted right, in the next promotion. On the other hand, they are sure of a speedy passport into the other world, if they should, by their levity or neglect, shew themselves in the least unfaithful.

Those which I have observed to have been huskanawed, were lively, handsome, well timbered young men, from fifteen to twenty years of age, or upward, and such as were generally reputed rich.

I confess, I judged it at the first sight to be only an invention of the seniors, to engross the young men's riches to themselves; for, after suffering this operation, they never pretended to call to mind anything of their former property; but their goods were either shared by the old men, or brought to some public use; and so those youngers were obliged to begin the world again.

But the Indians detest this opinion, and pretend that this violent method of taking away the memory, is to release the youth from all their childish impressions, and from that strong partiality to persons and things, which is contracted before reason comes to take place. They hope by this proceeding, to root out all the prepossessions and unreasonable prejudices which are fixed in the minds of children. So that, when the young men come to themselves again, their reason may act freely, without being biased by the cheats of custom and education. Thus, also, they become discharged from the remembrance of any ties by blood, and are established in a state of equality and perfect freedom, to order their actions, and dispose of their

persons, as they think fit, without any other control than that of the law of nature. By this means also they become qualified, when they have any public office, equally and impartially to administer justice, without having respect either to friend or relation. Puffend. p. 7, book I. A proselyte of justice of the Jews had a new soul.

§ 34. The Indians offer sacrifice almost upon every new occasion; as when they travel or begin a long journey, they burn tobacco instead of incense, to the sun, to bribe him to send them fair weather, and a prosperous voyage. When they cross any great water, or violent fresh, or torrent, they throw in tobacco, puccoon, peak, or some other valuable thing, that they happen to have about them, to intreat the spirit presiding there to grant them a safe passage. It is called a fresh, when after very great rains, or (as we suppose) after a great thaw of the snow and ice lying upon the mountains to the westward, the water descends in such abundance into the rivers, that they overflow the banks, which bound their streams at other times.

Likewise, when the Indians return from war, from hunting, from great journeys or the like, they offer some proportion of their spoils, of their chiefest tobacco, furs and paint, as also the fat, and choice bits of their game.

§ 35. I never could learn that they had any certain time or set days for their solemnities; but they have appointed feasts that happen according to the several seasons. They solemnize a day for the plentiful coming of their wild fowl, such as geese, ducks, teal, &c., for the returns of their hunting seasons, and for the ripening of certain fruits; but the greatest annual feast they have, is at the time of their corn-gathering, at which they revel several days together. To these they universally contribute, as they do to the gathering in the corn. On this occasion, they have their greatest variety of pastimes, and more especially of their war-dances and heroic songs; in which they boast, that their corn being now gathered, they have store enough for their women and children, and have nothing to do, but to go to war, travel, and to seek out for new adventures.

§ 36. They make their account by units, tens, hundreds, &c., as we do; but they reckon the years by the winters, or *cobonks*, as they call them; which is a name taken from the note of the wild-geese, intimating so many times of

the wild geese coming to them, which is every winter. They distinguish the several parts of the year, by five seasons, viz: the budding or blossoming of the spring; the earing of the corn, or roasting-ear time; the summer, or highest sun; the corn-gathering or fall of the leaf, and the winter, or *cobonks*. They count the months likewise by the moons, though not with any relation to so many in a year, as we do; but they make them return again by the same name, as the moon of stags, the corn moon, the first and second moon of *cobonks*, &c. They have no distinction of the hours of the day, but divide it only into three parts, the rise, power, and lowering of the sun. And they keep their account by knots on a string, or notches on a stick, not unlike the Peruvian quippoes.

§ 37. In this state of nature, one would think they should be as pure from superstition, and overdoing matters in religion, as they are in other things; but I find it is quite the contrary; for this simplicity gives the cunning priest a greater advantage over them, according to the Romish maxim, "*Ignorance is the mother of devotion.*" For, no bigotted pilgrim appears more zealous, or strains his devotion more at the shrine, than these believing Indians do, in their idolatrous adorations. Neither do the most refined Catholics undergo their penance with so much submission, as these poor Pagans do the severities which their priests inflict upon them.

They have likewise in other cases many fond and idle superstitions, as for the purpose. By the falls of James river upon Colonel Byrd's land, there lies a rock which I have seen, about a mile from the river, wherein are fairly imprest several marks like the footsteps of a gigantic man, each step being about five feet asunder. These they aver to be the track of their God.

This is not unlike what the fathers of the Romish Church tell us, that our Lord left the print of His feet on the stone, whereon he stood while he talked with St. Peter; which stone was afterward preserved as a very sacred relic; and after several translations, was at last fixed in the Church of St. Sebastian, the martyr, where it is kept, and visited with great expressions of devotion. So that the Indians, as well as these, are not without their pious frauds.

§ 38. As the people have a great reverence for the priest, so the priest very oddly endeavours to preserve their respect, by being as hideously ugly as he

can, especially when he appears in public; for besides, that the cut of his hair is peculiar to his function, as in tab. 4, book 3, and the hanging of his cloak, with the fur reversed and falling down in flakes, looks horridly shagged, he likewise bedaubs himself in that frightful manner with paint, that he terrifies the people into a veneration for him.

The conjuror is a partner with the priest, not only in the cheat, but in the advantages of it, and sometimes they officiate for one another. When this artist is in the act of conjuration, or of *pauwawing*, as they term it, he always appears with an air of haste, or else in some convulsive posture, that seems to strain all the faculties, like the Sybils, when they appeared to be under the power of inspiration. At these times, he has a black bird with expanded wings fastened to his ear, differing in nothing but color, from Mahomet's pigeon. He has no clothing but a small skin before, and a pocket at his girdle, as in tab. 4, book 3.

The Indians never go about any considerable enterprise, without first consulting their priests and conjurers, for the most ingenious amongst them are brought up to those functions, and by that means become better instructed in their histories, than the rest of the people. They likewise engross to themselves all the knowledge of nature, which is handed to them by tradition from their forefathers; by which means they are able to make a truer judgment of things, and consequently are more capable of advising those that consult them upon all occasions. These reverend gentlemen are not so entirely given up to their religious austerities, but they sometimes take their pleasure (as well as the laity) in fishing, fowling and hunting.

§ 39. The Indians have posts fixed round their *Quioccassan*, which have men's faces carved upon them, and are painted. They are likewise set up round some of their other celebrated places, and make a circle for them to dance about on certain solemn occasions. They very often set up pyramidal stones and pillars, which they color with puccoon, and other sorts of paint, and which they adorn with peak, roenoke, &c. To these they pay all outward signs of worship and devotion, not as to God, but as they are hieroglyphics of the permanency and immutability of the Deity; because these, both for figure and substance, are of all sublunary bodies, the least subject to decay or change; they also, for the same reason, keep baskets of stones in their

cabins. Upon this account too, they offer sacrifice to running streams, which by the perpetuity of their motion, typify the eternity of God.

They erect altars wherever they have any remarkable occasion, and because their principal devotion consists in sacrifice, they have a profound respect for these altars. They have one particular altar, to which, for some mystical reason, many of their nations pay an extraordinary veneration; of this sort was the crystal cube, mentioned book II, chap. 3, § 9. The Indians call this by the name of pawcorance, from whence proceeds the great reverence they have for a small bird that uses the woods, and in their note continually sound that name. This bird flies alone, and is only heard in the twilight. They say, this is the soul of one of their princes; and on that score, they would not hurt it for the world. But there was once a profane Indian in the upper parts of James river, who, after abundance of fears and scruples, was at last bribed to kill one of them with his gun; but the Indians say he paid dear for his presumption; for in a few days after he was taken away, and never more heard of. I have young birds of this kind.

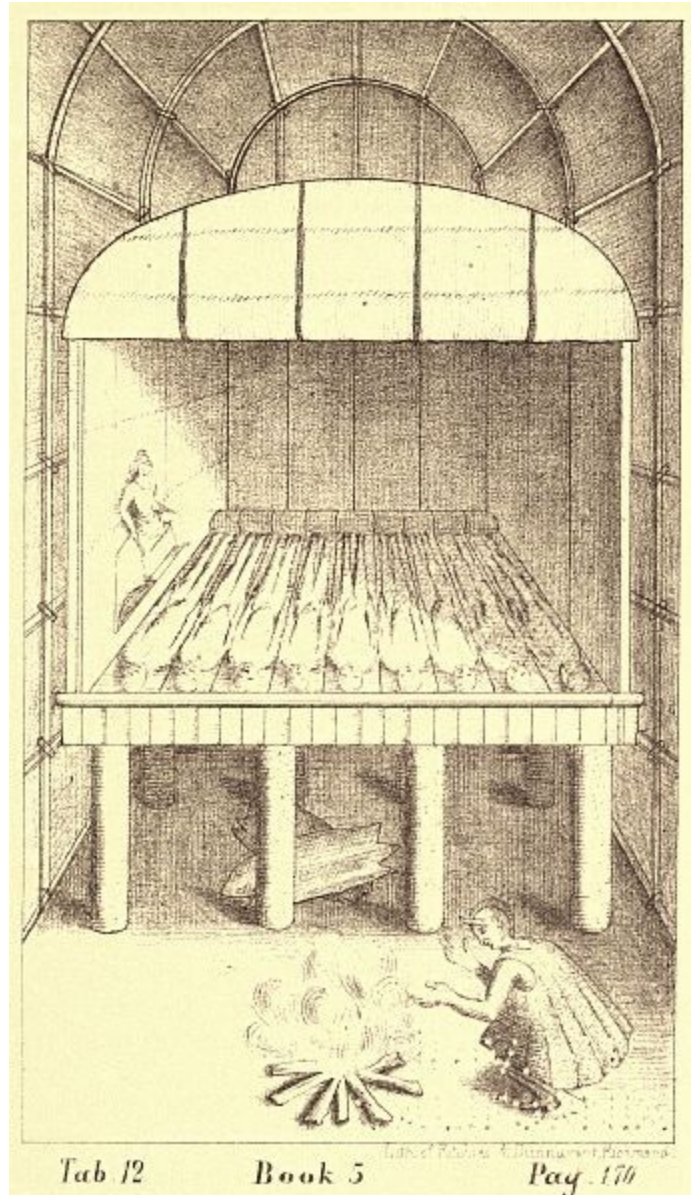
When they travel by any of these altars, they take great care to instruct their children and young people in the particular occasion and time of their erection, and recommend the respect which they ought to have for them; so that their careful observance of these traditions proves almost as good a memorial of such antiquities as written records, especially for so long as the same people continue to inhabit in or near the same place.

I can't understand that their women ever pretended to intermeddle with any offices that relate to the priesthood or conjuration.

§ 40. The Indians are religious in preserving the corpses of their kings and rulers after death, which they order in the following manner: First, they neatly flay off the skin as entire as they can, slitting it only in the back; then they pick all the flesh off from the bones as clean as possible, leaving the sinews fastened to the bones, that they may preserve the joints together; then they dry the bones in the sun, and put them into the skin again, which, in the meantime, has been kept from drying or shrinking; when the bones are placed right in the skin, they nicely fill up the vacuities with a very fine white sand. After this they sew up the skin again, and the body looks as if the flesh had not been removed. They take care to keep the skin from

shrinking, by the help of a little oil or grease, which saves it also from corruption. The skin being thus prepared, they lay it in an apartment for that purpose, upon a large shelf raised above the floor. This shelf is spread with mats, for the corpse to rest easy on, and skreened with the same, to keep it from the dust. The flesh they lay upon hurdles in the sun to dry, and when it is thoroughly dried, it is sewed up in a basket, and set at the feet of the corpse, to which it belongs. In this place also they set up a quioccas, or idol, which they believe will be a guard to the corpse. Here night and day one or other of the priests must give his attendance, to take care of the dead bodies. So great an honor and veneration have these ignorant and unpolished people for their princes, even after they are dead.

The mat is supposed to be turned up in the figure, that the inside may be viewed.



**Lith. of Ritchies & Dunnivant
Richmond.**

Tab. 12 Book 3 Pag. 170

TAB. 12. Represents the burial of the kings.

CHAPTER IX.

OF THE DISEASES AND CURES OF THE INDIANS.

§ 41. The Indians are not subject to many diseases; and such as they have, generally come from excessive heats and sudden colds, which they as suddenly get away by sweating. But if the humor happen to fix, and make a pain in any particular joint, or limb, their general cure then is by burning, if it be in any part that will bear it; their method of doing this is by little sticks of lightwood, the coal of which will burn like a hot iron; the sharp point of this they run into the flesh, and having made a sore, keep it running till the humor be drawn off; or else they take punk, (which is a sort of soft touchwood, cut out of the knots of oak or hickory trees, but the hickory affords the best,) this they shape like a cone, (as the Japanese do their moxa for the gout,) and apply the basis of it to the place affected. Then they set fire to it, letting it burn out upon the part, which makes a running sore effectually.

They use sucking in sores frequently, and scarifying, which, like the Mexicans, they perform with a rattlesnake's tooth. They seldom cut deeper than the epidermis, by which means they give passage to those sharp waterish humors that lie between the two skins, and cause inflammations. Sometimes they make use of reeds for cauterizing, which they heat over the fire, till they are ready to flame, and then apply them upon a piece of thin wet leather to the place aggrieved, which makes the heat more piercing.

Their priests are always physicians, and by the method of their education in the priesthood, are made very knowing in the hidden qualities of plants and other natural things, which they count a part of their religion to conceal from everybody, but from those that are to succeed them in their holy function. They tell us their god will be angry with them if they should discover that part of their knowledge; so they suffer only the rattlesnake root to be known, and such other antidotes, as must be immediately applied,

because their doctors can't be always at hand to remedy those sudden misfortunes which generally happen in their hunting or traveling.

They call their physic *wisoccan*, not from the name of any particular root or plant, but as it signifies medicine in general. So that Heriot, De Bry, Smith, Purchase and De Laet, seem all to be mistaken in the meaning of this word *wighsacan*, which they make to be the name of a particular root; and so is Parkinson in the word *woghsacan*, which he will have to be the name of a plant. Nor do I think there is better authority for applying the word *wisank* to the plant *vincetoxicum indianum germanicum*, or *winank* to the *sassafras* tree.

The physic of the Indians consists for the most part in the roots and barks of trees, they very rarely using the leaves either of herbs or trees; what they give inwardly, they infuse in water, and what they apply outwardly, they stamp or bruise, adding water to it, if it has not moisture enough of itself; with the thin of this they bath the part affected, then lay on the thick, after the manner of a poultice, and commonly dress round, leaving the sore place bare.

§ 42. They take great delight in sweating, and therefore in every town they have a sweating house, and a doctor is paid by the public to attend it. They commonly use this to refresh themselves, after they have been fatigued with hunting, travel, or the like, or else when they are troubled with agues, aches, or pains in their limbs. Their method is thus: the doctor takes three or four large stones, which after having heated red hot, he places them in the middle of the stove, laying on them some of the inner bark of oak beaten in a mortar, to keep them from burning. This being done, they creep in six or eight at a time, or as many as the place will hold, and then close up the mouth of the stove, which is usually made like an oven, in some bank near the water side. In the meanwhile the doctor to raise a steam, after they have been stewing a little while, pours cold water on the stones, and now and then sprinkles the men to keep them from fainting. After they have sweat as long as they can well endure it, they sally out, and (though it be in the depth of winter) forthwith plunge themselves over head and ears in cold water, which instantly closes up the pores, and preserves them from taking cold. The heat being thus suddenly driven from the extreme parts to the heart, makes them a little feeble for the present, but their spirits rally again, and

they instantly recover their strength, and find their joints as supple and vigorous as if they never had traveled, or been indisposed. So that I may say as Bellonius does in his observations on the Turkish bagnio's, all the crudities contracted in their bodies are by this means evaporated and carried off. The Muscovites and Finlanders are said to use this way of sweating also. "It is almost a miracle," says Olearius, "to see how their bodies, accustomed to and hardened by cold, can endure so intense a heat, and how that when they are not able to endure it longer, they come out of the stoves as naked as they were born, both men and women, and plunge into cold water, or cause it to be poured on them." Trav. into Musc., I, 3, page 67.

The Indians also pulverize the roots of a kind of anchusa, or yellow alkanet, which they call puccoon, and of a sort of wild angelica, and mixing them together with bear's oil, make a yellow ointment, with which, after they have bathed, they anoint themselves Capapee; this supple the skin, renders them nimble and active, and withal so closes up the pores, that they lose but few of their spirits by perspiration. Piso relates the same of the Brazilians; and my Lord Bacon asserts, that oil and fat things do no less conserve the substance of the body, than oil-colors and varnish do that of the wood.

They have also a farther advantage of this ointment; for it keeps all lice, fleas, and other troublesome vermin from coming near them; which otherwise, by reason of the nastiness of their cabins, they would be very much infested with.

Smith talks of this puccoon, as if it only grew on the mountains, whereas it is common to all the plantations of the English, now on the land frontiers.

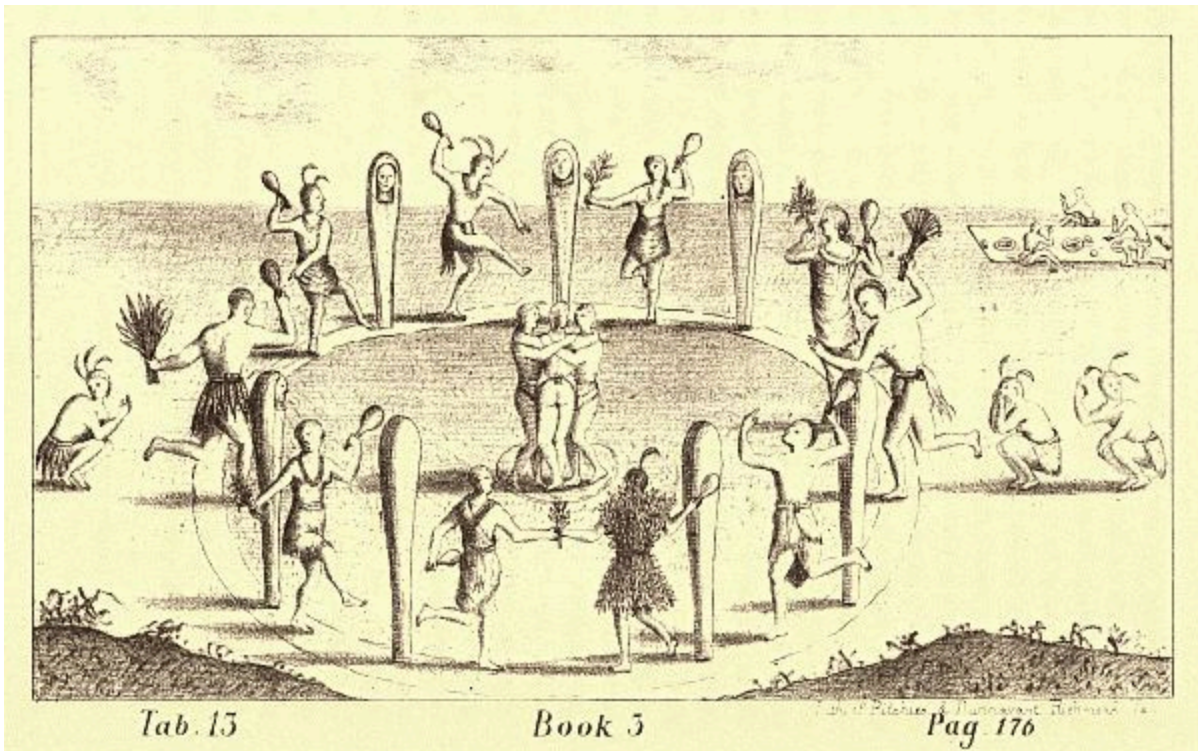
CHAPTER X.

OF THE SPORTS AND PASTIMES OF THE INDIANS.

§ 43. Their sports and pastimes are singing, dancing, instrumental music, and some boisterous plays, which are performed by running, catching and leaping upon one another; they have also one great diversion, to the practicing of which are requisite whole handfals of little sticks or hard straws, which they know how to count as fast as they can cast their eyes upon them, and can handle with a surprising dexterity.

Their singing is not the most charming that I have heard; it consists much in exalting the voice, and is full of slow melancholy accents. However, I must allow even this music to contain some wild notes that are agreeable.

Their dancing is performed either by few or a great company, but without much regard either to time or figure. The first of these is by one or two persons, or at most by three. In the meanwhile, the company sit about them in a ring upon the ground, singing outrageously and shaking their rattles. The dancers sometimes sing, and sometimes look menacing and terrible, beating their feet furiously against the ground, and shewing ten thousand grimaces and distortions. The other is performed by a great number of people, the dancers themselves forming a ring, and moving round a circle of carved posts, that are set up for that purpose; or else round a fire, made in a convenient part of the town; and then each has his rattle in his hand, or what other thing he fancies most, as his bow and arrows, or his tomahawk. They also dress themselves up with branches of trees, or some other strange accoutrements. Thus they proceed, dancing and singing, with all the antic postures they can invent; and he's the bravest fellow that has the most prodigious gestures. Sometimes they place three young women in the middle of the circle, as you may see in the figure.



Lith. of Ritchies & Dunnivant Richmond, Va.

Tab. 13 Book 3 Pag. 176

TAB. 13. Represents a solemn festival dance of the Indians round their carved posts.

Those which on each side are hopping upon their hams, take that way of coming up to the ring, and when they find an opportunity strike in among the rest.

Captain Smith relates the particulars of a dance made for his entertainment, by Pocahontas, daughter of the emperor Powhatan, to divert him till her father came, who happened not to be at home when Smith arrived at his town. Gen. Hist., p. 194.

"In a fair plain field they made a fire, before which he sat down upon a mat, when suddenly amongst the woods was heard such a hideous noise and shrieking, that the English betook themselves to their arms, and seized on two or three old men by them, supposing Powhatan with all his power was coming to surprise them. But presently Pocahontas came, willing him to kill her, if any hurt were intended; and the beholders, which

were men, women and children, satisfied the captain that there was no such matter. Then presently they were presented with this antic; thirty young women came naked out of the woods, only covered behind and before with a few green leaves, their bodies all painted, some of one color, some of another, but all differing; their leader had a fair pair of buck's horns on her head, an otter's skin at her girdle, another at her arm, a quiver of arrows at her back, and a bow and arrows in her hand. The next had in her hand a sword, another a club, another a potstick; all of them being horned alike: the rest were all set out with their several devices. These fiends, with most hellish shouts and cries, rushing from among the trees, cast themselves in a ring about the fire, singing and dancing with most excellent ill variety, oft falling into their infernal passions, and then solemnly betaking themselves again to sing and dance; having spent an hour in this mascarado, as they entered, in like manner they departed."

They have a fire made constantly every night, at a convenient place in the town, whither all that have a mind to be merry, at the public dance or music, resort in the evening.

Their musical instruments are chiefly drums and rattles: their drums are made of a skin, stretched over an earthen pot half full of water. Their rattles are the shell of a small gourd, or macock of the creeping kind, and not of those called callibaches, which grow upon trees; of which the Brazilians make their maraka, or tamaraka, a sort of rattle also, as Clusius seems to intimate.

CHAPTER XI.

OF THE LAWS, AND AUTHORITY OF THE INDIANS AMONG ONE ANOTHER.

§ 44. The Indians having no sort of letters among them, as has been before observed, they can have no written laws; nor did the constitution in which we found them seem to need many. Nature and their own convenience having taught them to obey one chief, who is arbiter of all things among them. They claim no property in lands, but they are in common to a whole nation. Every one hunts and fishes, and gathers fruits in all places. Their labor in tending corn, pompions, melons, &c., is not so great, that they need quarrel for room, where the land is so fertile, and where so much lies uncultivated.

They bred no sort of cattle, nor had anything that could be called riches. They valued skins and furs for use, and peak and roenoke for ornament.

They are very severe in punishing ill breeding, of which every Werowance is undisputed judge, who never fails to lay a rigorous penalty upon it: an example whereof I had from a gentleman that was an eye-witness; which was this:

In the time of Bacon's rebellion, one of these Werowances, attended by several others of his nation, was treating with the English in New Kent county about a peace; and during the time of his speech, one of his attendants presumed to interrupt him, which he resented as the most unpardonable affront that could be offered him; and therefore he instantly took his tomahawk from his girdle and split the fellow's head for his presumption. The poor fellow dying immediately upon the spot, he commanded some of his men to carry him out, and went on again with his speech where he left off, as unconcerned as if nothing had happened.

The Indians never forget nor forgive an injury, till satisfaction be given, be it national or personal: but it becomes the business of their whole lives; and even after that, the revenge is entailed upon their posterity, till full reparation be made.

§ 45. The titles of honor that I have observed among them peculiar to themselves, are only Cockarouse and Werowance, besides that of the king and queen; but of late they have borrowed some titles from us, which they bestow among themselves. A Cockarouse is one that has the honor to be of the king or queen's council, with relation to the affairs of the government, and has a great share in the administration. A Werowance is a military officer, who of course takes upon him the command of all parties, either of hunting, traveling, warring, or the like, and the word signifies a war-captain.

The priests and conjurers are also of great authority, the people having recourse to them for counsel and direction upon all occasions; by which means, and by help of the first fruits and frequent offerings, they riot in the fat of the land, and grow rich upon the spoils of their ignorant countrymen.

They have also people of a rank inferior to the commons, a sort of servants among them. These are called black boys, and are attendant upon the gentry, to do their servile offices, which, in their state of nature, are not many. For they live barely up to the present relief of their necessities, and make all things easy and comfortable to themselves, by the indulgence of a kind climate, without toiling and perplexing their minds for riches, which other people often trouble themselves to provide for uncertain and ungrateful heirs. In short, they seem as possessing nothing, and yet enjoying all things.

CHAPTER XII.

OF THE TREASURE OR RICHES OF THE INDIANS.

§ 46. The Indians had nothing which they reckoned riches, before the English went among them, except peak, roenoke, and such like trifles made out of the conch shell. These past with them instead of gold and silver, and served them both for money and ornament. It was the English alone that taught them first to put a value on their skins and furs, and to make a trade of them.

Peak is of two sorts, or rather of two colors, for both are made of one shell, though of different parts; one is a dark purple cylinder, and the other a white; they are both made in size and figure alike, and commonly much resembling the English bugles, but not so transparent nor so brittle. They are wrought as smooth as glass, being one third of an inch long, and about a quarter diameter, strung by a hole drilled through the centre. The dark color is the dearest, and distinguished by the name of wampom peak. The Englishmen that are called Indian traders, value the wampom peak at eighteen pence per yard, and the white peak at nine pence. The Indians also make pipes of this, two or three inches long, and thicker than ordinary, which are much more valuable. They also make runtees of the small shell, and grind them as smooth as peak. These are either large like an oval bead, and drilled the length of the oval, or else they are circular and flat, almost an inch over, and one third of an inch thick, and drilled edgeways. Of this shell they also make round tablets of about four inches diameter, which they polish as smooth as the other, and sometimes they etch or grave thereon circles, stars, a half moon, or any other figure suitable to their fancy. These they wear instead of medals before or behind their neck, and use the peak, runtees and pipes for coronets, bracelets, belts, or long strings hanging down before the breast, or else they lace their garments with them, and adorn their tomahawks, and every other thing that they value.

They have also another sort which is as current among them, but of far less value; and this is made of the cockle shell, broken into small bits with rough edges, drilled through in the same manner as beads, and this they call roenoke, and use it as the peak.

These sorts of money have their rates set upon them as unalterable, and current as the values of our money are.

The Indians have likewise some pearl amongst them, and formerly had many more, but where they got them is uncertain, except they found them in the oyster banks, which are frequent in this country.

CHAPTER XIII.

OF THE HANDICRAFTS OF THE INDIANS.

§ 47. Before I finish my account of the Indians, it will not be amiss to inform you, that when the English went first among them, they had no sort of iron or steel instruments; but their knives were either sharpened reeds or shells, and their axes sharp stones, bound to the end of a stick, and glued in with turpentine. By the help of these, they made their bows of the locust tree, an excessive hard wood when it is dry, but much more easily cut when it is green, of which they always took the advantage. They made their arrows of reeds or small wands, which needed no other cutting, but in the length, being otherwise ready for notching, feathering and heading. They fledged their arrows with turkey feathers, which they fastened with glue made of the velvet horns of a deer; but it has not that quality it's said to have, of holding against all weathers; they arm'd the heads with a white transparent stone, like that of Mexico mentioned by Peter Martyr, of which they have many rocks; they also headed them with the spurs of the wild turkey cock.

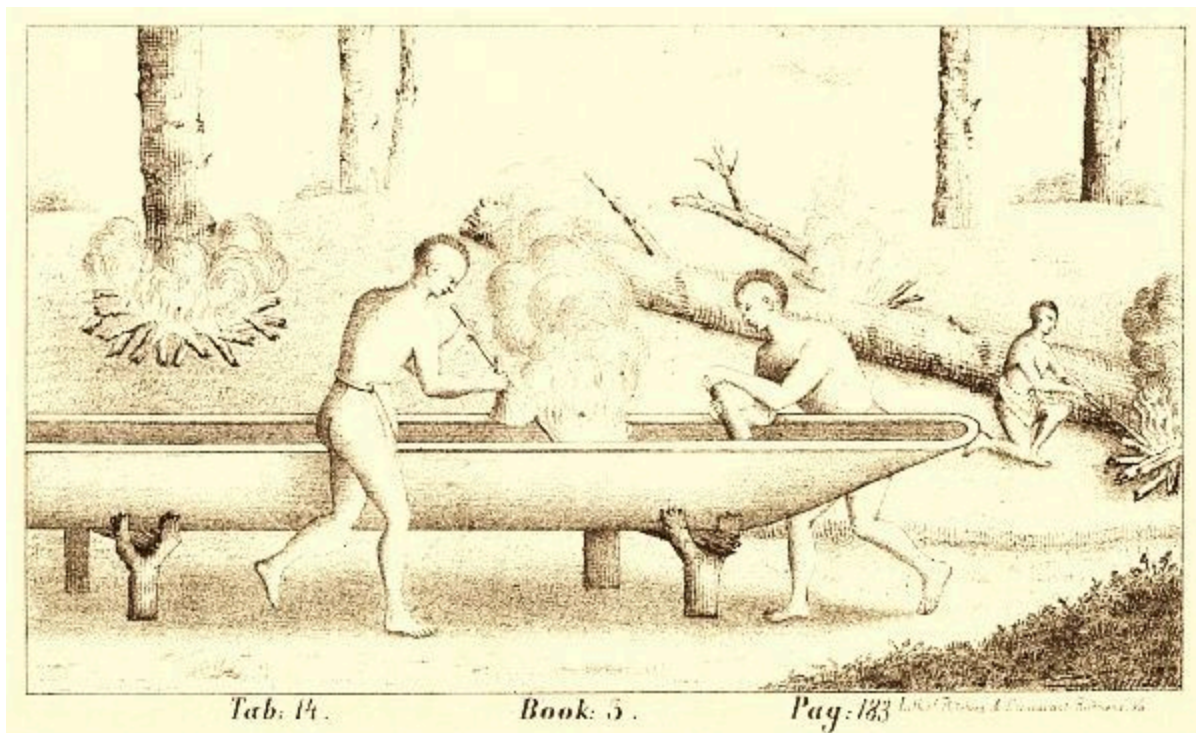
They rubbed fire out of particular sorts of wood (as the ancients did out of the ivy and bays) by turning the end of a hard piece upon the side of a piece that is soft and dry, like a spindle on its inke, by which it heats, and at length burns; to this they put sometimes also rotten wood and dry leaves, to hasten the work.

§ 48. Under the disadvantage of such tools they made a shift to fell vast great trees, and clear the land of wood in places where they had occasion.

They bring down a great tree by making a small fire round the root, and keeping the flame from running upward, until they burn away so much of the basis, that the least puff of wind throws it down. When it is prostrate, they burn it off to what length they would have it, and with their stone

tomahawks break off all the bark, which when the sap runs will easily strip, and at other times also, if it be well warmed with fire. When it is brought to a due length, they raise it upon a bed to a convenient height for their working, and then, begin by gentle fires to hollow it, and with scrapers rake the trunk, and turn away the fire from one place to another, till they have deepened the belly of it to their desire. Thus also they shape the ends, till they have made it a fit vessel for crossing the water, and this they call a canoe, one of which I have seen thirty feet long.

When they wanted any land to be cleared of the woods, they chopped a notch round the trees quite through the bark with their stone hatchets or tomahawks, and that deadened the trees, so that they sprouted no more, but in a few years fell down. However, the ground was plant-able, and would produce immediately upon the withering of the trees. But now for all these uses they employ axes and little hatchets, which they buy of the English. The occasions aforementioned, and the building of their cabins, are still the greatest use they have for these utensils, because they trouble not themselves with any other sort of handicraft, to which such tools are necessary. Their household utensils are baskets made of silk grass, gourds, which grow to the shapes they desire them, and earthen pots to boil victuals in, which they make of clay.



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TAB. 14. Shows their manner of felling great trees (before they had iron instruments) by firing the root, and bringing them to fit lengths, and shaping them for use by fire alone.

The Indians of Virginia are almost wasted, but such towns or people as retain their names and live in bodies are hereunder set down, all which together can't raise five hundred fighting men. They live poorly, and much in fear of the neighboring Indians. Each town, by the articles of peace, 1677, pays three Indian arrows for their land, and twenty beaver skins for protection every year.

In Accomac are eight towns, viz:

Metomkin is much decreased of late by the small pox, that was carried thither.

Gingoteague. The few remains of this town are joined with a nation of the Maryland Indians.

Kiequotank is reduced to very few men.

Matchopungo has a small number yet living.

Occahanock has a small number yet living.

Pungoteague. Governed by a queen, but a small nation.

Onancock has but four or five families.

Chiconessex has very few, who just keep the name.

Nanduye. A seat of the empress. Not above twenty families, but she hath all the nations of this shore under tribute.

In Northampton, Gangascoe, which is almost as numerous as all the foregoing nations put together.

In Prince George Wyanoke is extinct.

In Charles City Appomattox is extinct.

In Surry. Nottawayes, which are about a hundred bowmen, of late a thriving and increasing people.

By Nansemond. Meherrin has about thirty bowmen, who keep at a stand.

Nansemond. About thirty bowmen. They have increased much of late.

In King William's county two. Pamunky has about forty bowmen, who decrease.

Chickahominy, which had about sixteen bowmen, but lately increased.

In Essex. Rappahannock extinct.

In Richmond. Port Tobacco extinct.

In Northumberland. Wiccomocca has but few men living, which yet keep up their kingdom and retain their fashion, yet live by themselves, separate from all other Indians, and from the English.

§ 49. Thus I have given a succinct account of the Indians; happy, I think, in their simple state of nature, and in their enjoyment of plenty, without the curse of labor. They have on several accounts reason to lament the arrival of the Europeans, by whose means they seem to have lost their felicity as well as their innocence. The English have taken away great part of their country, and consequently made everything less plentiful amongst them. They have introduced drunkenness and luxury amongst them, which have multiplied their wants, and put them upon desiring a thousand things they never dreamt of before. I have been the more concise in my account of this harmless people, because I have inserted several figures, which I hope have both supplied the defect of words, and rendered the descriptions more clear. I shall, in the next place, proceed to treat of Virginia as it is now improved, (I should rather say altered,) by the English, and of its present constitution and settlement.

OF THE PRESENT STATE OF VIRGINIA.

AS THIS BOOK MUST CONSIST OF TWO PARTS, FIRST, THE POLITY OF THE
GOVERNMENT; SECONDLY, THE HUSBANDRY AND IMPROVEMENTS OF THE
COUNTRY; I SHALL HANDLE THEM SEPARATELY.

BOOK IV.



PART I.

OF THE CIVIL POLITY AND GOVERNMENT OF VIRGINIA.



CHAPTER I.

OF THE CONSTITUTION OF GOVERNMENT IN VIRGINIA.

§ 1. I have already hinted, that the first settlement of this country was under the direction of a company of merchants incorporated.

That the first constitution of government appointed by them was a president and council, which council was nominated by the corporation or company in London, and the president annually chosen by the people in Virginia.

That in the year 1610, this constitution was altered, and the company obtained a new grant of his majesty; whereby they themselves had the nomination of the governor, who was obliged to act only by advice in council.

That in the year 1620, an assembly of burgesses was first called, from all the inhabited parts of the country, who sat in consultation with the governor and council, for settling the public affairs of the plantation.

That when the company was dissolved, the king continued the same method of government, by a governor, council and burgesses; which three being united were called the general assembly.

That this general assembly debated all the weighty affairs of the colony, and enacted laws for the better government of the people; and the governor and council were to put them in execution.

That the governor and council were appointed by the king, and the assembly chosen by the people.

Afterwards the governor had a more extensive power put into his hands, so that his assent in all affairs become absolutely necessary; yet was he still bound to act by advice of council in many things.

Until the rebellion 1676, the governor had no power to suspend the counsellors, nor to remove any of them from the council board.

Then a power was given him of suspending them, but with proviso, that he gave substantial reasons for so doing; and was answerable to his majesty for the truth of the accusation.

Then also this model of government by a governor, council and assembly, was confirmed to them with a farther clause, that if the governor should happen to die, or be removed, and no other person in the country nominated by the crown to supply his place, then the president, or eldest councillor, with the assistance of any five of the council, should take upon him the administration of the government, all which are authorized by commission and instructions to the governor.

Before the year 1680, the council sat in the same house with the burgesses of assembly, much resembling the model of the Scotch parliament; and the Lord Colepepper, taking advantage of some disputes among them, procured the council to sit apart from the assembly; and so they became two distinct houses, in imitation of the two houses of parliament in England, the lords and commons; and so is the constitution at this day.

§ 2. The governor is appointed by the crown; his commission is under seal, and runs during pleasure.

He represents the king's person there in all things, and is subject to his instructions.

His assent is necessary to the laws, agreed upon by the council and assembly; without it no law can be made.

His test to all laws so assented to is also requisite.

He calls assemblies by advice of council, but prorogues or dissolves them without.

He calls and presides in all councils of State, and hath his negative there also.

He appoints commissioners of county courts for the administration of justice, by consent of council.

He grants commissions to all officers of the militia, under the degree of a lieutenant general, (which title he bears himself,) as he thinks fit.

He orders and disposes the militia for the defence of the country.

He tests proclamations.

He disposes of the unpatented land according to the charter, the laws of that country, and his instructions; for which end, and for other public occasions, the seal of the colony is committed to his keeping.

All issues of the public revenue must bear his test.

And by virtue of a commission from the admiralty he is made vice-admiral.

The governor's salary, till within these forty-five years last past, was no more than a thousand pounds a year; besides which, he had about five hundred more in perquisites. Indeed, the general assembly, by a public act, made an addition of two hundred pounds a year to Sir William Berkeley in particular, out of the great respect and esteem they bore to that gentleman, who had been a long time a good and just governor; and who had laid out the greatest part of his revenue in experiments, for the advantage and improvement of the country; and who had, besides, suffered extremely in the time of the usurpation. But this addition was to determine with his government.

Sir William Berkeley, after the short interval of Jeffery's and Chicheley's being deputy-governors, was succeeded by the Lord Colepepper, who, under pretence of his being a peer of England, obtained of King Charles II. a salary of two thousand pounds, besides one hundred and sixty pounds a year for house rent, because there was no house appointed by the country for the governor's reception. This salary has continued ever since, to the succeeding governors.

If the administration of the government happen to fall into the hands of the president and council, there is then usually allowed to the president, the addition of five hundred pounds a year only; and to the council, no more than what is given them at other times.

§ 3. The gentlemen of the council are appointed by letter or instruction from his majesty, which says no more, but that they be sworn of the council.

The number of the counsellors when complete, is twelve; and if at anytime, by death or removal, there happen to be fewer than nine residing in the country, then the governor has power to appoint and swear into the council, such of the gentlemen of the country as he shall think fit to make up that number, without expecting any direction from England.

The business of the council, is to advise and assist the governor in all important matters of government, which he shall consult them in.

In the general assembly, the council make the upper house, and claim an entire negative voice to all laws, as the house of lords in England.

The salary of the council is in all but three hundred and fifty pounds per annum, to be proportioned among them according to their attendance on general courts and assemblies.

§ 4. The burgesses of assembly are elected, and returned from all parts of the country, viz: from each county, two; and from James City, one; and from the college, one; which make up in all sixty burgesses. They are convened by writs issued from the secretary's office, under the seal of the colony, and the test of the governor. These are directed to the sheriff of each county respectively, and ought to bear date at least forty days before the return. The freeholders are the only electors, and wherever they have a freehold (if they be not women, or under age, or aliens) they have a vote in the election. The method of summoning the freeholders, is by publication of the writ, together with the day appointed by the sheriff for election, at every church and chapel in the county, two several Sundays successively. The election is concluded by plurality of voices; and if either party be dissatisfied, or thinks he has not fair treatment, he may demand a copy of the poll, and upon application to the house of burgesses, shall have his complaint inquired into. But to prevent undue elections, many acts have been there made, agreeably to some lately enacted in England.

The first business of a convention, by the governor's direction, is to make choice of a speaker, and to present him in full house to the governor. Upon this occasion, the speaker, in the name of the house, petitions the governor

to confirm the usual liberties and privileges of assembly, namely, access to his person whenever they shall have occasion; a freedom of speech and debate in the house, without being farther accountable; a protection of their persons, and their servants from arrest, &c. And these being granted by the governor, and the cause of their meeting declared by him, they proceed to do business, choosing committees, and in other things imitating as near as they can the method of the honorable house of commons in England.

The laws having duly passed the house of burgesses, the council, and the governor's assent, they are transmitted to the king by the next shipping for his approbation, his majesty having another negative voice. But they immediately become laws, and are in force upon the governor's first passing them, and so remain if his majesty don't actually repeal them, although he be not pleased to declare his royal assent, one way or other.

There are no appointed times for their convention, but they are called together whenever the exigencies of the country make it necessary, or his majesty is pleased to order anything to be proposed to them.

CHAPTER II.

OF THE SUBDIVISIONS OF VIRGINIA.

§ 5. The country is divided into twenty-nine counties, and the counties, as they are in bigness, into fewer or more parishes, as they are filled with inhabitants.

The method of bounding the counties is at this time with respect to the convenience of having each county limited to one single river, for its trade and shipping, so that any one whose concerns are altogether in one county, may not be obliged to seek his freight and shipping in more than one river. Whereas at first, they were bounded with respect to the circuit, and the propinquity of the extremes to one common centre, by which means one county reached then quite across a neck of land from river to river. But this way of bounding the counties being found more inconvenient than the other, it was changed by a law into what it is now.

Besides this division into counties and parishes, there are two other subdivisions, which are subject to the rules and alterations made by the county courts, namely: into precincts or burroughs, for the limits of constables; and into precincts or walks, for the surveyors of highways.

§ 6. There is another division of the country into necks of land, which are the boundaries of the escheators, viz:

1. The northern neck between Potomac and Rappahannock rivers. This is the proprietary in the Lord Colepepper's family.
2. The neck between Rappahannock and York rivers, within which Pamunky neck is included.
3. The neck between York and James rivers.

4. The lands on the south side of James river.

5. The land on the eastern shore; in all, five divisions. Each of which has its particular escheat-master.

In the northern neck are contained six counties. 1. Lancaster, viz: in which are two parishes, viz: Christ Church, and Saint Mary White Chapel. 2. Northumberland, two parishes, viz: Fairfield and Boutracy, and *Wiccocomoco*. 3. Westmoreland, two parishes, viz: Copely and Washington. 4. Stafford, two parishes, viz: Saint Paul and Overworton. 5. Richmond, one parish, viz: North Farnham, and part of another, viz: Sittenburn. 6. King George county, one parish, viz: Hanover, the other part of Sittenburn.

In the neck between Rappahannock and York rivers, are contained six other counties, viz:

1. Gloucester, in which are four parishes, viz: Pessio, Abingdon, Ware and Kingston. 2. Middlesex, only one parish, viz: Christ Church. 3. King and Queen, two parishes, viz: Stratton Major, Saint Stephen. 4. King William, two parishes, viz: Saint John and Saint Margaret. 5. Essex, three parishes, viz: South Farnham, Saint Anne, Saint Mary. 6. Spottsylvania, one parish, viz: Saint George.

In the neck between York and James river, there are seven counties and part of an eighth. The seven entire counties are: 1. Elizabeth City, in which is only one parish, named also Elizabeth City parish. 2. The Warwick, in which are two parishes, viz: Denby, Mulberry Island. 3. York, in which are two parishes, viz: Charles and Yorkhampton, and part of a third called Braton. 4. James City, in which are three parishes and part of two others, viz: James City, part of Wilmington, Merchants' Hundred, and the other half of Braton. 5. New Kent, two parishes, viz: Blisland, and Saint Peter. 6. Charles City, two parishes, viz: Westover, and part of Wilmington. 7. Hanover, one parish, viz: Saint Paul. And 8. Part of Henrico county, on the north side of James river, by which river the parishes are also divided, there being two parishes in the whole county, viz: Henrico and Saint James, and part of a third called Bristol.

On the south side James river are seven counties, and the other part of Henrico. The seven counties, beginning at the bay as I have done in all the

rest are, viz: 1. Princess Anne, in which is but one parish, viz: Lynhaven. 2. Norfolk, also one parish, called Elizabeth River. 3. Nansemond, in which are three parishes, viz: Lower Parish, Upper Parish, Chickaluck. 4. Isle of Wight, in which are two parishes, viz: Warwick Squeeke Bay, and Newport. 5. Surry, two parishes, viz: Lyon's Creek, Southwark. 6. Prince George, in which is one parish, viz: Martin Brandon, and the other part of Bristol Parish, in Henrico. 7. Brunswick, a new county constituted towards the southern pass of the mountains, on purpose that by extraordinary encouragements the settlements may send up that way first, as is given also to Spottsylvania county for the northern pass. It is made one parish, by the name of Saint Andrew.

On the eastern shore, that is, on the east side the great bay of Chesapeake, the place where Sir William Berkeley retired to in the rebellion, without withdrawing from his government, (as Mr. Oldmixon declares he did) are two counties. 1. Northampton, having one parish, named Hungers. 2. Accomac, having one parish, named also Accomac.

In all there are at present twenty-nine counties, and fifty-four parishes.

§ 7. There is yet another division of the country into districts, according to the rivers, with respect to the shipping and navigation. These are the bounds appointed for the naval officers, and collectors of the public duties, and are as follows:

1. The upper parts of James river, from Hog island upwards.
 2. The lower parts of James river, from Hog island downwards to the capes, and round Point Comfort to Back river.
 3. York, Poquoson, Mobjack bay, and Piankatank rivers.
 4. Rappahannock river.
 5. Potomac river.
 6. Pocomoke, and the other parts on the eastern, made formerly two districts, but they are now united into one.
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CHAPTER III.

OF THE PUBLIC OFFICES OF GOVERNMENT.

§ 8. Besides the governor and council aforementioned, there are three other general officers in that colony bearing his majesty's immediate commission, viz: the auditor of the revenue, the receiver general of it, and the secretary of state.

The auditor's business is to audit the accounts of the public money of the government, and duly to transmit the state of them to England. Such as the quitrents, the money arising by the two shillings per hogshead, fort duties, the fines and forfeitures, and the profit of escheats and rights of land. His salary is six per cent of all the public money. The present auditor is John Grimes, esq.

The receiver general is to sell the public tobacco, collect and receive the money, make the account thereof, and pay it out again by the king's order. His salary is also six per cent. The present receiver general is James Roscow, esq.

The secretary's business is to keep the public records of the country, and to take care that they be regularly and fairly made up, viz: all judgments of the general court, as likewise all deeds, and other writings there proved; and farther, to issue all writs, both ministerial and judicial, relating thereto. To make out and record all patents for land, and to take the return of all inquests of escheats.

In his office is kept a register of all commissions of administration, and probates of wills granted throughout the colony; as also of all births, burials, marriages, and persons that go out of the country, of all houses of public entertainment, and of all public officers in the country, and of many other things proper to be kept in so general an office.

From this office are likewise issued all writs for choosing of burgesses, and in it are filed authentic copies of all proclamations.

The present secretary is Thomas Ficket, esq.

The secretary's income arises from fees for all business done in his office, which come (*communibus annis*) to about seventy thousand pounds tobacco per annum, out of which he pays twelve thousand five hundred, and cask, to the clerks. His other perquisites proceed out of the acknowledgments paid him annually by the county clerks, and are besides about forty thousand pounds of tobacco and cask.

§ 9. There are two other general officers in the country who do not receive their commission and authority immediately from the crown, and those are: 1. The ecclesiastical commissary, viz: the Rev. James Blair, authorized by the right reverend father in God, the lord bishop of London, ordinary of all the plantations. 2. The country's treasurer, viz: the Hon. Peter Beverley, esq., authorized by the general assembly.

The commissary's business is to make visitations of churches and have the inspection of the clergy. He is allowed one hundred pounds per annum out of the quitrents.

The treasurer's business is to receive the money from the several collectors, and to make up the accounts of the duties raised by some late acts of assembly for extraordinary occasions. His salary is six per cent. of all money passing through his hands.

These are all the general officers belonging to that government, except the court of admiralty, which has no standing officer. The present judge of the admiralty is John Clayton, esq.

§ 10. The other public commission officers in the government, (except those of the militia, for whom a chapter is reserved,) are escheators, naval officers, collectors, clerks of courts, sheriffs of counties, surveyors of land, and coroners.

The escheators have their precincts or bounds, according to the several necks of land; for their profits, they demand five pound for each inquest taken, being paid only as business happens.

The naval officers have their bounds according to the districts on the rivers, and so have the collectors. The profits of the first arise from large fees, upon the entering and clearing of all ships and vessels. The collectors have each a salary out of the treasury in England of forty pounds, sixty pounds, or an hundred pounds, according to their several districts, they being appointed by the honorable commissioners of the customs in England, pursuant to the statute made in the twenty-fifth year of King Charles the second; and have, moreover, salaries of twenty per cent. on all the duties they collect, by virtue of the same statute, and also large fees for every entry and clearing.

The naval officers' other profits, are ten per cent. for all moneys by them received; both on the two shillings per hogshead, port duties, skins and furs, and also on the new imposts on servants and liquors when such duty is in being.

The clerks of courts, sheriffs and surveyors, are limited according to the several counties. The clerks of courts receive their commissions from the secretary of State; the sheriffs theirs from the governor, and the surveyors of land theirs from the governors of the college, in whom the office of surveyor general is vested by their charter.

The clerks' profits proceed from stated fees, upon all law suits and business in their respective courts, except the clerk of the general court, who is paid a salary by the secretary, who takes the fees of that court to himself.

The sheriff's profit is likewise by fees on all business done in the county courts, to which he is the ministerial officer, and not judge of the county court, as Mr. Oldmixon styles him, page 298; but the best of his income is by a salary of all public tobacco, which is constantly put into the sheriff's hands, to be collected and put into hundreds, convenient for the market. He has likewise several other advantages, which make his place very profitable.

The profits of the surveyors of land are according to the trouble they take. Their fees being proportioned to the surveys they make.

The coroner is a commissioner officer also, but his profits are not worth naming, though he has large fees allowed him when he does any business.

There are two or more of them appointed in each parish, as occasion requires; but in the vacancy or absence of any, upon an exigency, the next justice of peace does the business and receives the fee, which is one hundred and thirty-three pounds of tobacco for an inquest on a dead corpse, any other business seldom falling in his way.

§ 11. There are other ministerial officers that have no commission; which are, surveyors of the highways, constables and headboroughs. These are appointed, relieved and altered annually by the county courts, as they see occasion; and such bounds are given them as those courts think most convenient.

CHAPTER IV.

OF THE STANDING REVENUES, OR PUBLIC FUNDS IN VIRGINIA.

§ 12. There are five sorts of standing public revenues in that country, viz: 1. A rent reserved by the crown upon all the lands granted by patent. 2. A revenue granted to his majesty by act of assembly, for the support and maintenance of the government. 3. A revenue raised by the assembly, and kept in their own disposal, for extraordinary occasions. 4. A revenue raised by the assembly, and granted to the college. And 5. A revenue raised by act of parliament in England upon the trade there.

§ 13. 1. The rent reserved upon their lands, is called his majesty's revenue of quit rents, and is two shillings for every hundred acres of land, patented by any person in that country, and two pence per acre for all lands found to escheat; this is paid into the treasury there by all, except the inhabitants of the Northern Neck, who pay nothing to the king; but the whole quit rent of that neck is paid to certain proprietors of the Lord Colepepper's family, who have the possession thereof to themselves, upon the pretensions before rehearsed in the first part of this book.

This revenue has been upwards of fifteen hundred pounds a year, since tobacco has held a good price. It is lodged in the receiver general's hands, to be disposed of by his majesty. This money is left in bank there, to be made use of upon any sudden and dangerous emergency, except when it is called home to England; and for want of such a bank, Sir William Berkeley was not able to make any stand against Bacon, whom otherwise he might easily have subdued, and consequently have prevented above one hundred thousand pounds expense to the crown of England, to pacify those troubles.

§ 14. 2. The revenue granted to his majesty by act of assembly, for the support and maintenance of the government, arises first out of a duty of two shillings per hogshead, which is paid for every hogshead of tobacco

exported out of that colony. 2. By a rate of fifteen pence per ton for every ship, upon each return of her voyage, whether she be empty or full. 3. By a duty of sixpence per poll for every passenger, bound or free, going into that country to remain. 4. By the fines and forfeitures imposed by several acts of assembly. There is also an addition, by wafts and strays having no owner, composition of two pence per acre for escheat land, chattels escheat, and the sale of land instead of rights, at five shillings per right; all which are paid into the hands of the receiver general, and disposed of by the governor and council, (with liberty for the assembly to inspect the accounts when they meet,) for defraying the public charges of the government.

The revenue, *communibus annis*, amounts to more than three thousand pounds a year.

§ 15. 3. The revenue arising by act of assembly, and reserved to their own disposal, is of two sorts, viz: a duty upon liquors imported from the neighboring plantations, and a duty upon all slaves and servants imported, except English.

The duty on liquors used to be 4d. per gallon on all wines, rum, and brandy; and 1d. per gallon on beer, cider and other liquors, discounting twenty per cent. upon the invoice, except oats.

The duty on servants and slaves used to be twenty shillings for each servant, not being a native of England or Wales, and five pounds for each slave or negro.

The former of these duties amounts *communibus annis*, to six hundred pounds a year, and the latter to more or less, as the negro ships happen to arrive.

The charge of building and adorning the governor's house and capitol, was defrayed by these duties, and so was the erecting of the public prison.

These funds are gathered into the hands of the treasurer of the country, and are disposed of only by order of assembly.

§ 16. 4. The revenue raised by the assembly, and granted to the college, is a duty on all skins and furs exported. This fund raises about an hundred pounds a year, and is paid by the collectors, to the college treasurer.

§ 17. 5 and last. The fund raised by act of parliament in England upon the trade there, is a duty of one penny per pound, upon all tobacco exported to the plantations, and not carried directly to England. This duty was laid by Stat. 25, Car. 2, cap. 7, and granted to the king and his successors; and by their gracious majesties King William and Queen Mary, it was given to the college. This duty does not raise, both in Virginia and Maryland, above two hundred pounds a year, and is accounted for to the college treasurer.

CHAPTER V.

OF THE LEVIES FOR PAYMENT OF THE PUBLIC COUNTY AND PARISH DEBTS.

§ 18. They have but two ways of raising money publicly in that country, viz: by duties upon trade, and a poll tax, which they call levies. Of the duties upon trade, I have spoken sufficiently in the preceding chapter. I come, therefore, now to speak of the levies, which are a certain rate or proportion of tobacco charged upon the head of every tithable person in the country, upon all alike, without distinction.

They call all negroes above sixteen years of age tithable, be they male or female, and all white men of the same age; but children and white women are exempted from all manner of duties.

That a true account of all these tithable persons may be had, they are annually listed in crop time, by the justices of each county respectively; and the masters of families are obliged, under great penalties, then to deliver to those justices a true list of all the tithable persons in their families.

Their levies are threefold, viz: public, county and parish levies.

§ 19. Public levies are such as are proportioned and laid equally, by the general assembly, upon every tithable person throughout the whole colony. These serve to defray several expenses appointed by law, to be so defrayed, such as the executing of a criminal slave, who must be made good to his owner. The taking up of runaways, and the paying of the militia, when they happen to be employed upon the service. Out of these they likewise pay the several officers of the assembly, and some other public officers. They further defray the charge of the writs, for the meeting of the house of burgesses, public expresses, and such like.

The authority for levying this rate is given by a short act of assembly, constantly prepared for that purpose.

§ 20. The county levies are such as are peculiar to each county, and laid by the justices upon all tithable persons, for defraying the charge of their counties, such as the building and repairing their court houses, prisons, pillories, stocks, &c., and the payment of all services, rendered to the county in general.

§ 21. The parish levies are laid by the vestry, for the payment of all charges incident to the several parishes, such as the building, furnishing, and adorning their churches and chapels, buying glebes and building upon them, paying their ministers, readers, clerks, and sextons.

CHAPTER VI.

OF THE COURTS OF LAW IN VIRGINIA.

§ 22. I have already, in the chronology of the government, hinted what the constitution of their courts was in old time, and that appeals lay from the general court to the assembly; that the general court, from the beginning, took cognizance of all causes whatsoever, both ecclesiastical and civil, determining everything by the standard of equity and good conscience. They used to come to the merits of the cause as soon as they could without injustice, never admitting such impertinences of form and nicety as were not absolutely necessary; and when the substance of the case was sufficiently debated, they used directly to bring the suit to a decision. By this method, all fair actions were prosecuted with little attendance, all just debts were recovered with the least expense of money and time, and all the tricking and foppery of the law happily avoided.

The Lord Colepepper, who was a man of admirable sense, and well skilled in the laws of England, admired the construction of their courts, and kept them close to this plain method, retrenching some innovations that were then creeping into them, under the notion of form, although, at the same time, he was the occasion of taking away the liberty of appeals to the assembly.

But the Lord Howard, who succeeded him, endeavored to introduce as many of the English forms as he could, being directly opposite to the Lord Colepepper in that point.

And lastly, Governor Nicholson, a man the least acquainted with law of any of them, endeavored to introduce all the quirks of the English proceedings, by the help of some wretched pettifoggers, who had the direction both of his conscience and his understanding.

§ 23. They have two sorts of courts, that differ only in jurisdiction, namely: the general court, and the county courts.

§ 24. The general court is a court held by the governor and council, or any five of them, who by law are the judges of it, and take cognizance of all causes, criminal, penal, ecclesiastical and civil. From this court there is no appeal, except the thing in demand exceed the value of three hundred pounds sterling, in which case an appeal is allowed to the king and council, in England, and there determined by a committee of the privy council, called the lords of appeals; the like custom being used for all the other plantations. In criminal cases, I don't know that there's any appeal from the sentence of this court; but the governor is authorized, by his commission, to pardon persons found guilty of any crime whatsoever, except of treason and wilful murder; and even in those cases, he may reprieve the criminal, which reprieve stands good, and may be continued from time to time until his majesty's pleasure be signified therein.

§ 25. This court is held twice a year, beginning on the 15th of April, and on the 15th of October. Each time it continues eighteen days, excluding Sundays, if the business hold them so long, and these were formerly the only times of goal delivery; but now, by the governor's commission, he appoints two other courts of goal delivery, and the king allows one hundred pounds for each court to defray the charge thereof.

§ 26. The officers attending this general court, are the sheriff of the county wherein it sits, and his under officers. Their business is to call the litigants, and the evidences into court, and to empanel juries. But each sheriff, in his respective county, makes arrests, and returns the writs to this court.

§ 27. The way of empanneling juries to serve in this court, is thus: the sheriff and his deputies every morning that the court sits, goes about the town, summoning the best of the gentlemen, who resort thither from all parts of the country. The condition of this summons is, that they attend the court that day to serve upon the jury, (it not being known whether there will be occasion or no.) And if any cause happen to require a jury, they are then sworn to try the issue, otherwise, they are in the evening, of course, dismissed from all further attendance, though they be not formally discharged by the court. By this means are procured the best juries this

country can afford; for if they should be summoned by writ of venire, from any particular county, that county cannot afford so many qualified persons as are here to be found, because of the great resort of gentlemen from all parts of the colony to these courts, as well to see fashions, as to dispatch their particular business. Nor is vicinage necessary there, to distinguish the several customs of particular places, the whole country being as one neighborhood, and having the same tenures of land, usages and customs.

The grand juries are empaneled much after the same manner; but because they require a greater number of men, and the court is always desirous to have some from all parts of the country, they give their sheriff order a day or two before, to provide this pannel.

§ 28. In criminal matters this method is a little altered; because a knowledge of the life, and conversation of the party, may give light to the jury in their verdict. For this reason a writ of venire issues in such cases, to summon six of the nearest neighbors to the criminal, who must be of the same county wherein he lived; which writ of venire is returned by the sheriff of the respective county, to the secretary's office, and the names are taken from thence, by the sheriff attending the general court, and put in the front of the pannel, which is filled up with the names of the other gentlemen summoned in the town, to be of the petty jury for the trial of that criminal. If the prisoner have a mind to challenge the jurors, the same liberty is allowed him there as in England; and if the pannel fall short, by reason of such challenge, it must then be made up of the bystanders.

§ 29. All actions in that country are generally brought to a determination the third court, unless some special, extraordinary reason be shown why the party can't make his defence so soon. The course is thus: upon the defendant's nonappearance, order goes against the bail, (for a *capias* is generally their first process,) on condition, that unless the defendant appear, and plead at the next court, judgment shall then be awarded for the plaintiff. When the defendant comes to the next court he is held to plead. Thus, by common course, a year and a half ends a cause in the general court, and three or four months in the county court. If any one appeal from the judgment of the county court, the trial always comes on the succeeding general court; so that all business begun in the county court, tho' it runs to

the utmost of the law, (without some extraordinary event,) ought to be finished in nine months.

§ 30. Every one that pleases, may plead his own cause, or else his friends for him, there being no restraint in that case, nor any licensed practitioners in the law. If any one be dissatisfied with the judgment of the county court, let it be for any sum, little or great, he may have an appeal to the next general court, giving security to answer, and abide the judgment of that court; but an action cannot originally be brought in the general court, under the value of ten pounds sterling, or of two thousand pounds of tobacco, except in some particular cases of penal laws.

§ 31. The county courts are constituted by law, and the justices thereof appointed by commission from the governor with advice of council. They consist of eight or more gentlemen of the county, called justices of the peace, the sheriff being only a ministerial officer to execute its process. This court is held monthly, and has jurisdiction of all causes within the county, cognizable by common law or chancery, and not touching life or member, and never was limited to any value in its jurisdiction, as Mr. Oldmixon would have it, pag. 298. But in the case of hog stealing, they may sentence the criminal to lose his ears; which is allowed by a particular act for that purpose, as the punishment of the second offence, the third is felony. In all things they proceed in the same manner as the general court.

§ 32. This monthly court hath the care of all orphans, and of their estates, and for the binding out and well ordering of such fatherless children, who are either without an estate, or have very little.

In September annually they are to enquire into the keeping and management of the orphan, as to his sustenance and education, to examine into his estate, and the securities thereof, viz: whether the sureties continue to be responsible, and his lands and plantations be kept improving, and in repair, &c. If the orphan be poor, and bound an apprentice to any trade, then their business is to enquire, how he is kept to his schooling and trade; and if the court find he is either misused or untaught, they take him from that master, and put him to another of the same trade, or of any other trade, which they judge best for the child. They cannot bind an orphan boy but to a trade, or the sea.

Another charitable method in favor of the poor orphans there, is this: that besides their trade and schooling, the masters are generally obliged to give them at their freedom, cattle, tools, or other things, to the value of five, six, or ten pounds, according to the age of the child when bound, over and above the usual quantity of corn and clothes. The boys are bound till one and twenty years of age, and the girls till eighteen. At which time, they who have taken any care to improve themselves, generally get well married, and live in plenty, though they had not a farthing of paternal estate.

CHAPTER VII.

OF THE CHURCH AND CHURCH AFFAIRS.

§ 33. Their parishes are accounted large or small, in proportion to the number of tithables contained in them, and not according to the extent of land.

§ 34. They have in each parish a convenient church, built either of timber, brick or stone, and decently adorned with everything necessary for the celebration of divine service.

If a parish be of greater extent than ordinary, it hath generally a chapel of ease; and some of the parishes have two such chapels, besides the church, for the greater convenience of the parishioners. In these chapels the minister preaches alternately, always leaving a reader to read prayers when he can't attend himself.

§ 35. The people are generally of the church of England, which is the religion established by law in that country, from which there are very few dissenters. Yet liberty of conscience is given to all other congregations pretending to Christianity, on condition they submit to all parish duties. They have but one set conventicle amongst them, viz: a meeting of Quakers in Nansemond county, others that have lately, been being now extinct; and 'tis observed by letting them alone they decrease daily.

§ 36. The maintenance for a minister there, is appointed by law at sixteen thousand pounds of tobacco per annum, (be the parish great or small;) as also a dwelling house and glebe, together with certain perquisites for marriages and funeral sermons. That which makes the difference in the benefices of the clergy is the value of the tobacco, according to the distinct species of it, or according to the place of its growth. Besides, in large and

rich parishes, more marriages will probably happen, and more funeral sermons.

The fee by law for a funeral sermon is forty shillings, or four hundred pounds of tobacco; for a marriage by license twenty shillings, or two hundred pounds of tobacco, and where the banns are proclaimed, only five shillings, or fifty pounds of tobacco.

When these salaries were granted, the assembly valued tobacco at ten shillings per hundred; at which rate, the sixteen thousand pounds comes to fourscore pounds sterling; but in all parishes where the sweet-scented grows, since the law for appointing agents to view the tobacco was made, it has generally been sold for double that value, and never under.

In some parishes, likewise, there are by donation stocks of cattle and negroes on the glebes, which are also allowed to the minister for his use and encouragement, he only being accountable for the surrender of the same value when he leaves the parish.

§ 37. For the well governing of these, and all other parochial affairs, a vestry is appointed in each parish. These vestries consist of twelve gentlemen of the parish, and were at first chosen by the vote of the parishioners; but upon the death of any, have been continued by the survivors electing another in his place. These, in the name of the parish, make presentation of ministers, and have the sole power of all parish assessments. They are qualified for this employment by subscribing, to be conformable to the doctrine and discipline of the church of England. If there be a minister incumbent, he always presides in the vestry.

For the ease of the vestry in general, and for discharging the business of the parish, they choose two from among themselves to be church-wardens, which must be annually changed, that the burthen may lie equally upon all. The business of these church-wardens, is to see the orders and agreements of the vestry performed; to collect all the parish tobacco, and distribute it to the several claimers; to make up the accounts of the parish, and to present all profaneness and immorality to the county courts, and there prosecute it.

By these the tobacco of the minister is collected, and brought to him in hogsheads convenient for shipping, so that he is at no farther trouble but to

receive it in that condition. This was ordained by the law of the country, for the ease of the ministers, that so they being delivered from the trouble of gathering in their dues, may have the more time to apply themselves to the exercises of their holy function, and live in a decency suitable to their order. It may here be observed, that the labor of a dozen negroes does but answer this salary, and seldom yields a greater crop of sweet scented tobacco than is allowed to each of their ministers.

§ 38. Probates of wills and administrations are, according to their law, petitioned for in the county courts; and by them security taken and certified to the governor, which, if he approves the commission, is then signed by them without fee. Marriage licenses are issued by the clerks of those courts, and signed by the justice in commission, or by any other person deputed by the governor, for which a fee of twenty shillings must be paid to the governor. The power of induction, upon presentation of ministers, is also in the governor.

In the year 1642, when the sectaries began to spread themselves so much in England, the assembly made a law against them, to prevent their preaching and propagating their doctrines in that colony. They admitted none to preach in their churches but ministers ordained by some reverend bishop of the church of England, and the governor, for the time being, as the most suitable public person among them, was left sole judge of the certificates of such ordination, and so he has continued ever since.

§ 39. The only thing I have heard the clergy complain of there, is what they call precariousness in their livings; that is, that they have not inductions generally, and therefore are not entitled to a freehold; but are liable, without trial or crime alledged, to be put out by the vestry. And though some have prevailed with their vestries, to present them for induction, yet the greater number of the ministers have no induction, but are entertained by agreement with their vestries, yet are they very rarely turned out without some great provocation, and then, if they have not been abominably scandalous, they immediately get other parishes, for there is no benefice whatsoever in that country that remains without a minister if they can get one, and no qualified minister ever yet returned from that country for want of preferment. They have now several vacant parishes.

CHAPTER VIII.

CONCERNING THE COLLEGE.

§ 40. The college, as has been hinted, was founded by their late majesties, King William and Queen Mary, of happy memory, in the year 1692. Towards the founding of which, they gave one thousand nine hundred and eighty-five pounds, fourteen shillings and ten pence. They gave moreover, towards the endowment of it, twenty thousand acres of land; the revenue of one pence per pound on tobacco exported to the plantations from Virginia and Maryland; and the surveyor general's place, then avoid; and appointed them a burgess to represent them in the assemblies. The land hitherto has yielded little or no profit; the duty of one pence per pound, brings in about two hundred pounds a year; and the surveyor general's place, about fifty pounds a year. To which the assembly had added a duty on skins and furs exported, worth about an hundred pounds a year.

§ 41. By the same charter, likewise, their majesties granted a power to certain gentlemen, and the survivors of them, as trustees, to build and establish the college, by the name of William and Mary college; to consist of a president and six masters, or professors, and an hundred scholars, more or less, graduates or non-graduates; enabling the said trustees, as a body corporate, to enjoy annuities, spiritual and temporal, of the value of two thousand pounds sterling per annum, with proviso to convert it to the building and adorning the college; and then to make over the remainder to the president and masters, and their successors, who are likewise to become a corporation, and be enabled to purchase and hold to the value of two thousand pounds a year, but no more.

§ 42. The persons named in the charter for trustees, are made governors and visitors of the college, and to have a perpetual succession, by the name of governors and visitors, with power to fill up their own vacancies, happening by the death or removal of any of them. Their complete number may be

eighteen, but not to exceed twenty, of which one is to be rector, and annually chosen by themselves, on the first Monday after the 25th of March.

These have the nomination of the president and masters of the college, and all other officers belonging to it; and the power of making statutes and ordinances, for the better rule and government thereof.

§ 43. The building is to consist of a quadrangle, two sides of which are not yet carried up. In this part are contained all conveniencies of cooking, brewing, baking, &c., and convenient rooms for the reception of the president and masters, with many more scholars than are as yet come to it. In this part are also the hall and school room.

§ 44. The college was intended to be an intire square when finished. Two sides of this were finished in the latter end of Governor Nicholson's time, and the masters and scholars, with the necessary housekeepers and servants, were settled in it, and so continued till the first year of Governor Nott's time, in which it happened to be burnt (no body knows how) down to the ground, and very little saved that was in it, the fire breaking out about ten o'clock at night in a public time.

The governor, and all the gentlemen that were in town, came up to the lamentable spectacle, many getting out of their beds. But the fire had got such power before it was discovered, and was so fierce, that there was no hope of putting a stop to it, and therefore no attempts made to that end.

In this condition it lay till the arrival of Colonel Spotswood, their present governor, in whose time it was raised again the same bigness as before, and settled.

There had been a donation of large sums of money, by the Hon. Robert Boyle, esq., to this college, for the education of Indian children therein. In order to make use of this, they had formerly bought half a dozen captive Indian children slaves, and put them to the college. This method did not satisfy this governor, as not answering the intent of the donor. So to work he goes, among the tributary and other neighboring Indians, and in a short time brought them to send their children to be educated, and brought new nations, some of which lived four hundred miles off, taking their children

for hostages and education equally, at the same time setting up a school in the frontiers convenient to the Indians, that they might often see their children under the first managements, where they learned to read, paying fifty pounds per annum out of his own pocket to the schoolmaster there; after which many were brought to the college, where they were taught till they grew big enough for their hunting and other exercises, at which time they were returned home, and smaller taken in their stead.

CHAPTER IX.

OF THE MILITIA IN VIRGINIA.

§ 45. The militia are the only standing forces in Virginia. They are happy in the enjoyment of an everlasting peace, which their poverty and want of towns secure to them. They have the Indians round about in subjection, and have no sort of apprehension from them: and for a foreign enemy, it can never be worth their while to carry troops sufficient to conquer the country; and the scattering method of their settlement will not answer the charge of an expedition to plunder them: so that they feel none but the distant effect of war, which, however, keeps 'em so poor, that they can boast of nothing but the security of their persons and habitations.

§ 46. The governor is lieutenant-general by his commission, and in each county does appoint the colonel, lieutenant-colonel and major, who have under them captains, and other commissioned and subaltern officers.

Every freeman, (by which denomination they call all, but indented, or bought servants,) from sixteen to sixty years of age, is listed in the militia; which by a law is to be mustered in a general muster for each county once a year; and in single troops and companies, four times more at the least: most people there are skilful in the use of fire-arms, being all their lives accustomed to shoot in the woods. This, together with a little exercising, would soon make the militia useful.

§ 47. The exact number of the militia is not now known, there not being any account of the number taken of late years, but I guess them at this time to be about eighteen thousand effective men in all.

And whereas by the practice of former times upon the militia law, several people were obliged to travel sometimes thirty or forty miles to a private muster of a troop or company, which was very burdensome to some, more

than others, to answer only the same duty; this governor, just and regular in all his conduct, and experienced to put his desires in execution, so contrived, by dividing the counties into several cantons or military districts, forming the troops and companies to each canton, and appointing the musterfields in the centre of each, that now throughout the whole country, none are obliged to travel above ten miles to a private muster, and yet the law put in due execution.

§ 48. Instead of the soldiers they formerly kept constantly in forts, and of the others after them by the name of rangers, to scour the frontiers clear of the Indian enemy, they have by law appointed the militia to march out upon such occasions, under the command of the chief officer of the county, where any incursion shall be notified. And if they upon such expedition remain in arms three days and upwards, they are then entitled to the pay for the whole time; but if it prove a false alarm, and they have no occasion to continue out so long, they can demand nothing.

§ 49. The number of soldiers in each troop of light horse, are from thirty to sixty, as the convenience of the canton will admit; and in a company of foot about fifty or sixty. A troop or company may be got together at a day's warning.

CHAPTER X.

OF THE SERVANTS AND SLAVES IN VIRGINIA.

§ 50. Their servants they distinguish by the names of slaves for life, and servants for a time.

Slaves are the negroes and their posterity, following the condition of the mother, according to the maxim, *partus frequitur ventrem*. They are called slaves, in respect of the time of their servitude, because it is for life.

Servants, are those which serve only for a few years, according to the time of their indenture, or the custom of the country. The custom of the country takes place upon such as have no indentures. The law in this case is, that if such servants be under nineteen years of age, they must be brought into court to have their age adjudged; and from the age they are judged to be of, they must serve until they reach four and twenty; but if they be adjudged upwards of nineteen, they are then only to be servants for the term of five years.

§ 51. The male servants, and slaves of both sexes, are employed together in tilling and manuring the ground, in sowing and planting tobacco, corn, &c. Some distinction indeed is made between them in their clothes, and food; but the work of both is no other than what the overseers, the freemen, and the planters themselves do.

Sufficient distinction is also made between the female servants, and slaves; for a white woman is rarely or never put to work in the ground, if she be good for anything else; and to discourage all planters from using any women so, their law makes female servants working in the ground tithables, while it suffers all other white women to be absolutely exempted; whereas, on the other hand, it is a common thing to work a woman slave out of

doors, nor does the law make any distinction in her taxes, whether her work be abroad or at home.

§ 52. Because I have heard how strangely cruel and severe the service of this country is represented in some parts of England, I can't forbear affirming, that the work of their servants and slaves is no other than what every common freeman does; neither is any servant required to do more in a day than his overseer; and I can assure you, with great truth, that generally their slaves are not worked near so hard, nor so many hours in a day, as the husbandmen, and day laborers in England. An overseer is a man, that having served his time, has acquired the skill and character of an experienced planter, and is therefore entrusted with the direction of the servants and slaves.

But to complete this account of servants, I shall give you a short relation of the care their laws take, that they be used as tenderly as possible:

BY THE LAWS OF THEIR COUNTRY,

1. All servants whatsoever have their complaints heard without fee or reward; but if the master be found faulty, the charge of the complaint is cast upon him, otherwise the business is done *ex officio*.
2. Any justice of the peace may receive the complaint of a servant, and order everything relating thereto, till the next county court, where it will be finally determined.
3. All masters are under the correction and censure of the county courts, to provide for their servants good and wholesome diet, clothing and lodging.
4. They are always to appear upon the first notice given of the complaint of their servants, otherwise to forfeit the service of them until they do appear.
5. All servants' complaints are to be received at any time in court, without process, and shall not be delayed for want of form; but the merits of the complaint must be immediately enquired into by the justices; and if the master cause any delay therein, the court may remove such servants, if they see cause, until the master will come to trial.

6. If a master shall at any time disobey an order of court, made upon any complaint of a servant, the court is empowered to remove such servant forthwith to another master who will be kinder, giving to the former master the produce only, (after fees deducted,) of what such servants shall be sold for by public outcry.

7. If a master should be so cruel, as to use his servant ill, that is fallen sick or lame in his service, and thereby rendered unfit for labor, he must be removed by the church-wardens out of the way of such cruelty, and boarded in some good planter's house, till the time of his freedom, the charge of which must be laid before the next county court, which has power to levy the same, from time to time, upon the goods and chattels of the master, after which, the charge of such boarding is to come upon the parish in general.

8. All hired servants are entitled to these privileges.

9. No master of a servant can make a new bargain for service, or other matter with his servant, without the privity and consent of the county court, to prevent the masters overreaching, or scaring such servant into an unreasonable compliance.

10. The property of all money and goods sent over thither to servants, or carried in with them, is reserved to themselves, and remains entirely at their disposal.

11. Each servant at his freedom receives of his master ten bushels of corn, (which is sufficient for almost a year,) two new suits of clothes, both linen and woolen, and a gun, twenty shillings value, and then becomes as free in all respects, and as much entitled to the liberties and privileges of the country, as any of the inhabitants or natives are, if such servants were not aliens.

12. Each servant has then also a right to take up fifty acres of land, where he can find any unpatented.

This is what the laws prescribe in favor of servants, by which you may find, that the cruelties and severities imputed to that country, are an unjust reflection. For no people more abhor the thoughts of such usage, than the Virginians, nor take more precaution to prevent it now, whatever it was in former days.

CHAPTER XI.

OF THE OTHER PUBLIC CHARITABLE WORKS, AND PARTICULARLY THEIR PROVISION FOR THE POOR.

§ 53. They live in so happy a climate, and have so fertile a soil, that nobody is poor enough to beg, or want food, though they have abundance of people that are lazy enough to deserve it. I remember the time when five pounds was left by a charitable testator to the poor of the parish he lived in, and it lay nine years before the executors could find one poor enough to accept of this legacy, but at last it was given to an old woman. So that this may in truth be termed the best poor man's country in the world. But as they have nobody that is poor to beggary, so they have few that are rich; their estates being regulated by the merchants in England, who it seems know best what is profit enough for them in the sale of their tobacco and other trade.

§ 54. When it happens, that by accident or sickness, any person is disabled from working, and so is forced to depend upon the alms of the parish, he is then very well provided for, not at the common rate of some countries, that give but just sufficient to preserve the poor from perishing; but the unhappy creature is received into some charitable planter's house, where he is at the public charge boarded plentifully.

Many when they are crippled, or by long sickness become poor, will sometimes ask to be free from levies and taxes; but very few others do ever ask for the parish alms, or, indeed, so much as stand in need of them.

§ 55. There are large tracts of land, houses, and other things granted to free schools, for the education of children in many parts of the country; and some of these are so large, that of themselves they are a handsome maintenance to a master; but the additional allowance which gentlemen give with their sons, render them a comfortable subsistence. These schools have been founded by the legacies of well inclined gentlemen, and the

management of them hath commonly been left to the direction of the county court, or to the vestry of the respective parishes. In all other places where such endowments have not been already made, the people join, and build schools for their children, where they may learn upon very easy terms.

CHAPTER XII.

OF THE TENURE BY WHICH THEY HOLD THEIR LANDS, AND OF THEIR GRANTS.

§ 56. The tenure of their land there is free and common soccage, according to custom of east Greenwich; and is created by letters patents, issuing under the seal of the colony, and under the test of the governor in chief for the time being. I don't find that the name of any other officer is necessary to make the patent valid.

§ 57. There are three ways of obtaining from his majesty a title to land there, viz: 1. By taking a patent upon a survey of new land. 2. By petition for land lapsed. 3. By petition for land escheated. The conditions of the two former are the entry of rights; the condition of the third a composition of two pounds of tobacco for every acre.

§ 58. A right is a title any one hath by the royal charter to fifty acres of land, in consideration of his personal transportation into that country, to settle and remain there; by this rule also, a man that removes his family is entitled to the same number of acres for his wife, and each of his children; a right may be also obtained by paying five shillings, according to a late royal instruction to the government.

§ 59. A patent upon land for survey is acquired thus: 1. The man proves his rights; that is, he makes oath in court of the importation of so many persons, with a list of their names. This list is then certified by the clerk of that court to the clerk of the secretary's office, who examines into the validity of them, and files them in that office, attesting them to be regular, or he purchases them at five shillings each as aforesaid. When the rights are thus obtained, they are produced to the surveyor of the county, and the land is showed to him; who, thereupon, is bound to make the survey if the land had not been patented before. These rights to land are as commonly sold by one man to

another, as the land itself; so that any one, not having rights by his own importation, may have them by purchase.

It is the business of the surveyor also to take care that the bounds of his survey be plainly marked, either by natural boundaries, or else by chopping notches in the trees, that happen in the lines of his courses; but this is done at the charge of the man that employs him.

This survey being made, a copy thereof is carried, with a certificate of rights to the secretary's office, and there (if there be no objection) a patent of course is made out upon it, which is presented to the governor and council for them to pass; the patentee having no more to do but to send for it when it is perfected, and to pay the fee at the first crop to the sheriff of the county, by whom annually the fees are collected.

This patent gives an estate in fee simple, upon condition of paying a quit rent of twelve pence for every fifty acres, and of planting or seating thereon, within three years, according to their law; that is, to clear, plant, and tend three acres of ground for every fifty, and to build an house, and keep a stock of cattle, sheep, or goats, in proportion to the meaner part of the land in the patent.

§ 60. Lapsed land, is when any one having obtained a patent as before, doth not set or plant thereon within three years, as the condition of the patent requires; but leaves it still all or part uninhabited and uncultivated. In such case it is said to be lapsed, and any man is at liberty to obtain a new patent in his own name of so much as is lapsed, the method of acquiring which patent is thus.

The party must apply himself by petition to the general court, another to the governor, setting forth all the circumstances of the lapse. If this petition be allowed, the court makes an order, to certify the same to the governor, in whose breast it is then to make a new grant thereof to such person if he thinks they deserve it, upon the same condition, of setting or planting within three years, as was in the former patent. Thus land may be lapsed or lost several times, by the negligence of the patentees; who, by such omission, lose not only the land, but all their rights and charges into the bargain.

But if within the three years after the date of the patent, or before any new petition is preferred for it, the patentee shall set or plant the said land, as the law directs; it cannot afterwards be forfeited, but by attainder, or escheat, in which case it returns to his majesty again.

Also when it happens, that the patentee dies within the three years, leaving the heir under age, there is farther time given the heir after he comes of age to set and save such land.

§ 61. When land is suggested to escheat, the governor issues his warrant to the escheator, to make inquest thereof: and when upon such inquest, office is found for the king, it must be recorded in the secretary's office, and there kept nine months, to see if any person will lay claim to it, or can traverse the escheat. If any such appear, upon his petition to the general court he is heard, before any grant can be made. If no person oppose the inquest, the land is given to the man that shews the best equitable right thereto; and if there be none such, it is then granted to any one, that the governor and council shall think fit, the grantee always paying two pounds of tobacco per acre into the treasury of the country, as a fine of composition with his majesty for his escheat: and thereupon a patent issues reciting premises.

CHAPTER XIII.

OF THE LIBERTIES AND NATURALIZATION OF ALIENS IN VIRGINIA.

§ 62. Christians of all nations have equal freedom there, and upon their arrival become *ipso facto* entitled to all the liberties and privileges of the country, provided they take the oaths of obedience to the crown and government, and obtain the governor's testimonial thereof.

The method of obtaining naturalization is thus: the party desiring it goes before the governor, and tenders his oath of allegiance, which the governor thereupon administers, and immediately makes certificate of it under the seal of the colony. By this means, the person alien is completely naturalized to all intents and purposes.

§ 63. The French refugees sent in thither by the charitable exhibition of his late majesty king William, are naturalized, by a particular law for that purpose.

In the year 1699, there went over about three hundred of these, and the year following about two hundred more, and so on, till there arrived in all between seven and eight hundred men, women and children, who had fled from France on account of their religion.

Those who went over the first year, were advised to seat on a piece of very rich land, about twenty miles above the falls of James river, on the south side of the river; which land was formerly the seat of a great and warlike nation of Indians, called the Manicans, none of which are now left in those parts; but the land still retains their name, and is called the Manican town.

The refugees that arrived the second year, went also first to the Manican town, but afterwards upon some disagreement, several dispersed themselves up and down the country; and those that have arrived since have followed their example, except some few, that settled likewise at the Manican town.

The assembly was very bountiful to those who remained at this town, bestowing on them large donations, money and provisions for their support; they likewise freed them from every public tax, for several years to come, and addressed the governor to grant them a brief, to entitle them to the charity of all well disposed persons throughout the country; which together with the king's benevolence, supported them very comfortably, till they could sufficiently supply themselves with necessaries, which now they do indifferently well, and have stocks of cattle and hogs.

The year 1702, they began an essay of wine, which they made of the wild grapes gathered in the woods; the effect of which was a strong bodied claret, of good flavor. I heard a gentleman, who tasted it, give it great commendation. Now if such may be made of the wild vine in the woods, without pruning, weeding, or removing it out of the shade, what may not be produced from a vineyard skilfully cultivated? But I don't hear that they have done any thing since towards it, being still very poor, needy, and negligent.

CHAPTER XIV.

OF THE CURRENCY AND VALUATION OF COINS IN VIRGINIA.

§ 64. The coin which chiefly they have among them, is either gold, of the stamp of Arabia, or silver and gold, of the stamp of France, Portugal or the Spanish America: Spanish, French and Portuguese coined silver is settled by law at three pence three farthings the pennyweight. Gold of the same coin, and of Arabia, at five shillings the pennyweight. English guineas at twenty-six shillings each, and the silver two pence in every shilling advance, English old coin goes by weight as the other gold and silver.

OF THE HUSBANDRY AND IMPROVEMENTS OF VIRGINIA.

PART II.



CHAPTER XV.

OF THE PEOPLE, INHABITANTS OF VIRGINIA.

§ 65. I can easily imagine with Sir Josiah Child, that this, as well as all the rest of the plantations, was for the most part, at first, peopled by persons of low circumstances, and by such as were willing to seek their fortunes in a foreign country. Nor was it hardly possible it should be otherwise; for 'tis not likely that any man of a plentiful estate should voluntarily abandon a happy certainty, to roam after imaginary advantages in a new world. Besides which uncertainty, he must have proposed to himself to encounter the infinite difficulties and dangers that attend a new settlement. These discouragements were sufficient to terrify any man, that could live easily in England, from going to provoke his fortune in a strange land.

§ 66. Those that went over to that country first, were chiefly single men who had not the incumbrance of wives and children in England; and if they had, they did not expose them to the fatigue and hazard of so long a voyage, until they saw how it should fare with themselves. From hence it came to pass, that when they were settled there in a comfortable way of subsisting a family, they grew sensible of the misfortune of wanting wives, and such as had left wives in England sent for them, but the single men were put to their shifts. They excepted against the Indian women on account of their being pagans, as well as their complexions, and for fear they should conspire with those of their own nation to destroy their husbands. Under this difficulty they had no hopes, but that the plenty in which they lived might invite modest women, of small fortunes, to go over thither from England. However, they would not receive any, but such as could carry sufficient certificate of their modesty and good behavior. Those, if they were but moderately qualified in all other respects, might depend upon marrying very well in those days, without any fortune. Nay, the first planters were so far from expecting money with a woman, that 'twas a common thing for them

to buy a deserving wife, that carried good testimonials of her character, at the price of one hundred pounds, and make themselves believe they had a bargain.

§ 67. But this way of peopling the colony was only at first. For after the advantages of the climate, and the fruitfulness of the soil were well known, and all the dangers incident to infant settlements were over, people of better condition retired thither with their families, either to increase the estates they had before, or else to avoid being persecuted for their principles of religion or government.

Thus, in the time of the rebellion in England, several good cavalier families went thither with their effects, to escape the tyranny of the usurper, or acknowledgement of his title. And so again, upon the restoration, many people of the opposite party took refuge there, to shelter themselves from the king's resentment. But Virginia had not many of these last, because that country was famous for holding out the longest for the royal family, of any of the English dominions. For which reason the Roundheads went, for the most part, to New England, as did most of those that in the reign of King Charles II were molested on account of their religion, though some of these fell likewise to the share of Virginia. As for malefactors condemned to transportation, tho' the greedy planter will always buy them, yet it is to be feared they will be very injurious to the country, which has already suffered many murders and robberies, the effect of that new law of England.

CHAPTER XVI.

OF THE BUILDINGS OF VIRGINIA.

§ 68. There are three fine public buildings in this country, which are said to be the most magnificent of any in the English America: one of which is the college before spoken of, another the capitol or state house, as it was formerly called; that is, the house for convention of the general assembly, for the sitting of the general court, for the meeting of the council, and for keeping of their several offices, belonging to them.

Not far from this, is also built the public prison of the country for criminals, which is a large and convenient structure, with partitions for the different sexes, and distinct rooms for petty offenders. To this is also annexed a convenient yard to air the criminals in, for the preservation of their life and health, till the time of their trial; and at the end of that, another prison for debtors.

The third is a house for the governor, not the largest, but by far the most beautiful of all the others. It was granted by the assembly in Governor Nott's time, begun in President Jennings' time, but received its beauty and conveniency for the many alterations and decorations, of the present governor, Colonel Spotswood; who, to the lasting honor and happiness of the country, arrived there, while this house was carrying up.

In his time was also built a new brick church, and brick magazine for arms and ammunition, and the streets of the town altered from the fanciful forms of Ws and Ms to much more conveniences.

These are all erected at Middle plantation, now named Williamsburg, where land is laid out for a town. They all are built of brick, and covered with shingle, except the debtors' prison which is flat roofed anew; a very useful invention of the present governor also.

§ 69. The private buildings are also in his time very much improved, several gentlemen there, having built themselves large brick houses of many rooms on a floor; but they don't covet to make them lofty, having extent enough of ground to build upon; and now and then they are visited by high winds, which would incommode a towering fabric. They love to have large rooms, that they may be cool in summer. Of late they have made their stories much higher than formerly, and their windows larger, and sashed with crystal glass; adorning their apartments with rich furniture.

All their drudgeries of cookery, washing, dairies, &c., are performed in offices apart from the dwelling houses, which by this means are kept more cool and sweet.

Their tobacco houses are all built of wood, as open and airy as is consistent with keeping out the rain; which sort of building is most convenient for the curing of their tobacco.

Their common covering for dwelling houses is shingle, which is an oblong square of cypress or pine wood; but they cover their tobacco houses with thin clap board; and though they have slate enough in some particular parts of the country, and as strong clay as can be desired for making of tile, yet they have very few tiled houses; neither has any one yet thought it worth his while to dig up the slate, which will hardly be made use of, till the carriage there becomes cheaper, and more common; the slate lying far up the frontiers above water carriage.

CHAPTER XVII.

OF THE EDIBLES, POTABLES, AND FUEL IN VIRGINIA.

§ 70. The families being altogether on country seats, they have their graziers, seedsmen, gardeners, brewers, bakers, butchers and cooks, within themselves. They have plenty and variety of provisions for their table; and as for spicery, and other things that the country don't produce, they have constant supplies of them from England. The gentry pretend to have their victuals dressed, and served up as nicely, as if they were in London.

§ 71. When I come to speak of their cattle, I can't forbear charging my countrymen with exceeding ill husbandry, in not providing sufficiently for them all winter, by which means they starve their young cattle, or at least stint their growth; so that they seldom or never grow so large as they would do, if they were well managed; for the humor is there, if people can but save the lives of their cattle, though they suffer them to be never so poor in the winter, yet they will presently grow fat again in the spring, which they esteem sufficient for their purpose. And this is the occasion, that their beef and mutton are seldom or never so large, or so fat as in England. And yet with the least feeding imaginable, they are put into as good case as can be desired; and it is the same with their hogs.

Their fish is in vast plenty and variety, and extraordinary good in their kind. Beef and pork are commonly sold there, from one penny, to two pence the pound, or more, according to the time of year; their fattest and largest pullets at sixpence a piece; their capons at eight pence or nine pence a piece; their chickens at three or four shillings the dozen; their ducks at eight pence, or nine pence a piece; their geese at ten pence or a shilling; their turkey hens at fifteen or eighteen pence; and their turkey cocks at two shillings or half a crown. But oysters and wild fowl are not so dear, as the things I have reckoned before, being in their season the cheapest victuals

they have. Their deer are commonly sold from five to ten shillings, according to the scarcity and goodness.

§ 72. The bread in gentlemen's houses is generally made of wheat, but some rather choose the pone, which is the bread made of Indian meal. Many of the poorer sort of people so little regard the English grain, that though they might have it with the least trouble in the world, yet they don't mind to sow the ground, because they won't be at the trouble of making a fence particularly for it. And, therefore, their constant bread is pone, not so called from the Latin panis, but from the Indian name oppone.

§ 73. A kitchen garden don't thrive better or faster in any part of the universe than there. They have all the culinary plants that grow in England, and in greater perfection than in England. Besides these, they have several roots, herbs, vine fruits, and salad flowers peculiar to themselves, most of which will neither increase nor grow to perfection in England. These they dish up various ways, and find them very delicious sauce to their meats, both roast and boiled, fresh and salt; such are the Indian cresses, red buds, sassafras flowers, cymlings, melons and potatoes, whereof I have spoken at large in the 4th chapter of the second book, section 20.

It is said of New England, that several plants will not grow there, which thrive well in England; such as rue, southernwood, rosemary, bays and lavender; and that others degenerate, and will not continue above a year or two at the most; such are July flowers, fennel, enula campana, clary and bloodwort. But I don't know any English plant, grain or fruit, that miscarries in Virginia: but most of them better their kinds very much by being sowed or planted there. It was formerly said of the red top turnip, that there, in three or four, years time, it degenerated into rape; but that happened merely by an error in saving the seed; for now it appears that if they cut off the top of such a turnip, that has been kept out of the ground all the winter, and plant that top alone without the body of the root, it yields a seed which mends the turnip in the next sowing.

§ 74. Their small drink is either wine and water, beer, milk and water, or water alone. Their richer sort generally brew their small beer with malt, which they have from England, though barley grows there very well; but for want of the convenience of malthouses, the inhabitants take no care to sow

it. The poorer sort brew their beer with molasses and bran; with Indian corn malted by drying in a stove; with persimmons dried in cakes, and baked; with potatoes; with the green stalks of Indian corn cut small, and bruised; with pompions, and with the batates canadensis, or Jerusalem artichoke, which some people plant purposely for that use; but this is the least esteemed of all the sorts before mentioned.

Their strong drink is Madeira wine, cider, mobby punch, made either of rum from the Caribbee islands, or brandy distilled from their apples and peaches; besides brandy, wine, and strong beer, which they have constantly from England.

§ 75. Their fuel is altogether wood, which every man burns at pleasure, it being no other charge to him than the cutting and carrying it home. In all new grounds it is such an incumbrance, that they are forced to burn great heaps of it to rid the land. They have very good pit coal (as is formerly mentioned) in several places of the country; but no man has yet thought it worth his while to make use of them, having wood in plenty, and lying more convenient for him.

CHAPTER XVIII.

OF THE CLOTHING IN VIRGINIA.

§ 76. They have their clothing of all sorts from England; as linen, woollen, silk, hats and leather. Yet flax and hemp grow no where in the world better than there. Their sheep yield good increase, and bear good fleeces; but they shear them only to cool them. The mulberry tree, whose leaf is the proper food of the silk worm, grows there like a weed, and silk worms have been observed to thrive extremely, and without any hazard. The very furs that their hats are made of perhaps go first from thence; and most of their hides lie and rot, or are made use of only for covering dry goods in a leaky house. Indeed, some few hides with much ado are tanned and made into servants' shoes, but at so careless a rate, that the planters don't care to buy them if they can get others; and sometimes perhaps a better manager than ordinary will vouchsafe to make a pair of breeches of a deerskin. Nay, they are such abominable ill husbands, that though their country be overrun with wood, yet they have all their wooden ware from England; their cabinets, chairs, tables, stools, chests, boxes, cart wheels, and all other things, even so much as their bowls and birchen brooms, to the eternal reproach of their laziness.

CHAPTER XIX.

OF THE TEMPERATURE OF THE CLIMATE, AND THE INCONVENIENCIES ATTENDING IT.

§ 77. The natural temperature of the inhabited part of the country is hot and moist, though this moisture I take to be occasioned by the abundance of low grounds, marshes, creeks and rivers, which are everywhere among their lower settlements; but more backward in the woods, where they are now seating, and making new plantations, they have abundance of high and dry land, where there are only crystal streams of water, which flow gently from their springs in innumerable branches to moisten and enrich the adjacent lands, and where a fog is rarely seen.

§ 78. The country is in a very happy situation, between the extremes of heat and cold, but inclining rather to the first. Certainly it must be a happy climate, since it is very near of the same latitude with the land of promise. Besides, as the land of promise was full of rivers and branches of rivers, so is Virginia. As that was seated upon a great bay and sea, wherein were all the conveniencies for shipping and trade, so is Virginia. Had that fertility of soil? So has Virginia, equal to any land in the known world. In fine, if any one impartially considers all the advantages of this country, as nature made it, he must allow it to be as fine a place as any in the universe, but I confess I am ashamed to say any thing of its improvements, because I must at the same time reproach my countrymen with unpardonable sloth. If there be any excuse for them in this matter, 'tis the exceeding plenty of good things with which nature has blest them; for where God Almighty is so merciful as to give plenty and ease, people easily forget their duty.

All the countries in the world, seated in or near the latitude of Virginia, are esteemed the fruitfulest and pleasantest of all climates. As for example, Canaan, Syria, Persia, great part of India, China and Japan, the Morea, Spain, Portugal, and the coast of Barbary, none of which differ many degrees of latitude from Virginia. These are reckoned the gardens of the

world, while Virginia is unjustly neglected by its own inhabitants, and abused by other people.

§ 79. That which makes this country most unfortunate, is, that it must submit to receive its character from the mouths not only of unfit, but very unequal judges; for all its reproaches happen after this manner.

Many of the merchants and others, that go thither from England, make no distinction between a cold and hot country; but wisely go sweltering about in their thick clothes all the summer, because forsooth they used to do so in their northern climate; and then unfairly complain of the heat of the country. They greedily surfeit with their delicious fruits, and are guilty of great intemperance therein, through the exceeding plenty thereof, and liberty given by the inhabitants; by which means they fall sick, and then unjustly complain of the unhealthiness of the country. In the next place, the sailors for want of towns there, were put to the hardship of rolling most of the tobacco, a mile or more, to the water side; this splinters their hands sometimes, and provokes them to curse the country. Such exercise and a bright sun made them hot, and then they imprudently fell to drinking cold water, or perhaps new cider, which, in its season they found in every planter's house; or else they greedily devour the green fruit, and unripe trash they met with, and so fell into fluxes, fevers, and the belly ache; and then, to spare their own indiscretion, they in their tarpaulin language, cry, God d——m the country. This is the true state of the case, as to the complaints of its being sickly; for, by the most impartial observation I can make, if people will be persuaded to be temperate, and take due care of themselves, I believe it is as healthy a country as any under heaven: but the extraordinary pleasantness of the weather, and plenty of the fruit, lead people into many temptations. The clearness and brightness of the sky, add new vigor to their spirits, and perfectly remove all splenetic and sullen thoughts. Here they enjoy all the benefits of a warm sun, and by their shady trees are protected from its inconvenience. Here all their senses are entertained with an endless succession of native pleasures. Their eyes are ravished with the beauties of naked nature. Their ears are serenaded with the perpetual murmur of brooks, and the thorough-base which the wind plays, when it wantons through the trees; the merry birds too, join their pleasing notes to this rural comfort, especially the mock birds, who love society so well, that often when they see mankind, they will perch upon a twig very near them, and

sing the sweetest wild airs in the world. But what is most remarkable in these melodious animals, if they see a man take notice of them, they will frequently fly at small distances, warbling out their notes from perch to perch, be it house or tree convenient, and sometimes too fly up, to light on the same again, and by their music make a man forget the fatigues of his mind. Men's taste is regaled with the most delicious fruits, which, without art, they have in great variety and perfection. And then their smell is refreshed with an eternal fragrancy of flowers and sweets, with which nature perfumes and adorns the woods and branches almost the whole year round.

Have you pleasure in a garden? All things thrive in it most surprisingly; you can't walk by a bed of flowers, but besides the entertainment of their beauty, your eyes will be saluted with the charming colors and curiosity of the humming bird, which revels among the flowers, and licks off the dew and honey from their tender leaves, on which it only feeds. Its size is not half so large as an English wren, and its color is a glorious shining mixture of scarlet, green and gold.

§ 80. On the other side, all the annoyances and inconveniences of the country may fairly be summed up, under these three heads, thunder, heat, and troublesome vermin.

I confess, in the hottest part of the summer, they have sometimes very loud and surprising thunder, but rarely any damage happens by it. On the contrary, it is of such advantage to the cooling and refining of the air, that it is oftener wished for than feared. But they have no earthquakes, which the Caribbee islands are so much troubled with.

Their heat is very seldom troublesome, and then only by the accident of a perfect calm, which happens perhaps two or three times in a year, and lasts but a few hours at a time; and even that inconvenience is made easy by cool shades, open airy rooms, summer houses, arbors, and grottos: but the spring and fall afford as pleasant weather as Mahomet promised in his paradise.

All the troublesome vermin that ever I heard anybody complain of, are either frogs, snakes, mosquitoes, chinchies, seed ticks, or red worms, by some called potato lice. Of all which I shall give an account in their order.

Some people have been so ill informed, as to say, that Virginia is full of toads, though there never yet was seen one toad in it. The marshes, fens, and watery grounds, are indeed full of harmless frogs which do no hurt, except by the noise of their croaking notes: but in the upper parts of the country, where the land is high and dry, they are very scarce. In these swamps and running streams, they have frogs of an incredible bigness, which are called bull frogs, from the roaring they make. Last year I found one of these near a stream of fresh water, of so prodigious a magnitude, that when I extended its legs, I found the distance betwixt them to be seventeen inches and an half. If any are good to eat, these must be the kind.

Some people in England are startled at the very name of the rattle snake, and fancy every corner of that province so much pestered with them, that a man goes in constant danger of his life, that walks abroad in the woods. But this is as gross a mistake, as most of the other ill reports of that country. For in the first place this snake is very rarely seen; and when that happens, it never does the least mischief, unless you offer to disturb it, and thereby provoke it to bite in its own defence. But it never fails to give you fair warning, by making a noise with its rattle, which may be heard at a convenient distance. For my own part I have traveled the country as much as any man in it of my age, by night and by day, above the inhabitants, well as among them; and yet before the first impression of this book I had never seen a rattle snake alive, and at liberty, in all my life. I had seen them indeed after they had been killed, or pent up in boxes to be sent to England. The bite of this viper without some immediate application is certainly death; but remedies are so well known, that none of their servants are ignorant of them. I never knew any killed by these, or any other of their snakes, although I had a general knowledge all over the country, and had been in every part of it. They have several other snakes which are seen more frequently, and have very little or no hurt in them, viz: such as they call black snakes, water snakes, and corn snakes. The black viper snake, and the copper-bellied snake, are said to be as venomous as the rattle snake, but they are as seldom seen; these three poisonous snakes bring forth their young alive, whereas the other three sorts lay eggs, which are hatched afterwards; and that is the distinction they make, esteeming only those to be venomous, which are viviparous. They have likewise the horn snake, so called from a sharp horn it carries in its tail, with which it assaults anything

that offends it, with that force, that as it is said it will strike its tail into the butt end of a musket, from which it is not able to disengage itself.

All sorts of snakes will charm both birds and squirrels, and the Indians pretend to charm them. Several persons have seen squirrels run down a tree directly into a snake's mouth; they have likewise seen birds fluttering up and down, and chattering at these snakes, till at last they have dropped down just before them.

In the end of May, 1715, stopping at an orchard by the road side to get some cherries, being three of us in company, we were entertained with the whole process of a charm between a rattle snake and a hare, the hare being better than half grown. It happened thus: one of the company in his search for the best cherries espied the hare sitting, and although he went close by her she did not move, till he, (not suspecting the occasion of her gentleness,) gave her a lash with his whip; this made her run about ten feet, and there sit down again. The gentleman not finding the cherries ripe, immediately returned the same way, and near the place where he struck the hare, he spied a rattle snake; still not suspecting the charm, he goes back about twenty yards to a hedge to get a stick to kill the snake, and at his return found the snake removed, and coiled in the same place from whence he had moved the hare. This put him into immediate thoughts of looking for the hare again, and he soon spied her about ten feet off the snake, in the same place to which she had started when he whipt her. She was now lying down, but would sometimes raise herself on her fore feet struggling as it were for life or to get away, but could never raise her hinder parts from the ground, and then would fall flat on her side again, panting vehemently. In this condition the hare and snake were when he called me; and though we all three came up within fifteen feet of the snake to have a full view of the whole, he took no notice at all of us, nor so much as gave a glance towards us. There we stood at least half an hour, the snake not altering a jot, but the hare often struggling and falling on its side again, till at last the hare lay still as dead for some time. Then the snake moved out of his coil, and slid gently and smoothly on towards the hare, his colors at that instant being ten times more glorious and shining than at other times. As the snake moved along, the hare happened to fetch another struggle, upon which the snake made a stop, laying at his length, till the hare had lain quiet again for a short space; and then he advanced again till he came up to the hinder parts of the hare, which

in all this operation had been towards the snake; there he made a survey all over the hare, raising part of his body above it, then turned off and went to the head and nose of the hare, after that to the ears, took the ears in his mouth one after the other, working each apart in his mouth as a man does a wafer to moisten it, then returned to the nose again, and took the face into his mouth, straining and gathering his lips sometimes by one side of his mouth, sometimes by the other; at the shoulders he was a long time puzzled, often hauling and stretching the hare out at length, and straining forward first one side of his mouth then the other, till at last he got the whole body into his throat. Then we went to him, and taking the twist band off from my hat, I made a noose and put it about his neck. This made him at length very furious, but we having secured him, put him into one end of a wallet, and carried him on horseback five miles to Mr. John Baylor's house, where we lodged that night, with a design to have sent him to Dr. Cock, at Williamsburg; but Mr. Baylor was so careful of his slaves that he would not let him be put into his boat, for fear he should get loose and mischief them; therefore, the next morning we killed him, and took the hare out of his belly. The head of the hare began to be digested and the hair falling off, having lain about eighteen hours in the snake's belly.

I thought this account of such a curiosity would be acceptable, and the rather because though I lived in a country where such things are said frequently to happen, yet I never could have any satisfactory account of a charm, though I have met with several persons who have pretended to have seen them. Some also pretend that those sort of snakes influence children, and even men and women, by their charms. But this that I have related of my own view, I aver, (for the satisfaction of the learned,) to be punctually true, without enlarging or wavering in any respect, upon the faith of a Christian.

In my youth I was a bear hunting in the woods above the inhabitants, and having straggled from my companions, I was entertained at my return, with the relation of a pleasant rencounter, between a dog and a rattle snake, about a squirrel. The snake had got the head and shoulders of the squirrel into his mouth, which being something too large for his throat, it took him up some time to moisten the fur of the squirrel with his spawl, to make it slip down. The dog took this advantage, seized the hinder parts of the squirrel, and tugged with all his might. The snake, on the other side, would not let go his

hold for a long time, till at last, fearing he might be bruised by the dog's running away with him, he gave up his prey to the dog. The dog ate the squirrel, and felt no harm.

Another curiosity concerning this viper, which I never met with in print, I will also relate from my own observation:

Sometime after my observation of the charm, my waiting boy being sent abroad on an errand, also took upon himself to bring home a rattle snake in a noose. I cut off the head of this snake, leaving about an inch of the neck with it. This I laid upon the head of a tobacco hogshead, one Stephen Lankford, a carpenter, now alive, being with me. Now you must note that these snakes have but two teeth, by which they convey their poison; and they are placed in the upper jaw, pretty forward in the mouth, one on each side. These teeth are hollow and crooked like a cock's spur. They are also loose or springing in the mouth, and not fastened in the jaw bone as all other teeth are. The hollow has a vent, also, through by a small hole a little below the point of the tooth. These two teeth are kept lying down along the jaw, or shut like a spring knife, and don't shrink up as the talons of a cat or panther. They have also over them a loose thin film or skin of a flesh color, which rises over them when they are raised, which I take to be only at the will of the snake to do injury. This skin does not break by the rising of the tooth only, but keeps whole till the bite is given, and then is pierced by the tooth, by which the poison is let out. The head being laid upon the hogshead, I took two little twigs or splinters of sticks, and having turned the head upon its crown, opened the mouth, and lifted up the fang or springing tooth on one side several times, in doing of which I at last broke the skin. The head gave a sudden champ with its mouth, breaking from my sticks, in which I observed that the poison ran down in a lump like oil, round the root of the tooth. Then I turned the other side of the head, and resolved to be more careful to keep the mouth open on the like occasion, and observe more narrowly the consequence. For it is observed, that though the heads of snakes, terrapins and such like vermin, be cut off, yet the body will not die in a long time after—the general saying is, till the sun sets. After opening the mouth on the other side, and lifting up that fang also several times, he endeavored to give another bite or champ; but I kept his mouth open, and the tooth pierced the film and emitted a stream like one full of blood in blood letting, and cast some drops upon the sleeve of the carpenter's shirt,

who had no waistcoat on. I advised him to pull off his shirt, but he would not, and received no harm; and tho' nothing could then be seen of it upon the shirt, yet in washing there appeared five green specks, which every washing appeared plainer and plainer, and lasted so long as the shirt did, which the carpenter told me was about three years after. The head we threw afterwards down upon the ground, and a sow came and eat it before our faces, and received no harm. Now I believe had this poison lighted upon any place of the carpenter's skin that was scratched or hurt, it might have poisoned him. I take the poison to rest in a small bag or receptacle, in the hollow at the root of these teeth; but I never had the opportunity afterwards to make a farther discovery of that.

I will likewise give you a story of the violent effects of this sort of poison, because I depend upon the truth of it, having it from an acquaintance of mine of good credit, one Colonel James Taylor, of Mattapony, still alive, he being with others in the woods a surveying. Just as they were standing to light their pipes, they found a rattle snake and cut off his head, and about three inches of the body. Then he, with a green stick which he had in his hand, about a foot and a half long, the bark being newly peeled off, urged and provoked the head, till it bit the stick in fury several times. Upon this the colonel observed small green streaks to rise up along the stick towards his hand. He threw the stick upon the ground, and in a quarter of hour the stick of its own accord split into several pieces, and fell asunder from end to end. This account I had from him again at the writing hereof.

Musquitoes are a sort of vermin of less danger, but much more troublesome, because more frequent. They are a long tailed gnat, such as are in all fens and low grounds in England, and I think have no other difference from them than the name. Neither are they in Virginia troubled with them anywhere but in their low grounds and marshes. These insects I believe are stronger, and continue longer there, by reason of the warm sun, than in England. Whoever is persecuted with them in his house, may get rid of them by this easy remedy: let him but set open his windows at sunset, and shut them again before the twilight be quite shut in. All the musquitoes in the room will go out at the windows, and leave the room clear.

Chinches are a sort of flat bug, which lurks in the bedsteads and bedding, and disturbs people's rest a nights. Every neat housewife contrives there, by

several devices, to keep her beds clear of them. But the best way I ever heard, effectually to destroy them, is by a narrow search among the bedding early in the spring, before these vermin begin to nit and run about; for they lie snug all the winter, and are in the spring large and full of the winter's growth, having all their seed within them; and so they become a fair mark to find, and may with their whole breed be destroyed; they are the same as they have in London near the shipping.

Seed tick, and red worms are small insects, that annoy the people by day, as musquitoes and chinchies do by night; but both these keep out of your way, if you keep out of theirs; for seed ticks are no where to be met with, but in the track of cattle, upon which the great ticks fatten, and fill their skins so full of blood, that they drop off, and wherever they happen to fall, they produce a kind of egg, which lies about a fortnight before the seedlings are hatched. These seedlings run in swarms up the next blade of grass that lies in their way; and then the first thing that brushes that blade of grass, gathers off most of these vermin, which stick like burs upon anything that touches them. They void their eggs at the mouth.

Red worms lie only in old dead trees, and rotten logs; and without sitting down upon such, a man never meets with them, nor at any other season, but only in the midst of summer. A little warm water immediately brings off both seed ticks and red worms, though they lie ever so thick upon any part of the body. But without some such remedy they will be troublesome; for they are so small that nothing will lay hold of them, but the point of a penknife, needle, or such like. But if nothing be done to remove them, the itching they occasion goes away after two days.

§ 81. Their winters are very short, and don't continue above three or four months, of which they have seldom thirty days of unpleasant weather, all the rest being blest with a clear air, and a bright sun. However, they have very hard frost sometimes, but it rarely lasts above three or four days, that is, till the wind change: for if it blow not between the north and north-west points, from the cold Appalachian mountains, they have no frost at all. But these frosts are attended with a serene sky, and are otherwise made delightful by the tameness of the wild fowl and other game, which by their incredible number, afford the pleasantest shooting in the world.

Their rains, except in the depth of winter, are extremely agreeable and refreshing. All the summer long they last but a few hours at a time, and sometimes not above half an hour, and then immediately succeeds clear sunshine again. But in that short time it rains so powerfully, that it quits the debt of a long drought, and makes everything green and gay.

I have heard that this country is reproached with sudden and dangerous changes of weather, but that imputation is unjust; for tho' it be true, that in the winter, when the wind comes over those vast mountains and lakes to the north-west, which are supposed to retain vast magazines of ice, and snow, the weather is then very rigorous; yet in spring, summer and autumn, such winds are only cool and pleasant breezes, which serve to refresh the air, and correct those excesses of heat, which the situation would otherwise make that country liable to.

CHAPTER XX.

OF THE DISEASES INCIDENT TO VIRGINIA.

§ 82. While we are upon the climate, and its accidents, it will not be improper to mention the diseases incident to Virginia. Distempers come not there by choaking up the spirits, with a foggy and thick air, as in some northern climes; nor by a stifling heat, that exhales the vigor of those that dwell in a more southerly latitude: but by a willful and foolish indulging themselves in those pleasures, which in a warm and fruitful country, nature lavishes upon mankind, for their happiness, and not for their destruction.

Thus I have seen persons impatient of heat, lie almost naked upon the cold grass in the shades, and there, often forgetting themselves, fall asleep. Nay, many are so imprudent, as to do this in an evening, and perhaps lie so all night; when between the dew from heaven, and the damps from the earth, such impressions are made upon the humors of their body, as occasion fatal distempers.

Thus also have I seen persons put into a great heat by excessive action, and in the midst of that heat, strip off their clothes, and expose their open pores to the air. Nay, I have known some mad enough in this hot condition, to take huge draughts of cold water, or perhaps of milk and water, which they esteem much more cold in operation than water alone.

And thus likewise have I seen several people, (especially new-comers,) so intemperate in devouring the pleasant fruits, that they have fallen into dangerous fluxes and surfeits. These, and such like disorders, are the chief occasions of their diseases.

§ 83. The first sickness that any new-comer happens to have there, he unfairly calls a seasoning, be it fever, ague, or any thing else, that his own folly or excesses bring upon him.

Their intermitting fevers, as well as their agues, are very troublesome, if a fit remedy be not applied; but of late the doctors there have made use of the Cortex Peruviana with success, and find that it seldom or never fails to remove the fits. The planters, too, have several roots natural to the country, which in this case they cry up as infallible; and I have found by many examples a total immersion in cold spring water, just at the accession of the fit an infallible cure.

§ 84. When these damps, colds and disorders affect the body more gently, and do not seize people violently at first; then for want of some timely application, (the planters abhorring all physic, except in desperate cases,) these small disorders are suffered to go on, until they grow into a cachexia, by which the body is overrun with obstinate scorbutic humors. And this in a more fierce, and virulent degree, I take to be the yaws.

§ 85. The gripes is a distemper of the Caribbee islands, not of that country, and seldom gets footing there, and then only upon great provocations; namely, by the intemperance before mentioned, together with an unreasonable use of filthy and unclean drinks. Perhaps too it may come by new unfine cider, perry or peach drink, which the people are impatient to drink before it is ready; or by the excessive use of lime juice, and foul sugar in punch and flip; or else by the constant drinking of uncorrected beer, made of such windy unwholesome things as some people make use of in brewing.

Thus having fairly reckoned up the principal inconveniences of the climate, and the distempers incident to the country, I shall add a chapter of the recreations and amusements used there, and proceed to the natural benefits they enjoy. After which, I shall conclude with some hints concerning their trade and improvements.

CHAPTER XXI.

OF THE RECREATIONS AND PASTIMES USED IN VIRGINIA.

§ 86. For their recreation, the plantations, orchards and gardens constantly afford them fragrant and delightful walks. In their woods and fields, they have an unknown variety of vegetables, and other rarities of nature to discover and observe. They have hunting, fishing and fowling, with which they entertain themselves an hundred ways. There is the most good nature and hospitality practiced in the world, both towards friends and strangers: but the worst of it is, this generosity is attended now and then with a little too much intemperance. The neighborhood is at much the same distance as in the country in England; but the goodness of the roads, and the fairness of the weather, bring people often together.

§ 87. The Indians, as I have already observed, had in their hunting, a way of concealing themselves, and coming up to the deer, under the blind of a stalking head, in imitation of which, many people have taught their horses to stalk it, that is, to walk gently by the huntsman's side, to cover him from the sight of the deer. Others cut down trees for the deer to browse upon, and lie in wait behind them. Others again set stakes, at a certain distance within their fences, where the deer have been used to leap over into a field of peas, which they love extremely; these stakes they so place, as to run into the body of the deer, when he pitches, by which means they impale him; and for a temptation to the leap take down the top part of the fence.

§ 88. They hunt their hares, (which are very numerous,) a foot, with mongrels or swift dogs, which either catch them quickly, or force them to hole in a hollow tree, whither all their hares generally tend when they are closely pursued. As soon as they are thus holed, and have crawled up into the body of the tree, the business is to kindle a fire, and smother them with smoke, till they let go their hold, and fall to the bottom stifled; from whence they take them. If they have a mind to spare their lives, upon turning them

loose, they will be as fit as ever to hunt at another time; for the mischief done them by the smoke immediately wears off again.

§ 89. They have another sort of hunting, which is very diverting, and that they call vermin hunting; it is performed a foot, with small dogs in the night, by the light of the moon or stars. Thus in summer time they find abundance of raccoons, opossums and foxes in the corn fields, and about their plantations: but at other times they must go into the woods for them. The method is to go out with three or four dogs, and as soon as they come to the place they bid the dogs seek out, and all the company follow immediately. Wherever a dog barks, you may depend upon finding the game; and this alarm draws both men and dogs that way. If this sport be in the woods, the game, by the time you come near it, is perhaps mounted to the top of an high tree, and then they detach a nimble fellow up after it, who must have a scuffle with the beast before he can throw it down to the dogs; and then the sport increases, to see the vermin encounter those little curs. In this sort of hunting, they also carry their great dogs out with them; because wolves, bears, panthers, wild cats, and all other beasts of prey, are abroad in the night.

For wolves they make traps and set guns baited in the woods, so that when he offers to seize the bait, he pulls the trigger, and the gun discharges upon him. What Ælian and Pliny write, of the horses being benumbed in their legs, if they tread in the track of a wolf, does not hold good here; for I myself, and many others, have rid full speed after wolves in the woods, and have seen live ones taken out of a trap, and dragged at a horse's tail; and yet those that followed on horse back, have not perceived any of their horses to falter in their pace.

§ 90. They have many pretty devices besides the gun to take wild turkeys; and among others, a friend of mine invented a great trap, wherein he at times caught many turkeys, and particularly seventeen at one time; but he could not contrive it so as to let others in, after he had entrapped the first flock, until they were taken out.

§ 91. The Indian invention of weirs in fishing is mightily improved by the English, besides which they make use of seines, trolls, casting nets, setting nets, hand fishing and angling, and in each find abundance of diversion. I

have sat in the shade at the heads of the rivers angling, and spent as much time in taking the fish off the hook as in waiting for their taking it. Like those of the Euxine sea, they also fish with spilyards, which is a long line staked out in the river, and hung with a great many hooks on short strings, fastened to the main line, about three or four feet asunder, supported by stakes, or buoyed up with gourds. They use likewise the Indian way of striking the light of a fire in the night, as is described in the second book, chapter 5, section 23.

§ 92. Their fowling is answerable to their fishing for plenty of game in its proper season. Some plantations have a vast variety of it, several sorts of which I have not yet mentioned, as beaver, otter, squirrels, partridges, pigeons, and an infinite number of small birds, &c.

§ 93. The admirable economy of the beavers deserves to be particularly remembered. They cohabit in one house are incorporated in a regular form of government, something like monarchy, and have over them a superintendent, which the Indians call pericu. He leads them out to their several employments, which consist in felling of trees, biting off the branches, and cutting them into certain lengths, suitable to the business they design them for, all which they perform with their teeth. When this is done, the pericu orders several of his subjects to join together, and take up one of those logs, which they must carry to their house or dam, as occasion requires. He walks in state by them all the while, and sees that every one bears his equal share of the burthen; while he bites with his teeth, and lashes with his tail, those that lag behind, and do not lend all their strength; their way of carriage is upon their tail. They commonly build their houses in swamps, and then to raise the water to a convenient height, they make a dam with logs, and a binding fort of clay, so firm, that though the water runs continually over, it cannot wash it away. Within these dams they'll inclose water enough to make a pool like a mill pond; and if a mill happen to be built on the same stream, below their dam, the miller, in a dry season, finds it worth his while to cut it, to supply his mill with water. Upon which disaster the beavers are so expert at their work, that in one or two nights' time they will repair the breach, and make it perfectly whole again. Sometimes they build their houses in a broad marsh, where the tide ebbs and flows, and then they make no dam at all. The doors into their houses are under water. I have been at the demolishing of one of these houses, that was

found in a marsh, and was surprised to find it fortified with logs, that were six feet long, and ten inches through, and had been carried at least one hundred and fifty yards. This house was three stories high, and contained five rooms, that is to say, two in the lower, two in the middle story, and but one at the top. These creatures have a great deal of policy, and know how to defeat all the subtilty and stratagems of the hunter, who seldom can meet with them, tho' they are in great numbers all over the country.

§94. There is yet another kind of sport, which the young people take great delight in, and that is, the hunting of wild horses; which they pursue sometimes with dogs, and sometimes without. You must know they have many horses foaled in the woods of the uplands, that never were in hand, and are as shy as any savage creature. These having no mark upon them, belong to him that first takes them. However, the captor commonly purchases these horses very dear, by spoiling better in the pursuit; in which case he has little to make himself amends, besides the pleasure of the chase. And very often this is all he has for it; for the wild horses are so swift, that 'tis difficult to catch them; and when they are taken, 'tis odds but their grease is melted, or else being old, they are so sullen, that they can't be tamed.

§ 95. The inhabitants are very courteous to travelers, who need no other recommendation, but the being human creatures. A stranger has no more to do, but to enquire upon the road, where any gentleman or good housekeeper lives, and there he may depend upon being received with hospitality. This good nature is so general among their people, that the gentry, when they go abroad, order their principal servant to entertain all visitors, with everything the plantation affords. And the poor planters, who have but one bed, will very often sit up, or lie upon a form or couch all night, to make room for a weary traveler, to repose himself after his journey.

If there happen to be a churl, that either out of covetousness, or ill nature, won't comply with this generous custom, he has a mark of infamy set upon him, and is abhorred by all.

CHAPTER XXII.

OF THE NATURAL PRODUCTS OF VIRGINIA, AND THE ADVANTAGES OF THEIR HUSBANDRY.

§ 96. The extreme fruitfulness of that country, has been sufficiently shown in the second book, and I think we may justly add, that in that particular it is not exceeded by any other. No seed is sown there, but it thrives; and most of the northern plants are improved, by being transplanted thither. And yet there's very little improvement made among them, seldom anything used in traffic but tobacco.

Besides all the natural productions mentioned in the second book, you may take notice that apples from the seed never degenerate into crabs there, but produce as good or perhaps better fruit than the mother tree, (which is not so in England,) and are wonderfully improved by grafting and managing; yet there are very few planters that graft at all, and much fewer that take any care to get choice fruits.

The fruit trees are wonderfully quick of growth; so that in six or seven years time from the planting, a man may bring an orchard to bear in great plenty, from which he may make store of good cider, or distill great quantities of brandy; for the cider is very strong, and yields abundance of spirit. Yet they have very few, that take any care at all for an orchard; nay, many that have good orchards are so negligent of them as to let them go to ruin, and expose the trees to be torn and barked by the cattle.

Peaches, nectarines, and apricots, as well as plumbs and cherries, grow there upon standard trees. They commonly bear in three years from the stone, and thrive so exceedingly, that they seem to have no need of grafting or inoculating, if any body would be so good a husband; and truly I never heard of any that did graft either plum, nectarine, peach or apricot in that country, before the first edition of this book.

Peaches and nectarines I believe to be spontaneous, somewhere or other on that continent, for the Indians have, and ever had greater variety, and finer sorts of them than the English. The best sort of these cling to the stone, and will not come off clear, which they call plum nectarines, and plum peaches, or cling stones. Some of these are twelve or thirteen inches in the girth. These sorts of fruits are raised so easily there, that some good husbands plant great orchards of them, purposely for their hogs; and others make a drink of them, which they call mobby, and either drink it as cider, or distill it off for brandy. This makes the best spirit next to grapes.

Grape vines of the English stock, as well as those of their own production, bear most abundantly, if they are suffered to run near the ground, and increase very kindly by slipping; yet very few have them at all in their gardens, much less endeavor to improve them by cutting or laying. But since the first impression of this book, some vineyards have been attempted, and one is brought to perfection, of seven hundred and fifty gallons a year. The wine drinks at present greenish, but the owner doubts not of good wine, in a year or two more, and takes great delight that way.

When a single tree happens in clearing the ground, to be left standing, with a vine upon it, open to the sun and air, that vine generally produces as much as four or five others, that remain in the woods. I have seen in this case, more grapes upon one single vine, than would load a London cart. And for all this, the people till of late never removed any of them into their gardens, but contented themselves throughout the whole country with the grapes they found thus wild.

A garden is no where sooner made than there, either for fruits or flowers. Tulips from the seed, flower the second year. All sorts of herbs have there a perfection in their flavor, beyond what I ever tasted in a more northern climate. And yet they haven't many gardens in that country, fit to bear the name of garden.

§ 97. All sorts of English grain thrive, and increase there, as well as in any other part of the world, as for example, wheat, barley, oats, rye, peas, rape, &c. And yet they don't make a trade of any of them. Their peas indeed are troubled with weevils, which eat a hole in them, but this hole does neither

damage the seed, nor make the peas unfit for boiling. And such as are sowed late, and gathered after August, are clear of that inconvenience.

It is thought too much for the same man, to make the wheat, and grind it, bolt it, and bake it himself. And it is too great a charge for every planter, who is willing to sow barley, to build a malt house, and brew house too, or else to have no benefit of his barley; nor will it answer, if he would be at the charge. These things can never be expected from a single family; but if they had cohabitations, it might be thought worth attempting. Neither as they are now settled, can they find any certain market for their other grain, which, if they had towns, would be quite otherwise.

Rice has been tried there, and is found to grow as well as in Carolina; but it labors under the same inconvenience, the want of a community to husk and clean it, and, after all, to take it off the planter's hands.

§ 98. I have related at large in the first book how flax, hemp, cotton, and the silk worms have thriven there in the several essays made upon them; how formerly there was encouragement given for making of linen, silk, &c., and how all persons not performing several things towards producing of them were put under a fine; but now all encouragement of such things is taken away or entirely dropped by the assemblies, and such manufactures are always neglected when tobacco bears anything of a price.

Silk grass is there spontaneous in many places. I need not mention what advantage may be made of so useful a plant, whose fibres are as fine as flax, and much stronger than hemp. Mr. Purchase tells us, in his Fourth Pilgrim, page 1786, that in the first discovery of this part of the world they presented Queen Elizabeth with a piece of grogram that had been made of it. And yet to this day they make no manner of use of this plant, no, not so much as the Indians did, before the English came among them, who then made their baskets, fishing nets, and lines of it.

§ 99 The sheep increase well, and bear good fleeces; but they generally are suffered to be torn off their backs by briars and bushes, instead of being shorn, or else are left rotting upon the dunghill with their skins.

Bees thrive there abundantly, and will very easily yield to the careful housewife a full hive of honey, and besides lay up a winter store sufficient

to preserve their stocks.

The beeves, when any care is taken of them in the winter, come to good perfection. They have noble marshes there, which, with the charge of draining only, would make as fine pastures as any in the world; and yet there is hardly an hundred acres of marsh drained throughout the whole country.

Hogs swarm like vermin upon the earth, and are often accounted such, insomuch, that when an inventory of any considerable man's estate is taken by the executors the hogs are left out, and not listed in the appraisement. The hogs run where they list, and find their own support in the woods, without any care of the owner; and in many plantations it is well if the proprietor can find and catch the pigs, or any part of a farrow, when they are young to mark them; for if there be any marked in a gang of hogs, they determine the propriety of the rest, because they seldom miss their gangs; but as they are bred in company, so they continue to the end, except sometimes the boars ramble.

§ 100. The woods produce great variety of incense and sweet gums, which distill from several trees; as also trees bearing honey and sugar, as before was mentioned. Yet there's no use made of any of them, either for profit or refreshment.

All sorts of naval stores may be produced there, as pitch, tar, rosin, turpentine, plank, timber, and all sorts of masts and yards, besides sails, cordage and iron, and all these may be transported by an easy water carriage.

§ 101. These, and a thousand other advantages, that country naturally affords, which its inhabitants make no manner of use of. They can see their naval stores daily benefit other people, who send thither to build ships, while they, instead of promoting such undertakings among themselves, and easing such as are willing to go upon them, allow them no manner of encouragement, but rather the contrary. They receive no benefit, nor refreshment, from the sweets and precious things they have growing amongst them, but make use of the industry of England for all such things.

What advantages do they see the neighboring plantations make of their grain and provisions, while they, who can produce them infinitely better, not only neglect the making a trade thereof, but even a necessary provision against an accidental scarcity, contenting themselves with a supply of food from hand to mouth; so that if it should please God to send them an unseasonable year, there would not be found in the country provision sufficient to support the people for three months extraordinary.

By reason of the unfortunate method of the settlement, and want of cohabitation, they cannot make a beneficial use of their flax, hemp, cotton, silk, silk grass and wool, which might otherwise supply their necessities, and leave the produce of tobacco to enrich them, when a gainful market can be found for it.

Thus, they depend altogether upon the liberality of nature, without endeavoring to improve its gifts by art or industry. They sponge upon the blessings of a warm sun, and a fruitful soil, and almost grudge the pains of gathering in the bounties of the earth. I should be ashamed to publish this slothful indolence of my countrymen, but that I hope it will sometime or other rouse them out of their lethargy, and excite them to make the most of all those happy advantages which nature has given them; and if it does this, I am sure they will have the goodness to forgive me.

FINIS.

Transcriber's Note:

1. The author or printer has irregularly capitalized references to "king" and queen".
2. Illustrations: printers inconsistencies have been retained. (ex. Ritchie and Ritchies, Fig: and Fig., etc.)
3. Printer's correction:

pg. x Table of Contents Chapter VI. §22., pg ref. 140 to 147.

4. Spelling corrections (verified by multiple uses of correctly spelled word elsewhere in text)

pg. vi - "jr." to "Jr." (Nathan Bacon, Jr.)

pg. vi - "procecute" to "prosecute" (intends to prosecute)

pg. xviii - "abridgment" to "abridgement" (made an abridgement)

pg. xix - "Guina" to "Guiana" (brough by some Guiana ships)

pg. 1 - "malecontents" to "malcontents" (malcontents in the)

pg. 3 - "Beverly" to "Beverley" (mainly to Robert Beverley)

pg. 12 - "Cheaspeake" to "Chesapeake" (cape of Chesapeake bay)

pg. 26 - "Burmuda" to "Bermuda" (put to sea from Bermuda)

pg. 28 - "palisado" to "palisade" (run a palisade on)

pg. 31 - "christianity" to "Christianity" (to us and Christianity)

pg. 36 - "settlement" to "settlement" (settlement at Port Royal)

pg. 38 - "foundatian" to "foundation" (which laid the foundation)

pg. 50 - "Carribbee" to "Caribbee" (the Caribbee islands)

pg. 66 - "againt" to "against" (against the presented arms)

pg. 70 - "butcheriug" to "butchering" (in butchering the English)

pg. 76 - "Fitz-Hugh" to "Fitzhugh" (Col. William Fitzhugh)

pg. 84 - "forbiding" to "forbidding" (forbidding the plantations)

pg. 97 - "chesnuts" to "chestnuts" (are stored with chestnuts)

pg. 105 - "ripen" to "ripens" (buds, ripens and drops off)

pg. 118 - "eat" to "eaten" (had ever eaten before)

pg. 118 - "frog fish" to "frog-fish" (saw-fish, toad-fish, frog-fish)

pg. 118 - "feets" to "feet" (it wants feet and wings)

pg. 120 - "eagel" to "eagle" (a bald eagle pursuing)

pg. 136 - "our" to "out" (keep out wild beasts)

pg. 140 - "Hazlenuts" to "Hazelnuts" (Hazelnuts they will not)

pg. 143 - "the" to "they" (they daub with clay)

pg. 146 - "steem" to "esteem" (They steem it a breach)

pg. 157 - "extingush" to "extinguish" (flames that never extinguish)

pg. 160 - "undestand" to "understand" (letting him understand)

pg. 163 - "dont" to "don't" (I don't know)

pg. 171 - "scarrifying" to "scarifying" (and scarifying which)

pg. 172 - "Purchass" to "Purchase" (Smith, Purchase and De Laet)

pg. 172 - "saplins" to "saplings" (stick saplings into the ground)

pg. 173 - "anchuse" to "anchusa" (a kind of anchusa)

pg. 174 - "vermine" to "vermin" (other troublesome vermin)

pg. 189 - "Cinchley's" to "Cincheley's" (Jeffery's and Cincheley's)

pg. 191 - "aws" to "laws" (The laws having duly passed)

pg. 197 - "Petes" to "Peter" (Hon. Peter Beverley)

pg. 208 - "nonapperance" to "nonappearance" (the defendant's nonappearance)

pg. 215 - "Spottswood" to "Spotswood" (arrival of Colonel Spotswood)

pg. 234 - "coveniency" to "conveniency" (its beauty and conveniency)

pg. 235 - "daries" to "dairies" (cookery, washing, dairies,)

pg. 237 - "sallad" to "salad" (vine fruits, and salad flowers)

pg. 241 - "imtemperance" to "intemperance" (of great intemperance)

pg. 247 - "eat" to "ate" (The dog ate the squirrel)
pg. 251 - "Apalachain" to "Appalachain" (Appalachain mountains)
pg. 253 - "cachexie" to "cachexia" (grow into a cachexia)
pg. 256 - "patridges" to "partridges" (squirrels, partridges, pigeons,)
pg. 257 - "they'l" to "they'll" (Within these dams they'll)
pg. 259 - "stong" to "strong" (cider is very strong)
pg. 261 - "havn't" to "haven't" (they haven't many gardens)
pg. 262 - "Purchass" to "Purchase" (Mr. Purchase tells us)
pg. 264 - "spunge" to "sponge" (They sponge upon the)

5. A list of word variations wherein both appear in this text and have been retained as printed.

"Edmond Jennings" and "Edmund Jenings"

"Tab." and "tab."

"lime juice" and "lime-juice"

"acknowledgment" and "acknowledgement"

"Chickahominy" (for river and county) and "Chickahomony" (for place)

"cover" and "covert" (i.e. covert of a shady tree)

"conjuror(s)" and "conjurer(s)"

"Culpepper" (throughout Introduction) and "Colepepper" (regular Text)

"divers" and "diverse" (divers sectaries in religion)

"firewood" and "fire-wood"

"fishing hawk" and "fishing-hawk"

"Harriot" and "Heriot" (it is unclear if the author refers to the same person)

"lieutenant governor (general)" and "lieutenant-governor (-general)"

"man of war" and "man-of-war"

"northwest" and "north-west"

"Oldmixon" and "Oldmixon" (proper name)

"one half" and "one-half"

"Pocoson" and "Poquoson" (place)

"Pungoteague" and "Pungotegue" (place)

"quioccasan" (1), "quioccassan" (2) and "quioccosan" (1)

"quitrents" and "quit-rents"

"resettled" and "re-settled"

"roasting ear" and "roasting-ear"

"savanna" and "savannah"

"silk worm" and "silk-worm"

"south west" and "south-west"

"staid" and "stayed" (used interchangeably by author)

"subdivisions" and "sub-divisions"

"sweet scented" and "sweet-scented"

"sweet woods" and "sweet-woods"

"timber trees" and "timber-trees"

"traveled" and "travelled"

"traveling" and "travelling"

"turkeys" and "turkies"

"war captain" and "war-captain"

"water carriage" and "water-carriage"

"water side" and "water-side"

"wild geese" and "wild-geese"

"wilful" and "willful"

"woolen" and "woollen"

"George Yardley" and "George Yardly"

6. Defined archaic words appearing in this text:

"benumbed" (benumbed)

"burthen" (burden)

"burthensome" (burdensome)

"choaking" (choking)

"chrystal" (crystal)

"covert" (protected; sheltered)

"disperst" (dispersed)

"divers" (diverse)

"intire" (entire)

"mascarado" (var. of mascarade(Fr) for masquerade)

"sneer" (sneer)

"subtilty" (subtlety)

"virtuosi" (pl. of virtuoso, alt. virtuosi)

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